SUPPLEMENT NO. 35
September 2025

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 377, adopted January 13, 2025.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xv—xix	xv—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
CD7:1	CD7:1
	CD7:3—CD7:7
CD16:1	CD16:1
CD16:3—CD16:15	CD16:3—CD16:7
CD32:3—CD32:6.1	CD32:3, CD32:4
CD36:1—CD36:163	CD36:1
CCT:11, CCT:12	CCT:11, CCT:12
SLT:1—SLT:3	SLT:1—SLT:3
CDi:1—CDi:49	CDi:1—CDi:33

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SUPPLEMENT NO. 34
January 2024

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 372, adopted July 10, 2023.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
CD32:15—CD32:16.1	CD32:15—CD32:16.1
CCT:11, CCT:12	CCT:11, CCT:12

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SUPPLEMENT NO. 33
March 2022

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 365, adopted November 8, 2021.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Title Page	Title Page
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
CD6:1—CD6:4.1	CD6:1—CD6:4.1
CCT:11, CCT:12	CCT:11, CCT:12
CDi:2.1—CDi:8	CDi:3—CDi:8
CDi:18.1—CDi:20.1	CDi:19—CDi:20.1
CDi:24.1—CDi:26	CDi:25, CDi:26

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SUPPLEMENT NO. 32
November 2021

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 363, adopted September 27, 2021.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xv—xix	xv—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
CD10:1, CD10:2	CD10:1, CD10:2
CD10:27, CD10:28	CD10:27—CD10:34
CD12:1, CD12:2	CD12:1, CD12:2
CD12:29, CD12:30	CD12:29—CD12:32
CD32:15—CD32:16.1	CD32:15—CD32:16.1
CCT:11, CCT:12	CCT:11, CCT:12
SLT:1—SLT:3	SLT:1—SLT:3
CDi:1, CDi:2	CDi:1—CDi:2.1
CDi:9—CDi:12	CDi:9—CDi:12.1
CDi:17, CDi:18	CDi:17—CDi:18.1
CDi:23, CDi:24	CDi:23—CDi:24.1

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SUPPLEMENT NO. 31
May 2021

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 358, adopted March 8, 2021.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1, SH:2
CD4:3—CD4:8	CD4:3—CD4:8
CCT:11, CCT:12	CCT:11, CCT:12

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SUPPLEMENT NO. 30
October 2020

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 354, adopted September 14, 2020.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xv—xix	xv—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
CD6:1—CD6:4	CD6:1—CD6:4.1
CD10:1, CD10:2	CD10:1, CD10:2
CD10:21, CD10:22	CD10:21—CD10:28
CCT:11, CCT:12	CCT:11, CCT:12
SLT:1—SLT:3	SLT:1—SLT:3
CDi:3—CDi:4.1	CDi:3—CDi:4.1
CDi:7—CDi:10	CDi:7—CDi:10.1
CDi:19—CDi:20.1	CDi:19—CDi:20.1
CDi:25—CDi:30	CDi:25—CDi:30.1

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SUPPLEMENT NO. 29
July 2020

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 353, adopted May 11, 2020.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
CD8:5—CD8:7	CD8:5—CD8:7
CCT:11, CCT:12	CCT:11, CCT:12

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SUPPLEMENT NO. 28
December 2019

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 351, adopted December 9, 2019.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
CD16:1—CD16:8.1	CD16:1—CD16:8.2
CCT:11, CCT:12	CCT:11, CCT:12
CDi:15, CDi:16	CDi:15, CDi:16

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SUPPLEMENT NO. 27
April 2019

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 340, adopted January 14, 2019.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xv—xix	xv—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
CD19:1	CD19:1—CD19:3
CCT:11, CCT:12	CCT:11, CCT:12
SLT:3	SLT:3
CDi:17—CDi:20	CDi:17—CDi:20.1

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SUPPLEMENT NO. 26
July 2018

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 339, adopted June 25, 2018.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xv—xix	xv—xix
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:1	SH:1
CD6:1	CD6:1
CD6:3—CD6:6	CD6:3—CD6:10
CD16:1	CD16:1
CD16:3—CD16:8.1	CD16:3—CD16:8.1
CCT:11	CCT:11, CCT:12
SLT:1—SLT:3	SLT:1—SLT:3
CDi:1—CDi:4	CDi:1—CDi:4.1
CDi:13—CDi:18	CDi:13—CDi:18
CDi:23, CDi:24	CDi:23, CDi:24

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SUPPLEMENT NO. 25
January 2018

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 328, adopted November 13, 2017.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
CD32:1, CD32:2	CD32:1, CD32:2
CD32:15, CD32:16	CD32:15—CD32:16.1
CD32:25, CD32:26	CD32:25, CD32:26
CCT:11	CCT:11
CDi:17, CDi:18	CDi:17, CDi:18
CDi:35, CDi:36	CDi:35, CDi:36

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SUPPLEMENT NO. 24
April 2017

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 317, adopted September 26, 2016.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xv—xix	xv—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
CD2:1, CD2:2	CD2:1, CD2:2
CD2:7, CD2:8	CD2:7—CD2:8.2
CD4:1	CD4:1
CD4:3—CD4:6	CD4:3—CD4:8
CCT:11	CCT:11
SLT:1—SLT:3	SLT:1—SLT:3
CDi:1—CDi:18	CDi:1—CDi:18
CDi:25—CDi:34	CDi:25—CDi:34

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SUPPLEMENT NO. 23
August 2015

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 306, adopted June 22, 2015.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
CD10:3—CD10:6	CD10:3—CD10:6.1
CD26:1	CD26:1
CD26:7, CD26:8	CD26:7, CD26:8
CCT:11	CCT:11
CDi:29, CDi:30	CDi:29, CDi:30

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SUPPLEMENT NO. 22
February 2015

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 302, adopted November 24, 2014.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xv—xviii	xv—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
CD2:5—CD2:6.1	CD2:5, CD2:6
CD10:9—CD10:14	CD10:9—CD10:14.1
CCT:11	CCT:11

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SUPPLEMENT NO. 21
June 2014

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 298, adopted March 24, 2014.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
CD16:5, CD16:6	CD16:5, CD16:6
CCT:11	CCT:11

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SUPPLEMENT NO. 20
March 2014

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 297, adopted January 27, 2014.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xv—xviii	xv—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
CD10:1	CD10:1, CD10:2
CD10:13	CD10:13—CD10:22
CCT:11	CCT:11
CDi:1—CDi:8	CDi:1—CDi:8.1
CDi:37, CDi:38	CDi:37, CDi:38

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SUPPLEMENT NO. 19
May 2011

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 279, adopted March 14, 2011.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xv—xviii	xv—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
	SH:1(following checklist of up-to-date pages)
CD12:1—CD12:22	CD12:1—CD12:18
CCT:11	CCT:11
SLT:1—SLT:3	SLT:1—SLT:3
CDi:1—CDi:16	CDi:1—CDi:16
CDi:21, CDi:22	CDi:21, CDi:22
CDi:27—CDi:30	CDi:27—CDi:30
CDi:35—CDi:38	CDi:35—CDi:38

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SUPPLEMENT NO. 18
October 2010

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 276, adopted August 23, 2010.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xv—xviii	xv—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD10:1	CD10:1
CD10:3—CD10:11	CD10:3—CD10:13
CD12:1, CD12:2	CD12:1, CD12:2
CD12:21, CD12:22	CD12:21—CD12:30
CD14:5, CD14:6	CD14:5, CD14:6
CD24:3, CD24:4	CD24:3, CD24:4
CD30:1	CD30:1
CD30:13, CD30:14	CD30:13—CD30:18
CD36:9—CD36:18.1	CD36:9—CD36:18.4
CD36:27—CD36:28.2	CD36:27—CD36:28.2
CD36:35—CD36:44	CD36:35—CD36:44.1
CD36:57—CD36:62	CD36:57—CD36:62
CD36:69—CD36:82	CD36:69—CD36:82
CD36:87—CD36:90	CD36:87—CD36:90.1
CD36:107—CD36:118	CD36:107—CD36:118.1
CD36:131—CD36:134	CD36:131—CD36:134.1
CD36:139, CD36:140	CD36:139, CD36:140
CCT:9, CCT:10	CCT:9—CCT:11
SLT:1—SLT:3	SLT:1—SLT:3
CDi:1—CDi:36	CDi:1—CDi:38
CDi:45, CDi:46	CDi:45, CDi:46

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SUPPLEMENT NO. 17
December 2009

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 269, adopted July 13, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv—xviii	xv—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD2:5, CD2:6	CD2:5—CD2:6.1
CD36:5—CD36:8	CD36:5—CD36:8
CD36:9—CD36:18	CD36:9—CD36:18
CD36:25—CD36:28	CD36:25—CD36:28.2
CD36:35—CD36:50	CD36:35—CD36:50.1
CD36:87—CD36:104	CD36:87—CD36:104.3
CD36:135—CD36:140	CD36:135—CD36:140.1
CCT:9	CCT:9, CCT:10
CDi:8.1	CDi:8.1
CDi:41, CDi:42	CDi:41, CDi:42
CDi:47, CDi:48	CDi:47, CDi:48

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SUPPLEMENT NO. 16
May 2009

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 265, adopted February 9, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv—xviii	xv—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD2:1, CD2:2	CD2:1, CD2:2
CD2:7, CD2:8	CD2:7—CD2:13
CD8:3, CD8:4	CD8:3, CD8:4
CD36:9—CD36:18	CD36:9—CD36:18.1
CD36:55, CD36:56	CD36:55, CD36:56
CD36:135—CD36:138	CD36:135—CD36:138.1
CCT:9	CCT:9
SLT:1—SLT:3	SLT:1—SLT:3
CDi:1, CDi:2	CDi:1—CDi:2.1
CDi:15, CDi:16	CDi:15—CDi:16.1
CDi:21—CDi:32	CDi:21—CDi:32.1
CDi:49	CDi:49

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SUPPLEMENT NO. 15
October 2008

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 261, enacted September 8, 2008.

See the Code Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
xv—xviii	xv—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD12:1, CD12:2	CD12:1, CD12:2
CD12:16.1—CD12:18	CD12:17—CD12:22
CCT:7—CCT:9	CCT:7—CCT:9
CDi:11, CDi:12	CDi:11—CDi:12.1
CDi:22.1—CDi:24	CDi:23—CDi:24.1

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SUPPLEMENT NO. 14
August 2008

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 260, adopted May 12, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv—xviii	xv—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD36:1—CD36:126	CD36:1—CD36:8 CD36:9—CD36:163
CCT:5—CCT:8	CCT:5—CCT:9
CDi:49	CDi:49

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SUPPLEMENT NO. 13
June 2008

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 258, adopted March 10, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD26:3—CD26:9	CD26:3—CD26:9
CD32:3—CD32:6	CD32:3—CD32:6.1
CD36:75—CD36:80	CD36:75—CD36:80.1
CCT:7, CCT:8	CCT:7, CCT:8
CDi:7, CDi:8.1	CDi:7—CDi:8.1
CDi:11, CDi:12	CDi:11, CDi:12
CDi:27, CDi:28	CDi:27, CDi:28
CDi:35, CDi:36	CDi:35, CDi:36
CDi:47—CDi:49	CDi:47—CDi:49

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SUPPLEMENT NO. 12
January 2007

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 250, adopted January 22, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD36:2.1—CD36:8	CD36:3—CD36:8
CD36:16.1—CD36:18	CD36:17—CD36:18.1
CD36:23—CD36:28.4	CD36:23—CD36:28.4.2
CD36:29—CD36:42	CD36:29—CD36:42.3
CD36:44.1—CD36:50	CD36:45—CD36:50.1
CD36:57, CD36:58	CD36:57, CD36:58
CD36:63—CD36:70.2	CD36:63—CD36:70.1
CD36:70.5, CD36:70.6	CD36:70.5—CD36:70.7
CD36:79, CD36:80	CD36:79, CD36:80
CD36:82.1, CD36:82.2	CD36:82.1, CD36:82.2
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CD36:106.1—CD36:111	CD36:106.1—CD36:112
CCT:7	CCT:7, CCT:8
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CDi:43—CDi:49	CDi:43—CDi:49

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SUPPLEMENT NO. 11
March 2006

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 246, adopted February 27, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD16:7, CD16:8	CD16:7—CD16:8.1
CD16:11—CD16:15	CD16:11—CD16:15
CD36:12.1—CD36:16.1	CD36:13—CD36:16.1
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CD36:82.3—CD36:84	CD36:83—CD36:84.1
CD36:109—CD36:112	CD36:108.1—CD36:111
CCT:7	CCT:7

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SUPPLEMENT NO. 10
December 2005

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 244, adopted November 28, 2005.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD36:28.1, CD36:28.2	CD36:28.1—CD36:28.2.1
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CD36:70.3—CD36:70.6	CD36:70.3—CD36:70.6
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CCT:7	CCT:7

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SUPPLEMENT NO. 9
May 2005

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 239, adopted February 14, 2005.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD36:1, CD36:2	CD36:1—CD36:2.1
CD36:5—CD36:8	CD36:5—CD36:8
CD36:28.7—CD36:32	CD36:29—CD36:32.3
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SUPPLEMENT NO. 8
February 2005

CODE OF ORDINANCES

Charter Township of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 238 enacted October 11, 2004.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD36:79—CD36:82	CD36:79—CD36:82
CCT:5, CCT:6	CCT:5—CCT:7

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SUPPLEMENT NO. 7
September 2004

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 236, enacted August 23, 2004.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD36:13—CD36:16	CD36:13—CD36:16
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CD36:22.1—CD36:24	CD36:23—CD36:24.1
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CDi:41—CDi:42.1	CDi:41—CDi:42.1
CDi:45—CDi:48	CDi:45—CDi:48

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SUPPLEMENT NO. 6, Addition
June 2004

CODE OF ORDINANCES

Charter Township of

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Looseleaf Supplement

This Supplement No. 6, Addition is printed to include provisions inadvertently omitted in Supplement No. 6 and should be inserted as directed below.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD36:67—CD36:70.2	CD36:67—CD36:70.3
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CCT:5, CCT:6	CCT:5, CCT:6

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SUPPLEMENT NO. 6
May 2004

CODE OF ORDINANCES

Charter Township of

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 233, enacted April 26, 2004.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD36:7, CD36:8	CD36:7, CD36:8
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CD36:45, CD36:46	CD36:45, CD36:46
CD36:57, CD36:58	CD36:57, CD36:58
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CD36:101—CD36:106	CD36:101—CD36:106.1
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SUPPLEMENT NO. 5
January 2004

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 229, enacted December 22, 2003.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD36:9—CD36:12	CD36:9—CD36:12.1
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CD36:70.1, CD36:70.2	CD36:70.1—CD36:70.2.1
CCT:5, CCT:6	CCT:5, CCT:6

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SUPPLEMENT NO. 4
September 2003

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 222, enacted May 12, 2003.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD36:5—CD36:7	CD36:5—CD36:8
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CD36:49, CD36:50	CD36:49, CD36:50
CD36:109—CD36:112.2	CD36:109—CD36:112.8
CCT:5, CCT:6	CCT:5, CCT:6
CDi:7, CDi:8	CDi:7—CDi:8.1
CDi:17, CDi:18	CDi:17, CDi:18
CDi:20.1—CDi:22	CDi:21—CDi:22.1
CDi:41—CDi:48	CDi:41—CDi:48

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SUPPLEMENT NO. 3
May 2003

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 221, enacted April 14, 2003.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD12:15, CD12:16	CD12:15—CD12:16.1
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SLT:1—SLT:3	SLT:1—SLT:3
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CDi:19, CDi:20	CDi:19—CDi:20.1
CDi:27, CDi:28	CDi:27, CDi:28
CDi:41, CDi:42	CDi:41—CDi:42.1

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SUPPLEMENT NO. 2
January 2003

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 217, enacted November 12, 2002.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD36:5—CD36:7	CD36:5—CD36:7
CD36:27—CD36:30	CD36:27—CD36:30
CD36:69, CD36:70	CD36:69—CD36:70.4
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CD36:97, CD36:98	CD36:97—CD36:98.1
CCT:5, CCT:6	CCT:5, CCT:6
CDi:37—CDi:43	CDi:41—CDi:48

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OC CORRECTION
July 2002

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This OC Correction is printed to correct pages appearing in the original code, and should be removed and inserted as directed below.

Remove old pages	*Insert new pages*
CD36:89—CD36:94	CD36:89—CD36:94

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SUPPLEMENT NO. 1
May 2002

CODE OF ORDINANCES

Charter Township of

TEXAS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 215, enacted May 13, 2002.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xvi	xi—xviii
	Checklist of up-to-date pages (following Table of Contents)
CD2:5—CD2:8	CD2:5—CD2:8
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CODE OF ORDINANCES

CHARTER TOWNSHIP OF

TEXAS, MICHIGAN

Adopted: May 13, 2002

Published in 2002 by Order of the Township Board

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OFFICIALS

of the

CHARTER TOWNSHIP OF

TEXAS, MICHIGAN

AT THE TIME OF THIS CODIFICATION

Ronald E. Commissaris
Supervisor

Linda M. Kerr
Clerk

Joyce I. Neubauer
Treasurer

Daniel J. Batts
Donald D. Boven
Thomas A. Dykstra
Edward J. Woodhams
Trustees

Lynda E. Thomsen
Attorney

PREFACE

This Code constitutes a codification of the general and permanent ordinances of the Charter Township of Texas, Michigan.

Source materials used in the preparation of the Code were the compiled ordinances as revised through December of 1999, and ordinances subsequently adopted by the township board. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of the compiled ordinances, as revised, and any subsequent ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order, and the various sections within each chapter have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two parts separated by a dash. The figure before the dash refers to the chapter number, and the figure after the dash refers to the position of the section within the chapter. Thus, the second section of chapter 1 is numbered 1-2, and the first section of chapter 6 is 6-1. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 6-1 and 6-2 is desired to be added, such new section would be numbered 6-1.5. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New chapters may be included by using one of the reserved chapter numbers. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of

the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

CODE	CD1:1
CODE APPENDIX	CDA:1
CODE COMPARATIVE TABLES	CCT:1
STATE LAW REFERENCE TABLE	SLT:1
CODE INDEX	CDi:1

Index

The index has been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the index itself which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up-to-date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

This publication was under the direct supervision of Bill Carroll, Senior Code Attorney, and William B. Eddy, Editor, of the Municipal Code Corpora-

tion, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Lynda E. Thomsen, Township Attorney, and Linda M. Kerr, Township Clerk, for their cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the charter township readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the charter township's affairs.

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CHARTER TOWNSHIP OF TEXAS
KALAMAZOO COUNTY, MICHIGAN

NOTICE OF ADOPTION OF ORDINANCES

To the residents and property owners of the Charter Township of Texas, Kalamazoo County, Michigan, and all other interested persons: Please take notice that at its regular meeting on May 13, 2002, the Township Board adopted the ordinances set out below. Copies of the ordinances may be obtained or reviewed at the clerk's office, at the address shown at the end of this notice.

CHARTER TOWNSHIP OF TEXAS
ORDINANCE NO. 214
Adopted: May 13, 2002
Effective: Thirty days after publication after adoption.

AN ORDINANCE TO ADOPT A CODE OF ORDINANCES FOR THE CHARTER TOWNSHIP OF TEXAS, AMENDING, REARRANGING AND REVISING CERTAIN ORDINANCES INCLUDED IN THE CODE; REPEALING CERTAIN ORDINANCES NOT INCLUDED IN THE CODE; PROVIDING A PENALTY FOR THE VIOLATION OF ORDINANCES INCLUDED IN THE CODE; PROVIDING FOR SEVERABILITY; AND ESTABLISHING THE EFFECTIVE DATE.

THE CHARTER TOWNSHIP OF TEXAS, KALAMAZOO COUNTY, MICHIGAN, ORDAINS:

Section I. Title. This ordinance shall be known as the "Ordinance Adopting the Charter Township of Texas Code of Ordinances" and may be so cited.

Section II. Adoption of Code of Ordinances. The Code entitled "Code of Ordinances, Charter Township of Texas, Michigan," published by Municipal Code Corporation consisting of chapters 1 through 36, each inclusive, is adopted by this reference.

Section III. Amendment, revision and rearrangement of ordinances by reference. As authorized by MCL 41.186, the Code adopted by this Ordinance includes the following parts and chapters, within which ordinances set out below are hereby adopted, amended, revised, and rearranged. (Chapters not listed are reserved).

INTRODUCTION/TABLE OF CONTENTS: This part explains the numbering system and arrangement of the Code, but does not include ordinances.

1. General Provisions: This chapter of the Code is new, and includes definitions, rules of construction, and other general provisions.

2. Administration: This chapter includes the Deferred Compensation Ordinance, the Group Insurance Plan Ordinance, and the Pension Plan Ordinance, all as amended.

4. Alcoholic Liquor: This chapter is the Township Liquor License Ordinance, as amended.

6. Buildings and Building Regulations: This chapter includes the ordinance adopting the Single State Construction Code and the Neglected and Dilapidated Buildings Ordinance, as amended.

8. Community Development: This chapter includes the Downtown Development Authority and the Downtown Development and Financing Plan Ordinances, as amended.

10. Environment: This chapter includes the Blight, Noise, and Littering Ordinances, as amended.

12. Fire Prevention and Protection: This chapter includes the Fire Prevention Code, the Hazardous Material Cost Recovery and the Outdoor Burning Ordinances, as amended.

14. Kalamazoo Valley Community College: This chapter includes the ordinances pertaining to Kalamazoo Valley Community College: Protection of Property and Traffic ordinances, as amended.

16. Land Divisions and Subdivisions: This chapter includes the Land Division and the Subdivision Control Ordinances, as amended.

18. Law Enforcement: This chapter includes the Ordinance Enforcement Officer and the Municipal Ordinance Violations Bureau Ordinances, as amended.

22. Outdoor Assemblies: This chapter includes the Outdoor Assemblies Ordinance, as amended.

24. Parks and Recreation: This chapter includes the Park Regulations Ordinance, as amended.

25. Solid Waste: This chapter includes the Residential Waste Reduction Ordinance, as amended.

28. Telecommunications: This chapter includes the Cable System Franchise Regulations Ordinance, as amended.

30. Traffic and Motor Vehicles: This chapter includes the ordinance adopting the Uniform Traffic Code, as amended.

32. Utilities: This chapter includes the Water Service, Water Conservation, and Sewer Use Ordinances, as amended.

34. Waterways: This chapter includes the Atwater Pond Watercraft Control ordinance, as amended.

36. Zoning: This chapter includes the Township Zoning Ordinance, as amended.

APPENDIX A: This section lists the franchises granted by ordinances that are currently in effect in the Township.

CODE COMPARATIVE TABLES, STATE LAW REFERENCE TABLE AND CODE INDEX: These sections contain supplementary information that are not ordinances.

Section IV. Repealer. All ordinances enacted on or before August 27, 2001, and not included in the code or recognized and continued in force by reference therein, are repealed.

Section V. Penalty. Unless another penalty is expressly provided in an ordinance, every person convicted of a violation of any provision of the Code or any ordinance, rule or regulation adopted as provided for by ordinance or state law, shall be punished by a fine not to exceed $500.00 and costs of prosecution, or by imprisonment for a period of not more that 90 days, or by both such fine and imprisonment. However, unless otherwise provided by law, a person convicted of a violation of this Code that substantially corresponds to a violation of state law that is a misdemeanor for which the maximum period of imprisonment is 93 days shall be punished by a fine not to exceed $500.00 and costs of prosecution, or by imprisonment for a period of not more that 93 days, or by both such fine and imprisonment. Each act of violation and each day upon which any such violation shall occur shall constitute a separate offense. The penalty provided by this section, unless another penalty is expressly provided, shall apply to the amendment of any Code section, whether or not such penalty is reenacted in the amendment. In addition to the penalty prescribed above, the Township may pursue other remedies such as abatement of nuisances, injunctive relief and revocation of licenses or permits.

Section VI. Code additions or amendments When an ordinance is adopted that includes a statement of the Township Board's intention to make it a part of the Code, it shall be incorporated into the Code, so that reference to the Code includes the additions and amendments.

Section VII. Later ordinances. Ordinances adopted after August 27, 2001, that amend or refer to ordinances that have been codified in the Code shall be construed to amend or refer to the provisions of said ordinances as set out in the Code.

Section VIII. Severability and effective date. This Ordinance and the various parts, sections, subsections, provisions, sentences and clauses are severable. If any part of this Ordinance is found to be unconstitutional or invalid it is declared that the remainder of this Ordinance shall not be affected thereby. This ordinance shall take effect thirty days after publication after adoption.

Linda M. Kerr, Clerk
Charter Township of Texas
7110 West "Q" Avenue
Kalamazoo, MI 49009
(616) 375-1591

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Checklist of Up-to-Date Pages

(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code Book and are considered "Includes." Ordinances that are not of a general and permanent nature are not codified in the Code Book and are considered "Omits."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

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Supp. No. 19			
277 (Summary)	2-13-2010	Omit	19
278	2-14-2011	Include	19
279	3-14-2011	Include	19
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297	1-27-2014	Include	20
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298	3-24-2014	Include	21
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301	10-27-2014	Include	22
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304	4-13-2015	Include	23
306	6-22-2015	Include	23
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310	6-13-2016	Include	24
317	9-26-2016	Include	24
Supp. No. 25			
328	11-13-2017	Include	25
Supp. No. 26			
333	4- 9-2018	Omit	26
334	3-26-2018	Include	26
339	6-25-2018	Include	26
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340	1-14-2019	Include	27
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348	7-22-2019	Include	28
351	12- 9-2019	Include	28
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353	5-11-2020	Include	29
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292	5-13-2013	Include	30
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358	3- 8-2021	Include	31
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361	7-12-2021	Include	32
362	8-23-2021	Include	32
363	9-27-2021	Include	32
Supp. No. 33			
365	11- 8-2021	Include	33
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368	8- 8-2022	Omit	34
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373	4- 8-2024	Include	35
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CODE OF ORDINANCES

Chapter 1

GENERAL PROVISIONS

Sec. 1-1. How Code designated and cited.
Sec. 1-2. Definitions and rules of construction.
Sec. 1-3. Catchlines of sections; history notes; references.
Sec. 1-4. Effect of repeal of ordinances.
Sec. 1-5. Amendments to Code; effect of new ordinances; amendatory language.
Sec. 1-6. Supplementation of Code.
Sec. 1-7. General penalty; continuing violations.
Sec. 1-8. Severability.
Sec. 1-9. Provisions deemed continuation of existing ordinances.
Sec. 1-10. Code does not affect prior offenses or rights.
Sec. 1-11. Certain ordinances not affected by Code.

Sec. 1-1. How Code designated and cited.

The ordinances embraced in this and the following chapters shall constitute and be designated the "Code of Ordinances, Charter Township of Texas, Michigan," and may be so cited. Such ordinances may also be cited as the "Charter Township of Texas Code."

State law reference—Authority to codify ordinances, MCL 41.186, 42.20.

Sec. 1-2. Definitions and rules of construction.

The following definitions and rules of construction shall apply to this Code and to all ordinances unless the context requires otherwise:

Generally. When provisions conflict, the specific shall prevail over the general. All provisions shall be liberally construed so that the intent of the township board may be effectuated. Words and phrases shall be construed according to the common and approved usage of the language, but technical words, technical phrases and words and phrases that have acquired peculiar and appropriate meanings in law shall be construed according to such meanings.

Civil infraction. The term "civil infraction" means an act or omission prohibited by law which is not a crime and for which civil sanctions may be ordered.

Code. The term "Code" means the Code of Ordinances, Charter Township of Texas, Michigan, as designated in section 1-1.

Computation of time. In computing a period of days, the first day is excluded and the last day is included. If the last day of any period or a fixed or final day is a Saturday, Sunday, or legal holiday, the period or day is extended to include the next day that is not a Saturday, Sunday, or legal holiday.

Conjunctions. In a provision involving two or more items, conditions, provisions or events, which items, conditions, provisions or events are connected by the conjunction "and," "or" or "either . . . or," the conjunction shall be interpreted as follows:

(1) The term "and" indicates that all the connected terms, conditions, provisions or events apply.

(2) The term "or" indicates that the connected terms, conditions, provisions or events apply singly or in any combination.

(3) The term "either . . . or" indicates that the connected terms, conditions, provisions or events apply singly but not in combination.

County. The term "county" means Kalamazoo County, Michigan.

Crime. The term "crime" means an act or omission forbidden by law that is not designated as a civil infraction and that is punishable upon conviction by any one or more of the following:

(1) Imprisonment.

(2) Fine not designated a civil fine.

(3) Other penal discipline.

Delegation of authority. With the exception of chapter 36, a provision that authorizes or requires a township officer or township employee to perform an act or make a decision authorizes such officer or employee to act or make a decision through subordinates.

Gender. Words of one gender include the other genders.

Health department. The term "health department" means the appropriate division of the county human services department, including but not limited to environmental health.

Health officer. The term "health officer" means the director of the environmental health division of the county human services department or his designee.

May. The term "may" is to be construed as being permissive and not mandatory.

May not. The term "may not" states a prohibition.

MCL. The abbreviation "MCL" means the Michigan Compiled Laws, as amended.

Month. The term "month" means a calendar month.

Must. The term "must" is to be construed as being mandatory.

Number. The singular includes the plural and the plural includes the singular.

Oath, affirmation, sworn, affirmed. The term "oath" includes an affirmation in all cases where an affirmation may be substituted for an oath. In similar cases, the term "sworn" includes the term "affirmed."

Officers, departments, etc. References to officers, departments, boards, commissions or employees are to township officers, township departments, township boards, township commissions and township employees.

Owner. The term "owner," as applied to property, includes any part owner, joint owner, tenant in common, tenant in partnership, joint tenant or tenant by the entirety of the whole or part of such property. With respect to special assessments, however, the owner shall be considered to be the person whose name appears on the assessment roll for the purpose of giving notice and billing.

Person. The word "person" means any individual, partnership, corporation, association, club, joint venture, estate, trust, limited liability company, governmental unit, and any other group or combination acting as a unit, and the individuals constituting such group or unit.

Personal property. The term "personal property" means any property other than real property.

Preceding and *following.* The terms "preceding" and "following" mean next before and next after, respectively.

Premises. The term "premises," as applied to real property, includes land and structures.

Property. The term "property" means real and personal property.

Public acts. References to public acts are references to the Public Acts of Michigan. (For example, a reference to Public Act No. 279 of 1909 is a reference to Act No. 279 of the Public Acts of Michigan of 1909.) Any reference to a public act, whether by act number or by short title is a reference to the act, as amended.

Roadway. The term "roadway" means that portion of a street improved, designed or ordinarily used for vehicular traffic.

Shall. The term "shall" is to be construed as being mandatory.

Signature and *subscription.* The terms "signature" and "subscription" include a mark when the person cannot write.

State. The term "state" means the State of Michigan.

Swear. The term "swear" includes affirm.

Tenses. The present tense includes the past and future tenses. The future tense includes the present tense.

Township. The term "township" means the Charter Township of Texas, Michigan.

Township board, township board of trustees, board of trustees and board. The terms "township board of trustees," "township board," "board of trustees" and "board" mean the governing body of the Charter Township of Texas.

Week. The term "week" means seven consecutive days.

Written. The term "written" includes any representation of words, letters, symbols or figures.

State law reference—Definitions and rules of construction applicable to state statutes, MCL 8.3 et seq.

Sec. 1-3. Catchlines of sections; history notes; references.

(a) The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the section and are not titles of such sections, or of any part of the section, nor unless expressly so provided shall they be so deemed when any such section, including the catchline, is amended or reenacted.

(b) The history or source notes appearing in parentheses after sections in this Code have no legal effect and only indicate legislative history. Charter references, cross references and state law references that appear in this Code after sections or subsections or that otherwise appear in footnote form are provided for the convenience of the user of the Code and have no legal effect.

(c) Unless specified otherwise, all references to chapters or sections are to chapters or sections of this Code.

State law reference—Catchlines in state statutes, MCL 8.4b.

Sec. 1-4. Effect of repeal of ordinances.

(a) The repeal of a repealing ordinance does not impair the effect of any saving provision in it.

(b) The repeal or amendment of an ordinance does not affect any punishment or penalty incurred before the repeal took effect, nor does such repeal or amendment affect any rights, privileges, suit, prosecution or proceeding pending at the time of the amendment or repeal.

State law reference—Effect of repeal of state statutes, MCL 8.4.

Sec. 1-5. Amendments to Code; effect of new ordinances; amendatory language.

(a) All ordinances adopted subsequent to this Code that amend, repeal or in any way affect this Code may be numbered in accordance with the numbering system of the Code and printed for inclusion in the Code. Portions of this Code repealed by subsequent ordinances may be excluded from this Code by omission from reprinted pages affected thereby.

(b) Amendments to provisions of this Code may be made with the following language: "Section (chapter, article, division or subdivision, as appropriate) of the Code of Ordinances, Charter Township of Texas, Michigan, is hereby amended to read as follows: . . . ."

(c) If a new section, subdivision, division, article or chapter is to be added to the Code, the following language may be used: "Section (chapter, article, division or subdivision, as appropriate) of the Code of Ordinances, Charter Township of Texas, Michigan, is hereby created to read as follows: . . . ."

(d) All provisions desired to be repealed should be repealed specifically by section, subdivision, division, article or chapter number, as appropriate, or by setting out the repealed provisions in full in the repealing ordinance.

Sec. 1-6. Supplementation of Code.

(a) Supplements to this Code shall be prepared and printed whenever authorized or directed by the township. A supplement to this Code shall include all substantive permanent and general parts of ordinances adopted during the period covered by the supplement and all changes made thereby in the Code. The pages of the supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages that have become obsolete or partially obsolete. The new pages shall be so prepared that when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of the Code that have been repealed shall be excluded from the Code by the omission thereof from reprinted pages.

(c) When preparing a supplement to this Code, the person authorized to prepare the supplement may make formal, nonsubstantive changes in ordinances included in the supplement, insofar as necessary to do so in order to embody them into a unified code. For example, the person may:

(1) Arrange the material into appropriate organizational units.

(2) Supply appropriate catchlines, headings and titles for chapters, articles, divisions, subdivisions and sections to be included in the Code and make changes in any such catchlines, headings and titles or in any such catchlines, headings and titles already in the Code.

(3) Assign appropriate numbers to chapters, articles, divisions, subdivisions and sections to be added to the Code.

(4) Where necessary to accommodate new material, change existing numbers assigned to chapters, articles, divisions, subdivisions or sections.

(5) Change the words "this ordinance" or similar words to "this chapter," "this article," "this division," "this subdivision," "this section" or "sections _____ to _____" (inserting section numbers to indicate the sections of the Code that embody the substantive sections of the ordinance incorporated in the Code).

(6) Make other nonsubstantive changes necessary to preserve the original meaning of the ordinances inserted in the Code.

Sec. 1-7. General penalty; continuing violations.

(a) In this section, the term "violation of this Code" means any of the following:

(1) Doing an act that is prohibited or made or declared unlawful, an offense, or a violation by ordinance or by rule or regulation authorized by ordinance.

(2) Failure to perform an act that is required to be performed by ordinance or by rule or regulation authorized by ordinance.

(3) Failure to perform an act if the failure is prohibited or is made or declared unlawful, an offense, or a violation by ordinance or by rule or regulation authorized by ordinance.

(b) Any provision of this Code that is made or declared to be a misdemeanor, civil infraction or municipal civil infraction is a violation of this Code.

(c) In this section, the term "violation of this Code" does not include the failure of a township officer or township employee to perform an official duty unless it is specifically provided that the failure to perform the duty is to be punished as provided in this section.

(d) Except as specifically provided otherwise by state law or township ordinance, all violations of this Code are misdemeanors. Except as otherwise provided by law or ordinance, a person convicted of a violation of this Code that is a misdemeanor shall be punished by a fine not to exceed $500.00 and costs of prosecution, or by imprisonment for a period of not more than 90 days, or by both such fine and imprisonment. However, unless otherwise provided by law, a person convicted of a violation of this Code which substantially corresponds to a violation of state law that is a misdemeanor for which the maximum period of imprisonment is 93 days shall be punished by a fine not to exceed $500.00 and costs of prosecution, or by imprisonment for a period of not more than 93 days, or by both such fine and imprisonment.

(e) Except as otherwise provided by law or ordinance, with respect to violations of this Code that are continuous with respect to time, each day that the violation continues is a separate offense. As to other violations, each violation constitutes a separate offense.

(f) The imposition of a penalty does not prevent suspension or revocation of a license, permit or franchise or other administrative sanctions.

(g) Violations of this Code may be abated by injunctive or other equitable relief. The imposition of a penalty does not prevent proceedings by the township in any court of competent jurisdiction to obtain injunctive relief or civil or quasi-judicial enforcement.

State law reference—Penalty for ordinance violations, MCL 42.21.

Sec. 1-8. Severability.

If any provision of this Code or its application to any person or circumstances is held invalid or unconstitutional, the invalidity or unconstitutionality does not affect other provisions or application of this Code that can be given effect without the invalid or unconstitutional provision or application, and to this end the provisions of this Code are severable.

State law reference—Severability of state statutes, MCL 8.5.

Sec. 1-9. Provisions deemed continuation of existing ordinances.

The provisions of this Code, insofar as they are substantially the same as ordinances previously adopted by the township relating to the same subject matter, shall be construed as continuations thereof and not as new enactments.

State law reference—Similar provisions as to state statutes, MCL 8.3u.

Sec. 1-10. Code does not affect prior offenses or rights.

(a) Nothing in this Code or the ordinance adopting this Code affects any offense or act committed or done, any penalty or forfeiture incurred, or any contract or right established before the effective date of this Code.

(b) The adoption of this Code does not authorize any use or the continuation of any use of a structure or premises which was in violation of any township ordinance on the effective date of this Code.

Sec. 1-11. Certain ordinances not affected by Code.

(a) Nothing in this Code or the ordinance adopting this Code affects the validity of any ordinance or portion of any ordinance:

(1) Annexing property into the township or describing the corporate limits.

(2) Deannexing property or excluding property from the township.

(3) Promising or guaranteeing the payment of money or authorizing the issuance of bonds or other instruments of indebtedness.

(4) Authorizing or approving any contract, deed, or agreement.

(5) Granting any right or franchise.

(6) Making or approving any appropriation or budget.

(7) Providing for the duties of township officers or employees not codified in this Code.

(8) Providing for salaries or other employee benefits.

(9) Adopting or amending a comprehensive plan.

(10) Levying or imposing any special assessment.

(11) Dedicating, establishing, naming, locating, relocating, opening, paving, widening, repairing or vacating any street, sidewalk or alley.

(12) Establishing the grade of any street or sidewalk.

(13) Dedicating, accepting or vacating any plat or subdivision.

(14) Not codified in this Code that levies, imposes or otherwise relates to taxes, exemptions from taxes and fees in lieu of taxes.

(15) Pertaining to ordinances rezoning property.

(16) That is temporary, although general in effect.

(17) That is special, although permanent in effect.

(18) The purpose of which has been accomplished.

(b) The ordinances or portions of ordinances designated in subsection (a) of this section continue in full force and effect to the same extent as if published at length in this Code.

Chapter 2

ADMINISTRATION*

Article I. In General

Secs. 2-1—2-30. Reserved.

Article II. Township Board

Secs. 2-31—2-60. Reserved.

Article III. Officers and Employees

Secs. 2-61—2-100. Reserved.

Article IV. Employee Benefits

Division 1. Generally

Secs. 2-101—2-115. Reserved.

Division 2. Deferred Compensation

Sec. 2-116. Plan established.
Sec. 2-117. Implementation.
Sec. 2-118. Agreement.
Sec. 2-119. Employments and other rights.
Sec. 2-120. Administration and interpretation of plan.
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Division 3. Group Insurance Plan

Sec. 2-141. Creation; provisions.
Sec. 2-142. Persons eligible for benefits.
Sec. 2-143. Premiums paid by township; optional coverage.
Sec. 2-144. Validity of coverage.
Secs. 2-145—2-160. Reserved.

***Cross references—**Any ordinance authorizing or approving any contract, deed, or agreement saved from repeal, § 1-11(a)(4); any ordinance making or approving any appropriation or budget saved from repeal, § 1-11(a)(6); community development, ch. 8; downtown development authority, § 8-31 et seq.; board of directors of downtown development authority, § 8-35; law enforcement, ch. 18; utilities, ch. 32; administration and enforcement of zoning regulations, § 36-31 et seq.; board of zoning appeals, § 36-51 et seq.

State law references—Townships generally, MCL 41.1a et seq.; charter township, MCL 42.1 et seq.; open meetings act, MCL 15.261 et seq.; freedom of information act, MCL 15.231 et seq.

Division 4. Pension Plan

Sec. 2-161. Plan created.
Sec. 2-162. Eligibility.
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Sec. 2-221. Authority to make master plan.
Sec. 2-222. Zoning powers.
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ARTICLE I. IN GENERAL

Secs. 2-1—2-30. Reserved.

ARTICLE II. TOWNSHIP BOARD*

Secs. 2-31—2-60. Reserved.

ARTICLE III. OFFICERS AND EMPLOYEES†

Secs. 2-61—2-100. Reserved.

ARTICLE IV. EMPLOYEE BENEFITS

DIVISION 1. GENERALLY

Secs. 2-101—2-115. Reserved.

DIVISION 2. DEFERRED COMPENSATION

Sec. 2-116. Plan established.

In order to permit an officer, official or employee of the township to be eligible to defer a portion of that employee's compensation, such deferred compensation to be paid by the township or its agent to such officer, official or employee according to the terms of an "eligible deferred compensation plan" as defined by section 457 of the Internal Revenue Code, as amended, and thereby to provide future income for such officer, official or employee and to defer federal and state income tax liability resulting from such deferred compensation to the time of receipt by such person, or beneficiary of such person, the township hereby establishes an "eligible deferred compensation plan" as more fully set forth in this division.
(Comp. Ords. as Rev. 12-1999, § 12.051)

***State law references—**Township board, MCL 42.5 et seq.; township meetings, MCL 42.7 et seq.; standards of conduct and ethics, MCL 15.341 et seq.; open meetings act, MCL 15.261 et seq.; freedom of information act, MCL 15.231 et seq.

†Cross references—Any ordinance providing for the duties of township officers or employees not codified in this Code saved from repeal, § 1-11(a)(7); any ordinance providing for salaries or other employee benefits saved from repeal, § 1-11(a)(8); ordinance enforcement officer, § 18-31 et seq.

State law references—Township officers, MCL 42.11 et seq.; standards of conduct and ethics, MCL 15.341 et seq.

Sec. 2-117. Implementation.

(a) The eligible deferred compensation plan established pursuant to this division shall be implemented by the execution of contracts and agreements setting forth the terms of the plan in full compliance with the requirements of section 457 of the Internal Revenue Code, as amended.

(b) The township board, by resolution, shall provide for the execution of such contracts and agreements complying with the section 457 of the Internal Revenue Code, as amended, as it deems appropriate, and fully setting forth the provisions of the eligible deferred compensation plan.
(Comp. Ords. as Rev. 12-1999, § 12.052)

Sec. 2-118. Agreement.

(a) If any eligible employee, as defined in the eligible deferred compensation plan implemented as provided for in this division, desires to be a participant in the deferred compensation plan of the township, an agreement shall be entered into between the township and such person which shall set forth the terms of such eligible deferred compensation plan as implemented pursuant to section 2-117.

(b) The terms of such agreement shall conform to the requirements of section 457 of the Internal Revenue Code, as amended, and the provisions of the eligible deferred compensation plan as implemented by the township board pursuant to contract and resolution as provided in this division.
(Comp. Ords. as Rev. 12-1999, § 12.053)

Sec. 2-119. Employments and other rights.

(a) Nothing contained in this division shall be construed to limit the right of the township to terminate the employment of any employee. The eligible deferred compensation plan, as implemented, shall comply in all respects with the requirements of law for eligible deferred compensation plans.

(b) The benefits payable under any agreement executed pursuant to this division are independent of and in addition to any other retirement plan of the township, or other township fringe benefits plan or sheltered annuity program, to the extent such fringe benefits plan or sheltered annuity program now exist or are hereafter established. Notwithstanding this provision, to the extent that section 457 of the Internal Revenue Code, as amended, requires that the provisions of the eligible deferred compensation plan implemented pursuant to this division contain provisions which are inconsistent with the provisions of this subsection, the provisions of section 457 of the Internal Revenue Code, as amended, shall be deemed to supercede the provisions of this subsection.
(Comp. Ords. as Rev. 12-1999, § 12.054)

Sec. 2-120. Administration and interpretation of plan.

The eligible deferred compensation plan established pursuant to this division shall be administered by the township board. The board, or its authorized agent or official, shall screen and approve any insurance company seeking to act as agent for the township in connection with the eligible deferred compensation plan. The township board shall have full power and authority to adopt rules and regulations for the administration of the plan, provided that they are not inconsistent with the provisions of the eligible deferred compensation plan and to interpret, alter, amend or revoke any rules or regulations so adopted.
(Comp. Ords. as Rev. 12-1999, § 12.055)

Sec. 2-121. Tax exemption.

(a) It is contemplated that the eligible deferred compensation plan authorized by this division and the contracts and agreements provided for in this division for deferment of compensation shall comply with the Internal Revenue Code, as amended, and specifically Internal Revenue Code section 457, as amended, pertaining to eligible deferred compensation plans. Any compensation of a participant which is deferred pursuant to the eligible deferred compensation plan adopted pursuant to this division is intended to not be taxable until actually received by such person or his beneficiary. The administration of the eligible deferred compensation plan and the operation and interpretation of the contracts and agreements provided for in this division shall not be accomplished in such a manner as to result in such deferred compensation becoming taxable before the time of receipt by such person or beneficiary. Any provision contained in this division resulting in the taxability prior to receipt of such deferred compensation shall be deemed to be null and void. However, although it is the belief of the township that the eligible deferred compensation plan and the contracts and agreements provided for in this division will result in deferment of federal income tax and state income tax for compensation deferred under this division, no guarantee is given to any participant or beneficiary as to its nontaxability and the township assumes no responsibility in the event of any adverse tax consequences to any participant or beneficiary.

(b) Any provision of the eligible deferred compensation plan established pursuant to this division, or any contract or agreement executed pursuant to this division, or any township regulations pertaining to deferred compensation which are contrary to Internal Revenue Code sections or regulations shall be deemed to be superceded by such Internal Revenue Code sections or regulations.
(Comp. Ords. as Rev. 12-1999, § 12.056)

Secs. 2-122—2-140. Reserved.

DIVISION 3. GROUP INSURANCE PLAN

Sec. 2-141. Creation; provisions.

Pursuant to Public Act No. 77 of 1989 (MCL 41.110b), the township hereby creates and establishes a group insurance plan providing the following: health, hospitalization, medical

and surgical service and expense insurance coverage for its officers and employees enumerated in this division; and, for such purposes, also hereby authorizes the township supervisor and the township clerk to contract, in the name of the township board, with any company authorized to transact such business within the state for such group insurance policies, subject, however, to prior approval of the contract by resolution of the township board.
(Comp. Ords. as Rev. 12-1999, § 12.252)

Sec. 2-142. Persons eligible for benefits.

The group insurance plan created, established and contracted for under this division shall cover each person within the following classes of officers and employees:

(1) The township supervisor, clerk and treasurer.

(2) All township employees who are scheduled to work more than 30 hours per week on a regular basis.

(Comp. Ords. as Rev. 12-1999, § 12.253)

Sec. 2-143. Premiums paid by township; optional coverage.

The township shall annually determine by resolution the amount of coverage it will pay for each class of employee or board member entitled to insurance under this section.

The township may, by resolution on an annual basis, place a designated amount into a health savings account (HSA) or into a health reimbursement account (HRA) for qualifying employees that are not eligible for the health savings account (HSA).

Any person who is eligible for township-paid group insurance plan benefits as defined in section 2-142, but chooses not to take the same in favor of equivalent or better coverage provided under a different health insurance plan for which the township employee is also eligible, may give written notice to decline the township's group health insurance and the township shall pay to that person a monthly stipend in the amount determined by township board resolution from time to time. Such written notice shall serve to disclaim the township's group insurance from the time it is given until it is revoked and the eligible employee requests in writing to be placed back into the township's group insurance program, at which time the township shall pay the insurance premiums and the monthly stipend shall cease.
(Comp. Ords. as Rev. 12-1999, § 12.254; Ord. No. 208, § II, 1-28-2002; Ord. No. 268, § 1, 7-13-2009; Ord. No. 302, § 1, 11-24-2014)

Sec. 2-144. Validity of coverage.

The township hereby ratifies and confirms the validity of any health, hospitalization, medical and surgical service insurance coverage, or any one or more of such forms of insurance in existence on the effective date of the ordinance from which this division is derived.
(Comp. Ords. as Rev. 12-1999, § 12.255)

Secs. 2-145—2-160. Reserved.

DIVISION 4. PENSION PLAN

Sec. 2-161. Plan created.

Pursuant to Public Act No. 77 of 1989 (MCL 41.110b), the township hereby creates and establishes an annuity or pension plan and program for the pensioning of its officers and employees, and for such purposes, also hereby authorizes the township supervisor and the township clerk to contract, in the name of the township board, with any company authorized to transact such business within the state for annuities or pensions.
(Ord. No. 191, § II, 1-10-2000)

Sec. 2-162. Eligibility.

The annuity or pension plans created, established and contracted for under this division shall cover each person within the following classes of officers and employees: All members of the township board; all township employees who are employed for more than 25 hours per week on a regular basis; and on-call firefighters.
(Ord. No. 191, § III, 1-10-2000; Ord. No. 213, § I, 4-8-2002)

Sec. 2-163. Contributions.

(a) The township shall annually contribute ten percent of base salary for each person within the class of officers and employees enumerated in section 2-162 except for eligible persons who elect not to be covered, as provided in section 2-163(c). Such contributions shall be secured from the general fund of the township. Where permitted under the provisions of the contract or plan executed pursuant to section 2-161, any person within the class of eligible officers and employees may authorize deduction from such person's pay, salary, or compensation, supplementary sums, by providing written notice in such a form as is specified by the plan or contract.

(b) Each employee who is employed on the effective date of the annuity or pension plan shall be eligible for coverage on that day provided he then meets the following requirement, otherwise to be eligible on the first policy anniversary on which he meets it:

His age (nearest birthday) is at least 18 years.

Every employee who becomes subsequently employed shall be eligible on the first day of the month following the completion of the probationary period, provided his age (nearest birthday) is at least 18 years, otherwise to be eligible on the first day of the month he meets the requirements in this subsection.

(c) Any person desiring not to be so covered shall give written notice to the township clerk that he desires not to be covered, and if the notice is received before the person has become covered under the contract, he shall not be covered thereunder. If the notice is received after the individual has become covered, his coverage under the contract shall cease as provided for in the contract.
(Ord. No. 191, § IV, 1-10-2000)

Sec. 2-164. Vesting.

(a) Except as specified in subsections (b) and (c) of this section, each person so covered under the annuity or pension plan shall have a vested right or interest in such plan 12 months from the date the plan becomes effective for such person.

(b) Employees who work less than 30 hours per week on a regularly scheduled basis, and on-call firefighters, shall acquire vested rights as follows: 24 months after the plan becomes effective for such person, he or she shall be 50 percent vested; 36 months after the plan becomes effective for such person, he or she shall be 100 percent vested.

(c) Notwithstanding the provisions of subsection (b), for each employee who was employed by the township on January 1, 2002, to work less than 30 hours per week on a regularly scheduled basis and each on-call firefighter who was employed by the township on January 1, 2002, the time period for determining vested rights shall be measured from the first day of the month following the person's completion of the probationary period, provided his or her age (nearest birthday) was at least 18 years, otherwise from the first day of the month he or she met the foregoing requirements.
(Ord. No. 191, § V, 1-10-2000; Ord. No. 213, § II, 4-8-2002)

Sec. 2-165. Confirmation of existing plans.

The township hereby ratifies and confirms the validity of any annuity or pension plan in existence on the effective date of the ordinance from which this division is derived.
(Ord. No. 191, § VI, 1-10-2000; Ord. No. 213, § III, 4-8-2002)

Secs. 2-166—2-180. Reserved.

ARTICLE V. BOARDS, COMMISSIONS AND COMMITTEES

DIVISION 1. GENERALLY

Sec. 2-181. Conflict of interest policy.

(a) *Purpose.* The Charter Township of Texas (the "township") adopts the following section pursuant to the authority granted to the township board under the Michigan Planning Enabling Act, PA 33 of 2008, MCL 125.3801 et seq., and the Michigan Zoning Enabling Act,

PA 110 of 2006, MCL 125.3101 et seq., (the "Acts") to establish a conflict of interest ordinance, as limited by those Acts, for the health, safety and welfare of township residents.

The purpose of this section is to define "conflict of interest," as applied to all township officials, in order to provide for fair, ethical, and accountable decisions and operations. No public office shall be used for personal gain nor shall any public official gain personal or pecuniary advantage from his or her work.

(b) *Applicability.*This section shall apply to all members of the township board, planning commission, zoning board of appeals, board of review, and township committees, whether appointed or elected (hereinafter referred to as "members"). The definition of "conflict of interest" in this section supersedes any definitions of "conflict of interest" set forth in the by-laws of the planning commission, zoning board of appeals, or other township board or committee.

(c) *Conflict of interest—Defined.* A conflict of interest shall include, but is not limited to, a matter pending before a board, commission or committee identified in subsection (b) in which:

(1) A member has a direct pecuniary interest in the matter or in the outcome of the matter, if such interest would result in an incompatibility between the member's private interests and the member's fiduciary duties; or

(2) A person in the member's immediate family has a direct pecuniary interest in the matter or in the outcome of the matter, if such interest would result in an incompatibility between the member's private interests and the member's fiduciary duties. "Immediate family" means a member's spouse, children, stepchildren, grandchildren, parents, brothers, sisters, grandparents, parent's in-law, or any individual living in the member's household.

(d) *Procedure.*

(1) Before participating in a decision, hearing, or casting a vote on a matter on which a member may reasonably have a conflict of interest as identified in subsection (c), the member shall disclose the potential conflict of interest to the board, commission, or committee.

(2) The member who has disclosed a conflict of interest shall disqualify himself or herself at the outset of the hearing or discussion and shall not participate in the deliberations or decision. The member shall not attempt to exert his or her personal influence with respect to the matter, either at or outside the meeting. The presence of the member at the meeting shall not be counted in determining the presence of quorum for purposes of the vote on the matter presenting the conflict of interest. The member's ineligibility to vote shall be reflected in the minutes of the meeting.

(3) If the member is an applicant submitting an application, contract, transaction or any other matter to the board, commission or committee, the member may be present in the meeting room during discussion to make a presentation and answer questions.

(4) If a member plans not to attend a meeting at which he or she has reason to believe that the board, commission or committee will act on a matter in which the member has a conflict of interest, he or she shall disclose to the chair of the meeting all facts material to the conflict of interest. The chair shall report the disclosure at the meeting and the disclosure shall be reflected in the minutes of the meeting.

(e) *Violation constitutes malfeasance.* Failure to disclose a conflict of interest as defined by this section or any other violation of this section constitutes malfeasance in office which may result in disciplinary action including censure, reprimand, removal, dismissal, or discharge. (Ord. No. 310, §§ 1—5, 6-13-2016)

Secs. 2-182—2-210. Reserved.

DIVISION 2. TEXAS TOWNSHIP PLANNING COMMISSION*

Sec. 2-211. Scope, purpose and intent.

This division is adopted pursuant to the authority granted the township board under the Michigan Planning Enabling Act, Public Act 33 of 2008, MCL 125.3801, et seq., and the Michigan Zoning Enabling Act, Public Act 110 of 2006, MCL 125.3101, et seq., to establish a planning commission with the powers, duties and limitations provided by those Acts and subject to the terms and conditions of this division and any future amendments to this division. [MCLs 125.3811 and 125.3883]

The purpose of this division is to provide that the Texas Township Board hereby confirms the establishment of the Texas Township Planning Commission under the Michigan Planning Enabling Act, Public Act 33 of 2008, MCL 125.3801, et seq., as successor to the Texas Township Planning Commission formerly established under the Township Planning Act, Public Act 168 of 1959, MCL 125.321, et seq.; to establish the appointments, terms, and membership of the planning commission; to identify the officers and the minimum number of meetings per year of the planning commission; and to prescribe the authority, powers and duties of the planning commission. [MCLs 125.3811 and 125.3883]
(Ord. No. 264, § I, 12-22-2008)

Sec. 2-212. Establishment.

The township board hereby confirms the establishment of the Texas Township Planning Commission under the Michigan Planning Enabling Act, Public Act 33 of 2008, MCL 125.3801, et seq., as successor to the Texas Township Planning Commission formerly established under the Township Planning Act, Public Act 168 of 1959, MCL 125.321, et seq. The Texas Township Planning Commission shall have seven members. Members of the Texas Township Planning Commission as of the effective date of this division shall, except for an ex officio member whose term on the planning commission shall be limited to his or her term on the township board, continue to serve for the remainder of their existing terms so long as they continue to meet all of the eligibility requirements for planning commission membership set forth within the Michigan Planning Enabling Act, Public Act 33 of 2008, MCL 125.3801, et seq. [MCLs 125.3811, 125.3815 and 125.3881]
(Ord. No. 264, § II, 12-22-2008)

Sec. 2-213. Appointments and terms.

The township supervisor, with the approval of the township board by a majority vote of the members elected and serving, shall appoint all planning commission members, including the ex officio member. [MCL 125.3815]

***Editor's note—**Ord. No. 264, §§ I—XIII, adopted Dec. 22, 2008, did not specifically amend the Code; hence, inclusion herein as Art. V, Div. 2, §§ 2-211—2-224, was at the discretion of the editor. See also the Code Comparative Table.

Cross reference—Planning commission review, § 36-531(e).

The planning commission members, other than an ex officio member, shall serve for terms of three years each. [MCL 125.3815]

A planning commission member shall hold office until his or her successor is appointed. Vacancies shall be filled for the unexpired term in the same manner as the original appointment. [MCL 125.3815]

Planning commission members shall be qualified electors of the township, except that one planning commission member may be an individual who is not a qualified elector of the township. The membership of the planning commission shall be representative of important segments of the community, such as the economic, governmental, educational, and social development of the township, in accordance with the major interests as they exist in the township, such as agriculture, natural resources, recreation, education, public health, government, transportation, industry, and commerce. The membership shall also be representative of the entire geography of the township. [MCL 125.3815]

One member of the township board shall be appointed to the planning commission as an ex officio member. [MCL 125.3815]

An ex officio member has full voting rights. An ex officio member's term on the planning commission shall expire with his or her term on the township board. [MCLs 125.3803 and 125.3815]

No other elected officer or employee of the township is eligible to be a member of the planning commission. [MCL 125.3815]
(Ord. No. 264, § III, 12-22-2008)

Sec. 2-214. Current members; terms.

The current members and their terms are as follows:

Names	*Beginning Date*	*Ending Date*
Greg Rothe	January 2008	December 2011
Bill Saunders	January 2008	December 2011
Larry Loeks	January 2006	December 2009
Dick Craven	January 2006	December 2009
Steve Bosch	November 2008	November 2012
Steve Weurding	January 2008	December 2010
Bruce Derby	January 2008	December 2010

Except for the ex officio member, all members shall continue to serve as a member until their successor is appointed and qualified to serve. Subsequently, members shall be appointed to fill vacancies or upon the termination of their term by the township supervisor, subject to approval by a majority vote of the members of the township board elected and serving.
(Ord. No. 264, § III, 12-22-2008)

Sec. 2-215. Removal.

The township board may remove a member of the planning commission for misfeasance, malfeasance, or nonfeasance in office upon written charges and after a public hearing. [MCL 125.3815]
(Ord. No. 264, § IV, 12-22-2008)

Sec. 2-216. Conflict of interest.

Before casting a vote on a matter on which a planning commission member may reasonably be considered to have a conflict of interest, the member shall disclose the potential conflict of interest to the planning commission. Failure of a member to disclose a potential conflict of interest as required by this ordinance constitutes malfeasance in office. [MCL 125.3815]

For the purposes of this section, the planning commission shall define conflict of interest in its bylaws.
(Ord. No. 264, § V, 12-22-2008)

Sec. 2-217. Compensation.

The planning commission members may be compensated for their services as provided by township board resolution. The planning commission may request from the township board compensation and expenses of its members for travel and registration when engaged in the performance of official activities authorized by the township board, including, but not limited to, attendance at conferences, workshops, educational and training programs, meetings and inspections. [MCL 125.3823]
(Ord. No. 264, § VI, 12-22-2008)

Sec. 2-218. Officers and committees.

The planning commission shall elect a chairperson, vice chairperson and a secretary from its members, and may create and fill other offices as it considers advisable. An ex officio member of the planning commission is not eligible to serve as chairperson. The term of each office shall be one year, with opportunity for reelection as specified in the planning commission bylaws. [MCL 125.3817]

The planning commission may also appoint advisory committees from its membership or who are not members of the planning commission. [MCL 125.3817]
(Ord. No. 264, § VII, 12-22-2008)

Sec. 2-219. Bylaws, meetings and records.

The planning commission shall adopt bylaws for the transaction of business. [MCL 125.3819]

The planning commission shall hold at least four regular meetings each year, and shall by resolution determine the time and place of the meetings.

Unless otherwise provided in the planning commission's bylaws, a special meeting of the planning commission may be called by the chairperson or by two other members, upon written request to the secretary. Unless the bylaws otherwise provide, the secretary shall send written notice of a special meeting to planning commission members at least 48 hours before the meeting. [MCL 125.3821] The foregoing notice is not required where the special meeting is determined and scheduled at a regular meeting of the commission, except for notice to members absent from the regular meeting.

The business that the planning commission may perform shall be conducted at a public meeting held in compliance with the Open Meetings Act, Public Act 267 of 1976, MCL 15.261, et seq. [MCL 125.3821]

The planning commission shall keep a public record of its resolutions, transactions, findings, and determinations. A writing prepared, owned, used, in the possession of, or retained by the planning commission in the performance of its official functions shall be made available to the public in compliance with the Freedom of Information Act, Public Act 442 of 1976, MCL 15.231, et seq. [MCLs 125.3819 and 125.3821]
(Ord. No. 264, § VIII, 12-22-2008)

Sec. 2-220. Annual report.

The planning commission shall make an annual written report to the township board concerning its operations and the status of its planning activities, including recommendations regarding actions by the township board related to planning and development. [MCL 125.3819]
(Ord. No. 264, § IX, 12-22-2008)

Sec. 2-221. Authority to make master plan.

Under the authority of the Michigan Planning Enabling Act, Public Act 33 of 2008, MCL 125.3801, et seq., and other applicable planning statutes, the planning commission shall make a master plan as a guide for development within the township's planning jurisdiction [MCLs 125.3807 and 125.3831] and submit its proposed plan to the township board for adoption. [MCL 125.3843].

Final authority to approve a master plan or any amendments thereto shall rest with the township board. The existing master plan for the township shall be the township's master plan until amended by planning commission recommendation and adoption by the township board. [MCL 125.3843]
(Ord. No. 264, § X, 12-22-2008)

Sec. 2-222. Zoning powers.

The township board hereby confirms the transfer of all powers, duties, and responsibilities provided for zoning boards or zoning commissions by the former Township Zoning Act, Public Act 184 of 1943, MCL 125.271, et seq.; the Michigan Zoning Enabling Act, Public Act 110 of

2006, MCL 125.3101, et seq.; or other applicable zoning statutes, to the Texas Township Planning Commission formerly established under the Township Planning Act, Public Act 168 of 1959, MCL 125.321, et seq.

Any existing zoning ordinance shall remain in full force and effect until otherwise amended or repealed by the township board.
(Ord. No. 264, § XI, 12-22-2008)

Sec. 2-223. Capital improvements program.

To further the desirable future development of the township under the master plan, the planning commission shall annually prepare recommendations to the township board of public structures and improvements, in general order of their priority, for the following six-year period. The commission shall, at least every five years after adoption of the township master plan, review the plan to determine whether it is advisable to commence procedures to amend the plan or adopt a new plan. [MCL 125.3845]
(Ord. No. 264, § XII, 12-22-2008)

Sec. 2-224. Subdivision and land division recommendations.

The planning commission may recommend to the township board provisions of an ordinance or rules governing the subdivision of land. Before recommending such an ordinance or rule, the planning commission shall hold a public hearing on the proposed ordinance or rule. The planning commission shall give notice of the time and place of the public hearing not less than 15 days before the hearing by publication in a newspaper of general circulation within the township. [MCL 125.3871]

The planning commission shall review and make recommendations on any proposed plat before action thereon by the township board under the Land Division Act, Public Act 288 of 1967, MCL 560.101, et seq. Before making its recommendation, the planning commission shall hold a public hearing on the proposed plat. A plat submitted to the planning commission shall contain the name and address of the proprietor or other person to whom notice of a hearing shall be sent. Not less than 15 days before the date of the hearing, notice of the date, time and place of the hearing shall be sent to that person at that address by mail and shall be published in a newspaper of general circulation in the township. Similar notice shall be mailed to the owners of land immediately adjoining the proposed platted land. [MCL 125.3871] The planning commission shall have 63 days from receipt of the plat to issue its recommendation of approval, approval with conditions or disapproval; in default of which it shall be considered approved.
(Ord. No. 264, § XIII, 12-22-2008)

Chapter 3

RESERVED

Chapter 4

ALCOHOLIC LIQUOR*

Article I. In General

Secs. 4-1—4-30. Reserved.

Article II. Liquor Licenses

Sec. 4-31. Application for local approval required.
Sec. 4-32. Review of application by township departments.
Sec. 4-33. Reasons for denial.
Sec. 4-34. Terms of license.
Sec. 4-35. Revocation of license.

***State law reference—**Michigan liquor control code of 1998, MCL 436.1101 et seq.

ARTICLE I. IN GENERAL

Secs. 4-1—4-30. Reserved.

ARTICLE II. LIQUOR LICENSES*

Sec. 4-31. Application for local approval required.

(a) *Township application.* Any applicant seeking a liquor license or related permit from the Michigan Liquor Control Commission shall file an application for local approval with the township clerk. The application shall be signed by each person with an influential interest in the business for which local approval is sought. The application shall be notarized, and shall contain the following:

(1) The name, age and address of the applicant in the case of an individual; or, in the case of a co-partnership, the persons entitled to share in the profits thereof; in the case of a corporation, the objects for which organized, the names and addresses of the officers and directors, and, if a majority interest in the stock of such corporation is owned by one person or his nominee, the name and address of such person.

(2) Type of license, permit, or alcoholic liquor-related approval desired, the type of establishment proposed, and for on-premises licenses, include the type of restaurant and seating capacity.

(3) The citizenship of the applicant(s) place of birth and, if a naturalized citizen, and the time and place of naturalization.

(4) The character of business of the applicant, and in the case of a corporation, the object for which it was formed.

(5) The applicant's employment and business history, which shall set forth the number of years, if any, that the applicant has worked in liquor licensed establishment(s) and the position or role that the applicant held in such establishment(s).

(6) The location and description of the premises or place of business which is to be operated under such license.

(7) A statement whether the applicant has made application for a similar or other license on premises other than described in this application, and the disposition of such application.

***Editor's note—**Ord. No. 317, § 1, adopted Sept. 26, 2016, amended Art. II in its entirety to read as herein set out. Former Art. II, §§ 4-31 and 4-32, pertained to similar subject matter and derived from Comp. Ords. as Rev. 12-1999, §§ 20.502, 20.503. See also the Code Comparative Table.

State law reference—Licenses with local approval, MCL 436.1501.

(8) A statement that the applicant(s) has never been convicted of a felony and is not disqualified to receive a license by reason of any matter or thing contained in this article or the laws of the state.

(9) A statement that the applicant will not violate any of the laws of the state or of the United States or any ordinances of the township in the conduct of its business.

(10) The application shall be accompanied by building and site plans showing the entire structure and premises and in particular the specific areas where the license is to be utilized. The proposal must be part of an approved site plan demonstrating adequate off-street parking, lighting, waste disposal facilities and, where appropriate, adequate plans for screening, and noise control. If the application requests outdoor seating, then the planning commission must approve a special exception use permit.

(11) Each applicant requesting the approval of a new license, the transfer of ownership or location of an existing license, or the approval of any permits related to the license under this article, shall pay to the treasurer a nonrefundable application fee in the amount prescribed by resolution of the township board at the time the request or application is made.

(b) *Notice of completeness.* Within 21 days of receipt of an application, the township shall mail the applicant(s), a notice indicating that the application is complete, or incomplete, specifying which portions(s) of the application are incomplete. The township may request any additional information related to an applicant's personal, employment, or business history, financial condition, and/or criminal history that relates directly to the applicant's ability to operate an alcoholic liquor-licensed establishment. The notice shall include a statement that the township board will issue a resolution of approval or disapproval of a complete application within 45 days.

(c) *Consent.* By submitting an application, the applicant(s) consents to a background investigation, including, but not limited to, an investigation of criminal history, civil actions, and investigations by other governmental bodies, penalties imposed by same, moral character, business reputation, or any other background area deemed necessary by the township.

(d) *Transfer.* An application for local approval of a transfer related to any existing alcoholic liquor license shall be subject to the same procedures, standards, and fees contained in this chapter that apply to an application for local approval of a liquor license or related permit. In addition, when submitting the application, the transferee-applicant shall furnish a copy of any and all files which may be in the Michigan Liquor Control Commission's possession regarding that commission's investigation of the transferee as a present or previous licensee, or regarding any license(s) in which the transferee has or has had a financial interest.

(Ord. No. 317, § 1, 9-26-2016; Ord. No. 358, § 1, 3-8-2021)

Sec. 4-32. Review of application by township departments.

The township will review completed applications as follows:

(1) The township shall conduct a background investigation to determine if the application meets the standards set forth in section 4-31(b) and present its findings and a written recommendation to the township board within 21 days.

(2) The fire department shall determine whether the use of the premises as proposed complies with all applicable fire safety codes, ordinances, regulations and laws; and forward its findings and a written recommendation to the township board within 21 days.

(3) The building official shall determine whether the use of the premises as proposed complies with all applicable codes and ordinances, including the state construction code; whether there are any uncured violations; and forward their findings and a written recommendation to the township board within 21 days.

(4) The zoning administrator shall review the application and determine whether: (a) the use is consistent with an approved site plan site plan demonstrating adequate off-street parking, lighting, waste disposal facilities and, where appropriate, adequate plans for screening, and noise control; (b) whether the use requires a special exception use permit; and shall forward their findings and written recommendation to the township board within 21 days.

(5) The treasurer's office shall determine whether there are outstanding real estate taxes due and owing, or other unpaid fees, including water and sewer fees; and forward its findings and a written recommendation to the township board within 21 days.

(6) *Applicant delay.* Upon the written request for delay by the applicant, the deadlines for review as required by this section, or for a decision by the township board under this chapter, may be tolled for a maximum of 60 days for the applicant to obtain and present all information requested by the township. A copy of the applicant's request for delay shall be forwarded to the MLCC.

(Ord. No. 317, § 1, 9-26-2016)

Sec. 4-33. Reasons for denial.

After receiving the findings and written recommendations from pertinent township departments, the township board shall pass a local legislative approval resolution unless they find one or more of the following are associated with the application:

(1) A person whose license, under this article, has been revoked for cause.

(2) A person who, at the time of application or renewal of any license issued under this article, would not be eligible for such license upon a first application.

(3) A co-partnership, unless all of the members of such co-partnership shall qualify to obtain a license.

(4) A corporation, if any officer, manager, or director thereof, or a stock owner or stockholder owning more than five percent of the stock of such corporation, would not be eligible to receive a license under this article for any reason.

(5) A person whose place of business is conducted by a manager or agent unless such manager or agent possesses the same qualifications required of the licensee.

(6) A person who has been convicted of a violation of any federal or state law concerning the manufacture, possession or sale of alcoholic liquor or controlled substances.

(7) A person who does not own the premises for which a license is sought or does not have a lease therefor for the full period for which the license is issued, or to a person, corporation or co-partnership that does not have sufficient financial assets to carry on or maintain the business.

(8) Any law enforcing public official or any member of the township board is interested in any way, either directly or indirectly in the manufacture for sale or distribution of alcoholic liquor.

(9) There exists a violation of the applicable building, electrical, mechanical, plumbing or fire codes, applicable zoning regulations, applicable public health regulations or any other applicable township ordinance at the proposed location.

(10) For any new license or for the transfer of any existing license unless the on premise sale and consumption of beer, wine or spirits is incidental and subordinate to other permitted business uses upon the site, such as but not limited to food sales, motel operations, or recreational activities.

(11) For premises where it is determined by the board that the premises do not or will not reasonably soon after commencement of operations have adequate off-street parking, lighting, refuse disposal facilities, screening, noise, or nuisance control or where a nuisance does or will exist.

(12) Where the board determines that the proposed location is inappropriate considering the desirability of establishing a location in developed, commercial areas, in preference to isolated, undeveloped areas; the attitude of adjacent residents and property owners; traffic safety; accessibility to the site from abutting roads; capability of abutting roads to accommodate the commercial activity; distance from public or private schools for minors; and accessibility from county primary roads.

(Ord. No. 317, § 1, 9-26-2016)

Sec. 4-34. Terms of license.

(a) Approval of a license shall be for a period of one year subject to annual renewal by the township board upon continued compliance with the regulations of this article.

(b) Approval of a license shall be with the understanding that any necessary remodeling or new construction for the use of the license shall be completed and a certificate of occupancy issued within one year of the action of the township board or the Michigan Liquor Control Commission approving such license, whichever last occurs. Any unusual delay in the completion of such activity may subject the license to revocation.

(c) The township shall not approve a class C liquor license for on premise consumption until the applicant executes and records a contract with the township prohibiting the sale or transfer of such license directly or through any escrow status for use outside the township. Such contract shall provide for liquidated damages to the township and sanctions for any violation thereof to compensate the township for the reduction in the number of such licenses available within the township. Such contract shall provide for the forfeiture of the full sale or transfer price paid or payable to the transferor, together with interest on any unpaid balance, until the same is paid to the township. This subsection shall only apply to any licenses issued by the Michigan Liquor Control Commission that are subject to the township's applicable quotas.
(Ord. No. 317, § 1, 9-26-2016; Ord. No. 358, § 2, 3-8-2021)

Sec. 4-35. Revocation of license.

(a) *Objection.* The township board may object to a renewal of a liquor license or request the revocation of a liquor license with the Michigan Liquor Control Commission, based on the licensee's failure to comply with the requirements of this chapter or based on the licensee's violation(s) of this chapter.

(b) *Procedure.* Before filing an objection to the renewal or a request for revocation of a license with the Michigan Liquor Control Commission, the township board shall provide the licensee with notice and an opportunity to be heard. The township board shall serve notice upon the licensee by certified mail, return receipt requested, not less than 20 days prior to the hearing. The notice shall state:

(1) The proposed action.

(2) The specified grounds for the township's proposed action.

(3) The date, time and place of the hearing.

(4) A statement that the licensee may present evidence and testimony, may cross-examine witnesses, and may be represented by an attorney.

(c) *Hearing and decision.* The hearing shall be conducted by the township board and shall be open to the public. The township board shall submit to the licensee and the Michigan Liquor Control Commission, a written statement of its findings, determination, and specific grounds therefore.

(d) *Criteria for nonrenewal or revocation.* The township board may recommend nonrenewal or revocation of a license upon a determination by it that, based upon a preponderance of the evidence presented at the hearing, the licensee has violated any of the following criteria:

(1) The licensee would not meet the standards set forth in section 4-33 if the licensee were an applicant for a new license.

(2) The licensee has knowingly or recklessly allowed three or more violations of the regulations of this chapter in the preceding calendar year.

(3) The licensee has knowingly or recklessly allowed a nuisance, as defined under the Revised Judicature Act, MCL 600.3801, to be maintained upon the premises.

(4) The subject premises has existing violations of building, zoning, plumbing, mechanical, electrical, health or fire prevention codes.

(5) The operation of the licensed establishment has resulted in a pattern of patron conduct in the neighborhood of the establishment that substantially disturbs the peace, order, and tranquility of the neighborhood.

(6) The licensee has failed to maintain the grounds and exterior of the licensee's establishment by allowing litter, debris, and/or refuse to unreasonably remain on the property or adjoining properties.

(Ord. No. 317, § 1, 9-26-2016)

Chapter 5

RESERVED

Chapter 6

BUILDINGS AND BUILDING REGULATIONS*

Article I. In General

Secs. 6-1—6-30. Reserved.

Article II. Single State Construction Code

Sec. 6-31. Purpose.
Sec. 6-32. Adoption of state construction code; administration and enforcement.
Sec. 6-33. Agency designated.
Sec. 6-34. Fees.
Sec. 6-35. Enforcement.
Sec. 6-36. Sanctions.
Secs. 6-37—6-60. Reserved.

Article III. Neglected or Dilapidated Buildings

Sec. 6-61. Definitions.
Sec. 6-62. Prohibition of dangerous buildings.
Sec. 6-63. Notice of dangerous building; hearing.
Sec. 6-64. Hearing officer.
Sec. 6-65. Enforcement hearing.
Sec. 6-66. Implementation and enforcement of remedies; appeal.
Sec. 6-67. Sanctions for nonconformance with order.
Sec. 6-68. Emergency proceedings to secure premises.

***Cross references—**Environment, ch. 10; fire prevention and protection, ch. 12; burning of buildings and building materials, § 12-106; land divisions and subdivision control, ch. 16; solid waste, ch. 26; utilities, ch. 32; waterways, ch. 34; zoning, ch. 36.

ARTICLE I. IN GENERAL

Secs. 6-1—6-30. Reserved.

ARTICLE II. SINGLE STATE CONSTRUCTION CODE*

Sec. 6-31. Purpose.

This article is enacted by the township to formalize the township's election to administer and enforce certain provisions of the single state construction code act and the codes adopted pursuant thereto, in accordance with Public Act No. 230 of 1972, as amended (MCL 125.1501 et seq.). Pursuant to sections 4, 8, 8a and 8b of such act, by adoption of this article, the township expresses its intent to enforce the codes established by the Construction Code Commission under the act.
(Ord. No. 365, § 1, 11-8-2021)

Sec. 6-32. Adoption of state construction code; administration and enforcement.

The state construction code, consisting of the residential code, the building code, the mechanical code, the plumbing code, the electrical code, the existing building code, and the energy conservation code, as adopted by the state and the construction code commission pursuant to Public Act No. 230 of 1972, as amended (MCL 125.1501 et seq.), are hereby adopted by reference in the township, and the township hereby assumes responsibility for the administration and enforcement of such residential code, building code, mechanical code, plumbing code, electrical code, existing building code, and energy conservation code within its boundaries.
(Ord. No. 365, § 1, 11-8-2021)

Sec. 6-33. Agency designated.

Pursuant to the provisions of the provisions of the state construction code, in accordance with Public Act No. 230 of 1972, as amended (MCL 125.1501 et seq.), the building code official, the electrical code official, the plumbing code official and the mechanical code official of the township are hereby each designated as the enforcing agency to discharge the responsibility of the township under the act.
(Ord. No. 365, § 1, 11-8-2021)

***Editor's note—**Ord. No. 365, § 1, adopted Nov. 8, 2021, amended Art. II in its entirety, in effect repealing and reenacting said Art. II to read as set out herein. The former Art. II, §§ 6-31—6-36, pertained to similar subject matter and derived from Comp. Ords. as revised Dec. 1999, § 22.016; Ord. No. 205, §§ II—VII, adopted July 9, 2001; and Ord. No. 354, § 1, adopted Sept. 14. 2020.

State law reference—Single state construction code act, MCL 125.1501 et seq.

Sec. 6-34. Fees.

The township board shall establish by resolution fees, rates and charges for administering and enforcing this article and the portions of the single state construction code adopted by reference in this article, and for conducting activities in connection therewith.
(Ord. No. 365, § 1, 11-8-2021)

Sec. 6-35. Enforcement.

The township assumes the right and authority to administer and enforce this article and the residential code, building code, mechanical code, plumbing code, electrical code, existing building code, and energy conservation code.
(Ord. No. 365, § 1, 11-8-2021)

Sec. 6-36. Sanctions.

Violation of this article, and of any provision of the codes adopted herein by reference, shall be a municipal civil infraction as defined by state statute which shall be punishable by a civil fine as provided in section 18-62.
(Ord. No. 365, § 1, 11-8-2021)

Secs. 6-37—6-60. Reserved.

ARTICLE III. NEGLECTED OR DILAPIDATED BUILDINGS*

Sec. 6-61. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Dangerous building means any building or structure, residential or otherwise, that has one or more of the following defects or is in one or more of the following conditions:

(1) A door, aisle, passageway, stairway or other means of exit that does not conform to the Housing Law of the State of Michigan, Act No. 167 of the Public Acts of 1917, as amended, being MCL 125.401 et seq., or the Michigan Building Code/Residential Code/Fire Code (as applicable).

(2) A portion of the building or structure is damaged by fire, wind, flood or other cause so that the structural strength or stability of the building or structure is appreciably less than it was before the catastrophe and does not meet the minimum requirements of the Housing Law of the State of Michigan, Act No. 167 of the Public Acts of 1917, as amended, being MCL 125.401 et seq., or the Michigan Building Code/Residential Code (as applicable) for a new building or structure, purpose or location.

***Cross reference—**Environment, ch. 10.
State law reference—Dangerous buildings, MCL 125.538 et seq.

(3) A part of the building or structure is likely to fall, become detached or dislodged, or collapse, and injure persons or damage property.

(4) A portion of the building or structure has settled to such an extent that walls or other structural portions of the building or structure have materially less resistance to

wind than is required in the case of new construction by the Housing Law of the State of Michigan, Act No. 167 of the Public Acts of 1917, as amended being MCL 125.401 et seq., or the Michigan Building Code/Residential Code (as applicable).

(5) The building or structure, or a part of the building or structure, because of dilapidation, deterioration, decay, faulty construction, or the removal or movement of some portion of the ground necessary for the support, or for other reason, is likely to partially or completely collapse, or some portion of the foundation or underpinning of the building or structure is likely to fall or give way.

(6) The building or structure, or a part of the building or structure, is manifestly unsafe for the purpose for which it is used.

(7) The building or structure is damaged by fire, wind or flood, or it is dilapidated or deteriorated and becomes an unattractive nuisance to children who might play in the building or structure to their danger, or becomes a harbor for vagrants, criminals or immoral persons, or enables persons to resort to the building or structure for committing a nuisance or an unlawful or immoral act.

(8) A building or structure used or intended to be used for dwelling purposes, including the adjoining grounds, because of dilapidation, decay, damage, faulty construction or arrangement, or otherwise, is unsanitary or unfit for human habitation, is in a condition that the health officer of the township or county determines likely to cause sickness or disease, or is likely to injure the health, safety or general welfare of people living in the dwelling.

(9) A building or structure is vacant, dilapidated and open at door or window, leaving the interior of the building exposed to the elements or accessible to entrance by trespassers.

(10) A building or structure remains unoccupied for a period of 180 consecutive days or longer, and is not listed as being available for sale, lease or rent with a real estate broker licensed under Article 25 of the Occupational Code, Act No. 299 of the Public Acts of 1980, being MCL 339.2501 et seq., or is not publicly offered for sale by the owner. This subsection does not apply to either of the following:

a. A building or structure as to which the owner or agent does both of the following:

1. Notifies the Kalamazoo County Sheriff's Department that the building or structure will remain unoccupied for a period of 180 consecutive days. The notice shall be given by the owner or agent not more than 30 days after the building or structure becomes unoccupied.

2. Maintain the exterior of the building or structure and adjoining grounds in accordance with the Housing Law of the State of Michigan, Act No. 167 of the Public Acts of 1917, as amended, being MCL 125.401 et seq., and the Michigan Building Code/Residential Code (as applicable.)

b. A secondary dwelling of the owner that is regularly unoccupied for a period of 180 days or longer each year, if the owner notifies the Kalamazoo County Sheriff's Department that the dwelling will remain unoccupied for a period of 180 consecutive days or more each year. An owner who has given the notice prescribed by this subparagraph shall notify the Kalamazoo County Sheriff's Department not more than 30 days after the dwelling no longer qualifies for this exception. As used in this subparagraph, "secondary dwelling" means a dwelling such as a vacation home, hunting cabin or summer home, that is occupied by the owner or member of the owner's family during part of the year.

Enforcement officers means the persons to whom enforcement of this article is delegated by the township board.

(Comp. Ords. as Rev. 12-1999, § 40.002; Ord. No. 334, § 1, 3-26-2018)

Cross reference—Definitions generally, § 1-2.

Sec. 6-62. Prohibition of dangerous buildings.

It shall be unlawful for any owner or agent thereof to keep or maintain any building or part thereof which is a dangerous building as defined in this article.

(Ord. No. 334, § 2, 3-26-2018)

Editor's note—Ord. No. 334, § 2, adopted March 26, 2018 amended § 6-62 in its entirety to read as set out herein. Former § 6-62 pertained to regulations and derived from Comp. Ords. as Rev. 12-1999, § 40.003.

Sec. 6-63. Notice of dangerous building; hearing.

(a) If the township ordinance enforcement officer determines that a building or structure is a dangerous building as defined in this article, the ordinance enforcement officer shall issue a first notice that the building or structure is a dangerous building.

(b) The first notice shall be served on the owner or party in interest that is registered with the township. If an owner or party in interest is not registered, then the notice shall be served on each owner or party in interest in the building or structure in whose name the property appears on the last township assessment records.

(c) The first notice shall specify the time and place for the owner or party in interest to meet with the ordinance enforcement officer to discuss the status of the building or structure, and what steps need to be taken to demolish or otherwise make the building or structure safe. If the owner or party in interest fails to attend the meeting or a satisfactory resolution cannot otherwise be reached between the ordinance enforcement officer and the owner or party in interest, the matter shall be referred to the township's building official. The township's building official shall be requested to inspect the building or structure and provide a written opinion as to whether the building or structure constitutes a dangerous building under this article. If the township's building official determines that the building or structure is a dangerous building pursuant to this article, a final notice shall be served on the owner or party in interest.

(d) The final notice shall specify the time and place of the hearing on whether the building or structure is a dangerous building and shall state that the person to whom the notice is directed shall have the opportunity at the hearing to show cause why the hearing officer should not order the building or structure to be demolished, otherwise made safe, or properly maintained.

(e) The final notice shall be in writing and shall be served upon the person to whom it is directed personally or, in lieu of personal service, may be mailed by certified mail - return receipt requested, addressed to such owner or party in interest at the address shown on the tax records, at least ten days before the date of the hearing described in the notice. If any person to whom the notice is directed is not personally served, then, in addition to mailing the notice, a copy thereof shall be posted upon a conspicuous part of the building or structure at least ten days prior to the hearing.
(Ord. No. 334, § 3, 3-26-2018)

Editor's note—Ord. No. 334, § 3, adopted March 26, 2018 amended § 6-63 in its entirety to read as set out herein. Former § 6-63 pertained to sanctions and derived from Comp. Ords. as Rev. 12-1999, § 40.004.

Sec. 6-64. Hearing officer.

(a) A hearing officer shall be appointed by the township supervisor to serve at his or her pleasure. The hearing officer shall be a person who has expertise in housing matters, including, but not limited to, an engineer, architect, building contractor, building inspector, or member of a community housing organization.

(b) The ordinance enforcement officer shall file a copy of the final notice of dangerous building with the hearing officer.

(c) At the hearing, the hearing officer shall take the testimony of the ordinance enforcement officer, the township building official, the owner or party in interest of the property and any other interested party. Not more than five days after the completion of the hearing, the hearing officer shall render a decision either closing the proceedings or ordering the building or structure demolished, otherwise made safe, or properly maintained.

(d) If it is determined by the hearing officer that the building or structure should be demolished, otherwise made safe, or properly maintained, the hearing officer shall so order, fixing a time in the order for the owner or party in interest to comply therewith. If the building is a dangerous building under section 6-61(10) of this article, the order may require the owner or party in interest to maintain the exterior of the building and adjoining grounds of the building including, but not limited to, the maintenance of lawns, trees and shrubs.

(e) If the owner, agent or party in interest fails to appear, or neglects or refuses to comply with the order, the hearing officer shall file a report of his or her findings and a copy of the order with the township board not more than five days after noncompliance and request that

the necessary action be taken to enforce the order. A copy of such findings and order of the hearing officer shall be served on the owner or party in interest in the manner prescribed in section 6-63(5).
(Ord. No. 334, § 4, 3-26-2018)

Sec. 6-65. Enforcement hearing.

The township board shall fix a date not less than 30 days after the hearing prescribed in section 6-64(3) of this article for a hearing on the findings and order of the hearing officer and shall give notice to the owner, agent or lessee in the manner prescribed in section 6-63(5) of this article of the time and place of the hearing. At the hearing, the owner, agent or lessee shall be given the opportunity to show cause why the order should not be enforced. The township board shall either approve, disapprove or modify the order. If the township board approves or modifies the order, the township board shall take all necessary action to enforce the order. If the order is approved or modified, the owner, agent or lessee shall comply with the order within 60 days after the date of the hearing under this section. In the case of an order of demolition, if the township board determines that the building or structure has been substantially destroyed by fire, wind, flood or other natural disaster and the cost of repair of the building or structure will be greater than the state equalized value of the building or structure, the owner, agent or lessee shall comply with the order within 21 days after the date of the hearing under this section.
(Ord. No. 334, § 5, 3-26-2018)

Sec. 6-66. Implementation and enforcement of remedies; appeal.

(a) *Implementation of order by township.* In the event of the failure or refusal of the owner or party in interest to comply with the decision of the township board, the township board may, in its discretion, contract for the demolition, making safe or maintaining the exterior of the building or structure or grounds adjoining the building or structure.

(b) *Reimbursement of costs.* The cost of the demolition, of making the building safe, or of maintaining the exterior of the building or structure or grounds adjoining the building or structure, incurred by the township to bring the property into conformance with this article shall be reimbursed to the township by the owner or party in interest in whose name the property appears.

(c) *Notice of cost.* The owner or party in interest in whose name the property appears upon the last local tax assessment records shall be notified by the township assessor of the amount of the cost of the demolition, of making the building safe, or of maintaining the exterior of the building or structure or grounds adjoining the building or structure, by first class mail at the address shown on the township records.

(d) *Lien for unpaid costs.* If the owner or party in interest fails to pay the costs within 30 days after mailing by the assessor of the notice of the amount of the costs, in the case of a single-family dwelling or a two-family dwelling, the township shall have a lien for the costs incurred by the township to bring the property into conformance with this article. The lien

shall not take effect until notice of the lien has been filed or recorded as provided by law. A lien provided for in this subsection does not have priority over previously filed or recorded liens and encumbrances. The lien for the costs shall be collected and treated in the same manner as provided for property tax liens under the General Property Tax Act, Act No. 206 of the Public Acts of 1893, as amended, being MCL 211.1 et seq.

(e) *Court judgment for unpaid costs.* In addition to other remedies under this article, the township may bring an action against the owner of the building or structure for the full cost of the demolition, of making the building safe or of maintaining the exterior of the building or structure or grounds adjoining the building or structure. In the case of a single-family dwelling or a two-family dwelling, the township shall have a lien on the property for the amount of a judgment obtained pursuant to this subsection. The lien provided for in this subsection shall not take effect until notice of the lien is filed and recorded as provided for by law. The lien does not have priority over prior filed or recorded liens and encumbrances.

(f) *Enforcement of judgment.* A judgment in an action brought pursuant to section 6-66(5) of this article may be enforced against assets of the owner other than the building or structure.

(g) *Lien for judgment amount.* In the case of a single-family dwelling or a two-family dwelling, the township shall have a lien for the amount of a judgment obtained pursuant to 6-66(5) of this article against the owner's interest in all real property located in this state that is owned in whole or in part by the owner of the building or structure against which the judgment is obtained. A lien provided for in this subsection does not take effect until notice of the lien is filed or recorded as provided by law, and the lien does not have priority over prior filed or recorded liens and encumbrances.

(h) An owner or party in interest aggrieved by any final decision or order of the township board under section 6-65 of this article may appeal the decision or order to the circuit court by filing a petition for an order of superintending control within 20 days from the date of the decision.
(Ord. No. 334, § 6, 3-26-2018)

Sec. 6-67. Sanctions for nonconformance with order.

A person who fails or refuses to comply with an order approved or modified by the township board under section 6-65 of this article within the time prescribed by that section shall be deemed to be responsible for a municipal civil infraction as defined by Michigan Statute which shall be punishable by a civil fine of not more than $500.00 along with costs which may include all expenses, direct and indirect, to which the township has been put in connection with the municipal civil infraction. In no case, however, shall costs of less than $9.00 nor more than $500.00 be ordered. Additionally, such person shall also be subject to such additional sanctions and judicial orders as are authorized under Michigan Law.
(Ord. No. 334, § 7, 3-26-2018)

Sec. 6-68. Emergency proceedings to secure premises.

If the township's ordinance enforcement officer believes an immediate serious danger exists to the public where a vacant building or structure is left open to casual entry, he or she may give notice by personal service to each owner of record as shown on the current tax roll, or by leaving such notice at his or her place of residence as shown on the current tax roll and also similarly serving any other interested persons (as shown on the tax roll) pertaining to a hearing on the matter to be held no sooner than 24 hours after effecting such service. In the case of an owner of record or other interested person (as shown on the current tax roll) who does not reside in the Charter Township of Texas, notice may instead be given by overnight mail addressed to his or her place of residence as shown on the current tax roll, in which case the hearing shall be held not less than 48 hours after the notice is placed in the mail. The purpose of the hearing shall be to consider the request of the ordinance enforcement officer that the township be authorized to go upon the property for the express purpose of boarding up or otherwise making the premises secure from casual entry immediately. After taking testimony from the ordinance enforcement officer, the building official, owner (if he or she appears) and any other interested persons who may appear, the hearing officer shall consider the urgency of the matter, whether a real danger exists to persons, including minors, who might enter the building or structure, and whether there is evidence that unauthorized persons are or have entered the premises. If the hearing officer determines that such immediate dangers exist by the building or structure remaining open to casual entry, the hearing officer may authorize such work as may be necessary to be done by the township immediately to make the premises secure from casual entry. The costs of such work shall be paid by the property owner within 30 days of billing by the township. If such costs are not paid, the township may institute suit to collect those costs or take such other action as may be allowed by law to compel payment.
(Ord. No. 334, § 8, 3-26-2018)

Chapter 7

CEMETERIES

Sec. 7-1. Title and authority.
Sec. 7-2. Purpose.
Sec. 7-3. Definitions of cemetery lots and burial spaces.
Sec. 7-4. Sale of burial space.
Sec. 7-5. Fees and charges.
Sec. 7-6. Burial space opening and closing.
Sec. 7-7. Interment regulations.
Sec. 7-8. Markers or memorials.
Sec. 7-9. Decorating and planting.
Sec. 7-10. Ground maintenance.
Sec. 7-11. Forfeiture of vacant cemetery lots or burial spaces.
Sec. 7-12. Records.
Sec. 7-13. Vault.
Sec. 7-14. Cemetery hours.
Sec. 7-15. Penalties.

Sec. 7-1. Title and authority.

This chapter shall be known and cited as the Township Cemetery Ordinance. The following cemetery regulations are adopted by ordinance pursuant to authority granted the township by PA 113 of 1915, PA 46 of 1931, as amended, PA 95 of 1909, as amended, and PA 215 of 1937, as amended.
(Ord. No. 375, § 1(A), 5-6-2024)

Sec. 7-2. Purpose.

An ordinance to regulate the operation, control, and management of cemeteries within the township.
(Ord. No. 375, § 1(B), 5-6-2024)

Sec. 7-3. Definitions of cemetery lots and burial spaces.

(a) A cemetery lot shall consist of burial spaces sufficient to accommodate one to 14 burial spaces.

(b) An adult burial space shall consist of a land area four feet wide and ten feet in length.

(c) A cremains burial space shall consist of a land area three feet wide and six feet in length.

(d) A burial space for children aged five and younger shall consist of a land area three feet wide and six feet in length.
(Ord. No. 375, § 1(C), 5-6-2024)

Sec. 7-4. Sale of burial space.

(a) The sale of all burial spaces shall be made through the township clerk's office.

(b) Each adult burial space is designed for one full burial and up to two cremains burials, or up to four cremains burials if no full burial is present; however, exceptions may be made for infants. Each cremains burial space is designed for two cremains burials.

(c) Township residents may only purchase burial space on an as needed basis. Except, a township resident of ten years or more may purchase a pre-needed burial space if he/she is 62 years of age or older or has a terminal illness.

(d) Burial spaces can be sold to nonresidents if: (i) at some time they have been a resident of Texas Township for a period of not less than ten years and (ii) have one or more member of the immediate family buried at the cemetery. Immediate family members include parents, children, and siblings. Nonresidents, who qualify for burial, may purchase a maximum of two burial spaces.

(e) Other than a right of burial, a burial space issued by the township clerk or his/her designee does not convey any other title or interest in or to a cemetery lot or burial space.

(f) Burial spaces cannot be transferred or sold and must be assigned or sold back to the township at the purchase price if not used at the time of death of the designated person.

(g) Persons selling or assigning a burial space back to the township may request the burial space be sold or assigned to a specific individual who would qualify for the burial space.

(h) A burial space may be forfeited pursuant to section 7-11 of this chapter.
(Ord. No. 375, § 1(D), 5-6-2024)

Sec. 7-5. Fees and charges.

The township board shall have the right to establish fees and charges for the acquisition, operation, and maintenance of any township cemetery and may include, but are not limited to, fees and charges for issuing burial permits, transfers of any burial permits and opening and closing of burial spaces, including the interment of ashes and proceedings for the removal and reinterment of bodies and remains which may also be under the supervision of the local health department. The fees and charges shall be adopted by the township board and may be amended from time to time.
(Ord. No. 375, § 1(E), 5-6-2024)

Sec. 7-6. Burial space opening and closing.

No burial spaces shall be opened or closed except under the direction and control of the township clerk or his/her designees. This provision shall also apply to the removal and reinterment of bodies and cremains which are also under the supervision of the local health department.
(Ord. No. 375, § 1(F), 5-6-2024)

Sec. 7-7. Interment regulations.

(a) Only one person may be buried in a burial space except for an infant buried with a relative. Multiple cremains may be buried in one burial space. Cremains may be buried in a burial space with a body if the township clerk or his/her designee determines there will be enough room and all of the deceased meet the qualifications for burial at a township cemetery.

(b) Notice shall be given to the township clerk or his/her designee at least 72 hours in advance of any funeral to allow for the opening of any burial space.

(c) A properly issued burial permit and identification of the person to be buried must be provided to the township clerk or his/her designee prior to interment. However, if a burial permit has been lost or destroyed, the township clerk or his/her designee must be satisfied from a review of the records, and at his/her sole discretion, that the person to be buried had been issued a burial permit before any interment is commenced or completed.

(d) All burial spaces shall be kept in an orderly and neat appearing manner and no markers or other decorations shall be placed or extend outside of the confines of a burial space.
(Ord. No. 375, § 1(G), 5-6-2024)

Sec. 7-8. Markers or memorials.

(a) All markers, memorials, monuments, and columbariums, must be of stone or other equally durable composition.

(b) Markers will be placed at the head of the burial site with no more than one marker per burial site. The township clerk may make an exception when an infant is buried with a relative or the burial site contains multiple cremains.

(c) Monuments, markers, columbariums, and memorials shall not contain any form of commercial advertisements.

(d) The foundation upon which any monument, columbarium, marker or memorial must be placed shall be constructed by the township or its agent at the cost and expense of the owner of the burial right. All monuments must be set by a monument company. Monument companies shall verify burial sites with the township clerk's office prior to ordering the placement of a foundation.

(e) Maintenance of monuments, markers, columbariums, and memorials is the responsibility of the family of the deceased; however, should any monument, marker, columbarium, or memorial become unsightly, dilapidated, or a safety hazard to visitors, the township shall have the right to correct the condition or to remove the same.

(f) A monument may not be more than three feet tall and may not have a foundation wider than 48 inches. A monument placed on a double plot shall be placed at the center of the burial plots.
(Ord. No. 375, § 1(H), 5-6-2024)

Sec. 7-9. Decorating and planting.

(a) The township shall be responsible for the placement of all trees and shrubs on cemetery grounds. No individual planting of trees or shrubs shall be permitted.

(b) Any tree or shrub individually planted prior to the adoption of this policy may remain on the cemetery grounds. The township encourages individuals to keep the trees and shrubs trimmed. However, the township reserves the right to remove or trim any tree, plant, or shrub located within the cemetery in the interest of maintaining proper appearance and full use of the cemetery.

(c) Perennial flowers may be planted in urns or vases on either side of the memorial. Cut flowers and annual flowers may be placed or planted within 12 inches of the memorial and shall not extend past the burial space boundaries while in full bloom. Artificial flowers may be placed on the sides or front of memorials.

(d) Summer lot decorations are permitted from May 1 through September 30. Winter lot decorations are permitted from November 1 through March 31 of the following year. Decorations remaining beyond the time permitted may be removed and destroyed by the township.
(Ord. No. 375, § 1(I), 5-6-2024)

Sec. 7-10. Ground maintenance.

(a) No grading, leveling, or excavating upon a burial space shall be allowed without the permission of the township clerk or his/her designee. No edging, stones, coping, fencing, railing or hedge to define a cemetery lot or burial space shall be permitted. No structures shall be permitted. No glass items shall be permitted. The township clerk or his/her designee, without notice, may direct any person to remove any prohibited items or direct employees or agents of the township to remove such items. Any items removed by the township may be disposed of in any manner and in the sole discretion of the township.

(b) Mounds, which hinder the free use of a lawn mower or other gardening apparatus, are prohibited.

(c) The township clerk or his/her designee shall have the right and authority to remove and dispose of any and all growth, emblems, displays or containers therefor that through decay, deterioration, damage or otherwise become unsightly or constitute a maintenance problem. Shepherd hooks may be removed if they pose a danger for grave maintenance.

(d) All refuse of any kind or nature including, among others, dried flowers, wreaths, papers, and flower containers must be removed or deposited in refuse containers located within the cemetery.

(e) Only township employees and/or agents are authorized to plant and mow grass in the cemetery.

(f) The township assumes no responsibility and shall not be liable for damage to any item placed on any cemetery lot or burial space, including without limitation any damage caused by regular maintenance activities, such as mowing, weed whacking and tree removal. Further, the township assumes no responsibility and shall not be liable for damage to any headstones or markers resulting from regular maintenance or other natural or weather-related events, including damage from falling trees or branches.
(Ord. No. 375, § 1(J), 5-6-2024)

Sec. 7-11. Forfeiture of vacant cemetery lots or burial spaces.

Burial spaces which remain vacant for 40 years or more from the date of their assignment shall automatically revert to the township upon occurrence of the following events:

(1) Notice shall be sent by the township clerk by first class mail to the last known address of the last owner of record informing them of the expiration of the 40-year

period and that all rights with respect to said lots or spaces will be forfeited if they do not affirmatively indicate in writing to the township clerk within 60 days from the date of mailing of the within notice their desire to retain said burial rights.

(2) If no written response to said notice indicating a desire to retain the cemetery lots or burial spaces in question is received by the township clerk from the last owner of record of said lots or spaces, or their heirs or legal representatives, within 60 days from the date of mailing of said notice.

(Ord. No. 375, § 1(K), 5-6-2024)

Sec. 7-12. Records.

The township clerk shall maintain records concerning all burials and issuance of burial permits separate and apart from any other records of the township and the same shall be open to public inspection during regular business hours.

(Ord. No. 375, § 1(L), 5-6-2024)

Sec. 7-13. Vault.

All burials shall be within a standard concrete vault installed or constructed in each burial space before interment.

(Ord. No. 375, § 1(M), 5-6-2024)

Sec. 7-14. Cemetery hours.

The cemetery shall be open to the general public from sunrise to sunset each day. No dogs, horses, cats, or other domesticated animals are allowed in the cemetery.

(Ord. No. 375, § 1(N), 5-6-2024)

Sec. 7-15. Penalties.

Any person, firm, or corporation who violates any of the provisions of the within ordinance shall be guilty of a misdemeanor and shall be subject to a fine of up to $100.00 and/or imprisonment for up to 90 days in jail as may be determined by a court of competent jurisdiction. Nothing in this chapter shall be construed to limit any other remedy at law or in equity, including, but not limited to injunctive relief for violations of this chapter. Any such remedies shall be in addition to any other remedy.

(Ord. No. 375, § 1(O), 5-6-2024)

Chapter 8

COMMUNITY DEVELOPMENT*

Article I. In General

Secs. 8-1—8-30. Reserved.

Article II. Downtown Development Authority

Sec. 8-31. Definitions.
Sec. 8-32. Purpose.
Sec. 8-33. Creation of authority.
Sec. 8-34. Description of downtown district.
Sec. 8-35. Board of directors.
Sec. 8-36. Powers of the authority.
Sec. 8-37. Fiscal year; adoption of budget; reports; audits.
Sec. 8-38. Termination.
Secs. 8-39—8-60. Reserved.

Article III. Downtown Development and Financing Plan

Sec. 8-61. Definitions.
Sec. 8-62. Public purpose.
Sec. 8-63. Findings.
Sec. 8-64. Adoption.
Sec. 8-65. Amendment.

***Cross references—**Administration, ch. 2; land divisions and subdivision control, ch. 16; utilities, ch. 32; waterways, ch. 34; zoning, ch. 36; franchises, app. A.

State law references—Downtown development authority, MCL 125.1651 et seq.; housing and slums clearance projects, MCL 125.651 et seq.; housing corporation law, MCL 125.601 et seq.; urban redevelopment corporations, MCL 125.901 et seq.; rehabilitation of blighted areas, MCL 125.71 et seq.; economic development corporations, MCL 125.1601 et seq.; shopping area redevelopment authority, MCL 125.981 et seq.

ARTICLE I. IN GENERAL

Secs. 8-1—8-30. Reserved.

ARTICLE II. DOWNTOWN DEVELOPMENT AUTHORITY*

Sec. 8-31. Definitions.

The terms used in this article shall have the same meaning as given them in Act 197 or as hereinafter in this section provided, unless the context clearly indicates to the contrary. As used in this article:

Act 197 means Public Act No. 197 of 1975 (MCL 125.1651 et seq.).

Authority means the downtown development authority of the township created by this article.

Board and *board of directors* mean the board of directors of the authority.

Downtown district means the downtown district designated in this article or as hereafter amended.
(Ord. No. 192, § II, 4-28-2000)

Cross reference—Definitions generally, § 1-2.

Sec. 8-32. Purpose.

The township board has determined that it is necessary for the best interests of the public to halt property value deterioration and increase property valuation where possible in the business district of the township, and to eliminate the causes of that deterioration and promote economic growth in the downtown district of the township, pursuant to Act 197. For those purposes, the township board has adopted this article to create and provide for the operation of a downtown development authority, pursuant to the act.
(Ord. No. 192, § III, 4-28-2000)

Sec. 8-33. Creation of authority.

There is hereby created pursuant to Act 197 a downtown development authority for the township. The authority shall be a public body corporate and shall be known and exercise its powers under the title of "Downtown Development Authority of the Charter Township of Texas."
(Ord. No. 192, § IV, 4-28-2000)

***Cross reference—**Administration, ch. 2.

State law reference—Downtown development authority, MCL 125.1651 et seq.

Sec. 8-34. Description of downtown district.

The downtown district within which the authority shall exercise its powers as provided by Act 197 shall consist of the property in the township described as: subject to such changes and may hereinafter be made pursuant to this article and Act 197.

Land located in Sections 14, 15, 22, 23, T. 3 S., R. 12 W., Texas Township, Kalamazoo County, Michigan:

Beginning at the Northwest corner of the East ½ of the Northwest ¼ of Section 23, T. 3 S., R. 12 W.; thence East along the North line of Section 23, 450.0 feet; thence South parallel with the West line of the East ½ of the Northwest ¼ to the South line of the North 64 Rods; thence West along said South line to section line common to Sections 22 and 23; thence South along common section line to a point 1,105.32 feet South of the Northeast corner of Section 22; thence West at right angles, 193.0 feet; thence South parallel with the East line of Section 22 to the North line of Texas Heights Plat; thence West along said North line to the East line of Texas Heights No. 2 Plat; thence North along said East line and its Northerly extension to the section line common to Sections 15 and 22; thence East along said common section line to the West line of the East ½ of the Southeast ¼ of Section 15; thence North along said West line to the North line of the Southeast ¼ of the Southeast ¼; thence East along said North line to the West line of the East 720.0 feet of the Southeast ¼ of the Southeast ¼ of Section 15; thence South along said West line to a point 425.99 feet North of the South line of Section 15; thence East parallel with the South line of Section 15, 429.95 feet to the West line of the East 290.0 feet of the Southeast ¼ of the Southeast ¼ of Section 15; thence North parallel with the East line of Section 15, 211.67 feet; thence East 290 feet to the section line common to Section's 14 and 15; thence North along said common section line to a point 1,080.75 feet North of the Southwest corner of Section 14; thence East, 330.0 feet; thence Southeasterly to a point on the center line of Texas Drive at a point Northeasterly, 289.6 feet of the intersection of the South 40 Rods with Center of Texas Drive; thence Southeasterly at right angles to said Center line to the North line of the South 40 Rods of the Southwest ¼ of Section 14; thence East along the North line of said South 40 Rods to the West line of Applegate Farms No. 2; thence South along said West line and its southerly extension to the section line common to Sections 14 and 23; thence East along said common section line to beginning.

(Ord. No. 192, § V, 4-28-2000; Ord. No. 262, § I, 10-27-2008)

Sec. 8-35. Board of directors.

The authority shall be under the supervision and control of a board consisting of the township supervisor and eight members. The members of the board shall be appointed by the supervisor subject to approval by the township board. Eligibility for membership on the board and terms of office shall be as provided in Act 197. A member shall hold office until the member's successor is appointed.
(Ord. No. 192, § VI, 4-28-2000)

Cross reference—Administration, ch. 2.

Sec. 8-36. Powers of the authority.

The authority shall possess all of the powers necessary to carry out the purposes of its incorporation and shall have all powers provided by Act 197 except that the authority is prohibited from levying or from requesting the approval of the township board for the levy of any ad valorem property tax as set forth in section 12 of Act 197 (MCL 125.1662). The authority may adopt a seal, sue and be sued in any court of this state. The enumeration of a power in this section or in Act 197 shall not be construed as a limitation upon the general powers of the authority.
(Ord. No. 192, § VII, 4-28-2000)

Sec. 8-37. Fiscal year; adoption of budget; reports; audits.

(a) The fiscal year of the authority shall begin on January 1 of each year and end on December 31 of that year, or such other fiscal year as may hereafter be adopted by resolution of the township board.

(b) The authority board shall annually prepare a budget and shall submit it to the supervisor for submission to the township board. The authority board shall not finally adopt a budget for any fiscal year until the budget has been approved by the township board. The authority board may, however, temporarily adopt a budget in connection with the operation of any improvements which have been financed by revenue bonds where required to do so by the ordinance authorizing the revenue bonds.

(c) The authority shall be audited annually by the firm that audits the records of the township and copies of the audit report shall be filed with the township board.
(Ord. No. 192, § VIII, 4-28-2000)

Sec. 8-38. Termination.

Upon completion of its purposes, the authority may be dissolved by an ordinance duly adopted by the township board. The property and assets of the authority, after dissolution and satisfaction of its obligations, shall revert to the township.
(Ord. No. 192, § IX, 4-28-2000)

Secs. 8-39—8-60. Reserved.

ARTICLE III. DOWNTOWN DEVELOPMENT AND FINANCING PLAN

Sec. 8-61. Definitions.

The terms used in this article shall have the same meaning as given them in Act 197 or as hereinafter in this section provided, unless the context clearly indicates to the contrary. As used in this article:

Act 197 means Public Act No. 197 of 1975 (MCL 125.1651 et seq.).

Authority means the downtown development authority of the township created by article II of this chapter.
(Ord. No. 193, § II, 5-20-2000)

Cross reference—Definitions generally, § 1-2.

Sec. 8-62. Public purpose.

The township board hereby determines that the downtown development and tax increment financing plan, as amended and as recommended by the authority, constitutes a public purpose.
(Ord. No. 193, § III, 5-20-2000; Ord. No. 353, § 1A, 5-11-2020)

Sec. 8-63. Findings.

The township board hereby determines that:

(1) The downtown development and tax increment financing plan, as amended and as recommended by the authority, meets the requirements of section 17(2) of Act 197 (MCL 125.1667(2)).

(2) The downtown development and tax increment financing plan, as amended and as recommended by the authority, includes a proposed method of financing the development which is feasible and the authority has the ability to arrange the financing.

(3) The downtown development plan and tax increment financing plan, as amended and as recommended by the authority, includes development which is reasonable and necessary to carry out the purposes of Act 197.

(4) Land included within the development area which may be acquired is reasonably necessary to carry out the purposes of the plan and of Act 197 in an efficient and economically satisfactory manner.

(5) The downtown development and tax increment financing plan, as amended and as recommended by the authority, includes development which is in accord with the master plan of the township.

(6) Public services are or will be adequate to serve the project area.

(7) Changes in zoning, streets, street levels, intersections and utilities are reasonably necessary for the project and for the township.

(Ord. No. 193, § IV, 5-20-2000; Ord. No. 353, § 1B, 5-11-2020)

Sec. 8-64. Adoption.

The amendment of the downtown development and tax increment financing plan as amended and as recommended by the authority is hereby approved and adopted.

(Ord. No. 193, § V, 5-20-2000; Ord. No. 353, § 1C, 5-11-2020)

Sec. 8-65. Amendment.

Amendments to the approved development plan or tax increment plan shall be submitted by the authority to the township board for approval or rejection before implementation of any amended provisions.

(Ord. No. 193, § VI, 5-20-2000)

Chapter 9

RESERVED

Chapter 10

ENVIRONMENT*

Article I. In General

Secs. 10-1—10-30. Reserved.

Article II. Reserved

Secs. 10-31—10-60. Reserved.

Article III. Noise

Sec. 10-61. Definitions.
Sec. 10-62. Antinoise regulations.
Sec. 10-63. Antinoise regulations based upon dB(A) criteria.
Sec. 10-64. Sanctions.
Secs. 10-65—10-90. Reserved.

Article IV. Litter

Sec. 10-91. Name.
Sec. 10-92. Definitions.
Sec. 10-93. Regulations.
Sec. 10-94. Sanctions.
Secs. 10-95—10-120. Reserved.

Article V. Vehicle Storage and Repair

Sec. 10-121. Name.
Sec. 10-122. Purpose.
Sec. 10-123. Definitions.
Sec. 10-124. Regulations.
Sec. 10-125. Nuisance.
Sec. 10-126. Severability.
Sec. 10-127. Sanctions and enforcement.
Secs. 10-128—10-140. Reserved.

***Cross references—**Buildings and building regulations, ch. 6; neglected or dilapidated buildings, § 6-61 et seq.; inspections and unsafe buildings, § 12-35; land divisions and subdivision control, ch. 16; outdoor assemblies, ch. 22; parks and recreation, ch. 24; solid waste, ch. 26; utilities, ch. 32; waterways, ch. 34; zoning, ch. 36.

State law reference—Natural resources and environmental protection act, MCL 324.101 et seq.

Article VI. Wellhead Protection

Sec. 10-141. Intent/purpose.
Sec. 10-142. Definitions.
Sec. 10-143. Responsibility for administration.
Sec. 10-144. Prohibitions within ten-year time-of-travel (TOT) capture zone.
Sec. 10-145. Prohibitions within one-year time-of-travel (TOT) capture zone.
Sec. 10-146. Well isolation distance restrictions.
Sec. 10-147. Determination of capture zone boundaries.
Sec. 10-148. Continuation of existing facilities and land uses.
Sec. 10-149. Requirements regarding release of regulated substance.
Sec. 10-150. Inactive operations.
Sec. 10-151. Enforcement.
Sec. 10-152. Variance/appeal rights.
Sec. 10-153. Abatement/remedial activities by the township.
Sec. 10-154. Violation and penalty.
Secs. 10-155—10-170. Reserved.

Article VII. Sidewalk, Pathways and Trails

Sec. 10-171. Title.
Sec. 10-172. Purpose and scope of application.
Sec. 10-173. Definitions.
Sec. 10-174. Standards.
Sec. 10-175. Enforcement.
Sec. 10-176. Penalties, severability, conflicting provisions, and effective date.
Secs. 10-177—10-179. Reserved.

Article VIII. Vegetation and Noxious Weed Control

Sec. 10-180. Title.
Sec. 10-181. Purpose.
Sec. 10-182. Definitions.
Sec. 10-183. Weed commissioner.
Sec. 10-184. Control and management of vegetation and noxious weeds.
Sec. 10-185. Planned native landscaping.
Sec. 10-186. Enforcement process.
Sec. 10-187. Costs of enforcement.
Sec. 10-188. Violations and penalties.
Sec. 10-189. Validity and severability.

ARTICLE I. IN GENERAL

Secs. 10-1—10-30. Reserved.

ARTICLE II. RESERVED*

Secs. 10-31—10-60. Reserved.

ARTICLE III. NOISE

Sec. 10-61. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

dB(A) means the sound pressure level in decibels measured on the "A" scale of a standard sound level meter having characteristics defined by the American National Standards Institute, Publication ANSI S1.4-1971.

Decibel means a unit used to express the magnitude of sound pressure and sound intensity. The difference in decibels between two sound pressures is 20 times the common logarithm of their ratio. In sound pressure measurements, the sound pressure level of a given sound is defined to be 20 times the common logarithm of the ratio of that sound pressure to a reference pressure of $2 \times 10\text{-}^{5}N/m^{2}$ (Newtons per meter squared). As an example of the effect of this formula, a three-decibel change in the sound pressure level corresponds to a doubling or halving of the sound intensity, and a ten-decibel change corresponds to a ten fold increase or decrease to one-tenth the former intensity.
(Comp. Ords. as Rev. 12-1999, § 20.402)

Cross reference—Definitions generally, § 1-2.

Sec. 10-62. Antinoise regulations.

(a) *General regulation.* No person shall cause, permit to be caused, or create any unreasonable or unnecessarily loud noise or disturbance injurious to the health, peace or quiet of the residents and property owners of the township.

(b) *Specific violations.* The following noises and disturbances are hereby declared to be a violation of this article; provided, however, that the specification of the violation is not thereby to be construed to exclude other violations of this article not specifically enumerated:

(1) The playing of any radio, phonograph, television, or other electronic or mechanical sound producing device including any musical instrument, in such a manner or with such volume as to unreasonably upset or disturb the quiet, comfort, or repose of other persons.

***Editor's note—**Section VI of Ord. No. 275, adopted June 14, 2010, repealed art. II, Blight, §§ 10-31—10-34, which pertained to purpose; causes of blight or blighting factors; enforcement; and sanctions, and derived from Comp. Ords. as Rev. Dec. 1999.

(2) Loud or abusive behavior such as yelling, shouting, hooting, or singing on the public streets or on public property between the hours of 10:00 p.m. and 6:00 a.m., or at any time or place so as to unreasonably upset or disturb the quiet, comfort, or repose of any persons in the vicinity.

(3) The emission or creation of any excessive noise which unreasonably interferes with the operation of any school, church, hospital, or court.

(4) The operation of any racetrack, proving ground, testing area or obstacle course for motor vehicles, motorcycles, boats, racers, automobiles or vehicles of any kind or nature in any area of the township where the noise emanating therefrom would be unreasonably disturbing and upsetting to other persons in the vicinity. Under no circumstances shall any racetrack, proving ground, testing area or obstacle course operate after 10:00 p.m. on any evening.

(5) The operation of any automobile, motorcycle or other vehicle so out of repair or so loaded or constructed as to cause loud and unnecessary grating, grinding, rattling, or other unreasonable noise including the noise resulting from exhaust, which is clearly audible from nearby properties and unreasonably disturbing to the quiet, comfort or repose of other persons. The modification of any noise abatement device on any motor vehicle or engine, or the failure to maintain such noise abatement device so that the noise emitted by such vehicle or engine is increased above that emitted by such vehicle as originally manufactured shall be in violation of this section.

(6) The sounding of any horn or other device on any motor vehicle or boat unless necessary to operate such vehicle safely or as required by the state motor vehicle code or marine rules and regulations.

(7) The discharging outside of any enclosed building of the exhaust of any steam engine, internal combustion engine, motor vehicle, or motor boat engine except through a muffler or other similar device which will effectively prevent loud or explosive noises. The modification of any noise abatement device on any motor vehicle or engine, or the failure to maintain any noise abatement device so that the noise emitted by such vehicle or engine is increased above that emitted by such vehicle as originally manufactured shall be in violation of this section.

(8) The erection, excavation, demolition, alteration or repair of any building or premises in any part of the township, and including the streets and highways, in such a manner as to emanate noise or disturbance unreasonably annoying to other persons, other than between the hours of 6:00 a.m. and 10:00 p.m. on any day, except in cases of urgent necessity in the interest of public health and safety. In such case, a permit shall be obtained from the building inspector or ordinance enforcement officer of the township, which permit shall limit the periods that the activity may continue.

(9) The creation of a loud or excessive noise unreasonably disturbing to other persons in the vicinity in connection with the operation, loading or unloading of any vehicle, trailer, railroad car, or other carrier or in connection with the repairing of any such vehicle in or near residential areas.

(10) The use of any drum, loudspeaker or other instrument or device for the purpose of attracting attention to any performance, show, sale, display or other commercial purpose which, by the creation of such noise, shall be unreasonably disturbing to other persons in the vicinity.

(11) The operation of any loudspeaker or other sound amplifying device upon any vehicle on the streets of the township with the purpose of advertising, where such vehicle, speaker or sound amplifying equipment emits loud and raucous noises easily heard from nearby adjoining residential property.

(12) The operation of any machinery, except agricultural machinery, equipment or mechanical device so as to emit unreasonably loud noise which is disturbing to the quiet, comfort or repose of any person.

(c) *Exceptions.* None of the prohibitions enumerated in subsections (a) or (b) of this section shall apply to the following:

(1) Any police vehicle, ambulance, fire engine or emergency vehicle while engaged in necessary emergency activities.

(2) Excavation or repair of bridges, streets or highways or other property by or on behalf of the state, township or the county, between 10:00 p.m. and 6:00 a.m. when the public welfare, safety and convenience render it impossible to perform such work during other hours.

(3) Warning devices emitting sound for warning purposes as authorized by law.

(4) Any agricultural animal, machinery, equipment, or mechanical device being used on lands utilized for legitimate agricultural purposes.

(5) Any vehicle or equipment designed and used for the purpose of snow/ice removal when in use for such purpose.

(6) *Generator.* A generator may be utilized any time for emergency power.

(7) *Emergency construction.* Construction on any building in any zoning district can occur in order to secure property or prevent further damage from wind, flood, fire, or any other disaster, provided a building permit is applied for the next available township business day.

(8) *Essential services.* In an effort to provide services and protect the general health, safety and welfare of the public, essential services such as trash/garbage collection shall not be in violation regardless of time of day. This will allow the collection at a time of day so as not to hinder traffic from residents going to or from their place of employment and the transport of children on school busses without impeding safe traffic flow.

(Comp. Ords. as Rev. 12-1999, § 20.403; Ord. No. 304, §§ 1, 2, 4-13-2015)

Editor's note—Ord. No. 304, § 2(A)—(D), adopted April 13, 2015, contained a scrivener's error setting out provisions amending § 10-63. At the editor's discretion, said provisions have been included herein as amending § 10-62.

Sec. 10-63. Antinoise regulations based upon dB(A) criteria.

In order to regulate and prove violations occurring under section 10-62, any noise in excess of the maximum decibel limits according to the regulations stated in this section is deemed to be in violation of this article. However, violations under section 10-62 but which have no decibel determination available shall nevertheless be deemed violations of this article.

(1) *Regulations for decibel measurement of noise originating from private properties.* Noise radiating from all properties or buildings, as measured at the boundaries of the property, which is in excess of the dB(A) established for the districts and times herewith listed shall constitute prima facie evidence that such noise unreasonably disturbs the comfort, quiet and repose of persons in the area and is therefore in violation of this article. Violations shall exist when the source or sources of noise are identifiable and the levels emanating from the source or sources exceed the following limitations. As an example, such noise shall include that emitting from the production, processing, cleaning, servicing, testing, repairing and manufacturing of materials, goods or products, including vehicles.

Zoning Districts	*Limitations 6:00 a.m. to 10:00 p.m.*	*Limitations 10:00 p.m. to 6:00 a.m.*
Residential districts (R-1, R-2, R-3, R-4, R-5, and R-6) and any area within 500 feet of a hospital regardless of zoning district and agricultural districts located within 500 feet of any dwelling under separate ownership.	55 dB(A)	50 dB(A)
Agricultural (A), where at least 500 feet from any dwelling under separate ownership, and Commercial Districts (C-1, C-2, C-3, & C-4), Office District (O-1) and Education and Business Technology District (EBT).	65 dB(A)	55 dB(A)
Industrial Districts (I-1, I-2, I-3).	80 dB(A)	75 dB(A)

Harmonic or pure tones, and periodic or repetitive impulse sound shall be in violation when such sounds are at a sound pressure level of five dB(A) less than those listed in this subsection.

Where property is partly in two zoning districts or adjoins the boundary of a zoning district, the dB(A) levels of the zoning district of the property where the noise is emanating shall control.

The following exceptions shall apply to these regulations under this subsection:

a. Construction projects shall be subject to the maximum permissible noise levels specified for industrial districts as long as a valid building permit has been issued by the township and is currently in effect.

b. All railroad operations shall be subject to the maximum permissible noise levels allowed in industrial districts, regardless of the zone where they are located.

c. Noises occurring between 6:00 a.m. and 10:00 p.m. caused by home or building repairs or from maintenance of grounds are excluded, provided, such noise does not exceed the limitations specified in this subsection by more than 20 dB(A), provided such noise does not exceed 90 dB(A).

d. Noises emanating from the discharge of firearms are excluded, providing the discharge of the firearms was authorized under state law and all local ordinances.

e. Any commercial, agricultural or industrial use of property which exists now or in the future as a legal, nonconforming use (as defined in the township zoning ordinance) in a higher zoning classification shall be allowed to emit noise in excess of these limitations for the particular zoning classification where such use is located, providing that such noise does not exceed either of the following limitations:

1. The noise level emitted by such use at the time it became a legal nonconforming use as a result of the enactment of an amendment of the township zoning ordinance if available.
2. The limitations contained in this subsection based upon such a use being located in the highest zoning district (either commercial and agricultural or industrial) where such a use is specifically allowed as a permissible use.

(2) *Regulations for decibel measurement of motor driven vehicles on public roads.* A motor vehicle shall not be operated or driven on a highway or street if the motor vehicle produces total noise exceeding one of the following limits at a distance of 50 feet except as provided in subsections (2)b.3 and (2)c.3 of this section:

a. A motor vehicle with a gross weight or gross vehicle weight rating of 8,500 pounds or more, combination vehicle with gross weight or gross vehicle weight ratings of 8,500 pounds or more:

1. Ninety dB(A) if the maximum lawful speed on the highway or street is greater than 35 miles per hour.
2. Eighty-six dB(A) if the maximum lawful speed on the highway or street is not more than 35 miles per hour.
3. Eighty-eight dB(A) under stationary run-up test.

b. A motorcycle or a moped:

1. Eighty-six dB(A) if the maximum lawful speed on the highway or street is greater than 35 miles per hour.
2. Eighty-two dB(A) if the maximum lawful speed on the highway or street is not more than 35 miles per hour.
3. Ninety-five dB(A) under stationary run-up test at 75 inches.

c. A motor vehicle or a combination of vehicles towed by a motor vehicle not covered in subsection (2)a. or (2)b. of this section:

1. Eighty-two dB(A) if the maximum lawful speed on the highway or street is greater than 35 miles per hour.
2. Seventy-six dB(A) if the maximum lawful speed on the highway or street is not more than 35 miles per hour.
3. Ninety-five dB(A) under stationary run-up test 20 inches from the end of the tailpipe.

(Comp. Ords. as Rev. 12-1999, § 20.404)

State law reference—Noise level limits for motor vehicles, MCL 257.707c.

Sec. 10-64. Sanctions.

(a) Any person, firm, association, partnership, corporation or governmental entity who violates any of the provisions of this article shall be deemed to be responsible for a municipal civil infraction as defined by state statute which shall be punishable by a civil fine determined in accordance with the schedule in section 18-62(a).

(b) The sanctions provided in this section may be imposed upon the owner of the premises upon which the violation occurs, upon the tenant thereof and/or upon the occupant of the premises on which the violation occurs.
(Comp. Ords. as Rev. 12-1999, § 20.406)

Secs. 10-65—10-90. Reserved.

ARTICLE IV. LITTER*

Sec. 10-91. Name.

This article shall be known and cited as the "Charter Township of Texas Litter Ordinance."
(Ord. No. 275, § I, 6-14-2010)

Sec. 10-92. Definitions.

Litter as used in this article means all garbage, scrap and waste materials including rags, cartons, paper, cans, bottles, used lumber, boxes, wooden skids or pallets or parts therefrom (excluding those stored and used in connection with an industrial or commercial operation on the site), inoperable and/or discarded/unused appliances and equipment, broken or discarded plaster, concrete, or brick building materials; scrap metal; discarded motor vehicle parts; and tires.
(Ord. No. 275, § II, 6-14-2010)

Cross reference—Definitions generally, § 1-2.

Sec. 10-93. Regulations.

(a) It shall be unlawful for any person, without the consent of the public authority having supervision of public property or the owner or occupier of private property, to dump, deposit, place, throw or leave, or cause or permit the dumping, depositing, placing, throwing, or leaving of litter or any other materials on any public or private property or waters within the Charter Township of Texas other than property designated and set aside for such purposes. The phrase "public or private property or waters" includes, but is not limited to, the right-of-way of any road or highway, any body of water or water course, or the shores or beaches thereof, and

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***Editor's note—**Sections I—IV of Ord. No. 275, adopted June 14, 2010, has been treated as superseding art. IV, littering, §§ 10-91—10-95, to read as herein set out. Former art. IV pertained to similar subject matter and derived from Comp. Ords. as Rev. Dec. 1999.

Cross reference—Solid waste, ch. 26.

including the ice above such waters; any park, playground, building, refuge, or conservation or recreation area; and any residential, commercial, industrial, or farm properties or vacant or unimproved lands.

(b) It shall be unlawful for any person to aid, assist, or abet another to violate any of the provisions of the within article.

(c) The owner or occupant of any building or premises within the township shall not permit or cause the outdoor storage of litter on such premises, subject to the following exceptions:

(1) Such litter is temporarily stored outdoors for not more than 14 days or for longer than any period which would cause the same to be odoriferous or a breeding place of insects or rodents, whichever is the lesser period.

(2) Such litter does not include garbage or other putrescible liquids or solids, is screened from the view of all adjacent properties and abutting public or private rights-of-way, and is being stored only between regular, not less than monthly, litter collection by a public or private litter or garbage collection service.

(3) Logs, branches, or other scrap wood may be neatly stacked outdoors on an occupied premises, provided such storage (1) does not exceed 640 cubic feet in area; (2) is not located within any required building setback areas as specified in the Charter Township of Texas Zoning Ordinance; and (3) complies with all applicable Township "Fire Codes" and other ordinance requirements. The limitation of 640 cubic feet shall not apply to logs, branches, or other scrap wood stored and used in connection with a lawful industrial, commercial or agricultural operation on the site or in circumstances where the burning of wood is the main source of heat for a residence.

(4) Such litter is located in a duly-licensed and properly zoned junk yard, salvage yard, or landfill where such uses or operations are legally authorized under the Charter Township of Texas Zoning Ordinance.

(5) A special permit is first obtained therefore for a period of not to exceed 45 days from the Clerk of the Charter Township of Texas or such other officer or official as the township board may designate to be granted only in special hardship cases beyond the control of the applicant, where special or peculiar circumstances exist, where no adjoining property owner is adversely affected thereby and where the spirit and purpose of these regulations are still observed. A special permit granted hereunder may be renewed for not more than one additional 45-day period upon a showing of due diligence and continued satisfaction of the criteria set forth above for the issuance of the initial permit.

(Ord. No. 275, § III, 6-14-2010)

Sec. 10-94. Sanctions.

Any person, firm, association, partnership, corporation or governmental entity who violates any of the provisions of this article shall be deemed to be responsible for a municipal civil infraction as defined by Michigan Statute which shall be punishable by a civil fine determined in accordance with the following schedule:

	Minimum Fine	*Maximum Fine*
1st offense within 3-year period*	$75.00	$500.00
2nd offense within 3-year period*	150.00	500.00
3rd offense within 3-year period*	225.00	500.00
4th or more offense within 3-year period*	300.00	500.00

*Determined on the basis of the date of commission of the offense(s).

Additionally, the violator shall pay costs which may include all expenses, direct and indirect, to which the Charter Township of Texas has been put in connection with the municipal civil infraction. In no case, however, shall costs of less than $9.00 nor more than $500.00 be ordered. In addition, the township shall have the right to proceed in any court of competent jurisdiction for the purpose of obtaining an injunction, restraining order, or other appropriate remedy to compel compliance with this article. Each day that a violation exists shall constitute a separate offense.
(Ord. No. 275, § IV, 6-14-2010)

Secs. 10-95—10-120. Reserved.

ARTICLE V. VEHICLE STORAGE AND REPAIR*

Sec. 10-121. Name.

This article shall be known and may be cited as the "Texas Charter Township Vehicle Storage and Repair Ordinance."
(Ord. No. 274, § I, 6-14-2010)

Sec. 10-122. Purpose.

The purpose of this article is to limit and restrict the outdoor storage, parking, repair or unreasonable accumulation of junk, unused, partially dismantled or non-operating vehicles, including any conveyance, trailer, boat, aircraft or new or used parts thereof upon vacant or occupied premises within the township; to provide restrictions concerning the repairing of said vehicles; to avoid injury and hazards to children and others attracted to such vehicles; to prevent degradation of the environment caused by such vehicles; and to minimize the devaluation of property values and the psychological ill effects of the presence of the same upon adjoining residents and property owners.
(Ord. No. 274, § II, 6-14-2010; Ord. No. 301, § 1, 10-27-2014)

***Editor's note—**Sections I—VII of Ord. No. 274, adopted June 14, 2010, did not specify manner of inclusion; hence, codification as a new Art. V, §§ 10-121—10-127 was at the discretion of the editor.

Sec. 10-123. Definitions.

For the purpose of enforcing the provisions of this article, certain terms and words used herein shall have the following meaning:

Agricultural vehicle means a motor vehicle or conveyance designed and intended for agricultural use.

Conveyance shall mean any trailer, as defined below, and any "house trailer" or "camper." The terms "recreational trailer," "camper," "recreational vehicle," "motor home," and "travel trailer" as utilized in this article shall be synonymous with and are intended to mean that group of conveyances which are capable of being moved on their own chassis or wheels upon a roadway or highway, either with or without its own engine; which can be utilized or occupied as a temporary residence or vacation structure for limited time periods, which are not designed to be permanently connected to electrical power, water, sewage and potable water utilities, whether or not said unit is licensed and operational for use as a vacation trailer or temporary dwelling.

Inoperable. A vehicle, trailer or conveyance shall be deemed "inoperable" where any of the following conditions exist:

(1) Where it is being dismantled for the sale, salvage, repair or reclamation of parts thereof.

(2) Where it does not have all of its main component parts properly attached.

(3) For motor vehicles, where any other or additional conditions exist which cause the vehicle to be incapable of being driven under its own power, lawfully, upon the public streets.

(4) When any other or additional conditions exist which cause the vehicle, trailer or conveyance to be incapable of being used for the purpose for which it was designed.

Main component parts shall mean fenders, hood, wheels, radiator, motor, windows, doors, muffler, body or essential parts of the engine, and all such other parts or equipment as are necessary for the vehicle to be lawfully driven upon the public streets pursuant to the Michigan Vehicle Code, being 1949 Public Act 300, as amended.

Person shall mean an individual, firm, corporation, or other entity of any kind.

Regularly used for its intended purpose means as follows:

(1) For motor vehicles, passenger cars, vans and motorcycles designed primarily as individual or group private transportation, such vehicle must be used for passenger transportation at least one time in any calendar month.

(2) For conveyances including travel trailers, motor homes, campers, recreational vehicles and recreational trailers, such item must be removed from the site for use as temporary off-site living quarters at least once every calendar year.

(3) For snowmobiles, dirt bikes, ORVs, boats and other conveyances, the conveyance must be either:

a. Stored on a fully licensed and operable trailer that is utilized and moved at least one time every season; or

b. Must be utilized at least one time per season if not stored on a trailer.

(4) Unloaded trailers as defined herein must be used at least one time every 90 days and shall be licensed as required by the State of Michigan.

Trailer shall mean any wheeled but not motorized equipment designed or used to be pulled by a vehicle (as defined herein) on public or private highways, including but not limited to a truck trailer, flat bed trailer; equipment trailer, stock trailer, semi-truck trailer, boat or snowmobile trailer, cement roller on wheels, and motorcycle or dirt bike trailer. Conveyance shall also mean a motor home, camper, recreational vehicle or trailer.

Vehicle shall mean any motorized equipment operated or designed to be operated on public or private highways, streets or roads including any passenger vehicle, van, minibus, bus, truck, motorcycle, tractor, recreational vehicle, or other motorized vehicle. "Vehicle" also means any motorized machine which is designed to be used, is used or can be used as a pleasure vehicle for the transportation of one or more persons or objects on private or public property, such as boats, snowmobiles, recreational vehicles, all-terrain vehicles and dirt bikes. (Ord. No. 274, § III, 6-14-2010; Ord. No. 301, § 2, 10-27-2014)

Sec. 10-124. Regulations.

(a) No person, firm or corporation shall park or store or permit to be parked or stored upon any premises within the Charter Township of Texas owned, leased, rented or occupied or possessed by such person any vehicle, including any conveyance, boat, aircraft, or trailer of any kind or new or used parts therefrom unless one or more of the following conditions exist:

(1) Such parking or storage is located within a fully-enclosed building or in an area that is totally obscured from adjacent premises or adjacent roads or highways by natural land contours, evergreen screening or fencing;

(2) A special permit is first obtained therefor for a period of not to exceed 60 days from the Supervisor of Texas Charter Township or such other officer or official as the township board may designate to be granted only in special hardship cases beyond the control of the applicant, where special or peculiar circumstances exist, where no adjoining property owner is adversely affected thereby and where the spirit and purpose of these regulations are still observed. If a 60-day special permit is granted, the township board shall schedule a status review after the first 30 days of the granting of the permit;

(3) Such vehicle or conveyance has all of its main component parts attached, is licensed or registered by the State of Michigan and bears a valid and current Michigan license plate for that vehicle or conveyance, is an operable vehicle or conveyance as hereinafter defined, and is, in fact, regularly operated for its designed purpose;

(4) Such vehicle is a stock car or racing vehicle which is regularly used for the purpose of stock car showing or for racing and is stored upon a licensed trailer or conveyance with all of its main components attached within the side or rear-yard setbacks for the property in accordance with the Texas Charter Township Zoning chapter;

(5) Such vehicles, boats, trailers, aircraft or conveyances are located in a duly-licensed and properly zoned junkyard, salvage yard, new or used car dealer's lot, automobile repair facility or storage yard where such uses or operations are legally authorized under the Township Zoning Ordinance;

(6) Such vehicle or vehicles are awaiting repairs or delivery to owners at an authorized service station, garage, paint shop, or body shop registered with the State of Michigan pursuant to 1974 PA 300, as amended, provided such vehicle or vehicles are locked, licensed by the State of Michigan, and are not a public nuisance;

(7) Such vehicle, boat, trailer, aircraft or conveyance, although temporarily inoperable because of minor mechanical failure, has substantially all of its main component parts attached as hereinafter defined; is, where subject to a license or registration, licensed or registered by the State of Michigan; is not in any manner a dismantled vehicle; and the premises do not contain any such vehicle, boat, aircraft, trailer or conveyance for longer than 14 days in any one year. "Main component parts" shall, for the purpose of this article, mean those parts required by state law or by necessity for its operation upon a public highway, waterway or airway.

(b) No repairing, redesigning, modifying or dismantling work or operations shall be allowed upon any vehicle, boat, trailer, aircraft or conveyance or parts thereof upon any public right-of-way or public property (except for emergency minor repairs not exceeding one hour in duration) or upon any property not zoned for such purpose except such occasional minor work by the owner thereof as may infrequently be required to maintain the same in normal operating condition and as shall be accomplished within fully enclosed buildings; will not constitute a nuisance or annoyance to adjoining property owners or occupants; and does not violate any provisions of the Texas Charter Township Zoning Ordinance.

(c) Recreational vehicles, trailers and conveyances, designed as temporary living quarters may be parked and actually used as temporary living quarters on premises with a principal primary residential use only for not more than a cumulative 21 days in any one calendar year. The owner or user of such recreational vehicle shall ensure that during the periods of use as a temporary dwelling there is an adequate potable water supply and adequate waste handling facilities for the use.

(d) The foregoing shall not be construed to prohibit the storage of farm machinery, vehicles, equipment and material used for agricultural purposes upon an operating farm of not less than ten acres in size. Farm equipment not in use but stored for parts shall be stored in an area totally obscured from adjacent premises and roads.
(Ord. No. 274, § IV, 6-14-2010; Ord. No. 301, § 3, 10-27-2014)

Sec. 10-125. Nuisance.

Any parking, storage, placement, repair activities, or operations in violation of the provisions of this article are hereby declared to be a public nuisance which may be enjoined or which may subject the violator to the fines and penalties herein provided for.
(Ord. No. 274, § V, 6-14-2010)

Sec. 10-126. Severability.

The provisions of this article are hereby declared to be severable and if any clause, sentence, word, section or provision is declared void or unenforceable for any reason by any court of competent jurisdiction, it shall not affect any portion of this article other than said part or portion thereof.
(Ord. No. 274, § VI, 6-14-2010)

Sec. 10-127. Sanctions and enforcement.

(a) Any person, firm, association, partnership, corporation or governmental entity who violates any of the provisions of this article shall be deemed to be responsible for a municipal civil infraction as defined by Michigan Statute which shall be punishable by a civil fine determined in accordance with the following schedule:

	Minimum Fine	*Maximum Fine*
1st offense within 3-year period*	$100.00	$500.00
2nd offense within 3-year period*	200.00	500.00
3rd offense within 3-year period*	325.00	500.00
4th or more offense within 3-year period*	500.00	500.00

*Determined on the basis of the date of commission of the offense(s)

(b) Additionally, the violator shall pay costs which may include all expenses, direct and indirect, to which Texas Charter Township has been put in connection with the municipal civil infraction. In no case, however, shall costs of less than $9.00 nor more than $500.00 be ordered. In addition, the township shall have the right to proceed in any court of competent jurisdiction for the purpose of obtaining an injunction, restraining order, or other appropriate remedy to compel compliance with this article. Each day that a violation exists shall constitute a separate offense.

(c) This article shall be enforced by the Texas Charter Township Ordinance Enforcement Officer(s), the township supervisor, or by any other person or persons as the township board may designate from time to time.
(Ord. No. 274, § VI, 6-14-2010)

Secs. 10-128—10-140. Reserved.

ARTICLE VI. WELLHEAD PROTECTION*

Sec. 10-141. Intent/purpose.

The intent of the Charter Township of Texas Wellhead Protection article is to safeguard the health, safety, and welfare of persons served by the public water supply system by protecting groundwater that serves as drinking water, thus providing a safe potable water supply now and for future generations.
(Ord. No. 297, § 1A, 1-27-2014)

Sec. 10-142. Definitions.

The following definitions apply to this article:

Best management practices (BMP) means the best available methods, activities, maintenance procedures, technologies, operating methods or management practices for preventing or reducing the quantity of regulated substances entering groundwater and surface water from a particular land use activity.

Capture zone means that area through which water travels below the surface and reaches a municipal well or well field within a specified period of time (under specified conditions set by the MDEQ). This article addresses both a one-year and ten-year time-of-travel capture zone. The capture zones are shown on the Wellhead Protection Ordinance Capture Zone Map, attached to this article and incorporated herein by this reference.

City means the City of Kalamazoo.

Groundwater means the water below the land surface in a zone of saturation, excluding those waters in underground piping for water, wastewater, or stormwater distribution/collection systems.

Michigan Department of Environmental Quality (MDEQ) shall include its predecessors and successors.

Performance standards shall mean those BMPs and engineering controls contained within the document "Performance Standards for Groundwater Protection within Wellhead Protection Capture Zones and Stormwater Quality Management," which is adopted by resolution of the township board and which may be amended by resolution of the township board as necessary to incorporate new or modified BMPs and engineering controls. The wellhead protection administrator shall maintain the document and shall at times be prepared to consult and distribute the most recently adopted performance standards, a copy of which shall also be retained by the township clerk with resolution date indicated thereon.

RCRA means the Resource Conservation and Recovery Act of 1976 (Pub. L. 94-580; 42 U.S.C. 6901 et seq.), as amended.

***Editor's note—**Ord. No. 297, § 1A—N, adopted Jan. 27, 2014, did not specify manner of inclusion; hence, codification as art. VI, §§ 10-141—10-154 was at the discretion of the editor.

Regulated substances shall include:

(1) Substances for which there is a material safety data sheet (MSDS), as established by the United States Occupational Safety and Health Administration, and the MSDS cites possible health hazards for said substance;

(2) Hazardous waste, as defined by the Solid Waste Disposal Act, as amended by the Resource Conservation and Recovery Act of 1976, as amended;

(3) Hazardous substance, as defined by the Comprehensive Environmental Response, Compensation and Liability Act (CERCLA) when the hazardous substance is the focus of remedial or removal action being conducted under CERCLA in accordance with the U.S. EPA regulations;

(4) Radiological materials; and

(5) Biohazards.

Regulated substances shall not, however, include:

(1) Substances in an amount equal or less than 2,200 pounds that are in an area capable of fully containing a total release of said substance or an area that would drain the substance to a wastewater treatment system, excluding septic tanks systems, capable of treating the released substance(s);

(2) Substances in a parked or stopped vehicle in transit, provided the vehicle is stopped or parked for less than 72 hours;

(3) Substances, such as gasoline or oil, in operable motor vehicles or boats so long as used solely for the operation of the vehicle, but not the tanker portion of a tank truck;

(4) Pressurized gases such as chlorine, propane, hydrogen, and nitrogen when in a chemical storage tank;

(5) Refrigerants contained within equipment and used for on-site air cooling or in household appliances;

(6) Substances contained within electrical utility transformers/switches; or

(7) Substances used in construction for which all necessary permits have been obtained, and in accordance with the "performance standards."

Release means the spilling, leaking, pumping, pouring, emitting, emptying, discharging, injecting, escaping, leaching, dumping, or disposing of one or more regulated substances upon or into any land or water within a capture zone. Release includes, without limitation, leakage of such materials from failed or discarded containers or storage systems and disposal of such materials into any on-site sewage disposal system, dry-well, catch basin, or landfill. The term "release" when used and applied herein does not include:

(1) Disposal in accordance with all applicable legal requirements, including those in RCRA and CERCLA, of hazardous wastes in a facility that has received and maintained all necessary legal approvals for that purpose;

(2) Disposal of any substance in compliance with applicable legal requirements, including without limitation, the terms and provisions of a valid municipal, state, or federal permit;

(3) Disposal, in accordance with all legal requirements, of any substance to a sanitary sewer system that has received and maintained all necessary legal approvals for that purpose;

(4) Disposal, in accordance with all legal requirements, of "sanitary sewage" to subsurface sewage disposal systems as defined and permitted by the State of Michigan or Kalamazoo County Environmental Health;

(5) A release for which there is no obligation to report under federal, state, or other local regulations that occurs on an impervious ground surface (e.g. building floor or concrete driveway) that is effectively cleaned up before reaching permeable ground (e.g. unpaved), a dry well, a storm sewer, or surface water body; or

(6) The application of agricultural chemicals, fertilizers, mineral acids, organic sulfur compounds, etc. as used in routine agricultural operations and applied under the "Generally Accepted Agricultural Management Practices," and consistent with label directions approved by the United States Environmental Protection Agency or the Michigan Department of Agriculture.

Spill contingency plan means a written site-specific plan conforming to the specifications contained in the "performance standards," including the documentation of general site operations; regulated substance storage areas; potential for releases of regulated substances and an analysis of the potential destination of such releases; and procedures to be followed in the event of a release.

Township means the Charter Township of Texas.

Wellhead is any individual well used for supplying water.

Wellhead protection board of appeals shall be the Charter Township of Texas Planning Commission unless the township board by resolution designates a separate wellhead protection board of appeals.
(Ord. No. 297, § 1B, 1-27-2014)

Sec. 10-143. Responsibility for administration.

The township board shall, by resolution, designate a person or persons who shall administer, implement and enforce the provisions of this article. That person shall be known as the wellhead protection administrator.
(Ord. No. 297, § 1C, 1-27-2014)

Sec. 10-144. Prohibitions within ten-year time-of-travel (TOT) capture zone.

Within a ten-year time-of-travel capture zone, no person shall, nor cause or allow another over whom he or she has control to:

(1) Release or allow the release of a regulated substance, alone or in combination with other materials (such as fill) in such a manner that the substance gains access to the

ground, to a storm sewer or surface water or in any other way such that the substance might enter the groundwater if doing so creates a reasonable likelihood of an adverse impact upon the groundwater;

(2) Possess a regulated substance, including fuels (e.g., gasoline, diesel, kerosene, etc.) exceeding 55 gallons aggregate for liquid materials, or 440 pounds aggregate for dry weights, unless prepackaged and intended for retail sale or for commercial or household use (such as salt used in water softeners, fertilizers, pesticides, herbicides, etc.), or unless engineering controls are designed and implemented consistent with the "performance standards," BMPs, the fire code, and applicable State of Michigan laws and regulations. The following, however, shall not be considered prohibited activities:

a. The use of underground oil and water separators and stormwater treatment structures which meet the conditions of the "performance standards;

b. The use of current hazardous waste storage areas at RCRA permitted facilities;

c. Laboratory activities, consistent with all federal, state, and local regulations.

(3) Operate a scrap and recycling yard;

(4) Operate a sanitary/solid waste landfill;

(5) Use oil, waste oil or similar liquid petroleum-type products for dust suppression;

(6) Install a private water well for the purpose of drinking water or irrigation if, in the determination of the township, public water service is reasonably available;

(7) Install or use a private water well not installed for the purpose of drinking water or irrigation unless it is determined by the township that the well owner (or representative) has scientifically demonstrated that the well will not cause an adverse impact to the public water supply;

(8) Use any private well if said use is likely to cause an adverse impact to the public water supply;

(9) Excavate, extract, or mine sand, gravel, bedrock or any other type of earth if a permit or site plan review is required unless the property owner has established, to the township's satisfaction, that the activity will not cause an adverse impact to the public water supply;

(10) Allow the presence of an abandoned well, which is defined as any well which has either been discontinued for more than one year, is in such disrepair that its continued use for obtaining groundwater is impractical, has been left uncompleted, is a threat to groundwater resources, or is a health or safety hazard. A well shall not be considered abandoned if it has been properly plugged pursuant to The Groundwater Quality Control Act, Part 127, 1978 PA 368; or

(11) Drill for natural gas or petroleum, whether for exploration, production or otherwise.

(Ord. No. 297, § 1D, 1-27-2014)

Sec. 10-145. Prohibitions within one-year time-of-travel (TOT) capture zone.

Within a one-year time-of-travel capture zone, no person shall, nor cause or allow another, over whom he or she has control, to:

(1) Engage in any activity prohibited in the ten-year TOT capture zone;

(2) Possess regulated substances, including fuels (e.g., gasoline, diesel, kerosene, etc.), exceeding 55 gallons aggregate for liquid materials or 440 pounds aggregate for dry weights, such as sometimes occurs with activities such as fueling service establishments, motor vehicle repair, body repair; trucking or bus terminals; primary metal product industries; metal plating, polishing, etching, engraving, anodizing or similar processes; lawn, garden, pesticide and agricultural services with on-site bulk mixing or blending of fertilizers, pesticides and other industry-related chemicals for commercial application; and dry cleaning facilities with on-site cleaning service; or

(3) Construct or replace any privy, privy vault, septic tank, cesspool, or other facility intended or used for the disposal of domestic or non-domestic wastewater if in the determination of the township, a public sanitary sewer is reasonably available.

(Ord. No. 297, § 1E, 1-27-2014)

Sec. 10-146. Well isolation distance restrictions.

Within either capture zone, no person shall cause or allow uses or activities that would violate the terms and conditions set forth in the document "Minimum Well Isolation Distances (From Contamination Sources and Buildings), Part 127, Act 368, P.A. 1978 and Act 399, PA 1976" as prepared by the MDEQ, water division, as it may be amended, which, for the purpose of this section, shall be deemed to apply to all persons, unless approved in writing by the township wellhead protection administrator.

(Ord. No. 297, § 1F, 1-27-2014)

Sec. 10-147. Determination of capture zone boundaries.

In determining whether a property is within a capture zone, the following shall apply:

(1) Where a capture zone line that delineates the boundary of one or more zones passes through a property, the entire parcel shall be subject to the restrictions that apply to the more restrictive zone.

(2) The township wellhead protection administrator or his or her designee shall have the authority to interpret the capture zone and determine where the boundaries of the different zones fall, if in dispute. Said interpretation may be appealed to the wellhead protection board of appeals, appointed by the township board.

(Ord. No. 297, § 1G, 1-27-2014)

Sec. 10-148. Continuation of existing facilities and land uses.

All facilities shall meet the requirements of the "performance standards" and/or shall prepare a spill contingency plan within two years from the adoption date of this article.

(Ord. No. 297, § 1H, 1-27-2014)

Sec. 10-149. Requirements regarding release of regulated substance.

(a) Upon discovery of a release within a capture zone, the owner and person in control of the property on which a release occurred, as well as the person responsible for the release, shall take appropriate reasonable actions to mitigate the potential impact of the release on groundwater and remediate the release. Remediation must be conducted in a timely manner and in accordance with applicable law. Wastes generated during remediation of a regulated substance release must be handled in accordance with all applicable legal requirements. Storage of these materials for a period of greater than 90 days must be reported to, and approval obtained from, the township wellhead protection administrator.

(b) All releases shall be documented in writing and notice thereof shall be mailed to the township within ten business days of said incident. Initial release notification shall include, at a minimum, the following:

(1) Location of the release (address, and name and phone number of property owner);

(2) Reporting party's name, address, and phone (if different from above);

(3) Emergency contact and phone;

(4) Description of the nature of the incident, including date, time, location, and cause of the incident; type, concentration, and volume of substance(s) released;

(5) Map showing exact release location, and relevant site features (i.e. paved area, storm sewer catch basins/inlets, water features, etc.), scale, and north arrow;

(6) All measures taken to clean up the release; and

(7) All measures proposed to be taken to reduce and prevent any future release.

(c) The township wellhead protection administrator or his/her designee shall use the regulated substance release report to determine if and where any additional investigative work needs to be completed to assess the potential impact of the release. The owner or operator shall retain a copy of the written notice for at least three years.
(Ord. No. 297, § 1I, 1-27-2014)

Sec. 10-150. Inactive operations.

This section applies to any business or other operation ("operation") that is inactive, is within a capture zone, and at which there are regulated substances. For purposes of this section, "inactive" is defined to include those businesses or operations that are unoccupied and have no activity for at least 30 days. Those who own or control such an inactive operation shall do the following:

(1) Within seven days of the operation becoming inactive, take such steps as necessary to secure the site such that vandals and all other persons cannot gain access to the regulated substances;

(2) Within 30 days of the operation becoming inactive, provide to the township wellhead protection administrator a document that identifies the site, the date of inactivity, the regulated substances that exist on site, and the name, address and telephone number of both the owner and the person in control of the site; and

(3) Within six months of the operation becoming inactive, remove all regulated substances from the site. This does not include those substances used for heating, cooling, or electrical lighting.

(Ord. No. 297, § 1J, 1-27-2014)

Sec. 10-151. Enforcement.

(a) Whenever the township determines that a person has violated a provision of this article, the township may order compliance by issuing a written notice of violation to the responsible person/facility.

(b) If the township requires abatement of a violation and/or restoration of affected property, the notice shall set forth a deadline by which such action must be completed. Said notice may further advise that, should the violator fail to remediate or restore within the established deadline, the work will be performed by the township, with the resulting expense thereof charged to the violator.

(c) Nothing within this section shall limit the township's authority to seek injunctive relief and/or a search warrant allowing entry onto the premises and abatement of the violation to protect the public health, safety and welfare.

(Ord. No. 297, § 1K, 1-27-2014)

Sec. 10-152. Variance/appeal rights.

(a) If an owner of property within a capture zone believes the requirements of this article impose an unreasonable burden on the use of the owner's property, the owner may seek a variance from the township wellhead protection administrator (or his or her designee). Such a request must be in writing with enough detail to allow the township wellhead protection administrator to understand the situation and proposed variance. If the township wellhead protection administrator determines that additional information is needed, the request for additional information shall be made within 30 days of the owner's request. Within 30 days of the receipt of such additional information, or, if no such request is made, within 30 days of the owner's request, the township wellhead protection administrator shall issue a written response to the owner. The response shall grant, deny, or grant partial or different relief than was requested. A grant, partial or complete, may relieve the property owner from strict compliance of this article. Reasonable conditions may be imposed as part of such a grant. The township wellhead protection administrator shall be guided by the primary goal of protecting the municipal well fields without creating undue hardship upon the property owners affected.

(b) Any person receiving a notice of violation or whose variance request has been denied in whole or in part may appeal the determination set forth within the notice or the variance decision to the township wellhead protection board of appeals by submitting a written notice

of appeal to the township. The notice of appeal must be received by the township wellhead protection administrator within 30 days from the date of the notice of violation, with enough detail to allow the township wellhead protection board of appeals to understand the situation. Within 30 days of the receipt of such an appeal, the wellhead protection board of appeals shall set the matter for hearing. Notice of the hearing shall be given in writing to the applicant and to the City of Kalamazoo Department of Public Services Director. The applicant shall be given the opportunity to present evidence at the hearing in person or in writing or by representative. The board of appeals shall issue a written decision on the appeal. The township wellhead protection board of appeals' response shall affirm, reverse, or modify the notice of violation being appealed.

(c) If the person who has made an appeal does not agree with the township wellhead protection board of appeals' decision, said person may appeal the matter by filing an appeal in the Kalamazoo Circuit Court, which may affirm, reverse or modify the decision being appealed. Such an appeal must be filed within 30 days of the township wellhead protection board of appeals' decision.
(Ord. No. 297, § 1L, 1-27-2014)

Sec. 10-153. Abatement/remedial activities by the township.

(a) Any condition caused or permitted to exist in violation of any of the provisions of this article is a threat to public health, safety, and welfare, and is declared and deemed a nuisance, and may be summarily abated or restored at the violator's expense. The township is authorized to take any legal action necessary to abate, enjoin, or otherwise compel the cessation of such nuisance.

(b) The township may seek authority to enter the premises to take or may contract with others to take reasonable and necessary abatement or remedial activities whenever the township determines a violation of this article has occurred and that the responsible party cannot or will not timely correct the violation, or when no known responsible party exists. The responsible party shall reimburse the township for all reasonable expenses thus incurred by the township.

(c) The remedies listed in this article are not exclusive of any other remedies available under any applicable federal, state, or local law and it is within the discretion of the township to seek cumulative remedies.
(Ord. No. 297, § 1M, 1-27-2014)

Sec. 10-154. Violation and penalty.

Any violation of this article or any order made in accordance with this article constitutes a misdemeanor, punishable by a fine of not more than $500.00 or imprisonment of not more than 90 days, together with repayment of costs incurred by the township in prosecuting the action; in abating the violation or seeking injunctive relief. Each day a violation exists shall

be deemed to be a separate violation. A citation under this article may be issued by a sheriff's deputy, the township's ordinance enforcement officer or the township's wellhead protection administrator.
(Ord. No. 297, § 1N, 1-27-2014)

Secs. 10-155—10-170. Reserved.

ARTICLE VII. SIDEWALK, PATHWAYS AND TRAILS*

Sec. 10-171. Title.

This article is hereby designated as and shall be referred to as the "Texas Charter Township Sidewalk, Pathways and Trails Ordinance." Within the following text it may be referred to as "this article."
(Ord. No. 292, § 1, 5-13-2013)

Sec. 10-172. Purpose and scope of application.

(a) *Purpose.* The purposes of this article are to protect and promote public health, safety, and welfare by specifying standards for design, maintenance, and use of sidewalks and pathways located in public road rights-of-way; to establish requirements for obtaining permits to construct sidewalks or pathways; to designate sidewalks' or pathways' maintenance responsibilities; and, to establish enforcement procedures and penalties for violation of the article. These regulations are the minimum standards deemed necessary to provide suitable and safe off-road accommodations for pedestrians.

(b) *Scope of application.* The requirements in this article shall apply to sidewalks and pathways constructed within a public right-of-way or a dedicated easement.
(Ord. No. 292, § 2, 5-13-2013)

Sec. 10-173. Definitions.

The following definitions are applicable throughout this article:

Building official means the officer or other authority designated by the township board to administer and enforce the building code.

Detectable warning surfaces means corrosion-resistant grey iron, concrete-truncated domes or similar ADA-approved methods on or in the pavement. These are installed to signal visually-impaired pedestrians where a sidewalk or pathway intersects a road.

Flags. Concrete sections of sidewalks or concrete paths also known as flags.

***Editor's note—**Ord. No. 292, §§ 1—6, adopted May 13, 2013, did not specify manner of inclusion; hence, codification as art. VII, §§ 10-171—10-176, was at the discretion of the editor.

Cross references—Building and building regulations, ch. 6; zoning, ch. 36.

Pathway means an off-road shared use, non-motorized path, with paved surface, separate from the public road (though sometimes in the public right-of-way). All cyclists regardless of age are encouraged to use pathways.

Planning commission means the planning commission of the Texas Charter Township, Kalamazoo County, Michigan.

Sidewalk means a paved concrete surface, located in a road right-of-way or within a dedicated easement but away from the actual road surface, and designed, constructed, and designated for pedestrian travel. While Michigan law (MCL 257.660c and 257.660d) allows for travel on sidewalks or pathways by bicycle, provided they yield to pedestrians and do not impede traffic by pedestrians, adult cyclists are encouraged to use roadways or pathways as safer options.

Township means Texas Charter Township.

Township board means the supervisor, clerk, treasurer, and trustees of Texas Charter Township.

Trail means a non-paved stabilized surface for off-road use.
(Ord. No. 292, § 3, 5-13-2013)

Sec. 10-174. Standards.

(a) *Use of sidewalks or pathways.*

(1) *Pedestrian use.* Sidewalks or pathways, as defined herein, are for pedestrian use, and are not intended for use by motorized vehicles, such as, but not limited to, motorcycles, mopeds or off-road utility vehicles. Travel by non-motorized bicycles is permitted. Bicycles shall yield to pedestrians.

(2) *Unlawful damage.* It shall be unlawful to damage or deface a sidewalk or pathway by any means.

(b) *Construction standards.* Sidewalks or pathways shall comply with the standards set forth herein and any supplemental engineering standards that may be adopted by the township board, or the Kalamazoo County Road Commission (KCRC) or the Michigan Department of Transportation (MDOT), depending upon jurisdiction. In the event of a conflict between standards, the agency with roadway jurisdiction shall prevail if the sidewalk or pathway is located in a public road right-of-way. In the event of conflict between different standards, the more stringent standard shall apply.

(1) *Minimum width; sidewalks.* Minimum width in single-family residential areas is four feet; other uses will be a minimum of five feet; pathways: minimum eight feet; trails: minimum of four feet.

(2) *Location:*

a. Sidewalks shall be located one foot off the property line inside the road right-of-way, except where the preserved right-of-way is greater than the width

of the existing right-of-way, in which case the sidewalk shall be located one foot inside the preserved right-of-way. In the CBD district, flexibility of location is allowed by site plan approval.

b. Sidewalks shall be aligned horizontally and vertically with existing sidewalks on adjacent properties.

c. Pathways may be constructed in lieu of sidewalks or in locations that do not parallel roadways. In lots equal to or less than 30,000 square feet in area in the residential district zoning classifications, sidewalks shall be required on two sides of the street.

d. The planning commission may modify these width and location requirements upon finding that another location would be more appropriate because of the location of utilities, existing landscaping or trees, the location of connecting sidewalks or pathways on adjacent parcels, or other site considerations.

(3) *Surfaces.* Sidewalks shall be concrete with a depth of at least four inches, where sidewalks cross a driveway or other vehicle crossing shall be reinforced and have a depth of at least six inches. Concrete shall be placed over four-inch compacted sand. Pathways shall be three-inch hot mix asphalt over six-inch 22A gravel (minimum grade) and extend through the driveway. A minimum of six-inch topsoil shall be removed under concrete or asphalt 22A base. (See exhibit "A" for detail). Other types of paving may be permitted, subject to planning commission approval. Paving shall be placed on appropriate compacted fill to provide a proper base and to prevent the pavement from uneven settling, heaving, and/or cracking. Specification for trails will be mulch, mowed grass, crushed stone or similar material and will be maintained by association or adjacent property owner.

(4) *Barrier-free design.* Sidewalks or pathways shall comply with all state and federal barrier free (ADA) requirements. Accordingly, ramps shall be provided at curbs and other locations involving a grade change.

(5) *Grading and drainage.* Proposed sidewalks or pathways shall be designed to maintain the existing direction and flow of storm water and to avoid damming or flooding and meet ADA requirements.

(6) *Detectable warning surfaces.* Detectable warning surfaces shall be installed wherever a sidewalk or pathway approaches an intersection with a road, and shall be constructed in accordance with the Michigan Department of Transportation Special Provision for Sidewalk Ramp where appropriate.

(7) *Existing sidewalks or pathways.* Unless required by other statutes, existing sidewalks or pathways shall not be required to conform to subsections (b)(4) and (6). When an existing sidewalk or pathway section requires replacement, those portions being replaced shall conform to the standards of this article. For maintenance purposes only the existing width in place will need to be matched for replacement.

(c) *Maintenance standards.*

(1) *Maintenance responsibility.* It shall be the duty of the property owner to maintain public sidewalks or pathways on or adjoining said property in accordance with subsection (c). Failure to comply with any provision in subsection (c) shall be considered a breach of this duty. Any damages resulting from such a breach shall be the sole responsibility of the property owner. The township shall have responsibility for maintaining pathways that have been funded with public money. A legally-established homeowners association or condominium association may assume the responsibility for maintenance of public sidewalks or pathways within a subdivision or condominium under its jurisdiction. The terms under which such an association assumes such responsibility, including the method of funding sidewalk or pathway maintenance, shall be specified in the recorded subdivision covenants, conditions and restrictions or condominium association master deed and bylaws, as applicable. A special assessment district shall be established in the name of the association if the association at any time fails to meet the maintenance standards.

(2) *Repairs or restoration.* A sidewalk or pathway that becomes cracked or damaged to the extent that the sidewalk or pathway becomes potentially unsafe for use shall be repaired or restored in compliance with the construction standards specified herein. The following standards shall deem a sidewalk or pathway in need of repair or restoration:

a. If the sidewalk has displacement of more than one-half of an inch between any two sections (flags) of sidewalk at the connection joint.

b. If the sidewalk or pathway has more than two cracks of one-quarter inch in width or more in any two linear feet.

c. If the sidewalk has a crack more than one-half inch in width or if the pathway has a crack more than three-quarters inch in width.

d. If any section of sidewalk is tilted in excess of one inch per foot from edge to edge in a transverse direction.

e. If, in any flag of sidewalk, more than 50 percent of the surface has scaled off to a depth of one-quarter inch or greater.

f. If the concrete or asphalt has settled, allowing water to pond to depth of one inch or more.

(3) *Obstructions.* Sidewalks or pathways shall be kept free of all obstructions, including but not necessarily limited to, obstructions from structures, vehicles, equipment, debris, and vegetation. This restriction shall not apply to temporary obstructions due to maintenance or construction work on or adjacent to the sidewalk or pathway, in which case appropriate barriers and signage shall be erected to maintain public safety.

(Ord. No. 292, § 4, 5-13-2013)

Editor's note—Exhibit "A" as referenced above, has not been set out, but may be observed at the office of the township clerk.

Sec. 10-175. Enforcement.

(a) *Duties of the building official.* The building official shall have primary authority to enforce this article, as outlined in this section.

(1) *Permits.*

a. A permit is required from the township prior to the construction, removal, or repair of a sidewalk or pathway. A permit may be obtained by submitting a completed application form, along with plans and specifications, and the required fee, to the township building department. The building official shall be responsible for evaluating the application to determine compliance with ordinance standards (and to determine compliance with the approved site plan, where applicable) and issuing the permit. A separate permit shall not be required if the proposed sidewalk or pathway is part of a larger project that requires a building permit. A copy of the permit shall be kept at hand at the construction site.

b. The applicant shall be responsible for obtaining any permits required by the Kalamazoo County Road Commission related to sidewalk or pathway construction within a county road right-of-way.

(2) *Inspection.* During construction, the building official or ordinance enforcement officer shall be responsible for inspection. In fulfilling this responsibility, the building official shall follow the inspection guidelines set forth in the adopted building code or within this article.

(3) *Violations.* The building official and/or ordinance enforcement officer shall be responsible for investigating violations of this article. Whenever the official determines that a violation exists, the official shall pursue compliance following the enforcement procedures set forth in the adopted building code. If the owner of property where a sidewalk or pathway has fallen into a state of disrepair such that it is unsafe for use fails to complete repairs within next township repair cycle after notification, then the township may cause necessary repairs and charge the property owner for the costs of repair. If such costs are not paid by the property owner the costs shall become a lien against the property.

(b) *Site plan review.* If a proposed sidewalk or pathway is part of larger development that requires site plan review, then the sidewalk or pathway shall be shown on the site plan, which plan shall be reviewed in accordance with the site plan review procedures set forth in the zoning ordinance.

(c) *Authority of the township board to require sidewalk or pathway construction or maintenance.* In accordance with Michigan Public Act 246 of 1931 and Act 246 of 1945, as amended, the township board may order the construction, repair, or maintenance of, or may construct, repair, or maintain sidewalks or pathways in a designated area within the township because of the health, safety, or welfare of the residents. The township board shall hold a public meeting relative to the ordering of the sidewalk or pathway construction,

repair, or maintenance and shall notify property owners involved of the time and place of the hearing. If the township board determines that the construction, repair or maintenance of sidewalks or pathways is necessary, it may construct, repair, or maintain the sidewalks or pathways and assess the costs to the property involved, payable over no longer than a ten-year period, or permit the owners of the property involved to have the sidewalks or pathways constructed, repaired, or maintained according to township specifications at their own expenses. The township board may also propose a cost-sharing mechanism either from DDA or general revenues. In situations where a proposed sidewalk or pathway does not currently have connecting sidewalks or pathways on the adjacent properties on either side, the township board may require a property owner to post a cash deposit in lieu of construction, in an amount equivalent to 150 percent of the current cost of construction, which would be held in deposit until the adjacent properties develop, or not to exceed two years and install sidewalks or pathways.

(d) *Establishment and duties of sidewalks, pathways and trails committee.* The township board shall designate a committee to plan and prioritize repairs to existing sidewalks and pathways. The committee will make these recommendations to the township board and will prepare, annually, an inventory of deficient segments with cost estimates and priorities for repair. The township administration will then compile this inventory with other projects, with this presented to the planning commission for incorporation into the Capital Improvement Program (CIP).

(e) *Sidewalk deferment.* Sidewalk construction which is required by Texas Township in residential developments (plats, condominiums, PUD's, open space developments, etc.), may be deferred on undeveloped buildable lots or sites, by township board action at the time of final approval (Step III) of the development. There shall be no deferment of sidewalk construction related to common element areas of the development. If deferment is granted, the time for completion of all required sidewalks shall not exceed two years from the date of final approval. Deferment shall be conditioned upon:

(1) Deposit by the developer of a surety (letter of credit, cash bond, or some other financial interest approved by the board) in the amount of 150 percent of the estimated cost of sidewalk construction. The surety shall extend no less than 12 months after the length of time granted for the deferment. The estimated cost shall be approved by the township engineer and shall be based upon the market price for the work. No reduction in the surety for partial completion of sidewalks will be allowed during the deferment period. Release of the surety will take place only upon completion of all required sidewalks, and repair of damage (if any).

(2) The amount deposited shall include 150 percent of the estimated cost of sidewalks around any temporary cul-de-sac, which after the two-year deferment will also become permanent as provided for in Kalamazoo County Road Commission Policy.

(3) Sidewalks shall be constructed across all individual lots or building sites at the time of home construction, and before an occupancy permit for the home is issued. Sidewalks may be constructed through the development at any time during the

deferment period, but sidewalks shall not be deemed "completed" until all required sidewalks have been constructed and any damage has been repaired. All sidewalks shall conform to Texas Township Sidewalk construction Detail as shown on exhibit "A."

(4) Surety will be returned only after completion of all required sidewalks, repair of damage, and inspection and verification thereof by the township engineer.

(5) If sidewalks or sidewalk repairs have not been completed within the deferment period, the township may complete the required work after 30 days' written notice to the developer, using the surety to pay the costs of the work.

(6) Nothing in this article shall preclude the township from pursuing enforcement or ordinance requirements through civil infraction citations or otherwise.

(Ord. No. 292, § 5, 5-13-2013)

Editor's note—Exhibit "A" as referenced above, has not been set out, but may be observed at the office of the township clerk.

Sec. 10-176. Penalties, severability, conflicting provisions, and effective date.

(a) *Penalties.* Any person who violates any provision of this article is responsible for a municipal civil infraction.

(b) *Severability.* Should any portion of this article be found invalid for any reason, such a finding shall not be construed as affecting the validity of the remaining portions of the article, which shall remain in full force and effect.

(c) *Conflicting provisions repealed.* All other ordinances or parts of ordinances in conflict with this article are hereby repealed to the extent necessary to give this article full force and effect.

(d) *Effective date.* This article shall be effective 30 days, following the date of publication of a summary thereof, following adoption by the township board.

(Ord. No. 292, § 6, 5-13-2013)

Secs. 10-177—10-179. Reserved.

ARTICLE VIII. VEGETATION AND NOXIOUS WEED CONTROL

Sec. 10-180. Title.

This article shall be hereby designated and referred to as the "Vegetation and Noxious Weed Control Ordinance." Within the following text, it may be referred to as "this article."

(Ord. No. 361, § 1, 7-12-2021)

Sec. 10-181. Purpose.

It is the purpose of this article to control noxious weeds and manage uncontrolled vegetation in the township. There are reasonable expectations regarding the elimination of

noxious weeds and the proper maintenance of turf grass, uncontrolled plant growth, uncultivated vegetation, and duff on any lot, building site, or parcel of land. It is in the public's interests to provide standards regarding the maintenance of such vegetation which, if not met, can degrade the natural environment, threaten public health and safety, and negatively impact neighboring properties.
(Ord. No. 361, § 1, 7-12-2021)

Sec. 10-182. Definitions.

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Destroy means the complete killing of weeds or the killing of weed plants above the surface of the ground by use of chemicals, cutting, tillage, cropping system, or any or all of these in effective combination, at a time and in a manner as will effectually prevent the weed plants from maturing to bloom or flower stage.

Duff means the accumulation of leaves and dead plant material on the ground.

Garden means a cultivated area dedicated to growing vegetables, fruits, annual and perennial plants, ornamental grasses, and ground cover in a defined location.

Lawn means ground (as around a house) covered with turf grasses and other plants that is traditionally cut or mowed.

Native plants means those grasses (including prairie grasses), sedges (solid, triangular-stemmed plants resembling grasses), forbs (flowering broadleaf plants) that are native to the state of Michigan. Native plants do not include weeds.

Noxious weed means any plant defined or listed as prohibited or restricted under the Michigan noxious weed laws, which include noxious weed, Public Act 359 of 1941 and Michigan Seed Law, Public Act 329 of 1965, and specifically include ragweed (Ambrosia elatior 1), poison ivy (Rhus toxicodendron), poison sumac (Toxicodendron vernix), nettle (Urtica dioica), bittersweet night shade (Solanum dulcamara).

Planned native landscaping means a planned, intentional, and maintained planting of native plants. Planned native landscaping does not include any species of turf grasses.

Property owner means any person or entity with any ownership or possessory right or interest, including deed and land contract holders or mortgagees and any agent of the same.

Turf Grasses means grasses commonly used in regularly cut lawns or play areas including bluegrass, fescue or rye grass blends or any other similar grasses.

Uncontrolled plant growth means any non-woody vegetation like grass, hay, weeds, brush, or other vegetation which has grown to a height of over eight inches or is vegetation that

conceals rubbish or filthy deposits, constitutes a fire hazard, restricts vision at street intersections or driveways, or is otherwise regarded as contrary to the public's health, safety, and welfare. Uncontrolled plant growth does not include:

(1) Gardens,

(2) Plants located on agricultural land,

(3) Plants located on an undeveloped natural parcel/lot, except as required in section 10-184,

(4) Plants located on shore land within 35 feet of the ordinary high-water mark,

(5) Plants located within environmentally sensitive areas, or

(6) Planned native landscaping that is wholly contained within the lot, building site, or parcel on which it is planted and maintained per section 10-185.

Uncultivated vegetation means vegetation not intentionally tilled, prepared or planted.

Undeveloped natural parcel / lot / building site means property that has been unaffected by infrastructure or construction on at least 90 percent of the parcel/lot/building site.
(Ord. No. 361, § 1, 7-12-2021)

Sec. 10-183. Weed commissioner.

(a) *Appointment.* The ordinance enforcement officer of the township shall be appointed to serve as the "commissioner of noxious weeds" pursuant to 1941 PA 359, as amended. The person appointed as weed commissioner will be reported to the state department of agricultural within ten days of appointment per MCL 247.61.

(b) *Annual report.* Per MCL 247.67, the weed commissioner will make a written annual report before the first day of December to the state department of agriculture and the township board.
(Ord. No. 361, § 1, 7-12-2021)

Sec. 10-184. Control and management of vegetation and noxious weeds.

(a) *Responsibility.* It shall be the responsibility of all property owners to:

(1) Destroy all noxious weeds found on their land.

(2) Cut and remove uncontrolled plant growth or uncultivated vegetation three feet from either the edge of the road pavement or back of the curb, or three feet from the back of the sidewalk, if present, and maintained so uncontrolled plant growth or uncultivated vegetation does not impede visual clearance of roadways.

(3) Maintain lawn areas below a height of eight inches.

(4) Manage duff and yard waste, particularly during the fall season (October through December), to minimizes impacts, such as transference of leaves to neighboring properties and the attraction of pests.

(b) *Neglect to control or manage.* If a property owner neglects to control or manage vegetation and noxious weeds as required, the ordinance enforcement officer shall:

(1) Destroy or have destroyed the noxious weeds.

(2) Cut and/or remove or cause the uncontrolled plant growth or uncultivated vegetation to be cut and/or removed.

(3) Mow or cause the lawn to be mowed.

(4) Remove or cause the removal of duff or yard waste.

(c) *Exemption.* Per MCL 247.64, these requirements only apply to land within a subdivision in which buildings have been erected on 60 percent of the lots.

(d) *Notification.* Property owners shall be notified of any violations related to this article per the requirements described in section 10-186: Enforcement process.

(e) *Costs.* The cost to control or manage vegetation and noxious weeds shall be charged and assessed to the property owner as described in section 10-187: Costs of enforcement.
(Ord. No. 361, § 1, 7-12-2021)

Sec. 10-185. Planned native landscaping.

(a) *Objective.* The township recognizes that some property owners may wish to preserve or restore native plants and wildlife habitats, which can be economical, low- maintenance, and effective for water and soil conservation. While important to natural habitats, native plantings can appear unmanaged and/or uncontrolled in a residential setting. The following requirements are intended to allow planned native plantings while balancing the interests of neighboring property owners.

(b) *Requirements.*

(1) Turf grass is to be eliminated within planned native landscaped area of the property.

(2) A front yard setback area of three feet from either the edge of the road pavement or the back of the curb, or back of the sidewalk, if present, shall include a three-foot to six-foot vertical area that is clear of plantings. The setback shall be regularly maintained to ensure visual clearance along the roadway. Side and rear yards shall be maintained so planned native landscaping does not encroach onto neighboring properties.

(3) Planned native landscaping that utilizes fire for the control of duff management must follow the permitting requirements of the township fire department.

(c) *Yard maintenance.* Planned native landscaping is not intended to allow a property owner to ignore established turf lawn care or other yard maintenance.
(Ord. No. 361, § 1, 7-12-2021)

Sec. 10-186. Enforcement process.

(a) *Ordinance enforcement officer responsibilities.* The ordinance enforcement officer shall be responsible for resolving concerns related to the control and management of vegetation and noxious weeds in violation of this article and shall continually apply such remedies or treatments best calculated to prevent its spread and to eradicate the same.

(b) *Investigation process.*

(1) *Complainant.* If a person or persons believes a violation of this article exists, a complaint must be made with the ordinance enforcement officer with the name and address of complainant(s) given so a response can be provided. If the complainant(s) request(s) anonymity, their identity(ies) shall not be disclosed.

(2) *Investigation.* If a complaint is submitted or the ordinance enforcement officer, during the administration of regular duties, identifies a concern, the property in question shall be inspected.

(3) *Determination of compliance for a complaint.* If the ordinance enforcement officer determines the property meets the regulations and is not in violation of this article, said officer will notify the complainant(s) who will have the right to appeal the officer's decision. In exercising the right to appeal, the complainant(s) forfeit(s) the right to remain anonymous.

(4) *Determination of noncompliance.* If the ordinance enforcement officer determines the property does not meet the regulations of this article and a violation exists, said officer will notify the owner(s) of the property by first class mail with return receipt requested. If a complaint was filed, the complainant(s) will also be notified of the ordinance enforcement officer's determination. The property owners will have 14 days to come into compliance with this article. The notice shall describe the reasons for the violation, methods of treating and eradicating the vegetation and noxious weeds, a summary of the requirements of this article and MCL 247.64, the penalties for failure to comply, and the right to appeal.

In the event the owner(s) cannot be established or notified as required, after due diligence to do so, substitute notice can be given by first class mail with return receipt requested to the occupants of the premises detailing the 14 days to come into compliance.

To facilitate the control or removal of vegetation and noxious weeds on a vacant, unoccupied property, a notice will be placed in a newspaper of general circulation during the month of March stating that noxious weeds may be cut by the township and charged to the owner of the property if not removed by May 1 of that year. The ordinance enforcement officer, or their agent will have uncontrolled vegetation and noxious weeds removed when the property owner of the vacant property cannot be determined or located. Such notice shall be deemed in compliance with the notice requirements of the article.

(5) *Appeal.* The complainants and/or property owner(s) will have 14 days from date of written notification, provided by first class mail, to appeal the ordinance enforcement officer's decision to the township board.

(6) *Ongoing violations.* If the ordinance enforcement officer is required to perform the enforcement process and have noxious weeds removed or vegetation controlled for the same property more than twice between May 1st through December 31st, any subsequent enforcement actions will begin with the removal of noxious weeds and control of vegetation. No further notifications of violation will be provided. Notice will be given during the second enforcement process that further violations of this article will result in immediate action by the ordinance enforcement officer to remove noxious weeds and control vegetation.

(c) *Appeal process.*

(1) *Letter of appeal.* An appeal letter must be provided to the township board stating the reasons for the appeal. The letter shall be submitted to the township clerk who will schedule the appeal on the next available township board agenda, but not later than 21 days from appeal submission.

(2) *Public hearing.* The township board shall conduct a public hearing on the appeal and shall hear comments from the ordinance enforcement officer, the applicant, and any interested parties before rendering an opinion as to whether the property in question is in violation of this article.

(3) *Public notice.* A notice of the public hearing shall be sent by first class mail to the party(ies) involved at least five business days prior to the hearing, including the property owner and any complainant.

(4) *Determination.* A determination resulting from the public hearing shall be sent to the party(ies) involved within ten days of the decision. If it is determined that the property is in violation of this article, the property owner must correct the violation within 14 days of the township board decision.

(Ord. No. 361, § 1, 7-12-2021)

Sec. 10-187. Costs of enforcement.

(a) *Expenses incurred.* If the violation is not resolved within the time periods specified herein, the ordinance enforcement officer may enter upon such land of owner and destroy, cut, and/or remove the vegetation and growth thereon or cause the same to be destroyed, cut, and/or removed by such other person or agent appointed by the officer. All expenses incurred shall be paid by the owner(s) of such land. In addition, an administration fee, the amount of which shall be determined by the township board from time to time by resolution, shall be paid by the owner(s) of such land.

(b) *Expense approval.* Per MCL 247.65, the ordinance enforcement officer shall not have the power to expend, in work or materials, more than $25.00 on any one tract of property without the consent, in writing, of the township supervisor. The ordinance enforcement

officer will seek approval in the month of March for the maximum allotment of expenditure on an annual basis per tract of property for each instance of required destruction, cutting, or removal of vegetation and noxious weeds.

(c) *Lien*. The township shall have a lien upon land for expense and fee, for which the township has entered upon to control or manage vegetation and noxious weeds. The lien shall be enforced in the manner provided by law for the enforcement of construction liens. In addition to the foregoing, the township may bring an action in law or in equity against the owner(s) in any court of competent jurisdiction for the collection of said debt. This remedy shall be cumulative and not the exclusive remedy of the township.
(Ord. No. 361, § 1, 7-12-2021)

Sec. 10-188. Violations and penalties.

In addition to the expenses noted in section 10-187, the refusal of an owner to comply with this article shall constitute a municipal civil infraction. Upon determination of responsibility, the property owner, in addition to any other remedy (including injunctive relief), shall pay a fine according to the following schedule:

First offense	$100.00
Second offense within one year of the first offense	$200.00
Third offense within one year of the second offense	$350.00
Fourth offense and each subsequent offense	$500.00

(Ord. No. 361, § 1, 7-12-2021)

Sec. 10-189. Validity and severability.

Should any section, clause, or provision of this article be declared by the courts to be invalid, the same shall not affect the validity of the article as a whole or any part thereof, other than the part so declared to be invalid.
(Ord. No. 361, § 1, 7-12-2021)

Chapter 11

RESERVED

Chapter 12

FIRE PREVENTION AND PROTECTION*

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Secs. 12-1—12-30. Reserved.

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Sec. 12-32. Purpose.
Sec. 12-33. Adoption of NFPA 1/Uniform Fire Code, 2009 edition.
Sec. 12-34. Conflicts.
Sec. 12-35. Board of appeals.
Sec. 12-36. Open fires.
Sec. 12-37. Fire protection systems.
Sec. 12-38. Existing apartment buildings.
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***Cross references—**Buildings and building regulations, ch. 6; water supplies and fire hydrants, § 12-40.

State law references—State fire prevention code, MCL 29.1 et seq.; crimes related to fires, MCL 750.240 et seq.; crimes related to explosives and bombs, MCL 750.200 et seq.; explosives act, MCL 29.41 et seq.

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Article VI. Township Fire and Rescue Department

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Sec. 12-154. Basic organizational structure.
Sec. 12-155. Fire department finances.
Sec. 12-156. Fire department rules and regulations.
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Sec. 12-159. Training.
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Sec. 12-165. Department equipment and vehicles.
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Sec. 12-167. Soliciting donations.
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ARTICLE VII. Fireworks

Sec. 12-180. Purpose.
Sec. 12-181. Definitions.
Sec. 12-182. Permitted days of use.
Sec. 12-183. Prohibited uses of fireworks.
Sec. 12-184. Penalties.
Secs. 12-185—190. Reserved.

ARTICLE I. IN GENERAL

Secs. 12-1—12-30. Reserved.

ARTICLE II. UNIFORM FIRE CODE*

Sec. 12-31. Title.

This article shall be known and cited as the "Texas Charter Township Uniform Fire Code Ordinance."
(Ord. No. 279, § I, 3-14-2011)

Sec. 12-32. Purpose.

This article is adopted pursuant to the authority vested in townships by section 1 of 1945 PA 246, as amended (MCL 41.181), and section 5 of 1951 PA 33, as amended (MCL 41.805), the purpose of which article is to adopt a Uniform Fire Code with annexes, index, and amendments thereto; to prescribe regulations for the safeguarding to a reasonable degree of life and property from the hazards of fire and explosion arising from the storage, handling and use of hazardous substances, materials and devices, and from conditions hazardous to life or property in the use or occupancy of buildings or premises.
(Ord. No. 279, § II, 3-14-2011)

Sec. 12-33. Adoption of NFPA 1/Uniform Fire Code, 2009 edition.

A certain document or booklet, which is marked and entitled as "NFPA 1/Uniform Fire Code, 2009 edition" and the annexes and index thereto, said Code being published by the National Fire Protection Association, official copies of which are on file in the office of the township clerk and which may be examined by the general public during regular business hours or by appointment, is hereby adopted by reference as if fully set forth herein. Each and all of the regulations, provisions, penalties, conditions and terms thereof, except as they may hereafter be modified, shall be deemed adopted and made a part hereof by this reference as if fully set forth in this article.
(Ord. No. 279, § III, 3-14-2011)

Sec. 12-34. Conflicts.

Section 1.3.3 of the said NFPA 1/Uniform Fire Code, 2009 edition, regarding "conflicts" is hereby amended to add section 1.3.3.3 as follows:

1.3.3.3. Where a conflict between this document and the Michigan Construction Code occurs, the specific requirements of the Michigan Construction Code shall apply.

(Ord. No. 279, § IV, 3-14-2011)

***Editor's note—**Sections I—XI of Ord. No. 279, adopted March 14, 2011, has been treated as superseding the provisions of former art. II, Fire Prevention Code, §§ 12-31—12-48. See Code Comparative Table for complete derivation.

Sec. 12-35. Board of appeals.

Section 1.10.1.1 of the said NFPA 1/Uniform Fire Code, 2009 edition, is hereby amended to read as follows:

1.10.1.1. A Board of Appeals shall be established consisting of members and alternate members who shall be appointed by the Charter Township of Texas Board of Trustees by reason of education, experience, and knowledge and are deemed to be competent to sit in judgment on matters concerning this Code and its enforcement.

(Ord. No. 279, § V, 3-14-2011)

Sec. 12-36. Open fires.

Section 10.11 of the said NFPA 1/Uniform Fire Code, 2009 edition, is hereby amended by the deletion of subsections 10.11.1 through 10.11.9 thereunder and by the addition of the following language:

10.11 Open fires, incinerators and commercial fireplaces shall be regulated by separate Township Ordinance.

(Ord. No. 279, § VI, 3-14-2011)

Sec. 12-37. Fire protection systems.

A new section designated 13.1.13 is hereby added to the NFPA 1/Uniform Fire Code, 2009 edition to read, in its entirety, as follows:

13.1.13 Signage on Fire Department Connections. Fire Department Connections (FC) shall be signed/marked so as to be easily identified at the time of an emergency. Signage shall be white on red reflective signage and letters shall be at least 6 inches in height and approved by the AHJ.

(Ord. No. 279, § VII, 3-14-2011)

Sec. 12-38. Existing apartment buildings.

Section 13.7.2.12.1 of the said NFPA 1/Uniform Fire Code, 2009 edition, is hereby amended to read as follows:

13.7.2.12.1 Apartment buildings with more than two stories or with more than 15 dwellings units, other than those meeting 13.7.2.12.2 shall be provided with a fire alarm system in accordance with Section 13.7 and NFPA 101, except as modified by 31.3.4.2 through 31.3.4.6 of NFPA 101. (101:31.3.4.1.1)

(Ord. No. 279, § VIII, 3-14-2011)

Sec. 12-39. Water supplies and fire hydrants.

A new section designated 18.3.4.2 is hereby added to NPFA 1/Uniform Fire Code, 2009 edition, to read, in its entirety, as follows:

18.3.4.2 Fire Hydrant and Stand Pipe Signage. All fire hydrants shall be identified by signage as utilized by the local water provider or approved by the AHJ. Stand Pipes shall be identified as such by signage approved by the AHJ.

(Ord. No. 279, § IX, 3-14-2011)

Sec. 12-40. Means of egress inspection.

Section 20.1.4. of the said NFPA 1/Uniform Fire Code, 2009 edition, is hereby amended to add section 20.1.4.8, as follows:

20.1.4.8. Means of Egress Inspection. The building owner or agent of all Public Assembly Occupancies shall inspect the means of egress to ensure it is maintained free of obstructions, and correct any deficiencies found, prior to each opening of the building to the public and prepare and maintain records of the date and time of each inspection on approved forms, listing any deficiencies found and actions taken to correct them.

(Ord. No. 279, § X, 3-14-2011)

Sec. 12-41. Violations.

Any person, firm, association, partnership, corporation, or governmental entity who violates any of the provisions of this article or the Uniform Fire Code adopted hereunder shall be deemed to be responsible for a municipal civil infraction as defined by Michigan Statute which shall be punishable by civil fine determined in accordance with the following schedule:

	Minimum Fine	*Maximum Fine*
1st offense within 3-year period*	$75.00	$500.00
2nd offense within 3-year period*	150.00	500.00
3rd offense within 3-year period*	325.00	500.00
4th or more offense within 3-year period*	500.00	500.00

* Determined on the basis of the date of commission of the offense(s).

Additionally, the violator shall pay costs which may include all expenses, direct and indirect, to which the Charter Township of Texas has incurred in connection with the municipal civil infraction. In no case, however, shall costs of less than $9.00 nor more than $500.00 be ordered. In addition, the Charter Township of Texas shall have the right to proceed in any court of competent jurisdiction for the purpose of obtaining an injunction, restraining order, or other appropriate remedy to compel compliance with this article. Each day that a violation of this article exists shall constitute a separate violation of this article.

(Ord. No. 279, § XI, 3-14-2011)

Secs. 12-42—12-70. Reserved.

ARTICLE III. HAZARDOUS MATERIAL COST RECOVERY

Sec. 12-71. Purpose.

The purpose of this article is to provide for defraying a portion of expenses of the township resulting from the township responding with emergency equipment and personnel to a hazardous materials accident or incident involving the release or threatened release of hazardous materials into the environment which requires emergency attention to protect the health, safety and general welfare of the public.
(Comp. Ords. as Rev. 12-1999, § 40.101)

Sec. 12-72. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Hazardous materials means explosives, pyrotechnics, flammable gas, flammable compressed gas, nonflammable compressed gas, flammable liquid, combustible liquid, oxidizing material, poisonous gas, poisonous liquid, irritating material, etiologic material, radioactive material, corrosive material, liquified petroleum gas, and other materials customarily considered dangerous to living beings or contaminating to the environment.

Release means any spilling, leaking, pumping, pouring, emitting, emptying, discharging, injecting, leaching, dumping or disposing of hazardous materials into the environment.

Responsible party means any individual, firm, corporation, association, partnership, commercial entity, consortium, joint venture, government entity or any other legal entity that causes a release of a hazardous material, or whose action threatens such release; or who is an owner, tenant, occupant or party in control of property onto which or from which hazardous materials are released or threatened to be released.
(Comp. Ords. as Rev. 12-1999, §§ 40.102—40.104)
Cross reference—Definitions generally, § 1-2.

Sec. 12-73. Charges imposed upon responsible party.

Where the township fire and/or police department responds to a release of hazardous materials or a threatened release of such materials, the responsible party shall be liable to the township for the following costs incident to such township response:

(1) All personnel costs of all personnel attending on behalf of and with the authority of the township including their current hourly rate, fringe benefits, and salary apportioned to the length of time in attendance, calculated commencing one hour after receipt of the signal to respond and continuing for each personnel until that personnel has concluded his incident related responsibilities.

(2) The equipment costs of all equipment attending as established by an itemized resolution of the township board setting forth the costs attributable to each piece of

township equipment which might be involved in such a response. This resolution may be amended from time to time to reflect changes in equipment, inflation factors, and accounting records of past occurrences.

(3) Other expenses incurred by the township including but not limited to rental or purchase of additional machinery or equipment, retention of consultants, medical and hospitalization costs, replacement costs related to disposable personal protective equipment required to be disposed of, extinguishing chemicals, supplies and water purchased from water systems, and meals and refreshments for emergency personnel while responding to the hazardous materials incident.

(4) Additional charges imposed by any other local, state or federal government entities, related to the incident.

(5) Administrative costs incurred in accounting for all expenditures for billing and collection of such expenditures which shall not exceed 25 percent of the costs set out in this section.

(Comp. Ords. as Rev. 12-1999, § 40.105)

Sec. 12-74. Billing procedures.

Following the conclusion of the hazardous materials incident, the fire chief shall submit a detailed listing of all known expenses to the township treasurer, who shall prepare an invoice to the responsible party for payment. The treasurer's invoice shall demand full payment within 45 days of the receipt of the bill. Any additional expenses that become known to the township fire chief following the transmittal of the bill to the responsible party shall be billed in the same manner on a subsequent bill to the responsible party. For any amounts due that remain unpaid after 45 days, the township shall impose a late charge of one percent per month or fraction thereof.

(Comp. Ords. as Rev. 12-1999, § 40.106)

Sec. 12-75. Nonexclusive charges.

The rates and charges set out in this article shall not be exclusive of other charges that may be made by the township for the costs and expense of maintaining a fire and/or police department, but shall only be supplemental thereto. Charges may additionally be collected by the township through general taxation after a vote of the electors approving the charges, or by special assessments established under state statutes pertinent thereto.

(Comp. Ords. as Rev. 12-1999, § 40.107)

Sec. 12-76. Other remedies.

The township may pursue any other remedy, or may institute any appropriate action or proceeding, in a court of competent jurisdiction to collect charges imposed under this article. The recovery of charges imposed under this article does not limit the further liability of responsible parties under local ordinance or state or federal law, rule or regulation.

(Comp. Ords. as Rev. 12-1999, § 40.108)

Secs. 12-77—12-98. Reserved.

ARTICLE IV. OUTDOOR BURNING

Sec. 12-99. Purpose.

This article is adopted in the interest of public safety, and is designed to promote the general peace, health, safety and welfare of the township. This article is adopted pursuant to the authority vested in townships by part 115 of Public Act No. 451 of 1994 (MCL 324.11522). The purpose of this article is to authorize outdoor burning of certain waste material, to provide for the control of fires, and to establish reasonable standards to safeguard life and property from the hazards of burning materials on open lands and outside of containers. Any such burning of materials in approved containers or outside of containers shall hereafter be controlled in accordance with the provisions set forth in this article.
(Ord. No. 206, § II, 8-27-2001)

Sec. 12-100. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Chief means the township fire chief, fire inspector, the highest ranking officer of the township fire department on duty, or a firefighter acting on orders of one of the personnel listed in this definition.

Incinerator means a structure, or portion thereof, container, device or other appliance designed, used or intended to be used for the disposal of combustible rubbish by burning. Incinerators are further described and regulated in the township fire code in article II of this chapter.

Open burning means the burning of unwanted materials such as paper, trees, brush, leaves, grass and other debris, where smoke and other emissions are released directly into the air. During open burning, air pollutants do not pass through a chimney or stack.

Recreational fire means the burning of logs, brush, charcoal and other similar materials for the purpose of food preparation or recreation.

Waste burner, approved, means a noncombustible masonry or metal container, not larger than 55 U.S. gallons (208 L) or 7.35 cubic feet (0.68^3), used for residential burning of combustible wood and paper products.
(Ord. No. 206, § III, 8-27-2001)

Cross reference—Definitions generally, § 1-2.

Sec. 12-101. General provisions governing outdoor burning.

(a) All outdoor burning of any materials, including burning of rubbish in an approved incinerator or waste burner, is prohibited except for the following:

(1) Outdoor burning shall only be commenced with a permit and only approved materials shall be burned. However, burning in an approved waste burner or recreational fires in accordance with this article shall not require a permit. Outdoor burning for waste disposal will be restricted to one- and two-family dwellings only.

a. No burning shall be permitted and no outdoor burning permits will be authorized when any of the following conditions are present:

1. On ozone action days as designated by the community health department or state department of environmental quality, or a successor agency to either.

2. When sustained wind speeds of ten mph or greater, as determined or projected by the National Weather Service, are present.

3. When the National Weather Service declares a red flag warning for Lake Michigan in Van Buren, Berrien or Allegan County.

4. When the governor of the State of Michigan forbids, by proclamation, the use of any fire by persons entering forest lands or lands adjacent to forest lands within the County of Kalamazoo or any adjacent county.

5. When any other condition exists which make the issuance of an outdoor burning permit hazardous to the life, health or safety of the residents and property owners of the township, as determined by the fire department.

(2) Outdoor burning conducted by the fire department as a training exercise for firefighters.

(3) Burning in an approved waste burner in accordance with section 12-102.

(4) Burning outside of a container in accordance with section 12-103.

(5) Recreational fires in accordance with section 12-104.

(6) Agricultural fires in accordance with section 12-105.

(7) Outdoor barbecue pits and grills when used for food preparation or recreation in accordance with the township fire code in article II of this chapter.

(b) Unless provided otherwise in subsection (a) of this section, the preceding forms of outdoor burning shall be subject to all applicable provisions of this article, the township fire code in article II of this chapter, and any other governmental agencies regulating emissions and outdoor burning.
(Ord. No. 206, § IV, 8-27-2001; Ord. No. 278, § 1, 2-14-2011)

Sec. 12-102. Waste burners.

(a) *Construction.* An approved waste burner shall be constructed of noncombustible masonry, or be a metal container, not larger than 55 U.S. gallons (208 L) or 7.35 cubic feet (0.68 m^3), in good condition and containing no openings larger than one-half square inch (323 mm^2). It must also have a cover or spark arrester with openings no larger than one-half square inch (323 mm^2).

(b) *Location.* Waste burners shall not be located within 20 feet (six meters) of combustible walls, roof, or other combustible material (including ground cover), building openings; or property lines.

(1) Notwithstanding the foregoing, no burning shall be permitted in a waste burner as defined in this ordinance within the boundaries of the following plats in the township:

The plat of Colony Woods Estates.

The plat of Colony Woods Estates No. 2.

The plat of Colony Woods Estates No. 3.

The plat of Colony Woods Estates No. 4.

The plat of Colony Woods Estates No. 5.

The plat of Colony Woods Estates No. 6.

The plat of Colony Woods Estates No. 7.

The plat of Colony Woods Estates No. 8.

The plat of Colony Woods Estates No. 9.

The plat of Colony Park Estates No. 1.

The plat of Colony Pointe West No. 1.

The plat of Colony Pointe West No. 2.

(2) In addition to the land described above, no burning shall be permitted in a waste burner as defined in this section on land, whether platted or unplatted, located:

In the NE ¼ of Section 24.

In the East ½ of the NE ¼ of the NW ¼ of Section 24.

In the W ¼ of the NE ¼ of the NW ¼ of Section 24 lying Southerly of a line Commencing at the Northwest corner of the Northeast ¼ of the Northwest ¼; thence South 00°-18′-55″ East along the West line of said West ¼, 866.19 feet for the place of beginning of the line hereinafter described; thence North 88°-18′-47″ East, 325.08 feet to the East line of said West ¼ and the point of ending.

In the S ½ of the NW ¼ of the NW ¼ of Section 24.

In the SE ¼ of the NW ¼ of Section 24.

In the N ½ of the SE¼ of Section 24.

In the NE ¼ of the SW ¼ of Section 24.

(c) *Discontinuance.* The chief is authorized to require waste burner use to be immediately discontinued if the chief determines that smoke emissions are offensive to occupants of surrounding property, or if the use of the waste burner is determined by the chief to constitute a hazardous condition.

(d) *Material restrictions.* Burning of materials in an approved waste burner shall be restricted to paper and wood products. Materials such as leaves, grass clippings, garbage, chemically treated lumber, building material, plastic and rubber products shall be specifically prohibited.

(Ord. No. 206, § V, 8-27-2001; Ord. No. 234, § I1., 10-11-2004)

Cross reference—Solid waste, ch. 26.

Sec. 12-103. Open burning.

(a) *Generally.* Open burning, or burning outside of an approved device, to the extent allowed, shall be conducted in accordance with the requirements of this article. Open burning shall also be conducted as required by other governing agencies regulating emissions. Recreational fires shall be in accordance with section 12-104.

(b) *Permits.* Any person, partnership, firm, association or corporation deciding to set or start a fire must obtain a permit from the fire department which states the name and address of the applicant, the location of the land and premises where such fire is to be set, and the time contemplated for setting such fire. The permit applicant must be the property owner or in legal control of the property.

(c) *Material restrictions.* Outdoor burning of materials shall be restricted to leaves, untreated wood and brush less than four inches (ten centimeters) in diameter. Outdoor burning of grass clippings, garbage, paper products, chemically treated lumber, building materials, plastic and rubber products, and tree stumps with an overall diameter exceeding four inches (ten centimeters) shall be specifically prohibited. Paper products may be burned in an approved incinerator or waste burner.

(d) *Time and atmospheric restrictions.* Outdoor burning shall only be performed during daylight hours, and when atmospheric conditions comply with the limits set forth in the open burning permit.

(e) *Location.* Open burning shall not be conducted within 30 feet (12 meters) of any structure or other combustible material, within 25 feet (10 meters) of an adjoining property line, or within 10 feet (4 meters) of a public roadway. Conditions that may cause the fire to spread to within 30 feet (12 meters) of a structure shall be eliminated prior to ignition.

(1) Notwithstanding the foregoing, no open burning as defined in this ordinance shall be conducted within the boundaries of the following plats in the Township:

The plat of Colony Woods Estates

The plat of Colony Woods Estates No. 2

The plat of Colony Woods Estates No. 3

The plat of Colony Woods Estates No. 4.

The plat of Colony Woods Estates No. 5

The plat of Colony Woods Estates No. 6

The plat of Colony Woods Estates No. 7

The plat of Colony Woods Estates No. 8

The plat of Colony Woods Estates No. 9

The plat of Colony Park Estates No. 1

The plat of Colony Pointe West No. 1

The plat of Colony Pointe West No. 2

(2) In addition to the land described above, no open burning as defined in this ordinance shall be conducted on land, whether platted or unplatted, located:

In the NE ¼ of Section 24.

In the East ½ of the NE ¼ of the NW ¼ of Section 24.

In the W ¼ of the NE ¼ of the NW ¼ of Section 24 lying Southerly of a line Commencing at the Northwest corner of the Northeast ¼ of the Northwest ¼; thence South 00°-18′-55″ East along the West line of said West ¼, 866.19 feet for the place of beginning of the line hereinafter described; thence North 88°-18′-47″ East, 325.08 feet to the East line of said West ¼ and the point of ending.

In the S ½ of the NW ¼ of the NW ¼ of Section 24.

In the SE ¼ of the NW ¼ of Section 24.

In the N ½ of the SE¼ of Section 24.

In the NE ¼ of the SW ¼ of Section 24."

(f) *Fire extinguishing equipment.* A garden hose connected to a pressurized water supply, a fire extinguisher with a minimum 4-A rating, or other approved fire extinguishing equipment shall be readily available for use at open burning sites.

(g) *Attendance.* Burning material shall be constantly attended by a person knowledgeable in the use of the fire-extinguishing equipment required by subsection (f) of this section and familiar with the permit limitations which restrict open burning. An attendant shall supervise the burning material until the fire has been completely extinguished.

(h) *Discontinuance.* The chief is authorized to require that open burning be immediately discontinued if the chief determines that smoke emissions are offensive to occupants of surrounding property or if the open burning is determined by the chief to constitute a hazardous condition.

(Ord. No. 206, § VI, 8-27-2001; Ord. No. 207, § I(1), 12-17-2001; Ord. No. 221, § I, 4-14-2003; Ord. No. 238, § I2., 10-11-2004)

Sec. 12-104. Recreational fires.

(a) *Size.* Recreational fires shall be restricted in size to no more than five feet (1.5 meters) in circumference and no more than five feet (1.5 meters) in height.

(b) *Location.* Recreational fires shall not be conducted within 30 feet (12 meters) of a structure or combustible material unless contained in a barbecue pit. Conditions that could cause the fire to spread to within 30 feet (12 meters) of a structure shall be eliminated.

(c) *Fire extinguishing equipment.* A garden hose connected to a pressurized water supply, a fire extinguisher with a minimum 4-A rating, buckets full of water, shovels or other approved fire extinguishing equipment shall be readily available for use at recreational fires.

(d) *Attendance.* Recreational fires shall be constantly attended by a person knowledgeable in the use of the fire-extinguishing equipment required by subsection (c) of this section. An attendant shall supervise a recreational fire until the fire has been completely extinguished.

(e) *Discontinuance.* The chief is authorized to require that a recreational fire be immediately discontinued if the chief determines that smoke emissions are offensive to occupants of surrounding property or if the fire is determined by the chief to constitute a hazardous condition.

(Ord. No. 206, § VII, 8-27-2001; Ord. No. 207, § I(2), 12-17-2001)

Cross reference—Parks and recreation, ch. 24.

Sec. 12-105. Agricultural burns.

(a) *Location.* The burning off of areas of fields on farms within the township is permitted. Agricultural burns shall not be conducted closer than 100 feet (30 meters) of any structure or other combustible material, within 30 feet (12 meters) of an adjoining property line, within 100 feet (30 meters) of a public roadway. Conditions that may cause the fire to spread to within 50 feet (15 meters) of a structure shall be eliminated prior to ignition.

(b) *Permits.* Prior to the commencement of an agricultural burn, a permit must be secured from the fire department. The permit applicant must be the property owner or in legal control of the property.

(1) No burning shall be permitted and no outdoor burning permits will be authorized when any of the following conditions are present:

a. On ozone action days as designated by the community health department or state department of environmental quality, or a successor agency to either.

b. When sustained wind speeds of ten mph or greater, as determined or projected by the National Weather Service, are present.

c. When the National Weather Service declares a red flag warning for Lake Michigan in Van Buren, Berrien or Allegan County.

d. When the governor of the State of Michigan forbids, by proclamation, the use of any fire by persons entering forest lands or lands adjacent to forest lands within the County of Kalamazoo or any adjacent county.

e. When any other condition exists which make the issuance of an outdoor burning permit hazardous to the life, health or safety of the residents and property owners of the township, as determined by the fire department.

(c) *Time and atmospheric restrictions.* Agricultural burning shall only be performed during daylight hours when atmospheric conditions are conducive for safe operations. Agricultural burning must comply with the limits set forth in the open burning permit.

(d) *Fire extinguishing equipment.* A garden hose connected to a pressurized water supply, a fire extinguisher with a minimum 4-A rating, buckets full of water, shovels, mechanized earth moving equipment, or other approved fire extinguishing equipment shall be readily available for use at agricultural burns.

(e) *Attendance.* Agricultural burns shall be constantly attended by a person knowledgeable in the use of the fire-extinguishing equipment required by subsection (d) of this section. An attendant shall supervise an agricultural burn until the fire has been completely extinguished.

(f) *Discontinuance.* The chief is authorized to require that an agricultural burn be immediately discontinued if the chief determines that smoke emissions are offensive to occupants of surrounding property or if the fire is determined by the chief to constitute a hazardous condition.
(Ord. No. 206, § VIII, 8-27-2001; Ord. No. 207, § I(3), 12-17-2001; Ord. No. 278, § 1, 2-14-2011)

Sec. 12-106. Burning of buildings and building materials.

(a) *General prohibition.* The burning of structures or portions of structures for the purpose of demolition, burning of demolition materials or scrap building materials is prohibited.

(b) *Intentional burning for fire training; permit.* Buildings may be intentionally burned only for the purposes of fire department training, upon the issuance of a permit therefore by the chief.
(Ord. No. 206, § IX, 8-27-2001; Ord. No. 278, § 1, 2-14-2011)

Cross reference—Buildings and building regulations, ch. 6.

Sec. 12-107. Burning ban.

(a) *Generally.* If a high hazard fire condition exists, or an ozone action alert is issued by the county health department or state department of environmental quality, the chief may issue a burning ban which would restrict any or all burning until such time as the hazardous conditions subside.

(b) *Notification.* If the hazardous fire condition is predicted to last no more than 96 hours, permits will be suspended for the required amount of time needed for the hazard to subside and permit holders for that time period will be notified via telephone. If the hazardous conditions are predicted to last more than 96 hours, all permits will be suspended and notification of imposition and lifting of the ban shall be effective upon the date of posting thereof at the township hall.
(Ord. No. 206, § X, 8-27-2001)

Sec. 12-108. Penalties and sanctions.

Any person, firm, association, partnership, corporation, or governmental entity who violates any of the provisions of this article or any code adopted under this article shall be deemed to be responsible for a municipal civil infraction as defined by state statute which shall be punishable by a civil fine determined in accordance with the schedule in section 18-62(a).
(Ord. No. 206, § XI, 8-27-2001)

Secs. 12-109—12-130. Reserved.

ARTICLE V. OUTDOOR FURNACES

Sec. 12-131. Purpose.

The purpose of this article is to protect the public health, safety and general welfare of the residents of the Charter Township of Texas from excessive smoke pollution, soot contamination and other toxic air pollutants and offensive odors emanating from outdoor furnaces and to regulate the location and use of same.
(Ord. No. 259, § I, 5-12-2008; Ord. No. 261, § I, 9-8-2008)

Sec. 12-132. Definition.

"Outdoor furnace" means a fuel-fired boiler or furnace, fueled by wood, coal, corn or other types of fuel, located outside the structure it is used to heat, with the designated purpose of providing indoor heat for water and/or air for a residence or other structure. The provisions of this article do not apply to boilers or furnaces fueled by natural gas, propane or fuel oil if the boiler or furnace has been inspected and approved by the township mechanical inspector.
(Ord. No. 259, § II, 5-12-2008; Ord. No. 261, § II, 9-8-2008)

Sec. 12-133. Restrictions.

(a) Outdoor furnaces are prohibited in the township, except as specifically authorized in this article.

(b) An owner or person in control of an outdoor furnace which exists in the township as of the effective date of this article may operate the outdoor furnace, and the outdoor furnace may remain in place, only if the owner or person in control applies for an outdoor furnace permit within 60 days of the effective date of this article. Upon application, the building official or his designee shall inspect the outdoor furnace, and shall issue a permit for the outdoor furnace conditioned upon bringing the outdoor furnace into compliance with the following standards and requirements within one year of the effective date of this article:

(1) No outdoor furnace shall be located on a parcel less than five acres in area and outdoor furnaces are prohibited from being located in any area that is part of a condominium subdivision or platted subdivision within the township.

(2) Every outdoor furnace shall be located at least 300 feet from any dwelling owned by another, in existence on the effective date of this article.

(3) Every outdoor furnace shall be located at least 50 feet from any property line and shall have a chimney (also referred to as a "stack") that extends at least 15 feet above the grade plane and at least two feet higher than the height of the highest roof peak of any dwelling (owned by one other than the owner of the outdoor furnace and in existence on the effective date of this article) located within 500 feet. For purposes of this article, "grade plane" means the average level of the finished grade at the structure within which the outdoor furnace is located, with four or more corner points utilized for determining the average.

(4) The outdoor furnace shall comply with the provisions of the Fire Code, the Mechanical Code, the Zoning Ordinance, and all other applicable statutes, regulations and ordinances.

Failure by the owner of the outdoor furnace or the person who owns or is in control of the property upon which it is located to apply for the permit required by this article; or to bring the outdoor furnace into compliance with the requirements of the article within the time frame required; or the failure or refusal to comply with the conditions of any variance granted under this article shall constitute a violation of this article.

(c) Every owner or person in control of an outdoor furnace to which this article applies and which exists in the township as of the effective date of this article shall comply with the following requirements and standards immediately:

(1) Outdoor furnaces must meet all specifications provided by the manufacturer. In addition, outdoor furnaces must conform to any state construction code provisions that apply, and to the Township Fire Code ordinance. All outdoor furnaces must be UL (Underwriters Laboratories, Inc.) listed or certified, or approved by another recognized product safety certification organization.

(2) Outdoor furnaces shall not be used to burn any fuel other than a fuel listed by the manufacturer as a fuel it has been designed to handle.

(3) No outdoor furnace shall be used from April 30 to October 1, inclusive, in any year.

(4) No more than one outdoor furnace shall be permitted on any parcel.

Failure to comply with any of these requirements shall constitute a violation of this article.

(d) All outdoor furnaces shall be subject to periodic inspection by the building and/or mechanical inspector and by the fire chief or his designee to assure that all provisions of this article have been, and continue to be, satisfied.

(e) The fee for an outdoor furnace permit shall be determined by resolution of the township board to cover anticipated reasonable costs of inspections and administration of this article.

(f) A request for a variance from the strict application of the minimum parcel size requirement, from the setback requirement or from the chimney (stack) height requirement of this article may be made to the Texas Charter Township Board. The request shall be made in writing, submitted to the township clerk. The application fee for the variance shall be established by resolution of the township board.

The township board shall deny the variance, approve the variance or approve the variance with conditions necessary to carry out the intent of this article. In considering a variance request, the township board shall consider:

(1) Actions the applicant has taken or proposes to take to eliminate the negative impacts from the use of the outdoor furnace upon the neighborhood, including but not limited to changes in the position, design, amount of use, type of fuel or other aspects of the use of the outdoor furnace.

(2) Conditions (including, but not limited to, limits on the use of the outdoor furnace) that would reduce negative impacts from the grant of the variance.

(3) Whether particular features of topography unique to the parcel on which the outdoor furnace is located make it impractical or impossible to comply with the chimney (stack) height requirements of the article.

(4) Whether particular features of an installed outdoor furnace make it impossible or impractical to comply with the chimney (stack) height requirements of the article. Manufacturer's instructions and/or installation recommendations can be considered by the township board when making a determination as to whether to grant a variance to the chimney (stack) height requirement of the article.

(5) Whether a variance can be granted in a form (with or without conditions) that will accomplish the purpose of this article. The decision of the township board on a variance request shall be in writing, and shall include reasons for the decision.

(g) Nuisance provisions and temporary suspension of permit.

(1) An outdoor furnace permit may be suspended by the agreement of any two of those township employees and officials that are designated by resolution of the township board as may be necessary to protect the public health, safety and welfare of the residents of Texas Township if any of the following conditions occurs:

a. Emissions from the outdoor furnace exhibit black or dark grey smoke for any continuous six-minute period;

b. Malodorous air contaminants from the Outdoor furnace are detectable outside the property of the person on whose land the outdoor furnace is located;

c. The emissions from the outdoor furnace cause damage to vegetation, livestock or property.

(2) A suspended permit may be reinstated by any one of those township officials and employees that have been designated by the township board by resolution once the

condition which resulted in suspension is remedied or the existing unit is upgraded to a cleaner-burning unit; and reasonable assurances are given that such condition will not recur.

(3) Recurrence of a condition which has previously resulted in suspension of a permit shall be considered a violation of this section subject to the penalties provided herein.

(Ord. No. 259, § III, 5-12-2008; Ord. No. 261, § III, 9-8-2008; Ord. No. 263, § I, 10-27-2008; Ord. No. 278, § 2, 2-14-2011)

Secs. 12-134—12-150. Reserved.

ARTICLE VI. TOWNSHIP FIRE AND RESCUE DEPARTMENT*

Sec. 12-151. Scope, purpose and intent.

This article is adopted pursuant to the authority granted the Charter Township Board under the Charter Township Act at MCL 42.13, and pursuant to the authority granted the township board under the Police and Fire Protection Act, Public Act 33 of 1951, as amended, (MCL 41.801 et seq.).

The purpose of this article is to recognize the Texas Township Fire and Rescue Department; to establish jurisdiction and authority of the township board over the fire and rescue department, including personnel selection; to establish authority to adopt rules and regulations for the conduct of personnel and maintenance of equipment; to employ and appoint a chief, firefighters and officers; and to prescribe the powers and duties of fire department volunteers and employees.
(Ord. No. 273, § 1, 6-14-2010)

Sec. 12-152. Geographic coverage area.

The Texas Township Fire and Rescue Department (herein "fire department") shall be responsible for providing services to the entire geographic boundaries of Texas Charter Township.

The fire department shall restrict its delivery of emergency services to the geographic area described in this section, and to other jurisdictions with which the township board has negotiated and entered into mutual aid or automatic aid agreements.
(Ord. No. 273, § 2, 6-14-2010)

Sec. 12-153. Scope and level of services.

Consistent with appropriations and budget authorization, the Texas Township Fire and Rescue Department is authorized to provide to the citizens of Texas Charter Township, the following programs and services:

(1) Fire suppression;

(2) Fire prevention and emergency preparedness education;

(3) Fire prevention and code enforcement;

(4) Emergency medical services (nontransport) at the medical first response level with automatic defibrillator;

(5) Vehicle crash rescue and extrication;

(6) Surface water and ice rescue;

***Editor's note—**Sections 1—17 of Ord. No. 273, adopted June 14, 2010, did not specify manner of inclusion; hence, inclusion as a new Art. VI, §§ 12-151—12-167 was at the discretion of the editor.

(7) Hazardous materials incident response at the operational level;

(8) Disaster response planning and recovery coordination; and

(9) Citizens assistance calls at the discretion of the chief and policy direction.
(Ord. No. 273, § 3, 6-14-2010)

Sec. 12-154. Basic organizational structure.

The Texas Township Fire and Rescue Department shall be actively supervised and managed by a department chief appointed by the township. To ensure continuity of command and appropriate incident supervision, the township board authorizes the following officer positions which shall be subordinate to the chief, and which creates the following chain of command in descending order of authority:

Deputy chief, part-time.

Captains, on-call.

Lieutenants, career and on-call.

Sergeants, on-call.

Engineers/equipment operators, career and on-call.

Firefighters, on-call.

With the advice and assistance of the chief, the township board shall develop and approve job descriptions for each of these positions. The township board, with the advice of the fire chief, shall fill these positions.

Officers and firefighters shall be selected based on experience, training, and qualifications, and who would, at the township board's discretion, best perform the duties associated with providing fire protection to the citizens of the Charter Township of Texas.

Temporary officers may be appointed by the senior officer present at any emergency to ensure the continuity of the chain of command. Such temporary appointments shall terminate when the officer with the given responsibility becomes available.

Each command officer shall be responsible for seeing that subordinates carry out orders.
(Ord. No. 273, § 4, 6-14-2010)

Sec. 12-155. Fire department finances.

The township board shall approve an annual appropriation for the operation and maintenance of the department and its equipment, and for that purpose shall have the authority to use general funds, to initiate the creation of a special assessment district and levy assessments, to sell bonds, establish user fees, or raise revenues in any other manner provided for under law, including requesting millage funds on vote of the electorate for the operation and

maintenance of the department; it shall provide for payment of any debts incurred incidental to its continued operation; it shall purchase necessary equipment, and/or construct public buildings for uses incidental to the maintenance and operation of a fire department.
(Ord. No. 273, § 5, 6-14-2010)

Sec. 12-156. Fire department rules and regulations.

The township board shall establish rules and regulations for the operations of the department and the care of the equipment through adoption of general policies, and the fire chief shall prepare and enforce specific procedures consistent with such policies.
(Ord. No. 273, § 6, 6-14-2010)

Sec. 12-157. Chief duties.

The township board shall appoint a chief who shall be the chief administrative officer of the department. The chief shall be accountable to the township board for the efficient and effective operation of the department, and for the department's compliance with all state laws and administrative rules, township ordinances and policies. The chief shall serve at the pleasure of the board.

The chief shall develop written administrative rules to increase the efficiency and effectiveness of the department, including pre-planning and post-incident critiques, regulations, as well as assigning and scheduling of personnel, and shall submit to the township board plans for the long-range needs of the department.

The chief shall be familiar with state and federal laws that impact on fire department operations, and shall develop written rules and regulations, and issue orders consistent with, applicable federal and state laws and administrative rules. Noncompliance of applicable state and federal laws and regulations shall be promptly reported to the township supervisor.

The chief shall maintain a current copy of MIOSHA (Michigan Occupational Safety and Health Act) general industry safety standards in the department and shall develop written policies and procedures to ensure compliance. The chief shall promptly inform the township board of any procedure or equipment that is not in compliance with any MIOSHA General Industry Safety Standard and shall recommend board action(s) necessary or feasible to achieve compliance.

The chief shall review all personnel and operating problems that are not resolved at the department level with the township supervisor and shall report department activities monthly to the township board. A written report on department activities shall be filed annually with the township board.

As needed, the chief shall notify the township supervisor of major problems or issues that require board action. When such problems must be resolved immediately and it is impractical or will endanger the health, safety or welfare of the township to wait until the next board

meeting to resolve the issue, the township supervisor shall be empowered to resolve the issue or problem in consultation with the chief, subject to the subsequent report of the action to the township board.

The chief shall hold regular department informational and training meetings.

The chief may incur expenditures against the department budget as appropriated by the township board. The chief will monitor the unencumbered balances remaining in the department budget and shall make timely recommendations for budget amendments at such time as the need for such amendments becomes known. The department's expenditures shall not exceed the amounts appropriated. Capitol outlay purchases that exceed limits established by the township board shall conform to township policy regarding written quotes and competitive bidding.

The chief shall also be responsible for the following:

(1) Ensure the proper supervision of the extinguishment of all fires that endanger the health, safety and welfare of the Charter Township of Texas;

(2) Enforce township fire and safety ordinances;

(3) Ensure that all personnel are trained and qualified for the duties that they are expected to fulfill;

(4) Ensure that fire prevention programs are conducted;

(5) Ensure that qualified personnel conduct fire inspections and that the fire prevention code adopted by the township board is fairly and effectively enforced;

(6) Ensure that all department equipment and buildings are properly maintained and in good working order;

(7) Ensure that all department personnel comply with departmental and township board rules, regulations and policies.

(Ord. No. 273, § 7, 6-14-2010)

Sec. 12-158. Firefighters.

The number of firefighters allowed on the roster shall be set by the township board, based on recommendations of the chief and nationally-recognized standards of good practice.

Applicants for vacant firefighter positions shall be of good character (without felony conviction), possess a good driving record, and submit to a comprehensive background history investigation. Applicants shall be screened by a physician of the township board's choice and at township expense. The physician's examination shall determine if the applicant is physically fit and have the ability to perform assigned emergency operations in accordance with the essential job functions of the position description. The physician will identity pre-existing physical conditions that would preclude the applicant from performing the duties associated with firefighting and emergency operations.

All firefighters shall serve an initial training and observation (probationary) period for not less than six months, and not more than two years. At the discretion of the chief, with approval from the township board the training and observation period may be extended.

Probationary status shall continue, at a minimum, until the firefighter successfully completes the State of Michigan's Firefighter I examination (or, in the case of full-time firefighters, the Firefighter II examination), Medical First Responder licensure through the Michigan Department of Community Health, Hazardous Materials Operational Level training, and the appropriate level of National Incident Management System training.

At the conclusion of the minimum training and observation period, the chief may recommend that a probationary firefighter that has met all of the qualifications contained in the firefighter job description be given permanent firefighter status and sworn in by the township board. The chief shall also recommend to the township board the dismissal of any firefighter who does not or cannot meet the qualifications to be a firefighter and reasons for such recommendation.

A probationary firefighter shall be entitled to all compensation and benefits afforded to permanent firefighters, but shall be restricted to perform only those duties for which he/she has been specifically trained and qualified. A probationary firefighter shall not be issued department insignia or badges. Probationary firefighters shall not use emergency signal devices on their private vehicles. Probationary firefighters are not eligible for the township retirement fund program until appointed to permanent firefighter status.
(Ord. No. 273, § 8, 6-14-2010)

Sec. 12-159. Training.

The chief shall develop a regular schedule of in-house training classes, including an attendance requirement for all department personnel. The schedule shall specify the type, amount and frequency of training to be provided to fire service personnel necessary to assure that all employees are adequately trained to properly handle the inherent risks of fire fighting and other emergency incidents. The chief shall ensure that a record of each firefighter's participation and skill mastery is maintained. Employees shall be trained before they are permitted to perform emergency operations. The chief shall ensure that qualified individuals deliver in-house instruction.

The chief shall require that all firefighters have achieved and maintained all certifications required by state or federal law or rule to perform fire suppression, emergency medical services, or other services performed by the department.
(Ord. No. 273, § 9, 6-14-2010)

Sec. 12-160. Safety.

The chief shall be familiar with the provisions of federal and state laws and administrative rules related to employee safety and health regulations, and shall develop written procedures to ensure compliance.

The chief shall establish and implement written procedure for emergency operations in compliance with current Michigan Occupational Safety and Health Administration (MIOSHA) regulations. The written procedures shall include all of the following:

(1) Compliance with a nationally-recognized incident management system that will be implemented at each emergency; a trained employee shall function as the incident commander at each emergency;

(2) A personnel accountability system that will be implemented at each emergency with applicability to all employees who are operating at the emergency;

(3) Initial training and annual refresher training in emergency operations and the incident management system;

(4) Procedures that are in accordance with the applicable rules as found in the provisions of current MIOSHA standards relating to firefighting, respiratory protection, blood borne pathogen protection, hazardous materials response, and general occupational safety.

(Ord. No. 273, § 10, 6-14-2010)

Sec. 12-161. Disciplinary procedure.

The chief shall recommend to the township board policies and procedures for the good order and discipline of the department, and the township board shall adopt policies and procedures it sees fit for the proper operations of the department.

Violations of this article, other township board rules, department administrative regulations or procedures, or convictions of a felony shall subject any personnel involved to disciplinary proceedings. These proceedings shall follow the current adopted procedures of the township.

In addition to such administrative rules that may be promulgated by the chief, theft of property owned by the township, or theft of property committed while performing duties of a firefighter, or other actions that are violations of state or federal penal codes, shall be cause for dismissal.

(Ord. No. 273, § 11, 6-14-2010)

Sec. 12-162. Compensation.

Compensation to firefighters shall be compensated at such hourly rates as may be determined annually by the township board. The department shall keep accurate records that indicate the amount of compensable time served by all personnel. The time records shall be submitted monthly to the township board for payment, and all such time slips shall be signed by the officer or designated person in charge of the incident or event.

(Ord. No. 273, § 12, 6-14-2010)

Sec. 12-163. Public contact.

The chief, or his/her designee, may release facts regarding fires or other emergencies to the news media. The chief or his/her designee shall speak to the media on behalf of the department. All other personnel shall refer all media inquiries requiring a statement on behalf of the department to the chief or the designee.

Department personnel shall not, in connection with department activities or functions, make statements or writings that constitute libel or slander; which would impede a law enforcement investigation or compromise the presumption of innocence until proven guilty; or which would deny any person due process.
(Ord. No. 273, § 13, 6-14-2010)

Sec. 12-164. Emergency responses.

Employees of the township fire and rescue department shall not respond to or participate in any incident outside the jurisdiction unless a formal request has been initiated, and responses will be made in accordance with the adopted mutual and automatic aid agreements.

The chief shall establish written regulations regarding the use of emergency signal equipment on township-owned and personal vehicles.
(Ord. No. 273, § 14, 6-14-2010)

Sec. 12-165. Department equipment and vehicles.

The township board shall provide the necessary equipment, vehicles, and apparatus to conduct the services indicated in this article, based on recommendations from the chief and nationally-recognized standards.

The chief shall develop policies and procedures for use, operation, and maintenance of all department vehicles and equipment. Vehicles and equipment will only be utilized in the performance of official township or department business. Department equipment shall not be loaned or borrowed for private use.

The chief shall determine the appropriate level of personal protective equipment required, and set policies to ensure its use and care in accordance with state and federal regulations and nationally recognized standards.

Personal protective equipment shall be worn when engaged in firefighting, rescue, hazardous materials, and emergency medical incidents as indicated by the department policies and procedures. Protective equipment worn shall be township-issued, or approved by the fire chief for use at emergency incidents.

Department uniforms, badges, emblems and insignia are property of the township, and shall only be worn or utilized by sworn members of the department and on official department business.

Township property shall be disposed of only with the prior approval of the township board. All department-issued equipment shall be returned to the chief upon terminating employment with the department.
(Ord. No. 273, § 15, 6-14-2010)

Sec. 12-166. Department buildings and facilities.

The number of buildings, stations, and other support facilities shall be determined by the township board, based on recommendations of the chief and nationally recognized standards of good practice.

The chief shall ensure that all department buildings and facilities are properly maintained, and shall report to the township board any facility or building needs. The chief shall set policies and procedures for the use and care of department buildings and facilities.
(Ord. No. 273, § 16, 6-14-2010)

Sec. 12-167. Soliciting donations.

All fundraising activities shall have the prior approval of the township board, and all revenues solicited in the name of the fire department shall be deposited with the township treasurer. Such funds will be disbursed by treasurer, upon receiving a warrant signed by the clerk, following audit and approval by the township board.

Any fundraising activities on behalf of the fire department, yet not solicited in the name of the township or the fire department, shall be conducted by a tax-exempt organization that has been designated as a 501(c)(3) charity by the Internal Revenue Service.

The personnel of the fire department are authorized to incorporate a tax-exempt charitable organization that shall be known as "The Texas Township Firefighters Association." The purpose of the association shall be to provide for the social development of personnel and the betterment of fire protection in the township. The association shall be incorporated under the laws of the State of Michigan, with by-laws approved by the township board. The association may elect its own officers. Upon request, the association shall disclose its records, including any financial records, to the township board.
(Ord. No. 273, § 1, 6-14-2010)

Secs. 12-168—12-179. Reserved.

ARTICLE VII. FIREWORKS

Sec. 12-180. Purpose.

The purpose of this article is to provide for the regulation of the ignition, discharge, and use of consumer fireworks within the Charter Township of Texas, as permitted under the Michigan Fireworks Safety Act, Public Act 256 of 2011, as amended.
(Ord. No. 362, § 1, 8-23-2021)

Sec. 12-181. Definitions.

As used in this Article, the following definitions shall apply:

Act means Michigan Public Act 256 of 2011, being MCL 28.451, *et seq*., as it may be amended from time to time. (The Michigan Fireworks Safety Act.)

APA means American Pyrotechnics Association.

Consumer fireworks means fireworks devices that are designed to produce visible effects by combustion, that are required to comply with the construction, chemical composition, and labeling regulations promulgated by the United States Consumer Product Safety Commission under 16 CFR parts 1500 and 1507, and that are listed in APA standard 87-1, 3.1.2, 3.1.3, or 3.5 as defined in the Act. Consumer fireworks does not include low-impact fireworks.

Public property means any public park, school, street right-of-way (including the unimproved portions), township owned property, or any other property owned by local or state government that is open to the public.

Firework or *fireworks* means any composition or device, except for a starting pistol, a flare gun, or a flare, designed for the purpose of producing a visible or audible effect by combustion, deflagration, or detonation as defined in the act.

Low-impact fireworks means ground and handheld sparkling devices as that phrase is defined under APA standard 87-1, 3.1.1.1 to 3.1.1.8, and 3.5.

Minor means an individual who is less than 18 years of age.

Person means an individual, agent, association, charitable organization, company, limited liability company, corporation, labor organization, legal representative, partnership, unincorporated organization, or any other legal or commercial entity.

Property of another person includes hotel and motel property, apartment property, and condominium property, where an owner, management company, or association has or retains authority and control over the use of the property or common areas.
(Ord. No. 362, § 1, 8-23-2021)

Sec. 12-182. Permitted days of use.

No person shall ignite, discharge, or use consumer fireworks within the township, except on the following days, after 11:00 a.m. as described in the act:

(1) December 31 until 1:00 a.m. on January 1.

(2) The Saturday and Sunday immediately preceding Memorial Day until 11:45 p.m. on each of those days.

(3) June 29 to July 4 until 11:45 p.m. on each of those days.

(4) July 5, if that date is a Friday or Saturday, until 11:45 p.m.

(5) The Saturday and Sunday immediately preceding Labor Day until 11:45 p.m. on each of those days.

(Ord. No. 362, § 1, 8-23-2021)

Sec. 12-183. Prohibited uses of fireworks.

(a) A person shall not ignite, discharge, or use consumer fireworks on public property as defined herein or the property of another person without that person's express permission.

(b) No person shall recklessly endanger the life, health, safety, or well-being of any person by the ignition, discharge, or use of consumer fireworks.

(c) A minor shall not possess consumer fireworks. Age verification shall be made by checking a driver's license or another form of acceptable identification, permitted by the act.

(d) Consumer and low-impact fireworks shall not be ignited, discharged, or used by a person while under the influence of alcoholic liquor or a controlled substance or a combination of both as those terms are defined by the act.

(Ord. No. 362, § 1, 8-23-2021)

Sec. 12-184. Penalties.

(a) Any person that violates any provision of this article shall be deemed responsible for a municipal civil infraction and fined $1,000.00 for each violation with $500.00 of the fine being paid to local law enforcement responsible for enforcing the article.

(b) The township shall have the right to proceed in any court of competent jurisdiction for the purpose of obtaining an injunction, restraining order, or other appropriate remedy to compel compliance with this article. Each day that a violation of this article continues to exist shall constitute a separate violation.

(c) All fireworks possessed, used, discharged and/or ignited in violation of this article are subject to seizure. A person who is found responsible for violation of this article shall be required to reimburse the costs of storing, disposing of, or destroying consumer fireworks that were confiscated for a violation of this article.

(d) No provision of this article shall prevent a prosecution or a civil infraction under state law for violation of the provisions of the act.

(Ord. No. 362, § 1, 8-23-2021)

Sec. 12-185—190. Reserved.

Chapter 13

RESERVED

Chapter 14

KALAMAZOO VALLEY COMMUNITY COLLEGE

Article I. In General

Secs. 14-1—14-30. Reserved.

Article II. Protection of Property

Sec. 14-31. Definitions
Sec. 14-32. Rules of construction.
Sec. 14-33. Civil remedies.
Sec. 14-34. Protection of property.
Sec. 14-35. Disorderly persons.
Sec. 14-36. Unauthorized persons.
Sec. 14-37. Littering.
Sec. 14-38. Display, distribution or posting of advertising materials.
Sec. 14-39. Solicitation or sale of goods or services.
Sec. 14-40. Unauthorized use of alcoholic liquor.
Sec. 14-41. Unauthorized use of controlled substances.
Sec. 14-42. Disruptions.
Sec. 14-43. Firearms.
Sec. 14-44. Enforcement of article.
Sec. 14-45. Sanctions.
Sec. 14-46. Termination.
Secs. 14-47—14-70. Reserved.

Article III. Traffic

Sec. 14-71. Adoption of state law.
Sec. 14-72. Application of article.
Sec. 14-73. Definitions.
Sec. 14-74. Traffic engineer; appointment; duties.
Sec. 14-75. Enforcement.
Sec. 14-76. Authority for adoption of article.

ARTICLE I. IN GENERAL

Secs. 14-1—14-30. Reserved.

ARTICLE II. PROTECTION OF PROPERTY

Sec. 14-31. Definitions

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

College means the Kalamazoo Valley Community College, to the extent that such college, its property, or its activities are within the corporate boundaries of the township.

Undefined words and phrases. Whenever any word or phrase is used which is not defined in this article but is defined by the criminal statues of the state, such definition shall be deemed to apply to such word or phrase.
(Comp. Ords. as Rev. 12-1999, § 20.021)

Cross reference—Definitions generally, § 1-2.

Sec. 14-32. Rules of construction.

The rule that a penal ordinance is to be strictly construed shall not apply to this article or any of the provisions of this article. All provisions of this article shall be construed according to the fair import of their terms, to promote justice, and to effect the object of the law.
(Comp. Ords. as Rev. 12-1999, § 20.022)

Sec. 14-33. Civil remedies.

The provisions of this article shall not in any way limit any civil remedy.
(Comp. Ords. as Rev. 12-1999, § 20.023)

Sec. 14-34. Protection of property.

No person shall willfully or maliciously damage, injure, destroy or deface any building, portion of a building, playground equipment, trees, landscaping, fencing or any other property owned or used by the college or by any person who is lawfully upon the property of such college.
(Comp. Ords. as Rev. 12-1999, § 20.031)

State law reference—Malicious and willful mischief and destruction, MCL 750.377 et seq.

Sec. 14-35. Disorderly persons.

No person shall while upon college property conduct himself in an offensive, insulting or derisive manner, speak, utter, or publish any offensive, insulting or derisive language or gesture which conduct, language, or gesture has a natural tendency to incite others to violence, provoke a fight or provoke assaults.
(Comp. Ords. as Rev. 12-1999, § 20.032)

State law reference—Disorderly persons generally, MCL 750.167.

Sec. 14-36. Unauthorized persons.

No person shall willfully enter upon college property after having been forbidden to do so by the authorized representatives of the college, or remain on such property upon being notified by such authorized representative to depart therefrom.
(Comp. Ords. as Rev. 12-1999, § 20.033)

State law reference—Similar provisions, MCL 750.552.

Sec. 14-37. Littering.

No person shall, without the consent of an authorized representative of the college, dump, deposit, place, throw or leave, or cause or permit the dumping, depositing, placing, throwing or leaving of, litter on college property, except in designated places authorized for such purposes. The term "litter," as used in this section, means all rubbish, refuse, waste material, garbage, offal, paper, glass, cans, bottles, trash, debris or other foreign substances of every kind and description.
(Comp. Ords. as Rev. 12-1999, § 20.034)

Cross reference—Solid waste, ch. 26.

State law reference—Littering, MCL 324.8901 et seq.

Sec. 14-38. Display, distribution or posting of advertising materials.

No person shall, without the written consent of an authorized representative of the college, display, distribute, or post advertising materials on college property.
(Comp. Ords. as Rev. 12-1999, § 20.035)

Sec. 14-39. Solicitation or sale of goods or services.

No person shall, without the written consent of an authorized representative of the college, solicit or sell goods or services on college property.
(Comp. Ords. as Rev. 12-1999, § 20.036)

Sec. 14-40. Unauthorized use of alcoholic liquor.

No person shall, without the written consent of art authorized representative of the college, sell, buy, deliver, store, drink, or in any other way use on college property any alcoholic liquor.
(Comp. Ords. as Rev. 12-1999, § 20.037)

State law reference—Michigan liquor control code of 1998, MCL 436.1101 et seq.

Sec. 14-41. Unauthorized use of controlled substances.

No person shall, without the written consent of an authorized representative of the college, manufacture, deliver, possess, or use on college property a controlled substance.
(Comp. Ords. as Rev. 12-1999, § 20.038)

State law reference—Controlled substances, MCL 333.7101 et seq.

Sec. 14-42. Disruptions.

No person shall disrupt any activity of the college by:

(1) Knowingly giving any false alarm as to the existence of a fire, explosive or incendiary device, poisonous substance or other threat to the safety of any person on college property;

(2) Obstructing the free and uninterrupted passage of other persons lawfully on the college property; or

(3) Interfering with the conduct of any class, meeting or other activity in violation of the lawful instructions and directions of the authorized person in charge of such activity.

(Comp. Ords. as Rev. 12-1999, § 20.039)

State law references—Disturbing public places, MCL 750.170; false fire alarms, MCL 750.240.

Sec. 14-43. Firearms.

No unlawful firearms shall be permitted on college property.

(Comp. Ords. as Rev. 12-1999, § 20.040; Ord. No. 272, § 1, 3-22-2010)

State law references—Firearms, MCL 28.421 et seq.; firearms and weapons, MCL 750.222 et seq.

Sec. 14-44. Enforcement of article.

This article shall be enforced in the same manner as other ordinances adopted by the township as well as by any college officer, agent or employee nominated by the board of trustees of the community college and approved by the township. The violation of this article may be prosecuted by the legal counsel for the college, which counsel shall be designated a deputy township counsel for the limited purpose of conducting any such prosecutions.

(Comp. Ords. as Rev. 12-1999, § 20.051)

Sec. 14-45. Sanctions.

Any person, firm, association, partnership, corporation or governmental entity who violates any of the provisions of this article shall be deemed to be responsible for a municipal civil infraction as defined by state statute which shall be punishable by a civil fine determined in accordance with the schedule in subsection 18-62(a).

(Comp. Ords. as Rev. 12-1999, § 20.055)

Sec. 14-46. Termination.

This article has been enacted pursuant to the written request of the Kalamazoo Valley Community College and shall be terminated upon the written request of the college, unless sooner repealed by the township.

(Comp. Ords. as Rev. 12-1999, § 20.061)

Secs. 14-47—14-70. Reserved.

ARTICLE III. TRAFFIC*

Sec. 14-71. Adoption of state law.

The Uniform Traffic Code for cities, townships, and villages, published in July 1976, as amended by the emergency rules promulgated by the department of state police and filed with the secretary of state for the state on July 27, 1979, in accordance with Public Act No. 62 of 1956 (MCL 257.951), is hereby adopted in full by reference except as modified by this article.
(Comp. Ords. as Rev. 12-1999, § 20.212)

Sec. 14-72. Application of article.

This article shall apply only to the college campus.
(Comp. Ords. as Rev. 12-1999, § 20.213)

Sec. 14-73. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning. Except as otherwise provided in this article, wherever the Uniform Traffic Code identified in section 14-71 makes reference to "governmental unit" it means the township.

Campus means that geographical area situated within the township which is under the control of the board of trustees of the college.

College means the Kalamazoo Valley Community College, a municipal corporation organized under the laws of the state with its principal educational facilities located in the township.
(Comp. Ords. as Rev. 12-1999, § 20.221)

Cross reference—Definitions generally, § 1-2.

Sec. 14-74. Traffic engineer; appointment; duties.

(a) The college board of trustees shall advise the clerk in writing of the name of an employee of the college to be appointed as the traffic engineer. The traffic engineer shall:

(1) Develop ways and means to improve traffic conditions and in general to provide for the implementation of this article on the campus.

(2) Issue to any employees of the college authorized to enforce the ordinance books of traffic citations and other forms necessary for the enforcement of this article. The traffic engineer shall maintain a record of every such book. A copy of such record shall be furnished to the township clerk upon request.

***Cross reference—**Traffic and motor vehicles, ch. 30.

(3) Determine the lawful speed and the location of traffic control devices and signals. The establishment, determination or designation of limitations on vehicular or pedestrian traffic shall not be effective, until:

a. A traffic control order specifying the rules and regulations adopted by the traffic engineer shall have been filed with the secretary of the board of trustees, the township clerk and the county clerk. Such traffic control order shall clearly designate the traffic regulation and shall describe the location of each traffic control signal; and

b. The traffic engineer shall cause to be erected at the expense of the college such traffic control devices or signals as shall be designated in the traffic control order and as shall be reasonably necessary to advise drivers and pedestrians of the regulations.

(b) Traffic control orders made under any prior ordinance shall have the same force and effect as if issued under this article and shall remain in effect until modified or revoked.
(Comp. Ords. as Rev. 12-1999, § 20.222)

Sec. 14-75. Enforcement.

Violations of this article may be prosecuted by the legal counsel for the college, which counsel shall be designated a deputy township counsel for the limited purpose of conducting any such prosecutions.
(Comp. Ords. as Rev. 12-1999, § 20.223)

Sec. 14-76. Authority for adoption of article.

This article is adopted pursuant to the resolution of the college board of trustees requesting the adoption of this article under the provisions of Public Act No. 175 of 1958 (MCL 257.961), and shall continue in full force and effect until such board of trustees shall request its modification or termination. The township shall be reimbursed for any costs incurred in excess of any monies recovered by the township in the enforcement of this article or be reimbursed in kind for any services required, as may be appropriate.
(Comp. Ords. as Rev. 12-1999, § 20.231)

Chapter 15

RESERVED

Chapter 16

LAND DIVISIONS AND SUBDIVISION CONTROL*

Sec. 16-1. Purpose.
Sec. 16-2. Definitions.
Sec. 16-3. Application for land division/combination/transfer approval.
Sec. 16-4. Procedure for review of applications.
Sec. 16-5. Standards for approval of land divisions, combinations, and property transfers.
Sec. 16-6. Parcel less than one acre.
Sec. 16-7. Consequences of noncompliance with land division or combination approval requirements.
Sec. 16-8. Provisions regarding two or more contiguous parcels or lots.

***Editor's note—**Ord. No. 377, § 2, adopted Jan. 13, 2024, amended Ch. 16 in its entirety, in effect repealing and reenacting said Ch. 16 to read as set out herein. The former Ch. 16, §§ 16-31—16-39, 16-61—16-64, and 16-81—16-88, pertained to similar subject matter and derived from Ord. No. 351, § 1, 12-9-2019; Comp. Ords. as Rev. 12-1999, §§ 17.112, 17.113, 17.121—17.128, 17.151, 17.161; Ord. No. 218, § I, adopted Jan. 13, 2003; Ord. No. 245, §§ I1.—I3., adopted Jan. 9, 2006.

Cross references—Any ordinance dedicating, accepting or vacating any plat or subdivision saved from repeal, § 1-11(a)(13); buildings and building regulations, ch. 6; community development, ch. 8; environment, ch. 10; outdoor assemblies, ch. 22; utilities, ch. 32; waterways, ch. 34; zoning, ch. 36.

State law references—Land division act, MCL 560.101 et seq.; condominium act, MCL 559.101 et seq.

Sec. 16-1. Purpose.

The purpose of this article is to carry out provisions of the state land division act, Public Act No. 288 of 1967 (MCL 560.101 et seq.), parts of which were formerly known as the subdivision control act, to prevent the creation of parcels of property which do not comply with applicable ordinances and such Act, to minimize potential boundary disputes, to maintain orderly development of the community, and otherwise provide for the health, safety and welfare of the residents and property owners of the municipality by establishing reasonable standards for prior review and approval of land divisions and combinations within the township.
(Ord. No. 377, § 2, 1-13-2024)

Sec. 16-2. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning. Except as otherwise defined in this section, words, terms, and phrases used in this article shall have the meanings set forth in the Act.

Act means the state land division act, Public Act No. 288 of 1967 (MCL 560.101 et seq.).

Applicant means a natural person, firm, association, partnership, corporation, or combination of any of them that holds an ownership interest in land whether recorded or not.

Combination or *combined* means:

(1) A property transfer between two or more adjacent parcels, if the property taken from one parcel is added to an adjacent parcel: or

(2) The consolidation of one or more adjacent parcels under a single tax identification number, including platted lots regardless of whether the plat has been amended.

Divide and *division* mean the partitioning or splitting of a parcel or tract of land by the proprietor thereof or by his heirs, executors, administrators, legal representatives, successors or assigns for the purpose of sale or lease of more than one year, or of building development that results in one or more parcels of less than 40 acres or the equivalent, and that satisfies the requirements of sections 108 and 109 of the Act (MCL 560.108, 560.109). The terms "divide" and "division" do not include a property transfer between two or more adjacent parcels, if the property taken from one parcel is added to an adjacent parcel; and any resulting parcel shall not be considered a building site unless the parcel conforms to the requirements of the Act, and the requirements of applicable local ordinances.

Exempt split and *exempt division* mean the partitioning or splitting of a parcel or tract of land by the proprietor thereof or by his heirs, executors, administrators, legal representatives, successors or assigns that does not result in one or more parcels of less than 40 acres or the equivalent.

Forty acres or the equivalent means either 40 acres, a quarter-quarter section containing not less than 30 acres, or a government lot containing not less than 30 acres.

Property transfer means a property line adjustment where property is transferred between two or more adjacent parcels.
(Ord. No. 377, § 2, 1-13-2024)

Sec. 16-3. Application for land division/combination/transfer approval.

An applicant shall file all of the following with the official designated by the township board for review and approval of a proposed land division, combination, or property transfer before making such either by deed, land contract, lease for more than one year, or for building development:

(1) A completed application form provided by the township.

(2) Proof of fee ownership of the land involved in the application.

(3) An adequate and accurate legal description of each resulting parcel and a tentative parcel map drawn to scale showing the approximate dimensions of the parcel(s), the area of each, parcel lines, public utility easements, accessibility, and all other requirements of the Act.

(4) Proof that all standards of the Act and this article have been met.

(5) If a transfer of division rights is proposed, detailed information about the terms and availability of the proposed division rights transfer.

(6) The fee as may from time to time be established by resolution of the township board for land division or combination reviews pursuant to this article to cover the costs of review of the application and administration of this article and the Act.

(7) A deed must be filed before a land split or combination becomes final. The recorded deed must be received within 90 days of the approval letter, or the approved application becomes invalid.
(Ord. No. 377, § 2, 1-13-2024)

Sec. 16-4. Procedure for review of applications.

(a) The township shall approve or disapprove the request within 45 days after receipt of a complete application conforming to the requirements of this article and the Act, and shall promptly notify the applicant of the decision, and if denied, the reasons for denial.

(b) Any applicant aggrieved by the decision of the township may, within 30 days of the decision, appeal the decision to the township board, which shall consider and decide such appeal by majority vote of the board at its next regular meeting or a meeting affording sufficient time for a 20-day written notice to the applicant of the time and date of such meeting and hearing.

(c) The township assessor or designee shall maintain an official record of all approved and accomplished land divisions, combinations, or transfers.

(d) Approval is not a determination that the resulting parcel(s) comply with other ordinances or regulations.
(Ord. No. 377, § 2, 1-13-2024)

Sec. 16-5. Standards for approval of land divisions, combinations, and property transfers.

(a) A proposed land division, combination, or property transfer that the township is required to review shall be approved if the following criteria are met:

(1) Each parcel created has a width that is not less than that required by the applicable provisions of the township zoning ordinance.

(2) Each parcel created has an area that is not less than that required by the applicable provisions of the township zoning ordinance.

(3) The ratio of depth to width of each parcel created does not exceed four to one. A greater depth to width ratio than that required by this subsection may be permitted through application and approval of the zoning board of appeals, if:

a. The resulting parcel(s) exhibit exceptional topographic or physical conditions such as wetlands, woodlands and/or steep slopes;

b. A greater ratio is consistent with the land development pattern of the surrounding area; or

c. Failure to allow a greater depth to width ratio would result in practical difficulty or unnecessary hardship.

The depth to width ratio requirements of this subsection shall also apply to parcels larger than ten acres but shall not apply to the remainder of the parent parcel or parent tract retained by the proprietor.

(4) The proposed land divisions, combinations, or property transfers comply with all requirements of this article and the Act, including, but not limited to the requirements that each resulting parcel is accessible from a public road. For access from a new public road, such public road shall first be reviewed and approved by the planning commission under site plan review. Each resulting parcel that is a development site shall have adequate easements for public utilities from the parcel to existing public utility facilities.

(5) Each resulting parcel shall be buildable and shall meet the requirements of the township's zoning ordinance including, but not limited to, the requirements of the zoning district in which the parcel is located and any applicable access management requirements.
(Ord. No. 377, § 2, 1-13-2024)

Sec. 16-6. Parcel less than one acre.

(a) If a parcel resulting from a division, combination, lot line adjustment, or property transfer is less than one acre in size, a building permit shall not be issued for the parcel unless the parcel has all of the following:

(1) Public water or health department approval for the suitability of an on-site water supply under the same standards that apply to lots in plats.

(2) Public sanitary sewer or health department approval for on-site sewage disposal under the health department standards that apply to lots in plats.

(b) A notice of approval of a proposed division, combination, or property transfer resulting in a parcel less than one acre in size shall include a statement that the township and its officers and employees are not liable if a building permit is not issued for such a parcel for the reasons set forth in this section.
(Ord. No. 377, § 2, 1-13-2024)

Sec. 16-7. Consequences of noncompliance with land division or combination approval requirements.

(a) Any division, combination, lot line adjustment, or property transfer of land in violation of any provision of this article shall not be recognized on the township tax roll or assessment roll until the assessing officer refers the suspected violation or potential nonconformity to the county prosecuting attorney and gives written notice to the person requesting the division, combination, or property transfer and the person suspected of the violation or potential nonconformity of such referral to the prosecuting attorney. The township shall also have the authority to initiate actions for injunctive or other relief to prevent any violation or continuation of any violation of this article.

(b) Any division, combination, lot line adjustment, or property transfer of land in violation of this article shall not be eligible for any zoning or building permit for any construction or improvement thereto. In addition, any person, firm, or corporation who violates any of the provisions of this article shall be deemed to be responsible for a municipal civil infraction as defined by state statute, which shall be punishable by a civil fine determined in accordance with the following schedule:

First offense	$325.00
Second or greater offense within a three-year period*	500.00

*Determined on the basis of the dates of the offenses.

Along with costs which may include all expenses, direct and indirect, to which the township has been put in connection with the municipal civil infraction. In no case, however, shall costs of less than $9.00 nor more than $500.00 be ordered.

(c) A violator of this article shall also be subject to such additional sanctions and judicial orders as are authorized under state law. Pursuant to section 267 of the Act (MCL 560.267), any sale of lands partitioned or split in violation of the Act shall be voidable at the option of

the purchaser and shall subject the seller to the forfeiture of all consideration received or pledged therefore, together with any damages sustained by the purchaser, all as provided for in the Act.
(Ord. No. 377, § 2, 1-13-2024)

Sec. 16-8. Provisions regarding two or more contiguous parcels or lots.

Two or more contiguous parcels or lots, or parts of parcels or lots, that have been combined shall not be divided or split, nor shall such combination be otherwise reversed or vacated, unless the resulting lots or parcels comply with all lot width, area, and road frontage requirements for the zoning district in which they are located, and shall not be considered a building site unless they conform to the requirements of all applicable federal, state, and local statutes, ordinances, rules, and regulations.
(Ord. No. 377, § 2, 1-13-2024)

Chapter 17

RESERVED

Chapter 18

LAW ENFORCEMENT*

Article I. In General

Secs. 18-1—18-30. Reserved.

Article II. Ordinance Enforcement Officer

Sec. 18-31. Office established.
Sec. 18-32. Appointment.
Sec. 18-33. Enforcement generally.
Sec. 18-34. Authorized ordinance enforcement duties.
Sec. 18-35. Authority.
Secs. 18-36—18-60. Reserved.

Article III. Municipal Ordinance Violations Bureau

Sec. 18-61. Establishment.
Sec. 18-62. Civil fines.
Sec. 18-63. Ordinance violation notice requirements and admission of responsibility.
Sec. 18-64. Denial of responsibility.
Sec. 18-65. Accounting of civil fines.
Sec. 18-66. Availability of other enforcement remedies.

***Cross references—**Administration, ch. 2; offenses, ch. 20; traffic and motor vehicles, ch. 30.

State law references—Law enforcement officers training council act, MCL 28.601 et seq.; minimum employment standards, MCL 28.609.

ARTICLE I. IN GENERAL

Secs. 18-1—18-30. Reserved.

ARTICLE II. ORDINANCE ENFORCEMENT OFFICER*

Sec. 18-31. Office established.

There is hereby established the office of ordinance enforcement officer within the township.
(Comp. Ords. as Rev. 12-1999, § 12.101)

Sec. 18-32. Appointment.

The township board is hereby authorized by resolution, at any regular meeting of the board, to appoint any person to the office of ordinance enforcement officer for such term as may be designated in such resolution. The township board may further, by resolution, remove any person from such office, in the discretion of the board.
(Comp. Ords. as Rev. 12-1999, § 12.102)

Sec. 18-33. Enforcement generally.

The ordinance enforcement officer is hereby authorized to enforce all ordinances of the township, whether heretofore or hereafter enacted, and whether such ordinances specifically designate a different official to enforce the ordinances or do not designate any particular enforcing officer. Where a particular officer is so designated in any such ordinance, the authority of the ordinance enforcement officer to enforce the ordinance shall be in addition and supplementary to the authority granted to such other specific officer. The authority of such ordinance enforcement officer shall also be in addition and supplementary to the authority vested in the township supervisor by state statute. The ordinance enforcing authority of the township supervisor and the other officers specifically designated in any township ordinance shall continue in full force and effect and shall in no way be diminished or impaired by the terms of this article.
(Comp. Ords. as Rev. 12-1999, § 12.103)

Sec. 18-34. Authorized ordinance enforcement duties.

The ordinance enforcement duties authorized in this article shall include, among others, the following:

(1) Investigation of ordinance violations; issuing and serving appearance tickets as authorized under Public Act No. 147 of 1968 (MCL 464.9c);

(2) Issuing and serving municipal civil infraction citations and municipal ordinance violation notices as authorized under Public Act No. 12 of 1994 (MCL 600.8701 et seq.), as it may be amended from time to time;

***Cross reference—**Officers and employees, § 2-61 et seq.

(3) Appearance in court or other judicial or quasi-judicial proceedings to assist in the prosecution of ordinance violators; and

(4) Such other ordinance enforcing duties as may be delegated by the township supervisor or assigned by the township attorney.

(Comp. Ords. as Rev. 12-1999, § 12.104)

Sec. 18-35. Authority.

The ordinance enforcement officer is hereby declared to be a police officer and peace officer under the authority of Public Act No. 246 of 1945 (MCL 41.181 et seq.) and Public Act No. 81 of 1989 (MCL 41.801 et seq.).

(Comp. Ords. as Rev. 12-1999, § 12.105)

Secs. 18-36—18-60. Reserved.

ARTICLE III. MUNICIPAL ORDINANCE VIOLATIONS BUREAU

Sec. 18-61. Establishment.

The township hereby establishes a municipal ordinance violations bureau pursuant to Public Act No. 12 of 1994 (MCL 600.8396), as it may be amended from time to time, to accept admissions of responsibility for municipal civil infractions for which municipal ordinance violation notices have been issued and served by authorized officials, and to collect and retain civil fines for such admissions as prescribed in this article.

(Comp. Ords. as Rev. 12-1999, § 12.302)

Sec. 18-62. Civil fines.

(a) Unless a different schedule of civil fines is provided for by any ordinance, the following schedule of civil fines payable to the municipal ordinance violations bureau for admissions of responsibility by persons served with municipal ordinance violation notices shall apply:

	Minimum Fine	*Maximum Fine*
First offense within three-year period*	$ 75.00	$500.00
Second offense within three-year period*	150.00	500.00
Third offense within three-year period*	325.00	500.00
Fourth or more offense within three-year period*	500.00	500.00

*Determined on the basis of the date of commission of the offense(s).

(b) Additionally, the violator shall pay costs which may include all expenses, direct and indirect, to which the township has been put in connection with the municipal civil infraction. In no case, however, shall costs of less that $9.00 nor more than $500.00 be ordered. In addition, the township shall have the right to proceed in any court of competent jurisdiction for

the purpose of obtaining an injunction, restraining order, or other appropriate remedy to compel compliance with this Code. Each day that a violation of this Code continues to exist shall constitute a separate violation of this Code.
(Comp. Ords. as Rev. 12-1999, § 12.303)

Sec. 18-63. Ordinance violation notice requirements and admission of responsibility.

Any person receiving any municipal ordinance violation notice shall be advised on the notice as to all matters required by law including, at a minimum, the offense, the time within which the person must contact the municipal ordinance violations bureau for purposes of admitting or denying responsibility, and the consequences for failure to pay the required fine or to contact the municipal ordinance violations bureau within the required time. Such person may admit responsibility for such violation before the clerk of the municipal ordinance violations bureau or other designated township employee within the bureau. Upon accepting such admission of responsibility, the clerk or other designated employee shall collect from the person the civil fine for such violation as provided in this article. The clerk of the municipal ordinance violations bureau shall be a township employee and shall be appointed to such position by resolution of the township board.
(Comp. Ords. as Rev. 12-1999, § 12.304)

Sec. 18-64. Denial of responsibility.

With respect to any person who fails to admit responsibility and pay the required civil fine within the designated time period, the clerk or other designated township employee within the municipal ordinance violations bureau shall advise the complainant to issue and file a municipal civil infraction violation citation for such violation with the court for the Eighth Judicial District of the state or such other court having jurisdiction of the matter. The citation filed with the court need not comply in all particulars with the requirements for citations as provided by sections 8705 and 8709 of Public Act No. 12 of 1994 (MCL 600.8705, 600.8709), but shall consist of a sworn complaint containing the allegations stated in the municipal ordinance violation notice and shall fairly inform the alleged violator how to respond to the citation. A copy of the citation may be served by first class mail upon the alleged violator at the alleged violator's last known address. The violation shall thereafter be processed as a municipal civil infraction as provided by law.
(Comp. Ords. as Rev. 12-1999, § 12.305)

Sec. 18-65. Accounting of civil fines.

The municipal ordinance violations bureau clerk or other designated employee shall retain all municipal ordinance violation notices, shall account to the township board once a month concerning the number of admissions and denials of responsibility made concerning municipal civil infractions and the amount of fines collected. The amounts collected in civil fines shall be turned over to the township treasurer to be placed in the general fund of the township.
(Comp. Ords. as Rev. 12-1999, § 12.306)

Sec. 18-66. Availability of other enforcement remedies.

Nothing in this article shall be deemed to obligate the township to initiate its ordinance enforcement activity through the issuance of a municipal ordinance violation notice. The township shall have the right to directly proceed with the issuance of a municipal civil infraction citation for any municipal civil infraction or to take such other enforcement action as is authorized by law.
(Comp. Ords. as Rev. 12-1999, § 12.307)

Chapter 19

LICENSES AND BUSINESS REGULATIONS

Article I. In General

Secs. 19-1—19-30. Reserved.

Article II. Marihuana Establishments

Sec. 19-31. Prohibition on marihuana establishments.

ARTICLE I. IN GENERAL

Secs. 19-1—19-30. Reserved.

ARTICLE II. MARIHUANA ESTABLISHMENTS

Sec. 19-31. Prohibition on marihuana establishments.

(a) Pursuant to Section 6 of the 2018 Marihuana Act, the township prohibits marihuana establishments within its boundaries.

(b) Nothing in this section shall be construed to prohibit activities that are permitted under the Michigan Medical Marihuana Act, Initiated Law 1 of 2008, MCL 333.26421 et seq. (Ord. No. 340, §§ 2, 3, 1-14-2019)

Chapter 20

OFFENSES*

(RESERVED)

***Cross reference—**Law enforcement, ch. 18.
State law reference—Penal code, MCL 750.1 et seq.

Chapter 21

RESERVED

Chapter 22

OUTDOOR ASSEMBLIES*

Sec. 22-1. Purpose.
Sec. 22-2. Authority.
Sec. 22-3. Definitions.
Sec. 22-4. License required.
Sec. 22-5. Application for license; fee.
Sec. 22-6. Application information.
Sec. 22-7. Application review and investigation.
Sec. 22-8. Time limit for acting on application.
Sec. 22-9. Denial of license.
Sec. 22-10. License information; posting.
Sec. 22-11. Minimum requirements.
Sec. 22-12. Revocation of license.
Sec. 22-13. Violations.

***Cross references—**Environment, ch. 10; land divisions and subdivision control, ch. 16; parks and recreation, ch. 24.

Sec. 22-1. Purpose.

The purpose of this chapter is to require the regulation, licensing and control of assemblages of large numbers of people in excess of those normally drawing upon the health, sanitation, fire, police, transportation, utility and other public services regularly provided in the township.
(Comp. Ords. as Rev. 12-1999, § 20.302)

Sec. 22-2. Authority.

This chapter is enacted pursuant to the authority of Public Act No. 246 of 1945 (MCL 41.181 et seq.), which authorizes the township board to adopt ordinances to secure the public health, safety and general welfare.
(Comp. Ords. as Rev. 12-1999, § 20.303)

Sec. 22-3. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Attendant means any person who obtains admission to an outdoor assembly by the payment of money or by the rendering of services in lieu of the payment of money for admission.

Licensee means any person to whom a license is issued pursuant to this chapter.

Outdoor assembly and *assembly* mean any event, attended by more than 2,000 attendants, all or any part of which includes a theatrical exhibition, public show, display, entertainment, amusement or other exhibition, including but not limited to musical festivals, rock festivals, peace festivals or similar gatherings, but does not mean the following:

(1) An event which is conducted or sponsored by a governmental unit or agency on publicly owned land or property;

(2) An event which is conducted or sponsored by any entity qualifying for tax exempt status under section 501(c)(3) of the Internal Revenue Code of 1954, being 26 USC 501(c)(3) as incorporated by reference in section 201 of the Michigan Income Tax Act of 1967, Public Act No. 281 of 1967 (MCL 206.201); or

(3) An event held entirely within the confines of a permanently enclosed and covered structure.

Sponsor means any person who organizes, promotes, conducts or causes to be conducted an outdoor assembly.
(Comp. Ords. as Rev. 12-1999, § 20.304)

Cross reference—Definitions generally, § 1-2.

Sec. 22-4. License required.

A person shall not sponsor, operate, maintain, conduct or promote an outdoor assembly in the township unless he shall have first made application for, and obtained, as prescribed in this chapter, a license for each such assembly.
(Comp. Ords. as Rev. 12-1999, § 20.305)

Sec. 22-5. Application for license; fee.

Application for a license to conduct an outdoor assembly must be made in writing on such forms and in such manner as prescribed by the township clerk and shall be made at least 60 days prior to the date of the proposed assembly. Each application shall be accompanied by a nonrefundable fee of $100.00 and shall include at least the following:

(1) The name, age, residence and mailing address of the person making the application. Where the person making the application is a partnership, corporation or other association, this information shall be provided for all partners, officers and directors, or members. Where the person is a corporation, a copy of the articles of incorporation shall be filed, and the names and addresses shall be provided of all shareholders having financial interest greater than $500.00.

(2) A statement of the kind, character, and type of proposed assembly.

(3) The address, legal description and proof of ownership of the site at which the proposed assembly is to be conducted. Where ownership is not vested in the prospective licensee, he shall submit an affidavit from the owner indicating his consent to the use of the site for the proposed assembly.

(4) The dates and hours during which the proposed assembly is to be conducted.

(5) An estimate of the maximum number of attendants expected at the assembly for each day it is conducted and a detailed explanation of the evidence of admission which will be used and of the sequential numbering or other method which will be used for accounting purposes.

(Comp. Ords. as Rev. 12-1999, § 20.306)

Sec. 22-6. Application information.

(a) Each application shall be accompanied by a detailed explanation, including drawings and diagrams where applicable, of the prospective licensee's plans to provide for the following:

(1) Police and fire protection.

(2) Food and water supply and facilities.

(3) Health and sanitation facilities.

(4) Medical facilities and services including emergency vehicles and equipment.

(5) Vehicle access and parking facilities.

(6) Camping and trailer facilities.

(7) Illumination facilities.

(8) Communications facilities.

(9) Noise control and abatement.

(10) Facilities for cleanup and waste disposal.

(11) Insurance and bonding arrangements.

(b) In addition, the application shall be accompanied by a map of the overall site of the proposed assembly.
(Comp. Ords. as Rev. 12-1999, § 20.307)

Sec. 22-7. Application review and investigation.

On receipt by the clerk, copies of the application shall be forwarded to the chief law enforcement and health officers for the township and the state fire marshal, and to such other appropriate public officials as the clerk deems necessary. Such officers and officials shall review and investigate matters relevant to the application and within 20 days of receipt thereof shall report their findings and recommendations to the township board.
(Comp. Ords. as Rev. 12-1999, § 20.308)

Sec. 22-8. Time limit for acting on application.

Within 30 days of filing of the application, the township board shall issue, set conditions prerequisite to the issuance of, or deny, a license. The township board may require that adequate security or insurance be provided before a license is issued. Where conditions are imposed as prerequisite to the issuance of a license, or where a license is denied, within five days of such action, notice thereof must be mailed to the applicant by certified mail, and, in case of denial, the reasons therefor shall be stated in the notice.
(Comp. Ords. as Rev. 12-1999, § 20.309)

Sec. 22-9. Denial of license.

A license may be denied if the applicant:

(1) Fails to comply with any or all requirements of this chapter, or with any or all conditions imposed pursuant hereto, or with any other applicable provision of state or local law; or

(2) Has knowingly made a false, misleading or fraudulent statement in the application or in any supporting document.

(Comp. Ords. as Rev. 12-1999, § 20.310)

Sec. 22-10. License information; posting.

A license shall specify the name and address of the licensee, the kind and location of the assembly, the maximum number of attendants permissible, the duration of the license and any other conditions imposed pursuant to this chapter. It shall be posted in a conspicuous place upon the premises of the assembly, and shall not be transferred to any other person or location.
(Comp. Ords. as Rev. 12-1999, § 20.311)

Sec. 22-11. Minimum requirements.

In processing an application, the township board shall, as a minimum, require the following:

(1) *Security personnel.* The licensee shall employ, at its own expense, such security personnel as are necessary and sufficient to provide for the adequate security and protection of the maximum number of attendants at the assembly and for the preservation of order and protection of property in and around the site of the assembly. No license shall be issued unless the township board in cooperation with the county sheriff and the director of state police is satisfied that such necessary and sufficient security personnel will be provided by the licensee for the duration of the assembly.

(2) *Water facilities.* The licensee shall provide potable water, sufficient in quantity and pressure to ensure proper operation of all water using facilities under conditions of peak demand. Such water shall be supplied from a public water system, if available, and if not available, then from a source constructed, located and approved in accordance with Public Act No. 368 of 1978 (MCL 333.12701 et seq.), and the rules and regulations adopted pursuant thereto, and in a manner approved by the county health department.

(3) *Restroom facilities.* The licensee shall provide separate enclosed flush-type water closets as defined in Public Act No. 266 of 1929 (MCL 338.901 et seq.), and the rules and regulations adopted pursuant thereto and in accordance with any other applicable state or local law. If such flush-type facilities are not available, the township board may permit the use of other facilities which are in compliance with section 12771 of Public Act No. 368 of 1978 (MCL 333.12771), and the rules and regulations adopted pursuant thereto, and in a manner approved by the county health department.

The licensee shall provide lavatory and drinking water facilities constructed, installed, and maintained in accordance with Public Act No. 266 of 1929 (MCL 338.901 et seq.), and the rules and regulations adopted pursuant thereto, and in accordance with any other applicable state or local law. All lavatories shall be provided with hot and cold water and soap and paper towels.

The number and type of facilities required shall be determined, on the basis of the number of attendants, in the following manner:

Facilities	*Male*		*Female*
Toilets	1:300		1:200
Urinals	1:100		
Lavatories	1:200		1:200
Drinking fountains		1:500	
Taps or faucets		1:500	

Where the assembly is to continue for more than 12 hours, the licensee shall provide shower facilities, on the basis of the number of attendants, in the following manner:

Facilities	*Male*	*Female*
Shower heads	1:100	1:100

All facilities shall be installed, connected, and maintained free from obstructions, leaks and defects and shall at all times be in operable condition as determined by the county health department.

(4) *Food service.* If food service is made available on the premises, it shall be delivered only through concessions licensed and operated in accordance with the provisions of part 129 of Public Act No. 368 of 1978 (MCL 333.12901 et seq.), and the rules and regulations adopted pursuant thereto and in accordance with any other applicable state or local law. If the assembly is distant from food service establishments open to the public, the licensee shall make such food services available on the premises as will adequately feed the attendants.

(5) *Medical facilities.* If the assembly is not readily and quickly accessible to adequate existing medical facilities, the licensee shall be required to provide such facilities on the premises of the assembly. The kind, location, staff strength, medical and other supplies and equipment of such facilities shall be as prescribed by the township board.

(6) *Liquid waste disposal.* The licensee shall provide for liquid waste disposal in accordance with all rules and regulations pertaining thereto established by the county health department. If liquid waste retention and disposal is dependent upon pumpers and haulers, they shall be licensed in accordance with part 117 of Public Act No. 451 of 1994 (MCL 324.11701 et seq.), and the rules and regulations adopted pursuant thereto, and in accordance with any other applicable state or local law, and, prior to issuance of any license, the licensee shall provide the township board with a true copy of an executed agreement in force and effect with a license pumper or hauler, which agreement will ensure proper, effective and frequent removal of liquid waste from the premises so as to neither create nor cause a nuisance or menace to the public health.

(7) *Solid waste disposal.* The licensee shall provide for solid waste storage on, and removal from, the premises. Solid waste storage shall be in approved, covered, flytight and rodentproof containers, provided in sufficient quantity to accommodate the number of attendants. Prior to issuance of any license, the licensee shall provide the township board with a true copy of an executed agreement in force and effect with a licensed refuse collector, which agreement will ensure proper, effective and frequent removal of solid waste from the premises so as to neither create nor cause a nuisance or menace to the public health. The licensee shall implement effective control measures to minimize the presence of rodents, flies, roaches and other vermin on the premises. Poisonous materials, such as insecticides or rodenticides, shall not be used in any way so as to contaminate food, equipment or otherwise constitute a hazard to the public health. Solid waste containing food waste shall be stored so as to be inaccessible to vermin. The premises shall be kept in such condition as to prevent the harborage or feeding of vermin.

(8) *Public bathing beaches.* The licensee shall provide or make available or accessible public bathing beaches only in accordance with sections 12541—12546 of Public Act No. 368 of 1978 (MCL 333.12541 et seq.), and the rules and regulations adopted pursuant thereto, and in accordance with any other applicable provisions of state or local law.

(9) *Public swimming pools.* The licensee shall provide or make available public swimming pools only in accordance with sections 12521—12534 of Public Act No. 368 of 1978 (MCL 333.12521 et seq.), and the rules and regulations adopted pursuant thereto, and in accordance with any other applicable provisions of state or local law.

(10) *Access and traffic control.* The licensee shall provide for ingress to and egress from the premises so as to ensure the orderly flow of traffic onto and off of the premises. Access to the premises shall be from a highway or road which is a part of the county system of highways or which is a highway maintained by the state. Traffic lanes and other space shall be provided, designated and kept open for access by ambulance, fire equipment, helicopter and other emergency vehicles. Prior to the issuance of a license, the director of the department of state police and the director of the department of state highways must approve the licensee's plan for access and traffic control.

(11) *Parking.* The licensee shall provide a parking area sufficient to accommodate all motor vehicles, but in no case shall he provide less than one automobile space for every four attendants.

(12) *Camping and trailer parking.* A licensee who permits attendants to remain on the premises between the hours of 2:00 a.m. and 6:00 a.m. shall provide for camping and trailer parking and facilities in accordance with sections 12501—12516 of Public Act No. 368 of 1978 (MCL 333.12501 et seq.), and the rules and regulations adopted pursuant thereto, and in accordance with any other applicable provision by state or local law.

(13) *Illumination.* The licensee shall provide electrical illumination of all occupied areas sufficient to ensure the safety and comfort of all attendants. The licensee's lighting plan shall be approved by the township board.

(14) *Insurance.* Before the issuance of a license, the licensee shall obtain public liability insurance with limits of not less than $500,000.00 and property damage insurance with a limit of not less than $50,000.00 from a company approved by the commissioner of insurance of the state, which insurance shall insure liability for death or injury to persons or damage to property which may result from the conduct of the assembly or conduct incident thereto and which insurance shall include an endorsement to the effect that the insurance company shall notify the township clerk in writing at least ten days before the expiration or cancellation of such insurance.

(15) *Bonding.* Before the issuance of a license, the licensee shall obtain, from a corporate bonding company authorized to do business in the state, a corporate surety bond in the amount of $50,000.00 in a form to be approved by the township board which shall

indemnify the township, its agents, officers, and employees and the township board against any and all loss, injury or damage whatever arising out of or in any way connected with the assembly and which shall indemnify the owners of property adjoining the assembly site for any costs attributable to cleaning up and/or removing debris, trash or other waste resultant from the assembly.

(16) *Fire protection.* The licensee shall, at his own expense, take adequate steps as determined by the state fire marshal to ensure fire protection.

(17) *Sound producing equipment.* Sound producing equipment, including but not limited to public address systems, radios, phonographs, musical instruments and other recording devices, shall not be operated on the premises of the assembly so as to be unreasonably loud or raucous, or so as to be a nuisance or disturbance to the peace and tranquility of the citizens of the township.

(18) *Fencing.* The licensee shall erect a fence completely enclosing the site, of sufficient height and strength as will preclude persons in excess of the maximum permissible attendants from gaining access and which all have sufficient gates properly located so as to provide ready and safe ingress and egress.

(19) *Communications.* The licensee shall provide public telephone equipment for general use on the basis of at least one unit for each 1,000 attendants.

(20) *Miscellaneous.* Prior to the issuance of a license, the township board may impose any other condition reasonably calculated to protect the health, safety, welfare and property of attendants or of citizens of the township.

(Comp. Ords. as Rev. 12-1999, § 20.312)

Sec. 22-12. Revocation of license.

The township board may revoke a license whenever the licensee, his employee or agent fails, neglects or refuses to fully comply with any and all provisions and requirements set forth in this chapter or with any and all provisions, regulations, ordinances, statutes, or other laws incorporated by reference in this chapter.

(Comp. Ords. as Rev. 12-1999, § 20.313)

Sec. 22-13. Violations.

(a) *Generally.* It shall be unlawful for a licensee, his employee or agent to knowingly:

(1) Advertise, promote or sell tickets to conduct or operate anassembly without first obtaining a license as provided in this chapter.

(2) Conduct or operate an assembly in such a manner as to create a public or private nuisance.

(3) Conduct or permit, within the assembly, any obscene display, exhibition, show, play, entertainment or amusement.

(4) Permit any person on the premises to cause or create a disturbance in, around, or near the assembly by obscene or disorderly conduct.

(5) Permit any person to unlawfully consume, sell or possess intoxicating liquor while on the premises.

(6) Permit any person to unlawfully use, sell, or possess any controlled substances as defined in article 7 of Public Act No. 368 of 1978 (MCL 333.7101 et seq.).

(b) *Sanctions.* Any person, firm, association, partnership, corporation or governmental entity who violates any of the provisions of this chapter shall be deemed to be responsible for a municipal civil infraction as defined by state statute which shall be punishable by a civil fine determined in accordance with the schedule in section 18-62(a).

(c) *Revocation.* It is further provided that any of the violations in subsection (a) of this section is a sufficient basis for revocation of the license and for the immediate enjoining in the circuit court of the assembly.
(Comp. Ords. as Rev. 12-1999, § 20.314)

Chapter 23

RESERVED

Chapter 24

PARKS AND RECREATION*

Article I. In General

Secs. 24-1—24-30. Reserved.

Article II. Park Regulations

Sec. 24-31. Definition.
Sec. 24-32. Regulations.
Sec. 24-33. Special uses and reservations.
Sec. 24-34. Posting of park rules.
Sec. 24-35. Penalties.

***Cross references—**Environment, ch. 10; recreational fires, § 12-104; outdoor assemblies, ch. 22; waterways, ch. 34.

State law references—Township powers to acquire property for public purposes, MCL 41.2; township parks, MCL 41.421 et seq.; authority to operate system of public recreation, MCL 123.51; playground equipment safety act, MCL 408.681 et seq.

ARTICLE I. IN GENERAL

Secs. 24-1—24-30. Reserved.

ARTICLE II. PARK REGULATIONS

Sec. 24-31. Definition.

(a) This article shall apply to all township parks, whether they exist at the time of adoption of the ordinance from which this article is derived or are created in the future. Wherever the terms "township park" and "park" are used in this article, such terms shall be defined as including the park known as Texas Drive Park, more particularly described as follows:

Beginning at the intersection of the north and south ¼ line of section 14 with the centerline of Texas Drive, then south along said ¼ line to a point 55 rods south of the center ¼ post thereof, then west 75.5 rods to the centerline of Texas Drive; then northeasterly thereon to the point of beginning.

(b) The township board may designate by resolution additional parks to which this article shall apply.

(Ord. No. 194, § II, 6-26-2000)

Cross reference—Definitions generally, § 1-2.

Sec. 24-32. Regulations.

The following regulations shall govern activities and uses at township parks:

(1) No unlawful firearms shall be permitted in the park.

(2) No alcoholic liquor shall be permitted in the parks.

(3) No motorized vehicles of any kind shall be permitted in the parks, except within designated parking areas.

(4) Park hours shall be 8:00 a.m. to sunset. No person shall be permitted to occupy or use the park premises except during park hours.

(5) No refuse, rubbish, or waste material shall be deposited on park property except in containers provided for that purpose.

(6) No person shall fire, discharge, or have in his possession any rocket, firecracker, or other fireworks or any substance of an explosive nature upon park property.

(7) No materials shall be burned on park premises except within a permanent fireplace on the premises. Portable barbecue grills or other containers for cooking over fires or coals are strictly prohibited.

(8) No person shall use any park facilities or areas as to which the township board has established a fee or charge, unless the applicable fee or charge has been paid in full.

(9) Unlawful discharge of a firearm or other weapon is strictly prohibited.

(Ord. No. 194, § III, 6-26-2000; Ord. No. 271, § 1, 3-8-2010)

Sec. 24-33. Special uses and reservations.

The township board may, in its discretion, and upon compliance with the conditions set out in this section, grant permission to individuals and organizations to use a township park to the exclusion of all others for a specified period:

(1) Application shall be made upon forms furnished by the township.

(2) Applications must be submitted at least three business days before the township board meeting at which they are to be considered.

(3) Reasonable fees and charges may be imposed in amounts determined by the township board for such use, taking into account the nature of the use, the time involved, the number of people who will use the park, and the expense to the township.

(4) No person shall use any township park facility or area for which a fee has been established without payment of the required fee.

(5) The township board may impose conditions and requirements as it deems appropriate.

(Ord. No. 194, § IV, 6-26-2000)

Sec. 24-34. Posting of park rules.

A brief statement of park rules and hours shall be posted conspicuously at each township park.

(Ord. No. 194, § V, 6-26-2000)

Sec. 24-35. Penalties.

Violation of any of the provisions of this article or failure to comply with any of its requirements shall constitute a municipal civil infraction punishable by a civil fine determined in accordance with the schedule in subsection 18-62(a).

(Ord. No. 206, § VI, 8-27-2001)

Chapter 25

RESERVED

Chapter 26

SOLID WASTE*

Article I. In General

Secs. 26-1—26-30. Reserved.

Article II. Residential Waste Reduction

Division 1. Generally

Sec. 26-31. Purpose.
Sec. 26-32. Current contracts.
Sec. 26-33. Definitions.
Sec. 26-34. Sanctions.
Secs. 26-35—26-50. Reserved.

Division 2. Hauler License

Sec. 26-51. Required.
Sec. 26-52. Application.
Sec. 26-53. Application fee and renewal fee.
Sec. 26-54. Approval or denial.
Sec. 26-55. Suspension and revocation by the township.
Sec. 26-56. Procedure to suspend or revoke.
Sec. 26-57. Transferability.
Secs. 26-58—26-75. Reserved.

Division 3. Hauler Requirements

Sec. 26-76. General requirements.
Sec. 26-77. Frequency and hours of service.
Sec. 26-78. Fees.
Sec. 26-79. Minimum liability insurance requirement.
Sec. 26-80. Educational requirements.
Sec. 26-81. Reporting requirement.

***Cross references—**Buildings and building regulations, ch. 6; environment, ch. 10; blight, § 10-31 et seq.; littering, § 10-91 et seq.; waste burners, § 12-102; littering on Kalamazoo Valley Community College, § 14-37; utilities, ch. 32; solid waste transfer facilities, § 36-821 et seq.

State law references—Garbage disposal act, MCL 123.361 et seq.; solid waste facilities, MCL 324.4301 et seq.; hazardous waste management act, MCL 324.11101 et seq.; hazardous materials transportation act, MCL 29.417 et seq.; solid waste management act, MCL 324.11501 et seq.; waste reduction assistance act, MCL 324.14501 et seq.; clean Michigan fund act, MCL 324.19101 et seq.; low-level radioactive waste authority act, MCL 333.26201 et seq.

ARTICLE I. IN GENERAL

Secs. 26-1—26-30. Reserved.

ARTICLE II. RESIDENTIAL WASTE REDUCTION

DIVISION 1. GENERALLY

Sec. 26-31. Purpose.

(a) The purpose of this article is to protect and promote the public health, safety, and welfare of the inhabitants of the township by regulating the collection of residential garbage and recyclables in a manner that will promote waste reduction.

(b) This article does not prevent persons or organizations from marketing or disposing of collected materials where the persons or organizations choose, as long as the collected materials are marketed or disposed in a manner which is consistent with local, state, and federal requirements.
(Comp. Ords. as Rev. 12-1999, § 35.102)

Sec. 26-32. Current contracts.

This article is not intended to alter or delete terms or conditions of any existing contract or franchise or the township's rights and abilities to develop other means of providing garbage, recycling, trash or yard trimmings service through, for example, but not limited to, collection services provided by municipal crews or a private contractor.
(Comp. Ords. as Rev. 12-1999, § 35.105)

Sec. 26-33. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Curbside collection means the gathering by a hauler of designated materials placed by a customer within six feet of the curb or road's edge.

Front door service means a service which collects designated materials on the exterior side of a residence which faces the street access for the residence.

Garbage means all waste consisting of or in general contact with putrescible animal and

vegetable wastes resulting from the handling, preparation, cooking and consumption of food, and other small miscellaneous residential waste, such as consumer packaging used for food products.

Hauler means any person involved in the business of collecting residential garbage generated within this jurisdiction.

Licensing agent means the township or a person or public agency designated by the township to perform administrative duties specified in this article.

Prohibited items means items which cannot be lawfully deposited in a type II landfill as defined by state law.

Recyclable material and *recyclables* mean waste materials which can be converted to a useful product and for which there is a market. Examples of recyclable materials include corrugated materials, cardboard, clear glass jars and bottles, and certain plastics and metals.

Trash means all large rubbish and debris of a domestic or household character, except garbage, recyclables and yard trimmings, or any other prohibited item. Recyclable containers containing trash shall be deemed trash for purposes of this article.

Unit-based fees means a fee system used by a hauler to charge for services based on the amount (weight or volume) of the material being collected from the customer. Fees progressively based on the collection container size shall be deemed "unit-based fees" for the purposes of this article.
(Comp. Ords. as Rev. 12-1999, § 35.201; Ord. No. 256, § I1., 9-24-2007)

Cross reference—Definitions generally, § 1-2.

Sec. 26-34. Sanctions.

A hauler who violates any of the provisions of this article shall be deemed to be responsible for a municipal civil infraction as defined by state statute and shall be subject to a civil fine of not more than $500.00 along with costs which may include all expenses, direct and indirect, to which the township has been put in connection with the municipal civil infraction. In no case, however, shall costs of less than $9.00 nor more than $500.00 be ordered. Each day that a violation occurs shall constitute a separate offense. The sanctions in this section shall be in addition to the rights of the township to proceed under section 26-56 or at law or equity with other appropriate and proper remedies.
(Comp. Ords. as Rev. 12-1999, § 35.401)

Secs. 26-35—26-50. Reserved.

DIVISION 2. HAULER LICENSE

Sec. 26-51. Required.

No person shall engage in the business of collecting residential garbage or materials for recycling within the township without first obtaining a hauler license.
(Comp. Ords. as Rev. 12-1999, § 35.501; Ord. No. 256, § I2., 9-24-2007)

Sec. 26-52. Application.

(a) The application will require the following information:

(1) The name, local address, and telephone number of the hauler;

(2) The name, address and telephone number of the hauler's main office, if the local office is a subsidiary or branch location; and

(3) Proof of insurance.

The application shall be signed by authorized officer or employee of the hauler.

(b) A licensee shall notify the licensing agent, in writing, prior to any substantial change in the information provided in the application.
(Comp. Ords. as Rev. 12-1999, § 35.502)

Sec. 26-53. Application fee and renewal fee.

(a) Application or renewal licensing fees shall be paid by the applicant upon submittal of the application to the licensing agent. The application and renewal fees shall be set by the licensing agent. If the township designates the county as the licensing agent under this article and one or more other municipalities do the same, a single application fee paid by the hauler to the county for a hauler license shall satisfy the application fee requirement for those municipalities. The fees shall be reasonable and shall not exceed the cost of administering this article.

(b) A license shall expire on December 31 of each year.
(Comp. Ords. as Rev. 12-1999, § 35.503)

Sec. 26-54. Approval or denial.

(a) Upon receipt of a completed application and the application fee, the licensing agent has up to 45 days to determine the accuracy of the information included on the application. If the information on the application is found to be accurate, the licensing agent shall issue a written notice of approval no later than 45 days after receipt of the application. If any inaccuracy becomes apparent, the licensing agent shall inform the applicant of the inaccuracy by certified mail and request a correction.

(b) A hauler shall provide corrected information for the application, by certified mail, to the licensing agent within seven days of receipt of the original request or be subject to denial of the license by 12:00 midnight of the seventh day, if such information is not forthcoming.

(c) Notice of denial shall be sent to the applicant by certified mail. The notice shall include the notification of the right of the applicant to request reconsideration of the denial and to have a hearing thereon before the licensing agent. Any such request for reconsideration shall be filed in writing with the licensing agent within ten days from the date of mailing of the notice of denial. The hearing shall be noticed and conducted by the licensing agent in substantial accordance with the procedures set forth in section 26-56.
(Comp. Ords. as Rev. 12-1999, § 35.504)

Sec. 26-55. Suspension and revocation by the township.

(a) The township may, acting in accordance with section 26-56, suspend or revoke a hauler's license to operate within the township's jurisdiction.

(b) A license may be suspended or revoked for the following reasons:

(1) The failure of the licensee to substantially comply with this article or any other applicable federal, state, county and local laws and regulations;

(2) Misrepresentations of any material fact contained in the license application; and/or

(3) The failure of the licensee to make payment of any municipal civil infraction fine imposed for violation of this article.

(c) If a hauler's license is suspended, it will remain suspended for such period of time as is set by the township. If a hauler's license is revoked by the township, the licensing agent shall not issue a new license until approval has been granted by the township.
(Comp. Ords. as Rev. 12-1999, § 35.505)

Sec. 26-56. Procedure to suspend or revoke.

(a) Written notice of a public hearing to consider suspension or revocation of a license shall be mailed by certified mail to the licensee at its last known address, not less than seven days prior to the public hearing at which the suspension or revocation of the licensee will be considered. The notice shall indicate the date, time, and location of the hearing. The notice shall also include a statement of the tentative reasons for the proposed suspension or revocation.

(b) The public hearing shall provide the opportunity for the hauler to present witnesses and question any adverse witnesses as may appear at the hearing.

(c) Any suspension or revocation imposed by the township shall be based upon a full consideration of the evidence presented at the public hearing.

(d) The township shall have 30 days from the date of the public hearing to make a determination. Written notice of the determination, along with a statement of the reasons for the determination shall be mailed by certified mail to the last known address of the licensee no later than eight days after the township's decision.
(Comp. Ords. as Rev. 12-1999, § 35.506)

Sec. 26-57. Transferability.

A license shall not be transferable or assignable to another.
(Comp. Ords. as Rev. 12-1999, § 35.507)

Secs. 26-58—26-75. Reserved.

DIVISION 3. HAULER REQUIREMENTS

Sec. 26-76. General requirements.

(a) A hauler must provide the following curbside collection services to its residential customers in building containing four dwelling units or less:

(1) Garbage pickup including recycling pickup;

(2) Trash pickup.

(b) Customers shall be permitted to purchase the following service on an as needed basis:

(1) Trash pickup.

(c) A hauler shall not limit the amount of residential recyclable materials from each customer as long as the materials are generated by that customer.

(d) A hauler shall offer at least three garbage collection container size options.

(e) Haulers shall abide by local ordinances in effect which regulates days when materials are collected.
(Comp. Ords. as Rev. 12-1999, § 35.301; Ord. No. 256, § I3., 9-24-2007)

Sec. 26-77. Frequency and hours of service.

Residential garbage and recycling service. A hauler shall offer its regular curbside residential garbage collection a minimum of once per week and recycling collection no less than once per month. Residential garbage and recycling service shall take place only between the hours of 7:00 a.m. and 8:00 p.m. on weekdays and 7:00 a.m. and 4:00 p.m. on Saturdays and legal holidays.
(Comp. Ords. as Rev. 12-1999, § 35.302; Ord. No. 256, § I4., 9-24-2007; Ord. No. 306, § 1, 6-22-2015)

Sec. 26-78. Fees.

(a) A hauler shall clearly and separately indicate on the customers billing statements the fees for each of the following collection services purchased every time the customer is billed:

(1) Garbage including recycling;

(2) Trash pickup

(b) Fees for residential collection services shall be "unit-based," with the exception of recycling which shall not be unit-based.

(c) Under certain circumstances, i.e. persons with disabilities, back door services may be provided without an extra charge.
(Comp. Ords. as Rev. 12-1999, § 35.303; Ord. No. 256, § I5., 9-24-2007)

Sec. 26-79. Minimum liability insurance requirement.

(a) All haulers shall provide proof of minimum liability insurance when working in the township as follows:

(1) Commercial general liability, including contractual liability, independent contractors coverage, and broad form general liability extensions:

a. Personal/bodily injury:

1. Each person $1,000,000.00

2. Each accident. 1,000,000.00

b. Property damage:

1. Each accident. $1,000,000.00

2. Each aggregate 1,000,000.00

(2) Motor vehicle liability (including hired cars and auto nonownership):

a. Bodily injury:

1. Each person $1,000,000.00

2. Each occurrence 1,000,000.00

b. Property damage:

1. Each accident. $1,000,000.00

2. Each aggregate 1,000,000.00

(b) The insurance company providing the insurance in subsection (a) of this section to the hauler must be licensed to do business in the state, recognized by the state insurance bureau, and have a rating in the latest Best rating of B+ or better.

(c) The insurance policy shall include an endorsement stating that it is understood and agreed by the hauler and its insurance company that 30 days advance written notice of cancellation, nonrenewal, reduction, and/or material change of the insurance policy shall be sent to the licensing agent and township.
(Comp. Ords. as Rev. 12-1999, § 35.304)

Sec. 26-80. Educational requirements.

(a) *Annual educational notice.* On an annual basis, all haulers shall distribute to their residential customers, the township and the licensing agent printed material which communicates the availability of and includes the details and procedures for the collection services regulated in this article. Haulers may distribute the printed materials with customer billings or appropriate leave-behind tags for its customers. A hauler shall notify its residential customers of any material changes in service that affect the customer on or before the next billing cycle.

(b) *Educating noncompliant customers.* If a customer of the hauler does not properly prepare materials for collection, a hauler is not obligated to pick up the material if, by collecting the materials, a hauler places itself in a position of noncompliance with this article or other applicable law.

(c) In such cases, the hauler shall notify the customer of the potential violation and provide instructions to the customer on how to comply. The notification shall be as follows: a leave-behind tag, a letter, telephone and/or direct personal communication.
(Comp. Ords. as Rev. 12-1999, § 35.305; Ord. No. 256, § I6., 9-24-2007)

Sec. 26-81. Reporting requirement.

In order to permit public evaluation of the waste reduction measures promoted in this article, all haulers shall file annual reports with the licensing agent by January 15 of each year. The report shall contain verifiable information of the weight of residential recyclables collected by the hauler within the areas regulated by this article.
(Comp. Ords. as Rev. 12-1999, § 35.306; Ord. No. 256, § I7., 9-24-2007)

Chapter 27

RESERVED

Chapter 28

TELECOMMUNICATIONS*

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***Cross references—**Utilities, ch. 32; zoning, ch. 36; telecommunications towers and antennas, § 36-696 et seq.

State law references—Township control of highways, Mich. Const. art. 7, § 29; Michigan telecommunications act, MCL 484.2101 et seq.

Sec. 28-86. Regulated cable operators.
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ARTICLE I. IN GENERAL

Secs. 28-1—28-30. Reserved.

ARTICLE II. CABLE SYSTEM FRANCHISE REGULATIONS

Sec. 28-31. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Cable act means the Communications Act of 1934, Cable Communications Policy Act of 1984, the Cable Television Consumer Protection and Competition Act of 1992, and the Telecommunications Act of 1996 as they may be amended or succeeded.

Cable service shall have the meaning set forth in the Cable Act and Federal Communication Commission (FCC) regulations.

Cable system and *system* shall have the meaning set forth in the Cable Act and FCC regulations for "cable television system."

Channel means a frequency band, which is capable of carrying either a video signal, or a number of audio, digital or other nonvideo signals or some combination of such signals.

Days means calendar days unless otherwise specified.

Franchise fee means the fee payable in exchange for the rights granted pursuant to this and the franchise agreement.

Grantee means the party granted a franchise by the township, and shall include the lawful successor, transferee or assignee of such grantee.

Person means any individual, partnership, association, organization, corporation, or limited liability company or any lawful successor or transferee of such an entity.

Public rights-of-way and *streets* mean the surface, the air space above the surface, and the area below the surface of any public street, highway, lane, path, alley, sidewalk, boulevard, drive, bridge, tunnel, waterways, easements or other public right-of-way now or hereafter existing in the township.

Resident means any person residing in the township.

Subscriber means any person who or which elects to lawfully subscribe to a cable service provided by the grantee by means of or in connection with a cable system.

System facilities means the cable system constructed for use within the township, including without limitation the headend (and distribution lines to the headend), antenna, cables, wires, lines, towers, amplifiers, converters, equipment or facilities located within the corporate limits of the township designed, constructed or wired for the purpose of producing, receiving, amplifying and distributing by coaxial cable, fiber optics, microwave or other means, audio,

radio, television and electronic signals to and from subscribers in the township, and any other equipment or facilities located within the corporate limits of the township intended for the use of the cable system.

User means a person utilizing channel or equipment and facilities for the purpose of producing and/or transmission of material, as contrasted with receipt thereof in a subscriber capacity.
(Ord. No. 203, § II, 4-23-2001)

Cross reference—Definitions generally, § 1-2.

Sec. 28-32. Grant of franchise.

(a) *Grant.* Subject to the terms and conditions set forth in this article, the township may grant revocable, nonexclusive franchises to construct and operate cable systems within the township for the purpose of providing cable services and for such cable systems to occupy or use the public rights-of-way. In exercising rights pursuant hereto, the grantee shall not endanger or interfere with the lives of persons, interfere with any installations of the township, any public utility serving the township or any other person permitted to use the streets nor unnecessarily hinder or obstruct the free use of the streets. The grant of one franchise does not establish priority for use over the other present or future permit or franchise holders or the township's own use of the streets. The township shall at all times control the distribution of space in, over, under or across all streets occupied by the cable services. All rights granted for the construction and operation of the cable services shall be subject to the continuing right of the township to require such reconstruction, relocation, change or discontinuance of the appliances used by the cable services in the streets as shall, in the opinion of the township, be necessary in the public interest.

(b) *Franchise binding.* All provisions of this article as existing on the effective date of a franchise, and any franchise granted hereto, shall be binding upon the grantee, its successors, lessees or assignees.

(c) *Privileges must be specified.* No privilege or exemption shall be inferred from the granting of any franchise unless it is specifically prescribed.
(Ord. No. 203, § III, 4-23-2001)

Sec. 28-33. Franchise required.

No cable system shall be allowed to occupy or use the public rights-of-way or be allowed to operate within the township without a franchise.
(Ord. No. 203, § IV, 4-23-2001)

Sec. 28-34. Use of public streets.

For the purpose of operating and maintaining a cable system in the township, the grantee may erect, install, construct, repair, replace, reconstruct and retain in, on, over, under, upon, across and along the streets its system facilities and other property and equipment as are necessary to the operation of the cable system, provided that the grantee complies with all

design, construction, safety, and performance provisions contained in this article, the franchise, and other generally applicable local ordinances. The grantee shall also obtain all required pole attachment agreements for use of any utility poles or other utility facilities required in connection with the provision of services. No reference in this article, or in any franchise, to the "streets" shall be deemed to be a guarantee by the township that its title to any property is sufficient to permit its use for such purpose, and the grantee shall, by its use of such terms, be deemed to gain only such rights to use property in the township as the township may have the undisputed right and power to give. A franchise granted pursuant to this article does not preempt authority of the county road commission or state highway commission.
(Ord. No. 203, § V, 4-23-2001)

Sec. 28-35. Term of franchise.

The term of the franchise shall commence upon execution of the franchise by the township and the grantee and shall continue for a period specified in the franchise, unless sooner terminated as provided in this article. As it relates to public rights-of-way and township-owned property, the grantee shall have no property right upon the expiration of the franchise term.
(Ord. No. 203, § VI, 4-23-2001)

Sec. 28-36. Franchise nonexclusive.

A franchise granted pursuant to this article shall be nonexclusive and shall not affect the right of the township to grant to any other person a right to occupy or use the streets, or portions thereof, for the construction and operation of a cable system within the township or the right of the township to permit the use of the streets or public grounds of the township for any purpose whatever. By accepting a franchise, the grantee thereby acknowledges the township's right to make such grants and permit such uses. Additional franchises, taken as a whole, shall be neither more favorable nor less burdensome than franchises previously granted, as provided for in the franchise. No privilege or power of eminent domain is bestowed on the grantee by the grant of a franchise.
(Ord. No. 203, § VII, 4-23-2001)

Sec. 28-37. Right of condemnation reserved.

Nothing in this article or a franchise shall limit any right the township may have to lawfully acquire by eminent domain or otherwise any property of the grantee.
(Ord. No. 203, § VIII, 4-23-2001)

Sec. 28-38. Township's right to perform public works.

Nothing in this article or a franchise shall prevent the township or any governmental authority from performing or carrying on, directly or indirectly, any public works or public improvements. Should the cable system in any way interfere with the construction, maintenance or repair of such public works or public improvements, the grantee shall, at its own cost

and expense, protect or relocate its cable system, or part thereof, as reasonably directed by the township or any governmental authority, so long as other similarly-situated users of rights-of-way are treated in a similar fashion.
(Ord. No. 203, § IX, 4-23-2001)

Sec. 28-39. Emergency removal of plant.

If in case of fire or other disaster it becomes necessary in the reasonable judgment of the township to cut or move any portion of the cable facilities, the township shall have the right to do so at the sole cost and expense of the grantee. The township shall first endeavor to provide notice to the grantee and request that the grantee conduct the necessary work, if possible. The grantee shall bear all costs of reinstallation, repair, and other costs resulting from or arising out of the emergency cutting or removal of the cable system.
(Ord. No. 203, § X, 4-23-2001)

Sec. 28-40. Removal or abandonment.

Upon termination of the franchise by passage of time or otherwise, and unless the grantee transfers the cable system to a subsequent grantee approved by the township, the grantee shall, upon the request of the township, remove its supporting structures, poles, transmission and distribution systems, and all other appurtenances from the public rights-of-way and shall restore any property, public or private, to its original condition prior to the installation, erection, or construction of the cable system. Restoration of township property shall be in accordance with the directions and specifications of the township and all applicable law. Such removal and restoration shall be at the grantee's expense. If such removal and restoration is not completed within 12 months after the notice by the township, delivered in writing to the grantee, all of the grantee's property remaining in the affected public rights-of-way shall, at the option of the township, be deemed abandoned and shall, at the option of the township, become the property of the township. If the grantee fails or refuses to remove its system or satisfactorily restores all areas, the township may perform such work and collect the cost thereof from the grantee. No surety on any bond shall be discharged until the township has certified to the grantee in writing that the system has been dismantled, removed, and all other property restored to the satisfaction of the township. This section, requiring removal or abandonment, shall not apply if the grantee is lawfully no longer a cable system operator and if: (i) the plant is in continuous use; (ii) removal and abandonment is addressed by other laws, regulation or otherwise, and (iii) the grantee has received all lawfully required local, state or federal authority to so operate.
(Ord. No. 203, § XI, 4-23-2001)

Sec. 28-41. Transfer of ownership or control.

(a) *Transfer of franchise.* A franchise, in whole or in part, shall not be assigned, transferred, sold, or disposed of in any manner, nor shall title to the cable system, legal or equitable, pass to or vest in any other person without the prior written consent of the township, such consent shall not be unreasonably withheld.

(b) *Transfer of ownership.* The grantee shall not sell, transfer, or dispose of 25 percent or more, at any one time, of the ownership or control of the grantee, or 40 percent or more cumulatively over the term of the franchise of such interest to another person, or group of persons acting in concert without first obtaining the written consent of the township, such consent shall not be unreasonably withheld. The grantee need not, however, obtain consent from the township when the sale, transfer or disposition is to a person controlling, controlled by or under common control with the grantee, or for a transfer in trust, by mortgage, by other hypothecation, or by assignment of any rights, title, or interest of the grantee in the franchise or cable system in order to secure indebtedness.

(c) *Transfer of control.* No change, directly or indirectly, in the control of the grantee or of any person holding a controlling interest in the grantee shall take place without the prior written consent of the township, such consent shall not be unreasonably withheld.

(d) *Township approval.* For the purpose of determining whether it shall consent to such transfer, the township may inquire into the legal, financial, and technical qualifications of the prospective transferee or controlling party, as well as its ability to comply with the franchise and applicable township ordinances. The grantee shall provide the township with all reasonably required information, provided the township serves the grantee with written notice of the required information within 30 days of receiving the grantee's request for transfer or notice of change in control, unless a shorter time is established by federal law, in which case such shorter time shall apply. Every transfer of ownership or control shall make the franchise subject to cancellation unless and until the township issues its written consent. If the township has not taken action on the grantee's request for transfer or change of control within 120 days after receiving such request, as specified in the federal cable act, consent by the township shall be deemed granted.

(e) *No waiver of township property rights.* The consent of the township to a transfer of the grantee shall not constitute a waiver or release of the rights of the township in any property owned by the township or to public rights-of-way, and any transfer shall, by its terms, be expressly subordinate to the terms and conditions of this article and the franchise.

(f) *Signatory requirement.* Any approval by the township of transfer of ownership or control shall be contingent upon the prospective party becoming a signatory to the franchise agreement.

(g) *Notification of sale.* If the grantee places its system for public sale, the grantee or its designee shall notify the township, at the same time it notifies other prospective purchasers, of that fact. The grantee shall also advise the township of the proposed terms and conditions of such a sale, to the extent they have been made public, so long as the township can commit to the grantee that such information shall be kept as confidential as the grantee requires other prospective purchasers.

(h) *Time frame for township review.* The township shall act upon any transfer request within a reasonable time, but in no event more than allowed by federal law.
(Ord. No. 203, § XII, 4-23-2001)

Sec. 28-42. Assumption of ownership or control.

Any financial institution having a pledge of a franchise granted pursuant to this article or of the assets of a cable system for the advancement of money for the construction and/or operation of the cable system may notify the township that it will take control and operate the cable television system. If the financial institution takes possession of the cable system, the township shall take no action to effect a termination of the franchise without first giving to such institution written notice thereof and a period of six months thereafter, unless otherwise provided in this section, to allow the financial institution or its agent to continue operating as the grantee under this franchise and to request the township, and for the township to determine whether, to consent to the assignment of the grantee's rights, title, interest and obligations under the franchise to a qualified operator. The financial institution shall be entitled to such possession and other rights granted under this section until such time that the township determines whether to consent to such assignment (the "extended time"). If the township finds that such transfer, after considering the factors set forth in section 28-41 regarding transfer of ownership or control, is acceptable to the township, the township will consent to the transfer and assign the rights and obligations of such franchise. During the six-month period or extended time, the financial institution shall enjoy all the rights, benefits and privileges of the grantee under this franchise, and the township shall not disturb such possession by the financial institution, provided the financial institution complies in all respects with the terms and provisions of the franchise and this article. The various rights granted to the financial institution under this section are contingent upon the lender's continuous compliance with the terms and provisions of the franchise and this article during the entire six-month period or extended time, if applicable.
(Ord. No. 203, § XIII, 4-23-2001)

Sec. 28-43. Right to purchase.

If the grantee (i) forfeits or surrenders, or the township terminates the franchise for cause, pursuant to provisions of this article and the franchise, or (ii) the franchise is lawfully not renewed at the normal expiration of the franchise term, the township shall have the right, directly or as an intermediary, to purchase the franchised cable system or effect the ownership of the system to another person. Any such acquisition or transfer shall be in full accordance with the Federal Cable Act.
(Ord. No. 203, § XIV, 4-23-2001)

Sec. 28-44. Franchise renewal.

A franchise, once granted, shall be subject to renewal or nonrenewal in accordance with applicable federal law.
(Ord. No. 203, § XV, 4-23-2001)

Sec. 28-45. Franchise fees.

(a) *Fee.* The grantee of any franchise under this article shall pay to the township a franchise fee as allowed by law in an amount as designated in the franchise. The obligation to pay such fees shall commence as of the effective date of the franchise. Once every 12 months, the

township shall be furnished by the grantee a statement of such payments certified by an officer of the grantee, reflecting the total amounts of annual gross revenues and the charges and computations in this subsection for the period covered by the payment.

(b) *Franchise fee in addition to other tax or payments.* Payment of the franchise fee made by the grantee to the township shall not be considered in the nature of a tax, but shall be in addition to any and all lawful taxes which are now or may be required to be paid by any federal, state, or local law.

(c) *Acceptance by the township.* No acceptance of any payment by the township shall be construed as a release or as an accord and satisfaction of any claim the township may have for further or additional sums payable as a franchise fee under this article or for the performance of any other obligation of the grantee.

(d) *Failure to make required payment.* If any franchise payment or recomputed amount is not paid on or before the date it is due, the grantee shall pay as additional compensation an interest charge, computed from such due date, equal to the commercial prime interest rate of the township's primary depository bank during the period that such unpaid amount is owed.

(e) *Payments to be made quarterly.* The franchise fee and any other cost or damages assessed shall be payable quarterly to the township. The grantee shall file a complete and accurate verified statement of all gross revenue within the township during the period for which such quarterly payment is made, and such payment shall be made to the township not later than 45 days after the expiration of each calendar quarter. Quarterly computation dates are March 31, June 30, September 30 and December 31.

(f) *Township's right to inspection.* The township shall have the right to inspect the grantee's income records as reasonably necessary to ensure compliance with the franchise and the right to audit and to recompute any amounts determined to be payable under this article for a period of six years after receipt thereof, after which payment shall be final. Audits shall be at the expense of the grantee if such audit determines that the grantee has underpaid the franchise fees by five percent or more. Any additional amount due to the township as a result of the audit shall be paid within 30 days following written notice to the grantee by the township which notice shall include a copy of the audit report.
(Ord. No. 203, § XVI, 4-23-2001)

Sec. 28-46. Forfeiture or revocation.

(a) *Grounds for revocation.* Subject to the limitations and procedures set forth in this section, the township reserves the right to revoke any franchise granted under this article and rescind all rights and privileges associated with the franchise in each of the following circumstances, each of which shall represent a default and breach under this article and the franchise:

(1) The grantee shall be in default in the performance of any of the material obligations under this article, the franchise, or under such documents, contracts and other terms and provisions regarding cable television entered into by and between the township and the grantee.

(2) The grantee violates any orders or rulings of any regulatory body having jurisdiction over the grantee relative to this article or the franchise, unless the grantee has initiated a timely challenge to such order or ruling with an appropriate tribunal.

(3) The grantee attempts to evade any of the provisions of this article or the franchise or practices any fraud or deceit upon the township or cable subscribers.

(4) The grantee's initial or rebuild construction schedule is delayed later than the schedule contained in the franchise or beyond any extended date set by the township.

(5) The grantee becomes insolvent or is adjudged bankrupt.

(6) The grantee fails to restore service to substantially all of the system after 96 consecutive hours of interrupted service, except when approval of such interruption is obtained from the township.

(7) The grantee materially misrepresents facts in the application for or negotiation of the franchise or any extension or renewal thereof.

(8) The grantee ceases to provide cable services over the cable system for any reason within the control of the grantee.

(b) *Effect of circumstances beyond control of grantee.* The grantee shall not be declared at fault or be subject to any sanction under any provision of this article in any case, in which performance of any such provision is prevented by reasons beyond the grantee's control (e.g., riots, floods, acts of nature and strikes) so long as the grantee performs as soon thereafter as reasonably possible.

(c) *Effect of pending litigation.* Pending litigation or any appeal to any regulatory body or court having jurisdiction over the grantee shall not excuse the grantee from the performance of its obligations under this article or the franchise unless there is a court or regulatory body order to the contrary.

(d) *Procedure prior to revocation.*

(1) The township shall make written demand upon the grantee that it cures its failure, refusal or neglect. If the failure, refusal or neglect of the grantee continues for a period of 30 days after such demand, or longer in cases where the township reasonably determines that compliance or correction requires a longer cure period, the township may place a request for termination of the franchise upon a township board meeting agenda. The township shall cause to be served upon such grantee, at least seven days prior to the date of such township board meeting, a written notice of this intent to request such termination. Notice of the township's intent and the time and place of the meeting shall be published by the township at least once, seven days before such meeting in a newspaper of general circulation within the township.

(2) At such meeting, the township board shall receive testimony or other evidence from any interested person, including the grantee, and shall thereafter determine, in its discretion, whether any failure, refusal or neglect by the grantee has occurred which warrants revocation of the franchise.

(3) If the township board determines such a failure, refusal or neglect has occurred but that it was with just cause, as defined by the township, the township board may direct the grantee to comply within such time and manner and upon such terms and conditions as the township board deems reasonable.

(4) If the township board determines such failure, refusal, or neglect by the grantee was without just cause, the township board may, by resolution, declare that the franchise of the grantee shall be terminated and bond forfeited unless there shall be compliance by the grantee within a specified number of days, not to exceed 60.

(5) The grantee may seek de novo judicial review of the township's final decision regarding revocation or termination. The township's decision to revoke a franchise shall not be effective pending final resolution of all appeals.

(e) *Disposition of facilities.* If a franchise is revoked or otherwise terminated, the township may purchase the system under the procedures set forth in this section or order the removal of the system facilities, which removal shall be consistent with the removal requirements set forth in this section.
(Ord. No. 203, § XVII, 4-23-2001)

Sec. 28-47. Regulatory authority.

(a) *Ongoing regulation.* The township shall exercise appropriate police power authority under the provisions of this article and applicable law. The township supervisor or other designee of the township shall provide day-to-day administration and enforcement of the provisions of this article and any franchise granted under this article.

(b) *Change in law or regulation.* If any actions of the state or federal government or any agency thereof, or any court of competent jurisdiction upon final adjudication, substantially reduces the power or authority of the township under this article or the franchise, or if in compliance with any local, state, or federal law or regulation, the grantee finds conflict with the terms of this article, the franchise, or any law or regulation of the township, then as soon as possible following knowledge thereof the grantee shall notify the township of the reduction or the point of conflict. The township may then notify the grantee that it wishes to negotiate those provisions which are affected in any way by such reduction or conflict. The township and the grantee may modify any of the provisions to such reasonable extent as may be necessary to carry out the full intent and purpose of this article and the franchise subject to applicable state and federal law.

(c) *Authority.* The township reserves the right to exercise the maximum plenary authority, as may at any time be lawfully permissible under state or federal law, to regulate the cable system, the franchise and the grantee.

(d) *Right of inspection of records.* Subject to appropriate protection of confidential and proprietary material and appropriate notice, the township shall have the right to inspect all books, records, reports, maps, plans, financial statements, and other like materials of the grantee which are reasonably necessary to ensure compliance with the franchise and applicable law and regulation at any time during normal business hours.

(e) *Right of inspection of cable facilities and property.* At all reasonable times, and after reasonable notice, the township shall have the right to inspect all cable facilities and property situated within the township (and, as it relates to headends or distribution lines, without the township) and installation work performed in the public rights-of-way.

(f) *Right to test.* Unless prohibited by law or modified by the franchise, and after providing the grantee with reasonable notice, the township may make such tests of the grantee's cable system as are reasonably necessary to ensure compliance with this article and the franchise. Such tests shall be performed in such a fashion as to minimize disruption within the grantee's cable system.

(g) *Expense reimbursement to township.* The grantee shall reimburse the township for all reasonable costs and expenses incurred by the township in connection with the initial granting (but not renewing or transferring) of a franchise, including but not limited to consultant fees, attorneys' fees, publication fees, travel expenses and all other direct costs. Such payment shall be made within 30 days after the township furnishes the grantee with a written, detailed statement of such expenses.
(Ord. No. 203, § XVIII, 4-23-2001)

Sec. 28-48. Bonds, insurance and indemnification.

(a) *Performance bond.* At the township's election and as specified in the franchise, the grantee shall obtain and maintain during the entire term of any franchise and any extensions and renewals thereof, at its cost and expense, and file with the township, a construction bond and a performance bond in amounts specified in the franchise to guarantee the faithful performance by the grantee of its obligations. Such bonds must be issued by a surety licensed to do business in the state and be of a form and contain terms and conditions as required by the franchise.

(b) *Letter of credit.* At the township's election and as specified in the franchise, the grantee shall, in addition to or in place of such bonds, obtain, maintain, and file with the township an irrevocable letter of credit from a financial institution acceptable to the township and licensed to do business in the state in an amount specified in the franchise, naming the township as beneficiary. The conditions upon which the township may draw upon the letter of credit shall be established in the franchise.

(c) *Security fund.* At the township's election and as specified in the franchise, the grantee shall, in addition to or in place of such bonds and letters of credit, deposit with the township, within 30 days after execution of the franchise, the sum specified in the franchise, as further security for the faithful performance by the grantee of the provisions of the franchise and compliance with all orders, permits and directions of any agency of the township and the payment of all claims, liens, fees, liquidated damages or taxes to the township arising by reason of the construction, operation, maintenance, or repair of the grantee's cable system. The conditions upon which the township may draw upon such fund shall be established in the franchise.

(d) *Liability and insurance.* Each franchise granted shall require the grantee to obtain and keep in effect reasonable policies of insurance, the amounts of which shall be specified in the franchise. At the township's request, the grantee shall furnish certificates of insurance for all insurance required by the franchise.

(e) *Indemnification.* Each franchise granted shall require that the grantee, at its sole cost and expense, fully indemnify, defend and hold harmless the township, its agents, officials, and employees against any and all lawsuits, claims, demands, liabilities, losses and expenses, including court costs and reasonable attorney's fees, which arise out of the grantee's construction, operation or maintenance of its cable system. Such indemnification shall not extend to lawsuits, claims, demands, liabilities, losses or expenses, including court costs and reasonable attorney's fees, which arise from the acts or omissions or gross negligence of the township or its agents, officials or employees. Furthermore, this indemnity does not apply to (i) the township's use of PEG channels and programming, or (ii) the township's use of the grantee's emergency alert system capability.
(Ord. No. 203, § XIX, 4-23-2001)

Sec. 28-49. Design and construction provisions.

(a) *Compliance with construction and technical standards.* The grantee shall construct, rebuild, install, operate and maintain its system in a manner consistent with state, federal and local laws and ordinances, (FCC) technical standards, and the franchise. Unless the franchise specifies otherwise, the system shall be designed, constructed, operated and maintained for 24-hours-a-day continuous operation.

(b) *Township approval of construction plans.* Other than for repairs or replacements, prior to the erection of any towers or poles or the placement of conduits or the upgrade or rebuild of the cable system under this article, to the extent any of the these acts occur within the public rights-of-way, the grantee shall first submit to the township for approval a concise description of the facilities proposed to be erected or installed, including engineering drawings, if required, together with a map and plans indicating the proposed location of all such facilities. No such work shall be commenced by any person until such approval has been received from the township.

(c) *Contractor qualifications.* Any contractor proposed for work of construction, installation, operation, maintenance, and repair of system equipment must be properly licensed under laws of the state and township ordinances, if any.

(d) *Minimum interference.* The grantee's system and associated equipment erected by the grantee within the township shall be so located as to cause minimum interference with the proper use of streets and to cause minimum interference with the rights and reasonable convenience of property owners who adjoin any of the streets.

(e) *Township maps.* The township does not guarantee the accuracy of any maps showing the horizontal or vertical location of existing substructures. In public rights-of-way, where necessary, the location shall be verified by excavation.

(f) *Quality of construction.* Construction, installation, operation, and maintenance of the cable system shall be performed in an orderly and workmanlike manner, in accordance with then current technological standards and the manufacturer's specifications. All cables and wires shall be installed, where possible, parallel with electric and telephone lines. Multiple cable configurations belonging to the grantee shall be arranged in parallel and bundled with due respect for aesthetic and engineering considerations.

(g) *Construction standards.* The construction, installation, operation, maintenance, and/or removal of the cable system shall meet all applicable standards within the National Electrical Code, National Electrical Safety Code, AT&T Manual of Construction Procedures, all federal, state and municipal construction requirements, including FCC rules and regulations. The system, once in place, does not have to be improved to conform to standards which are thereafter created unless those standards so require.

(h) *Right to inspection of construction.* The franchise shall ensure that the township has the right to inspect all construction or installation work performed subject to the franchise.

(i) *System construction schedule.* The franchise shall specify the rebuild or the initial construction timetable.

(j) *Extension of service.* Unless the franchise states to the contrary, the grantee shall provide service to all dwelling units and commercial entities requesting service within the township. (Ord. No. 203, § XX, 4-23-2001)

Sec. 28-50. Use of streets.

(a) *Underground installation.* In areas where either telephone or electric utility facilities are above ground at the time of installation, the grantee may install its service above ground, provided that at such time as those other facilities are required to be placed underground by the township or are placed underground, the grantee shall likewise place its services underground, without additional cost to the township or to the individual subscribers so served within the township. Where not otherwise required to be placed underground by this article or the franchise, the grantee's system shall be located underground at the request of the adjacent property owner, provided that the excess cost over the aerial location shall be borne by the property owner making the request. All cable passing under the roadway shall be installed in conduit.

(b) *Pedestals.* Any pedestals or other equipment to be located in the public rights-of-way shall comply with then-existing township and utility equipment installation requirements. No pedestal or other equipment which will occupy more than six square feet of the public right-of-way shall be so placed until the township so consents as specified in the franchise. All buried equipment shall be shown in the plan and cross section on the design plans for permits. Notwithstanding the provisions of this subsection, none of the provisions of this subsection shall apply to the grantee unless such requirements are uniformly and universally applied to all providers of any telecommunications or utility services.

(c) *Permits.* Prior to construction or alteration, either aboveground or belowground, the grantee shall, to the extent required by law or regulation, file plans with the appropriate township departments, enter into use agreements with the utility companies, obtain all construction permits and receive written approval of the township before proceeding.

(d) *Construction notice.* The grantee shall give appropriate notice to the township and affected residents within a reasonable period of time of planned major system construction or excavation work, but in no event shall such notice be given less than five days before such commencement.

(e) *Restoration to prior condition.* If the grantee's actions result in any disturbance of pavement, sidewalk, driveway or soil, the grantee shall, at its own expense and in a manner approved by the township, replace and restore such surface in as good a condition as before such disturbance occurred. Such restoration shall be undertaken and completed as soon as practicable.

(f) *Private property.* The grantee shall repair or replace all private property, both real and personal, damaged or destroyed as a result of the construction, installation, operating or maintenance of the cable system at its sole cost and expense and as soon as practicable.

(g) *Cooperation with building movers.* The grantee shall, on the request of any person holding a building moving permit issued by the township, temporarily raise or lower its wire to permit the moving of buildings. The expense of such temporary removal, raising or lowering of wires shall be paid by the person requesting the temporary removal, raising or lowering of wires, and the grantee shall have the authority to require such payment in advance. The grantee shall be given not less than 30 working days' advance notice to arrange for such temporary wire changes.

(h) *Tree trimming.* The grantee may, at its own expense, trim trees or other vegetation owned by the township (or which exist within the right-of-way) to prevent branches, leaves or roots from touching or otherwise interfering with its wires, cables, or other structures as approved by the township and consistent with township ordinances. The grantee shall remove any such trimmings within a reasonable time.

(i) *Easements.* All necessary easements over and under private property shall be obtained by the grantee.

(j) *Construction and installation manual.* The grantee shall allow the township to review at the grantee's office a copy of the grantee's manual which sets forth the specifications, standards and procedures for construction and installation of its cable system. Such manual shall, at a minimum, establish procedures to ensure quality work and provide for the safety and protection of residents and property.

(k) *Equipment changes.* Unless the township agrees to the contrary in writing, any substitution or changes in hardware components over the items specified in the franchise must be of equivalent or better capability as that originally specified.

(l) *Encumbrance.* The grantee shall not open, disturb or encumber, at any one time, any more public rights-of-way than may reasonably be necessary to enable the grantee to economically install or repair its facilities; nor shall the grantee permit any public rights-of-way to remain open, disturbed or encumbered for a longer period of time than is reasonably necessary.

(m) *Vacation.* If a public right-of-way is vacated, eliminated, discontinued, or closed, all rights of the grantee under this franchise to use the right-of-way shall terminate and the grantee, at its expense, shall immediately remove the telecommunications and/or cable system from such public right-of-way unless the grantee obtains any necessary easements from the affected property owners to use the former public right-of-way.

(n) *Disconnect and relocation.* The grantee shall protect, support, temporarily disconnect, relocate or remove its system facilities which exist within the public rights-of-way if, in the reasonable judgment of the township, it is necessary for the public safety or to facilitate street construction or other public improvements. Such acts shall be at the grantee's sole cost and expense so long as the same policy is imposed upon all other users of the rights-of-way.

(o) *Underground construction.* The grantee shall comply with all state, federal and local laws and ordinances regarding underground construction, including that which relate to MISS DIG. If the grantee damages any township water, sewage or drainage lines, or any other township property, during the course of construction, the grantee shall be responsible for the cost of repair, which sums may be recovered from bonds provided by the grantee for the benefit of the township.
(Ord. No. 203, § XXI, 4-23-2001)

Sec. 28-51. Conduit.

No conduit shall be installed by the grantee without prior approval of the township as specified in the franchise.
(Ord. No. 203, § XXII, 4-23-2001)

Sec. 28-52. Service provisions.

(a) *Programming.* Concurrently with the activation of the cable system in the township, the grantee shall provide at all times the following services to its subscribers:

(1) A basic service tier.

(2) Access channels for government, educational, and public access, the number of which shall be specified in the franchise.

(3) If the grantee offers an electronic and/or printed channel guide to subscribers and is capable of providing local program listings, and listings of local access programs are provided by the township in a timely manner, the grantee shall ensure that the township-provided listings are carried on a daily basis. Additional costs of providing these services may be passed through to subscribers.

(4) Services, facilities and equipment for public, educational, and government access, as specified in the franchise.

(b) *Institutional network.* The grantee shall provide a separate institutional network, equipment, and/or services and capacity, in addition to the residential subscriber network, as specified in the franchise.
(Ord. No. 203, § XXIII, 4-23-2001)

Sec. 28-53. Operation after termination or expiration of franchise.

(a) *Subscription rights.* It shall be the right of all subscribers to receive continuous, uninterrupted service insofar as their financial contractual and legal obligations to the grantee are honored.

(b) *Failure to provide continuity.* If the grantee fails to operate the system for seven consecutive days without prior approval of the township or without just cause, the township may, at its option, operate the system or designate an operator until such time as the grantee restores service under conditions acceptable to the township or a permanent operator is selected. If the township is required to fulfill this obligation for the grantee, the grantee shall reimburse the township for all reasonable costs or damages in excess of revenues from the system received by the township that are the result of the grantee's failure to perform.

(c) *Extended operation.* If the franchise is terminated, or upon its expiration, the township may require the grantee to continue operation for a period not exceeding 12 months after the date of the grantee's termination or expiration. The grantee shall remove, at its own expense, its system facilities from all public rights-of-way and shall maintain bonds until the conclusion of all operations under that franchise and this article, including such removal of facilities.
(Ord. No. 203, § XXIV, 4-23-2001)

Sec. 28-54. Nondiscrimination required.

The grantee shall not illegally discriminate in providing service to the public nor against any employee or applicant for employment because of race, color, religion, sex, national origin or age.
(Ord. No. 203, § XXV, 4-23-2001)

Sec. 28-55. Initial franchise applications.

(a) *Invitation of any applications for a franchise; public notice of request for proposals.* The township may charge an application fee and require the applicant to pay all related costs and expenses for the initial franchise process. The township may invite applications for a cable television franchise by means of a public notice advertising the availability of its request for proposals.

(b) *Request for proposals.* Prior to inviting any applications for any cable television franchise, the township shall prepare a request for proposals that shall contain at least the following:

(1) A description of the cable television system and services desired by the township including any system specifications established by the township.

(2) A statement specifying the form that all applications shall follow.

(3) A statement indicating the amount of the application fee, if any, to be submitted with the application, and the manner in which such fee is to be submitted.

(4) A statement that all applications must contain the information required by the request for proposal.

(5) The closing date for the submission of applications.

(6) The name, address, and telephone number of the township official who may be contacted for further information.

(c) *Franchise application.* Any applicant for a franchise shall complete the township's request for proposal and provide the information required therein.

(d) *Requirement for public hearing on reasonable notice.* The township shall conduct a public hearing before granting a franchise. The hearing shall be preceded by 14 days notice to the franchise applicant, to any existing grantee, and to the public, and shall be conducted in a fashion to ensure that all interested persons have an opportunity to speak. Every person who has applied for a franchise shall appear at the hearing either in person or by authorized representative. The application of any applicant not so appearing shall not be further considered, except for good cause shown.

(e) *Township discretion.* In accordance with this article and other applicable law, the township, at its discretion, may reject or award any application for a franchise.
(Ord. No. 203, § XXVI, 4-23-2001)

Sec. 28-56. Miscellaneous provisions.

(a) *Assigns.* All provisions of this article shall apply to the grantee, its successors, and assigns, as such may be approved by the township in accordance with this article.

(b) *Resale.* No person shall resell, without the written consent of the grantee, any cable service, program, or signal transmitted by a grantee.
(Ord. No. 203, § XXVII, 4-23-2001)

Secs. 28-57—28-80. Reserved.

ARTICLE III. CABLE TELEVISION RATE REGULATIONS

Sec. 28-81. Purpose.

The purpose of this article is to regulate rates of cable television basic service and associated equipment through adoption of regulations consistent with the provisions of the Federal Communications Act of 1934, as amended, including the Cable Television Consumer Protection and Competition Act of 1992, Public Law 102-385, and the Federal Communication Commission's rules and regulations promulgated pursuant thereto; and to provide procedures applicable to rate regulation which offer a reasonable opportunity for comment by interested parties. (Comp. Ords. as Rev. 12-1999, § 20.552)

Sec. 28-82. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Act means the Federal Communications Act of 1934, as amended, specifically including the amendments contained in the Cable Television Consumer Protection and Competition Act of 1992, Public Law 102-385.

Associated equipment means equipment used by a subscriber to receive basic service cable programming regardless of whether such equipment is also used to receive other tiers of regulated programming service and/or unregulated tiers of programming service. Associated equipment includes, but is not limited to, the following:

(1) Converter boxes;

(2) Remote control units;

(3) Connections for additional television receivers; and

(4) Other cable home wiring.

Basic service means the level or tier of cable television programming which includes, at a minimum, all signals of domestic television broadcast stations provided to any subscriber (except a signal secondarily transmitted by satellite carrier beyond the local service area of such station, regardless of how such signal is ultimately received by the cable system), a public, educational and/or governmental programming required by the franchising authority to be carried as a basic service, and any additional video programming signals added to the basic service by the regulated cable operator.

Existing rates means the rates for basic service and associated equipment charged by a regulated cable operator on the initial date of regulation by the franchising authority.

FCC means the United States Federal Communications Commission.

FCC rules and/or regulations means any and all rules and/or regulations which the FCC promulgates and/or adopts pursuant to the Act.

Franchising authority means the township board.

Rate increase means an increase in rates for basic service and/or associated equipment including, among others, increases in rates that are the result of reductions in programming provided under the basic service.

Regulated cable operator means any operator of a cable television system that is subject to regulation by a certified franchising authority.
(Comp. Ords. as Rev. 12-1999, § 20.553)

Cross reference—Definitions generally, § 1-2.

Sec. 28-83. Undefined words or terms.

Any word or term which is not specifically defined in section 28-82 shall be given its normal, ordinary meaning. Provided that any word or term which is used in this article and which is not specifically defined in section 28-82 but is defined in FCC rules or regulations shall have the meanings given to such word or term in the FCC rules and/or regulations.
(Comp. Ords. as Rev. 12-1999, § 20.554)

Cross reference—Definitions generally, § 1-2.

Sec. 28-84. Rate regulation; adoption of FCC rules and/or regulations.

(a) The township, by this reference, hereby adopts all rules and regulations regarding basic service rates and associated equipment rates which the FCC promulgates pursuant to the Act, and makes such rules and regulations part of this article.

(b) The township has submitted an application to the FCC for certification as a cable franchising authority pursuant to the Act. Upon certification as a cable franchising authority, the township shall regulate the basic service rates and associated equipment rates in compliance with the Act, the FCC rules and/or regulations and this article.

(c) Upon receiving its certification, the franchising authority shall send written notice of its certification and notice that it has adopted the required regulations, return receipt requested, to all regulated cable operators within the township. The date upon which the franchising authority gives this notice is the initial date of regulation.
(Comp. Ords. as Rev. 12-1999, § 20.555)

Sec. 28-85. Designation of the cable franchising authority.

Effective upon certification of the township as a cable franchising authority, the township board is hereby designated as the cable franchising authority for the township and shall execute the powers, duties and responsibilities given to the cable franchising authority in this article, the Act and the FCC rules and/or regulations.
(Comp. Ords. as Rev. 12-1999, § 20.556)

Sec. 28-86. Regulated cable operators.

(a) A regulated cable operator shall comply with all duties and obligations imposed upon the regulated cable operator by the Act, FCC rules and/or regulations and this article.

(b) A regulated cable operator has the burden of proving that its submitted existing rates or a proposed rate increase comply with the Act and FCC rules and regulations.
(Comp. Ords. as Rev. 12-1999, § 20.557)

Sec. 28-87. Submission of existing rate schedule.

(a) Within 30 days of receiving the notice identified in subsection 28-84(c), a regulated cable operator shall submit an original copy and eight copies of a written schedule of the regulated cable operator's existing rates to the franchising authority. Such schedule shall be addressed in care of the township clerk.

(b) The schedule identified in subsection (a) of this section shall contain a detailed statement explaining whether the regulated cable operator's existing rates comply with existing FCC rules and/or regulations for basic service rates and associated equipment rates.

(c) Upon receipt of the existing basic service rate and associated equipment rate schedule, the township clerk shall provide the schedule to the franchising authority within seven days.
(Comp. Ords. as Rev. 12-1999, § 20.558)

Sec. 28-88. Franchising authority existing rate review.

(a) Unless the time for conducting the public hearing and entering a decision is extended by the issuance of a tolling order by the franchising authority pursuant to section 28-91, the franchising authority shall hold a public hearing on the existing rate schedule which the regulated cable operator submitted to the franchising authority, and enter a decision on such submitted schedule within 30 days of the date the township clerk received the schedule. If the time for conducting the public hearing is extended pursuant to section 28-91, a public hearing should be held and decision rendered before the extended time period expires.

(b) The existing rates identified in the submitted schedule of rates shall go into effect 30 days from the date of the township clerk's receipt of the schedule unless the franchising authority disapproves the rate or extends the time period for conducting the review of existing rates pursuant to section 28-91.

(c) If the franchising authority fails to act on the submitted existing rates by the end of the respective tolling period, then the rates will remain in effect. If the franchising authority subsequently disapproves any portion of such rates, refunds may not be ordered unless a brief written order is issued by the franchising authority before the end of the respective tolling period directing the regulated cable operator to keep an accurate accounting of all its customers and the amounts paid by each as a result of such rates.
(Comp. Ords. as Rev. 12-1999, § 20.559)

Sec. 28-89. Regulation of rate increases.

(a) A regulated cable operator cannot institute a rate increase charged to its subscribers unless the regulated cable operator complies with the Act, FCC rules and/or regulations and this article.

(b) A regulated cable operator which proposes a rate increase must submit at least eight copies of the proposed rate increase request to the franchising authority in care of the township clerk.
(Comp. Ords. as Rev. 12-1999, § 20.560)

Sec. 28-90. Franchising authority rate increase review.

(a) Unless the time for conducting the public hearing and entering a decision is extended by the issuance of a tolling order by the franchising authority pursuant to section 28-91, the franchising authority shall conduct a public hearing and render a decision upon the regulated cable operator's proposed rate increase request within 30 days of the township clerk's receipt of a proposed rate increase request. If the time for holding the public hearing is extended pursuant to section 28-91, the public hearing should be held and decision rendered before the extended time period expires.

(b) A proposed rate increase requested by a regulated cable operator will become effective after 30 days have elapsed from the date the township clerk received the proposed rate increase request unless the franchising authority disproves the proposed rate increase or extends the time period for conducting the review of the proposed rate increase pursuant to section 28-91.

(c) If the franchising authority allows rate increases to go into effect at the end of the respective tolling period through inaction and then subsequently disapproves any portion of such rates, then refunds may not be ordered unless a brief written order is issued by the franchising authority before the end of the respective tolling period, directing the regulated cable operator to keep an accurate accounting of all its customers and the amounts paid by each as a result of such rates.
(Comp. Ords. as Rev. 12-1999, § 20.561)

Sec. 28-91. Tolling order.

(a) If the franchising authority is unable to determine, based upon the material submitted by the regulated cable operator, that the existing rates or proposed rate increase is reasonable or if the regulated cable operator has submitted a cost of service showing, then the franchising authority may toll the 30-day deadline for an additional 90 days in cases not involving cost of service showings or for an additional 150 days in cases involving cost of service showings.

(b) In order for the franchising authority to toll the 30-day period pursuant to subsection (a) of this section, the franchising authority must issue an order explaining that additional time and/or information is necessary in order for the franchising authority to act upon the existing rates or the proposed rate increase. Such order must be in writing, by resolution adopted within such 30-day period.

(c) The franchising authority shall send a copy of the tolling order to the regulated cable operator by first class mail within seven days after the effective date of the decision.
(Comp. Ords. as Rev. 12-1999, § 20.562)

Sec. 28-92. Public hearing.

(a) During the public hearing on the review of a regulated cable operator's existing rates or on review of a proposed rate increase, the franchising authority shall provide the regulated cable operator and all other interested persons with the opportunity to comment on the rates either in person, in writing, or by agent.

(b) The franchising authority may conduct as many public hearings as necessary to carry out the provisions of the Act, FCC rules and regulations and this article.

(c) If the franchising authority deems it necessary, either prior to or following a public hearing, the franchising authority may direct the preparation of a written report for the franchising authority. This report may contain a recommendation to the franchising authority for its decision on the review of the existing rate schedule or proposed rate request submitted by a regulated cable operator. This recommendation should also summarize and be based upon the schedule or request submitted by the regulated cable operator; comments or objections to the schedule or request which the franchising authority received from the regulated cable operator; any additional information received from the regulated cable operator; information which the franchising authority received from a consultant, its staff or its attorney; and other information which it deems appropriate.

(d) The franchising authority shall send, by first class mail, a copy of any report to the regulated cable operator prior to the franchising authority's consideration of the report at a public hearing.
(Comp. Ords. as Rev. 12-1999, § 20.563)

Sec. 28-93. Public hearing notice.

(a) The franchising authority shall send a written notice of the date, time and location of the public hearing to the regulated cable operator which submitted the existing rates or proposed rate increase for review no less than seven days before the date of the public hearing. Such notice is to be sent to the regulated cable operator by first class mail.

(b) The franchising authority shall cause to be published, in a qualified newspaper of general circulation within the township, a notice of the public hearing on the existing rate schedule or proposed rate increase request no less than seven days before the public hearing. Such notice shall state the following:

(1) That a regulated cable operator has submitted the existing rate schedule or proposed rate increase request to the franchising authority for review pursuant to this article.

(2) The location and times at which the public may examine the submitted schedule of existing rates or proposed rate increase request.

(3) The date, time and location at which the franchising authority will conduct the public hearing.

(4) That all interested persons shall have an opportunity to comment on the rates at the public hearing, and/or to submit written comments on or before the date of the public hearing to the franchising authority.

(Comp. Ords. as Rev. 12-1999, § 20.564)

Sec. 28-94. Franchising authority decision on review of existing rates or proposed rate increase.

The franchising authority shall issue a written order supported by its reasons, by resolution, which:

(1) Approves the regulated cable operator's existing rate or proposed rate increase;

(2) Disapproves the regulated cable operator's existing rate or proposed rate increase; or

(3) Approves, in part, and disapproves, in part, the regulated cable operator's existing rate or proposed rate increase; and/or

(4) Orders a rate reduction; and/or

(5) Prescribes a reasonable rate; and/or

(6) Determines that a refund hearing should be held pursuant to section 28-95; and/or

(7) Orders any further appropriate relief permitted by this article, the act or the FCC rules and/or regulations.

(Comp. Ords. as Rev. 12-1999, § 20.565)

Sec. 28-95. Refund hearing.

(a) If the franchising authority determines that the subscribers to a regulated cable operator may be entitled to a refund pursuant to FCC rules and regulations (specifically 47 CFR 76.942), the franchising authority shall include a notice in its decision issued pursuant to section 28-94 that the franchising authority will hold a public hearing to consider ordering the regulated cable operator to make a refund to subscribers.

(b) The franchising authority shall then conduct a public hearing to determine whether to order a refund to subscribers and the amount of the refund.

(c) The franchising authority shall send, by first class mail, to the regulated cable operator, written notice of the date, time and location of the public hearing. Such notice must be sent no less than seven days before the public hearing.

(Comp. Ords. as Rev. 12-1999, § 20.566)

Sec. 28-96. Refund hearing decision.

(a) At any refund hearing, the regulated cable operator may appear in person, by agent or in writing to comment upon whether the franchising authority should order a refund.

(b) Members of the public may also comment at the refund hearing in person, by agent or in writing.

(c) At the conclusion of the refund hearing, the franchising authority shall issue a written order, by resolution:

(1) Denying a refund; or

(2) Ordering the regulated cable operator to implement a refund.

(Comp. Ords. as Rev. 12-1999, § 20.567)

Sec. 28-97. Notice of franchising authority decisions.

(a) All decisions of the franchising authority issued pursuant to section 28-94 and/or section 28-96 shall be as follows:

(1) In writing, by resolution, supported by its reasons; and

(2) Effective as of the date the franchising authority makes the decision.

(b) Notice of all decisions of the franchising authority issued pursuant to section 28-94 and/or section 28-96 shall be published in a qualified newspaper of general circulation in the township no less than 15 days after the effective date of the decision. Such notice shall include the following:

(1) A summary of the franchising authority's written decision;

(2) A statement that copies of the franchising authority's decision are available for public inspection;

(3) A statement as to the location at which, and times during which, the public may inspect copies of the franchising authority's decision.

(c) The franchising authority shall send, by first class mail, a copy of the franchising authority's decision to the regulated cable operator not more than seven days after the effective date of the franchising authority's decision.

(Comp. Ords. as Rev. 12-1999, § 20.568)

Sec. 28-98. Proprietary information and production of documents.

The franchising authority may require the regulated cable operator to produce documents needed to make rate decisions. Requests that proprietary information be held confidential shall be supported by the regulated cable operator and be handled in a manner analogous to the procedures and criteria set forth in 47 CFR 0.459.

(Comp. Ords. as Rev. 12-1999, § 20.569)

Chapter 29

RESERVED

Chapter 30

TRAFFIC AND MOTOR VEHICLES*

Article I. In General

Secs. 30-1—30-30. Reserved.

Article II. Uniform Traffic Code

Sec. 30-31. Code adopted.
Sec. 30-32. Amendments.
Secs. 30-33—30-59. Reserved.

Article III. Charter Township of Texas Motor Vehicle Code

Sec. 30-60. Adoption of Michigan Motor Vehicle Code by reference.
Sec. 30-61. Conflict with UTC; repeal of inconsistent ordinances.
Sec. 30-62. Penalties; misdemeanor.
Secs. 30-63—30-80. Reserved.

Article IV. Parking Violations Bureau

Sec. 30-81. Establishment of parking violations bureau.
Sec. 30-82. Purpose of article.
Sec. 30-83. Parking offenses and civil fines.
Sec. 30-84. Citation requirements and admission of responsibility.
Sec. 30-85. Denial of responsibility.
Sec. 30-86. Accounting of citations.

***Cross references—**Littering property or water prohibited, removal of injurious substances dropped on highway as result of accident, § 10-92; littering by vehicles, unlawful, § 10-94; traffic at Kalamazoo Valley Community College, § 14-71 et seq.; law enforcement, ch. 18; parking of motor vehicles, § 36-626.

State law reference—Michigan vehicle code, MCL 257.1 et seq.

ARTICLE I. IN GENERAL

Secs. 30-1—30-30. Reserved.

ARTICLE II. UNIFORM TRAFFIC CODE

Sec. 30-31. Code adopted.

The Uniform Traffic Code for Cities, Townships, and Villages as promulgated by the director of state police and published in the 1979 edition of the Michigan Administrative Code and amendments as published in the 1981 Annual Supplement to the 1979 edition of the Michigan Administrative Code, in accordance with Public Act No. 62 of 1956 (MCL 257.951 et seq.), is hereby adopted by reference except as amended in this article.
(Comp. Ords. as Rev. 12-1999, § 20.601)

Sec. 30-32. Amendments.

The following sections of the Uniform Traffic Code as adopted by section 30-31 are hereby amended to read as follows: All references to a numbered section in these sections of Michigan Statutes adopted by reference shall be understood to refer to the corresponding section of this section and the Uniform Traffic Code hereby amended, where applicable.

Section 3.2a is amended to read as follows:

Section 3.2a. Failure to stop upon signal of police or conservation officer.

(1) A driver of a motor vehicle who is given by hand, voice, emergency light, or siren a visual or audible signal by a police or conservation officer, acting in the lawful performance of his duty, directing the driver to bring his motor vehicle to a stop shall not willfully fail to obey that direction by increasing the speed of the motor vehicle, extinguishing the lights of the motor vehicle, or otherwise attempting to flee or elude the officer. This subsection does not apply unless the police or conservation officer giving the signal is in uniform, and the vehicle driven by the police or conservation officer is identified as an official police or department of natural resources vehicle.

(2) A person who violates this section is guilty of a misdemeanor, punishable by a fine of not more than $500.00 and/or not more than 90 days imprisonment.

Section 4.6. Traffic control signals; meaning of terms and lights; place where stop is to be made; right turn on red; persons in wheelchairs or using devices to assist walking.

Section 4.6 is hereby replaced with the provisions of MCL 257.612, as amended by Public Act No. 33 of 1990, which provisions are incorporated herein by reference as if fully set forth.

Section 5.6. Reporting of certain traffic accidents.

Section 5.6 is hereby replaced with the provisions of MCL 257.622, as amended by Public Act No. 168 of 1991, which provisions are incorporated herein by reference as if fully set forth.

Section 5.10. Speed restrictions.

Section 5.10 is hereby replaced with the provisions of MCL 257.627, as amended by Public Act No. 165 of 1990, which provisions are incorporated herein by reference as if fully set forth.

Section 5.15. Driving while intoxicated and reckless driving.

Section 5.15 is hereby replaced with the provisions of MCL 257.625, as amended by Public Act No. 460 of 2000, which provisions are incorporated herein by reference as if fully set forth.

Section 5.15a. Arrest without warrant for drinking-driving offenses; bodily alcohol testing; evidence.

Section 5.15a is hereby replaced with the provisions of MCL 257.625a, as amended by Public Act No. 351 of 1998, which provisions are incorporated herein by reference as if fully set forth.

Section 5.15b. Arraignment; license sanctions upon conviction.

Section 5.15b is hereby replaced with the provisions of MCL 257.625b, as amended by Public Act No. 450 of 1994, which provisions are incorporated herein by reference as if fully set forth.

Section 5.15c. Consent to chemical tests.

Section 5.15c is hereby replaced with the provisions of MCL 257.625c, as amended by Public Act No. 450 of 1994, which provisions are incorporated herein by reference as if fully set forth. Subsection (1)(b), including subparts (i) and (ii) therein, of such amended Section 625c are not incorporated by reference.

Section 5.15d. Chemical test refusal and test upon court order.

Section 5.15d is hereby replaced with the provisions of MCL 257.625d, as amended by Public Act No. 211 of 1994, which provisions are incorporated herein by reference as if fully set forth.

Section 5.15f. License sanctions for chemical test refusal.

Section 5.15f is hereby replaced with the provisions of MCL 257.625f, as amended by Public Act No. 450 of 1994, which provisions are incorporated herein by reference as if fully set forth.

Section 5.15g. Confiscation by peace officer of accused's license upon refusal to take test or if test reveals impermissible blood alcohol content; issuance of temporary license; report to secretary of state; destruction of accused's license.

Section 5.15g is hereby replaced with the provisions of MCL 257.625g, as amended by Public Act No. 450 of 1994, which provisions are incorporated herein by reference as if fully set forth.

Section 5.15h. Drunk driving prevention equipment and training funds; drunk driving case flow assistance fund.

Section 5.15h is hereby replaced with the provisions of MCL 257.625h, as amended by Public Act No. 73 of 1999, which provisions are incorporated herein by reference as if fully set forth.

Section 5.15m. Prohibition of operation of commercial motor vehicle with certain percentage of bodily alcohol.

Section 5.15m is hereby replaced with the provisions of MCL 257.625m, as amended by Public Act No. 460 of 2000, which provisions are incorporated herein by reference as if fully set forth.

Section 5.15n. Drinking-driving offenses; forfeiture of vehicle.

Section 5.15n is hereby replaced with the provisions of MCL 257.625n, as amended by Public Act No. 349 of 1998, which provisions are incorporated herein by reference as if fully set forth.

Section 5.16. Transport of or possession of alcoholic liquor by a person less than 21 years of age.

Section 5.16 is hereby added with the provisions of MCL 257.624b, as amended by Public Act No. 349 of 1998, which provisions are incorporated herein by reference as if fully set forth.

Section 5.16a. Purchase, consumption or possession of alcoholic liquor by person under 21 years of age; attempts; furnishing or use of fraudulent identification to purchase alcoholic liquor.

Section 5.16a is hereby added with the provisions of MCL 436.1703, as amended by Public Act No. 53 of 1999, which provisions are incorporated herein by reference as if fully set forth. All references to a numbered "section" in such amended section 1703 shall be understood to refer to the numbered section of the Michigan liquor control code of 1998 (MCL 436.1101 et seq.), and/or to the corresponding section of the ordinances/Uniform Traffic Code amended herein, where applicable.

Section 5.16b. Transportation or possession of alcoholic liquor in container open or uncapped or upon which seal broken.

Section 5.16b is hereby replaced with the provisions of MCL 257.624a, as amended by Public Act No. 349 of 1998, which provisions are incorporated herein by reference as if fully set forth.

Section 5.16c. Consumption of liquor prohibited on public highways and other public places is amended to read as follows:

> *Section 5.16c. Consumption of liquor prohibited on public highways and other public places.*
>
> (1) Alcoholic liquor shall not be consumed on the public highways.
>
> (2) Alcoholic liquor shall not be possessed or consumed in public parks, public places of amusement, or a publicly owned area (an area under the jurisdiction of the

township) not licensed to sell for consumption on the premises, except as may be specifically allowed by other ordinance, order, or resolution of the township board.

(3) A person who violates this section is guilty of a misdemeanor.

Section 5.57. Spilling load on highway prohibited; construction or loading of vehicles; vehicles not completely enclosed; logs or tubular products; exemptions; penalty.

Section 5.57 is hereby replaced with the provisions of MCL 257.720, as amended by Public Act No. 136 of 1996, which provisions are incorporated herein by reference as if fully set forth.

Section 5.62a. Driving without license or while license suspended/revoked/denied.

Section 5.62a is hereby replaced with the provisions of MCL 257.904, as amended by Public Act No. 77 of 2000, which provisions are incorporated herein by reference as if fully set forth.

Section 5.62b. Driving while license suspended or revoked for reasons of financial responsibility is amended to read as follows:

Section 5.62b. Driving while license suspended or revoked for reasons of financial responsibility.

(1) A person whose operator's or chauffeur's license, registration, or other privilege to operate a motor vehicle has been suspended or revoked, if restoration of the privilege or issuance of a new license or registration is contingent upon the furnishing of proof of financial responsibility, shall not during the suspension or revocation or in the absence of full authorization from the secretary of state drive any motor vehicle upon any highway or street or knowingly permit any motor vehicle owned by the person to be operated by another person upon any highway or street except as permitted in Public Act No. 300 of 1949 (MCL 257.1 et seq.).

(2) A person who violates this section is guilty of a misdemeanor, punishable by a fine of not more than $500.00, or by imprisonment for a period of not less than two days nor more than one year, or both.

Sections 5.64, 5.65 and 5.66 are hereby repealed, the provisions thereof having been consolidated in new section 5.64a.

Section 5.64a. Unlawful use or void license; suspension of license.

Section 5.64a is hereby added with the provisions of MCL 257.324, as amended by Public Act No. 79 of 1985, which provisions are incorporated herein by reference as if fully set forth.

Section 5.70b. Nonresident owners of motor vehicles; registration exemptions; temporary permits; duration.

Section 5.70b is hereby added with the provisions of MCL 257.243, as amended by Public Act No. 299 of 1989, which provisions are incorporated herein by reference as if fully set forth.

Section 5.70c. Production of evidence of certificate of insurance; violations and penalties; exemptions.

Section 5.70c is hereby added with the provisions of MCL 257.328, as amended by Public Act No. 287 of 1995, which provisions are incorporated herein by reference as if fully set forth.

Section 5.70d. Operation of vehicle without security is amended to read as follows:

Section 5.70d. Operation of vehicle without security.

(1) A nonresident owner or registrant of a motor vehicle or motorcycle not registered in this state shall not operate or permit the motor vehicle or motorcycle to be operated in this state for an aggregate of more than 30 days in any calendar year unless he continuously maintains security for the payment of benefits pursuant to chapter 31 of Public Act No. 218 of 1956 (MCL 500.3101 et seq.).

(2) An owner or registrant of a motor vehicle or motorcycle with respect to which security is required shall not operate the motor vehicle or motorcycle or permit it to be operated upon a public highway in this state without having in full force and effect security complying with this section or MCL 500.3101 or MCL 500.3103.

(3) A person who violates this section is guilty of a misdemeanor. Any other person who operates a motor vehicle or motorcycle upon a public highway in this state with the knowledge that the owner or registrant does not have security in full force and effect is guilty of a misdemeanor. A person convicted of a misdemeanor under this section shall be fined not less than $200.00 nor more than $500.00, imprisoned for not more than 90 days, or both.

Section 5.80b. Television viewable by driver prohibited in motor vehicle; exceptions.

Section 5.80b is hereby replaced with the provisions of MCL 257.708b, as amended by Public Act No. 55 of 1991, which provisions are incorporated herein by reference as if fully set forth.

Section 5.82. Child restraint system.

Section 5.82 is hereby added with the provisions of MCL 257.710d, as amended by Public Act No. 29 of 1999, which provisions are incorporated herein by reference as if fully set forth.

Section 5.83. Safety belt regulations.

Section 5.83 is hereby added with the provisions of MCL 257.710e, as amended by Public Act No. 29 of 1999, which provisions are incorporated herein by reference as if fully set forth.

Section 5.97. Overtaking or meeting stopped bus; violation as civil infraction; meeting bus on divided highway; evidence of violation; penalties for infraction; community service.

Section 5.97 is hereby replaced with the provisions of MCL 257.682, as amended by Public Act No. 188 of 1990, which provisions are incorporated herein by reference as if fully set forth.

Section 6.10. Bicycles, motorcycles and mopeds; lane of travel; special paths; passing; sidewalks; police officers.

Section 6.10 is hereby replaced with the provisions of MCL 257.660, as amended by Public Act No. 82 of 2000, which provisions are incorporated herein by reference as if fully set forth.

Sections 6.11, 6.12 and 6.19, now consolidated in section 6.10, are hereby repealed.

Existing sections 10.14, 10.22, 10.23, 10.31, 10.32, 10.33, 10.34, 10.35, 10.36, and 10.39(2) and (3), 10.40 and 10.41 are hereby repealed

Section 10.23. Operating restrictions and muffler requirements for snowmobiles is amended to read as follows:

Section 10.23. Operating restrictions and muffler requirements for snowmobiles.

(1) A person shall not operate a snowmobile under any of the following circumstances:

(a) At a rate of speed greater than is reasonable and proper having due regard for conditions then existing.

(b) Without displaying a lighted headlight and lighted taillight.

(c) In a forest nursery, planting area, or public lands posted or reasonably identifiable as an area of forest reproduction when growing stock may be damaged or posted or reasonably identifiable as a natural dedicated area.

(d) On the frozen surface of public waters within 100 feet of a person, including a skater, not in or upon a snowmobile, or within 100 feet of a fishing shanty or shelter, except at the minimum speed required to maintain forward movement of the snowmobile, or on an area which has been cleared of snow for skating purposes unless the area is necessary for access to the public water.

(e) Without a muffler in good working order and in constant operation, from which noise emission does not constitute a violation of the township antinoise and public nuisance ordinance.

(f) Within 100 feet of a dwelling between 12:00 midnight and 6:00 a.m., at a speed greater than the minimum required to maintain forward movement of the snowmobile.

(g) In or upon the lands of another without the written consent of the owner of the land, or the agent or lessee of the owner of the land, when required by the recreational trespass act, part 731 of Public Act No. 451 of 1994 (MCL 324.73101 et seq.).

(h) In an area on which public hunting is permitted during the season open to the taking of deer with firearms from 7:00 a.m. to 11:00 a.m. and from 2:00 p.m. to 5:00 p.m., except during an emergency, for law enforcement purposes, to go to and from a permanent residence or a hunting camp otherwise inaccessible by a conventional wheeled vehicle or for the conduct of

necessary work functions involving land and timber survey, communication and transmission line patrol, and timber harvest operations, or on the person's own property or property under the person's control or as an invited guest.

(i) While transporting on the snowmobile a bow, unless unstrung, or a firearm, unless securely encased or equipped with, and made inoperative by, a manufactured keylocked trigger housing mechanism.

(j) On or across a cemetery or burial ground.

(k) Within 100 feet of a slide, ski, or skating area. A snowmobile may enter such an area for the purpose of servicing the area or for medical emergencies.

(l) On a railroad or railroad right-of-way, except railroad personnel, public utility personnel and law enforcement personnel while in the performance of their duties.

State law reference—Snowmobiles, MCL 324.82101 et seq.

Section 10.40. Operation by minors.

Sections 10.40 and 10.41 are hereby repealed and replaced with the provisions of MCL 324.82120, as amended by Public Act No. 58 of 1995, which provisions are incorporated herein by reference as if fully set forth.

Chapter 11. Off-Road Recreation Vehicles is added to read as follows:

CHAPTER 11 — OFF-ROAD RECREATION VEHICLES

Section 11.1. Definitions.

(1) The following words and phrases, when used in this chapter, have the following meaning respectively ascribed to them in this chapter. When any word or phrase used in this chapter is not defined in this chapter, but is defined in this code or in part 811 of Public Act No. 451 of 1994 (MCL 324.81101 et seq.), the definitions used therein shall be deemed to apply to the words and phrases used in this chapter.

(a) *ATV* means a three-wheel or four-wheel vehicle designed for off-road use that has low pressure tires, has a seat designed to be straddled by the rider, and is powered by a 50cc to 500cc gasoline engine or an engine of comparable size using other fuels.

(b) *Operate* means to ride in or on, and be in actual physical control of, the operation of an ORV.

(c) *Operator* means a person who operates or is in actual physical control of the operation of an ORV.

(d) *ORV* and *vehicle* mean a motor-driven off-road recreation vehicle capable of cross-country travel without benefit of a road or trail, on or immediately over land, snow, ice, marsh, swampland, or other natural terrain. It includes, but is not limited to, a multitrack or multiwheel drive vehicle, an

ATV, a motorcycle or related two-wheel, three-wheel, or four-wheel vehicle, an amphibious machine, a ground effect air cushion vehicle, or other means of transportation deriving motive power from a source other than muscle or wind. The term "ORV" or "vehicle" does not include a registered snowmobile, a farm vehicle being used for farming, a vehicle used for military, fire, emergency, or law enforcement purposes, a vehicle owned and operated by a utility company or an oil or gas company when performing maintenance on its facilities or on property over which it has an easement, a construction or logging vehicle used in performance of its common function, or a registered aircraft.

Section 11.2. Operating restrictions and equipment requirements.

(1) A person shall not operate an ORV:

(a) At a rate of speed greater than is reasonable and proper, or in a careless manner having due regard for conditions then existing.

(b) Unless the person and any passenger in or on the vehicle is wearing on his head a crash helmet and protective eyewear approved by the United States department of transportation. This subsection shall not apply if the vehicle is equipped with a roof that meets or exceeds standards for a crash helmet and the operator and each passenger is wearing a properly adjusted and fastened safety belt.

(c) During the hours of one-half hour after sunset to one-half hour before sunrise without displaying a lighted headlight and lighted taillight.

(d) Unless equipped with a braking system that may be operated by hand or foot, capable of producing deceleration at 14 feet a second on level ground at a speed of 20 miles per hour a brake light, brighter than the taillight, visible when the brake is activated to the rear of the vehicle when the vehicle is operated during the hours of one-half hour after sunset and one-half hour before sunrise; and a throttle so designed that when the pressure used to advance the throttle is removed, the engine speed will immediately and automatically return to idle.

(e) In a state game area or state park or recreation area, except on roads, trails, or areas designated for this purpose on state-owned lands under the control of the Michigan Department of Natural Resources other than game areas, state parks, or recreational areas where the operation would be in violation of rules promulgated by the Natural Resources Commission; in a forest nursery or planting areas on public lands posted or reasonably identifiable as an area of forest reproduction, and when growing stock may be damaged; in a dedicated natural area of the Michigan Department of Natural Resources; or in any area in such a manner as to create an erosive condition, or to injure, damage, or destroy trees or growing crops.

(f) On the frozen surface of public waters within 100 feet of a person not in or upon a vehicle, or within 100 feet of a fishing shanty or shelter or an area that is cleared of snow for skating purposes, except at the minimum speed required to maintain controlled forward movement of the vehicle, or as may be authorized by permit in special events.

(g) Unless the vehicle is equipped with a spark arrester type United States forest service approved muffler, in good working order and in constant operation. Exhaust noise emission shall not constitute a violation of the township antinoise and public nuisance ordinance.

(h) Within 100 feet of a dwelling at a speed greater than the minimum required to maintain controlled forward movement of the vehicle, except on property owned or under the operator's control or on which the operator is an invited guest, or on a roadway, forest road, or forest trail maintained by or under the jurisdiction of the Michigan Department of Natural Resources, or on an ORV access route as authorized by local ordinance.

(i) In or upon the lands of another without the written consent of the owner, owner's agent or lessee, when required by the recreational trespass act, part 731 of Public Act No. 451 of 1994 (MCL 324.73101 et seq.). The operator of the vehicle is liable for damage to private property, including but not limited to damage to trees, shrubs, growing crops, or injury to living creatures or damage caused through vehicle operation in a manner so as to create erosive or other ecological damage to private property. The owner of the private property may recover from the person responsible for nominal damages of not less than the amount of damage or injury. Failure to post private property or fence or otherwise enclose in a manner to exclude intruders or of the private property owner or other authorized person to personally communicate against trespass shall not imply consent to ORV use.

(j) In an area on which public hunting is permitted during the season open to the taking of deer from 7:00 a.m. to 11:00 a.m. and from 2:00 p.m. to 5:00 p.m., except during an emergency or for law enforcement purposes, to go to and from a permanent residence or a hunting camp otherwise inaccessible by a conventional wheeled vehicle, to remove a deer from public land which has been taken pursuant to a valid license; or except for the conduct of necessary work functions involving land and timber survey, communication and transmission line patrol, and timber harvest operations or on property owned or under control of the operator or on which the operator is an invited guest. A hunter removing game pursuant to this subsection shall be allowed to leave the designated trail or forest road only to retrieve the game and shall not exceed five miles per hour. A vehicle registered under the Michigan vehicle code, Public Act No. 300 of 1949 (MCL 257.1 et seq.), is exempt from this subsection while operating on a public highway or public or private road capable of sustaining automobile traffic. A person holding a valid permit to

hunt from a standing vehicle issued pursuant to section 14(1) of the wildlife conservation act, part 401 of Public Act No. 451 of 1994 (MCL 324.40101 et seq.), or a handicapper using an ORV to access public lands for purposes of hunting or fishing through use of a designated trail or forest road, is exempt from this subsection.

(k) While transporting on the vehicle a bow unless unstrung or encased, or a firearm unless unloaded and securely encased, or equipped with and made inoperative by a manufactured keylocked trigger housing mechanism.

(l) On or across a cemetery or burial ground, or land used as an airport.

(m) Within 100 feet of a slide, ski, or skating area, unless the vehicle is being used for the purpose of servicing the area.

(n) On an operating or nonabandoned railroad or railroad right-of-way, or public utility right-of-way, other than for the purpose of crossing at a clearly established site intended for vehicular traffic, except railroad, public utility, or law enforcement personnel while in the performance of their duties, and except if the right-of-way is designated as established in section 81127 of Public Act No. 451 of 1994 (MCL 324.81127).

(o) In or upon the waters of any stream, river, bog, wetland, swamp, marsh, or quagmire except over a bridge, culvert, or similar structure.

(p) To hunt, pursue, worry, kill, or attempt to hunt, pursue, worry, or kill a bird or animal, wild or domesticated.

(q) In a manner so as to leave behind litter or other debris.

(r) In a manner contrary to operating regulations on public lands, including township parks.

(s) While transporting or possessing, in or on the vehicle, alcoholic liquor in a container that is open or uncapped or upon which the seal is broken, except under either of the following circumstances:

(i) The container is in a trunk or compartment separate from the passenger compartment of the vehicle.

(ii) If the vehicle does not have a trunk or compartment separate from the passenger compartment,the container is encased or enclosed.

(t) While transporting any passenger in or upon an ORV unless the manufacturing standards for the vehicle make provisions for transporting passengers.

(u) On adjacent private land, in an area zoned residential, within 300 feet of a dwelling at a speed greater than the minimum required to maintain controlled forward movement of the vehicle except on a roadway, forest road, or forest trail maintained by or under the jurisdiction of the Michigan Department of Natural Resources, or on an ORV access route as authorized by local ordinance.

(2) Penalties; civil violation and misdemeanor; impoundment; restoration of damage:

(a) Misdemeanor: Unless another penalty is expressly provided for in this section, a person who violates a provision of this section is guilty of a misdemeanor punishable by imprisonment for not more than 90 days or a fine of not less than $50.00 or more than $1,000,000 or both, for each violation.

(b) Civil violation: A person who violates subsections (b), (c), (d), (f), (h), (j), (l), (m) and (q) is responsible for a civil violation and subject to a civil penalty of not more than $500.00.

(c) Impoundment of ORV by peace officer: A peace officer may impound the ORV of a person who violates a provision of this section that is punishable as a misdemeanor or who causes damage to a particular area in which the ORV was used in the commission of the violation. An impounded ORV shall be disposed of in the manner provided by section 81147 of Public Act No. 451 of 1994 (MCL 324.81147).

(d) Court order to restore lands: In addition to the penalties otherwise provided under this section, a court of competent jurisdiction may order a person to restore, as nearly as possible, any land, water, stream bank, streambed or other natural or geographic formation damaged by the violation of this section to the condition it was in before the violation occurred.

(Ord. No. 152, 9-25-1995; Comp. Ords. as Rev. 12-1999, § 20.650; Ord. No. 185, 9-28-1999)

State law reference—Off-road recreation vehicles, MCL 324.81101 et seq.

Secs. 30-33—30-59. Reserved.

ARTICLE III. CHARTER TOWNSHIP OF TEXAS MOTOR VEHICLE CODE*

Sec. 30-60. Adoption of Michigan Motor Vehicle Code by reference.

The provisions of the Michigan Motor Vehicle Code, being MCL 257.1 to MCL 257.923, as amended, are hereby adopted by reference as if fully set forth herein and shall be known and cited as the Charter Township of Texas Motor Vehicle Code.
(Ord. No. 220, § I, 2-24-2003)

Sec. 30-61. Conflict with UTC; repeal of inconsistent ordinances.

The provisions of the Uniform Traffic Code of the Charter Township of Texas are hereby superceded by the Charter Township of Texas Motor Vehicle Code, only to the extent that there is conflict in their provisions. In all other respects, the uniform traffic code is not rescinded or repealed except as otherwise stated herein. All other ordinances or parts of ordinances in conflict are hereby repealed.
(Ord. No. 220, § II, 2-24-2003)

Sec. 30-62. Penalties, misdemeanor.

Every person convicted of a misdemeanor violation of any provision of the Charter Township of Texas Motor Vehicle Code shall be punished by imprisonment for not more than 90 days, by fine of not more than $500.00 (unless a higher fine is expressly provided in the motor vehicle code for the offense, in which case the higher fine shall apply), or both.
(Ord. No. 220, § III, 2-24-2003)

Secs. 30-63—30-80. Reserved.

***Editor's note—**Ord. No. 220, § IV, set out the following statement of purpose for the Texas Charter Township Motor Vehicle Code. Said code is: "An act to provide for the registration, titling, sale, transfer, and regulation of certain vehicles operated upon the public highways of this state or any other place open to the general public or generally accessible to motor vehicles and distressed vehicles; to provide for the licensing of dealers; to provide for the examination, licensing, and control of operators and chauffeurs; [to] provide for the giving of proof of financial responsibility and security by owners and operators of vehicles; to provide for the imposition, levy, and collection of specific taxes on vehicles, and the levy and collection of sales and use taxes, license fees, and permit fees; to provide for the regulation and use of streets and highways; to create certain funds; to provide penalties and sanctions for a violation of this act; to provide for civil liability of owners and operators of vehicles and service of process on residents and nonresidents; to provide for the levy of certain assessments; to provide for the enforcement of this act; to provide for the creation of and to prescribe the powers and duties of certain state and local agencies; to impose liability upon the state or local agencies; to repeal all other acts or parts of acts inconsistent with this act or contrary to this act; and to repeal certain parts of this act on a specific date."

ARTICLE IV. PARKING VIOLATIONS BUREAU*

Sec. 30-81. Establishment of parking violations bureau.

Pursuant to Acts 154 of 1968; 246 of 1945 and 236 of 1961, as amended, the Charter Township of Texas, Kalamazoo County, Michigan, hereby establishes a parking violations bureau to accept admissions of responsibility in parking violation cases, which bureau shall have such powers, duties and responsibilities as set forth in this article.
(Ord. No. 276, § 1, 8-23-2010)

Sec. 30-82. Purpose of article.

The provisions of this article shall control the parking of vehicles on public highways, streets, roads and parking areas and drives and also on private parking lots, private drives, and private roads which are open to the public and for the use of patrons of any public schools, community college, business, apartments, stores, offices, and clinics; provided that the owner or owners of said private parking lots, private roads or private drives consent to the enforcement of parking ordinances of the township concerning parking violations occurring on said lots, roads, or drives.
(Ord. No. 276, § 2, 8-23-2010)

Sec. 30-83. Parking offenses and civil fines.

The following shall be deemed to be parking offenses in violation of this article and the civil fine for each violation shall be as follows:

Violation	*Fine*
(a) Parking in an area in violation of a no parking sign or street marking as authorized by the county road commission concerning county roads, by the State Department of Transportation concerning state highways, or by the Township of Texas concerning public and private roads, drives or parking lots or by Kalamazoo Valley Community College concerning roads on its campuses located within the Charter Township of Texas.	$15.00
(b) Parking within 15 feet of a fire hydrant.	20.00
(c) Parking in a marked fire lane.	75.00
(d) Parking within 25 feet of a corner.	15.00
(e) Parking within five feet of a driveway or alley.	15.00
(f) Parking upon a sidewalk or crosswalk.	15.00
(g) Parking within ten feet of the center of a street.	15.00
(h) Parking a vehicle for longer than permitted.	15.00
(i) Parking a vehicle more than one foot from a curb or curb line.	15.00

*__Editor's note—__Sections 1—6 of Ord. No. 276, adopted Aug. 23, 2010, did not specify manner of inclusion; hence, codification as a new Art. IV, §§ 30-81—30-86 was at the discretion of the editor.

Violation	*Fine*
(j) Parking a vehicle in violation of any other parking provisions of any ordinance of Texas Charter Township.	15.00
(k) Parking a vehicle within 30 feet upon the approach to any flashing beacon, stop sign or traffic control signal located at the side of a highway, road or street.	15.00
(l) Parking a vehicle within 50 feet of the nearest rail of a railroad crossing.	15.00
(m) Parking a vehicle within 20 feet of the driveway entrance to any fire station.	15.00
(n) Parking a vehicle along side or opposite any street excavation or obstruction when such stopping, standing or parking would obstruct traffic.	15.00
(o) Parking a vehicle on the highway side of any vehicle stopped or parked at the edge or curb of a street.	15.00
(p) Parking a vehicle on a highway, road, street, private road, private drive or private parking lot which has been signed or marked for angle parking at an angle different from the curb or edge of such highway.	15.00
(q) Parking a vehicle within 500 feet of a fire, or an accident at which police officers are in attendance.	15.00
(r) Parking a vehicle upon any bridge or any elevated structure upon a street or within a street tunnel.	15.00
(s) Parking in a parking space clearly identified by an official sign as being reserved for use by handicappers which is on public property or private property available for public use, unless the person is parking the vehicle for the benefit of a handicapper. In order for the vehicle to be parked in the parking space the vehicle shall display one of the following: (i) A certificate of identification issued pursuant to the Michigan Motor Vehicle Code to a handicapper on the lower left corner of the front windshield. (ii) A special registration plate issued pursuant to the Michigan Motor Vehicle Code to a handicapper. (iii) A similar certificate of identification issued by another state to a handicapper. (iv) A similar special registration plate issued by another state to a handicapper. (v) A special registration plate to which a handicapper tab is attached issued under the Michigan Motor Vehicle Code.	75.00
(t) Parking a vehicle in a position such that it is facing the flow or direction of traffic of the lane of travel closest to the parked vehicle.	15.00

Violation	*Fine*
(u) Parking in any other staff/faculty or reserved parking space or area on the KVCC campuses without required staff/faculty or reserved designation as required by KVCC.	25.00

The above civil fines shall (except for the parking offense identified in subsections (s) and (u) above) be doubled concerning any violator who fails to appear within ten days of the date of the violation. The above civil fine for violation of the parking offense set forth in subsection (s) above shall be increased to $100.00 for any violator who fails to appear within ten days of the date of the violation. The above civil fine for violation of the parking offense designated (u) shall be increased to $40.00 for any violation who fails to appear within ten days of the date of the violation. In cases where a defendant has been found responsible by a court of law, the court may assess in addition to the civil fines provided above, costs and judgment fees as provided by law.
(Ord. No. 276, § 3, 8-23-2010)

Sec. 30-84. Citation requirements and admission of responsibility.

Any person receiving any citation alleging the violation of a township parking ordinance shall be advised on the citation as to all matters required by law including, at a minimum, the offense, the vehicle registration number (license plate number), date and place of the offense and the time within which the owner or driver of the vehicle must appear at the township hall for purposes of admitting or denying responsibility; or, in the alternative, when he or she may pay the civil fine as stated thereon. Such person may admit responsibility to such charges before the clerk or other designated employee, of the parking violations bureau. The clerk shall be a township employee and shall be appointed to such position by resolution of the township board.

The clerk or other designated employee of the parking violations bureau shall indicate on the citation that the admission of responsibility to the citation was made and accepted, and the person so pleading shall sign the citation as proof that such admission was made.

Upon accepting such admission of responsibility, the clerk or other designated employee shall collect from the person the civil fine for such violation as provided in this article, and shall give such person a receipt acknowledging payment of said civil fine.
(Ord. No. 276, § 4, 8-23-2010)

Sec. 30-85. Denial of responsibility.

Concerning any person who denies responsibility before the clerk or other designated employee of the township, such clerk or other employee shall advise the complainant to file said citation and to swear out a complaint with the District Court for the 8th Judicial District of the State of Michigan or such other court having jurisdiction of said matter and said alleged parking violation shall then be processed as a civil infraction as provided by law. In any proceeding for a violation of this article, proof that the particular vehicle described in the complaint was parked in violation of any such provision of this article, together with proof that

the person named in the complaint was at the time of such parking the registered owner of such vehicle, shall constitute in evidence a presumption that the registered owner of such vehicle was the person who parked or placed such vehicle at the point where, and for the time during which such violation occurred.
(Ord. No. 276, § 5, 8-23-2010)

Sec. 30-86. Accounting of citations.

The parking violations bureau clerk or other designated employee shall retain all citations and shall account to the township board once a month concerning the number of admissions and denials of responsibility made concerning parking violations and the amount of fines collected. The clerk or other designated employee shall be entitled to be paid such compensation as may be determined from time to time by resolution of the township board. The amounts collected in civil fines shall be turned over to the township treasurer to be placed in the general fund of the township. Distribution of such fines or a portion of such fines to KVCC shall be in accordance with a valid mutual agreement established therefore.
(Ord. No. 276, § 6, 8-23-2010)

Chapter 31

RESERVED

Chapter 32

UTILITIES*

Article I. In General

Secs. 32-1—32-30. Reserved.

Article II. Water

Division 1. Generally

Secs. 32-31—32-45. Reserved.

Division 2. Water Service

Sec. 32-46. Procedure.
Sec. 32-47. Regulations.
Sec. 32-48. Sanctions.
Secs. 32-49—32-65. Reserved.

Division 3. Water Conservation

Sec. 32-66. Definitions.
Sec. 32-67. Regulations.
Sec. 32-68. Violation deemed nuisance.
Sec. 32-69. Sanctions.
Secs. 32-70—32-100. Reserved.

Article III. Sewers

Division 1. Generally

Secs. 32-101—32-115. Reserved.

Division 2. Sewer Use

Sec. 32-116. Definitions.
Sec. 32-117. Operation on rate basis.
Sec. 32-118. Management of system.
Sec. 32-119. System records and budget.
Sec. 32-120. Use of public sewers.

***Cross references—**Administration, ch. 2; buildings and building regulations, ch. 6; community development, ch. 8; environment, ch. 10; water supplies and fire hydrants, § 12-40; land divisions and subdivision control, ch. 16; solid waste, ch. 26; telecommunications, ch. 28.

State law references—Local government authority to provide and regulate water and sewer service, MCL 324.4301 et seq.; collection of water or sewerage charges, MCL 123.161 et seq.; sewage disposal, water supply and solid waste management system, MCL 124.281 et seq.; rates charged for use of public improvement in order to pay bonds, MCL 141.121.

Sec. 32-121. Connection charges.
Sec. 32-122. Permit to connect generally; mandatory connections.
Sec. 32-123. Unauthorized connections.
Sec. 32-124. Limitations on wastewater discharges.
Sec. 32-125. Prohibited discharges.
Sec. 32-126. Water used for cooling purposes.
Sec. 32-127. Discharge into storm sewers.
Sec. 32-128. Excessive discharge.
Sec. 32-129. Reporting violations.
Sec. 32-130. Procedures for enforcement.
Sec. 32-131. Termination of service.
Sec. 32-132. Inspection and monitoring of users.
Sec. 32-133. Rules and regulations.
Sec. 32-134. Industrial cost recovery system.
Sec. 32-135. Miscellaneous stormwater discharges.
Sec. 32-136. Service charges.
Sec. 32-137. Establishment of user rates.
Sec. 32-138. Billing.
Sec. 32-139. Due dates and penalties.
Sec. 32-140. Liens and collection of delinquent accounts.
Sec. 32-141. Sanctions.

ARTICLE I. IN GENERAL

Secs. 32-1—32-30. Reserved.

ARTICLE II. WATER

DIVISION 1. GENERALLY

Secs. 32-31—32-45. Reserved.

DIVISION 2. WATER SERVICE

Sec. 32-46. Procedure.

Beginning January 1, 2024, before each new connection to any public water line of the township, there shall be, prior to such connection, an application submitted and connection charge paid to the City of Kalamazoo. The connection charge is to be determined by the City of Kalamazoo.
(Comp. Ords. as Rev. 12-1999, § 25.002; Ord. No. 258, § I, 3-10-2008; Ord. No. 373, § 1, 4-8-2024)

Sec. 32-47. Regulations.

(a) *Water rates.* No free public water service shall be allowed and all those properties connected to the public water system shall be subject to the payment of such water rates and charges as shall be determined by the township board, which shall, in no event, be less than charged users in the township by the City of Kalamazoo in accordance with the water agreement negotiated between the City of Kalamazoo and the township.

(b) *Termination of service.* The township shall have the right to terminate any water service to any premises within the township when any delinquency exists with respect to any water payments due under this division or otherwise, or where any premises does not comply with all of the plumbing codes of the township and the City of Kalamazoo and with any and all restrictions and limitations on the use of the particular water service imposed by the township board, the contract between the township and the City of Kalamazoo, the contract between the township and any applicant, or otherwise.

(c) *Service deposit.* The township or its authorized agent shall have the right to require an initial deposit from any owner or tenant who applies for water service, as security for the payment of the rates and charges for such service, and to apply the deposit against such rates and charges if and when it deems advisable. Such deposit or portion thereof not applied as security payment shall be refunded to the depositor upon the voluntary termination of service by the depositor and his subsequent application for such refund, provided no delinquency then exists.

(d) *Lien rights.* All delinquent rates and charges for water service shall constitute a lien upon the premises served which shall be subject to foreclosure in the same manner as mechanic's liens for nonpayment, or after six months' delinquency, may be certified to the supervisor and assessing officer of the township annually, on or before March 1 of each year, and entered by him upon the next tax roll against the property served, for collection in the same manner as the collection of property taxes.

(e) *Turn-on.* No person other than an authorized employee of the township of the City of Kalamazoo shall turn on or off any water service to any public or private premises at the curb box connection to such premises to the water main at water meters. All premises connected to a public water system shall be equipped with a public water meter, so located that all water entering the premises shall pass through such meter and be measured as to the volume consumed for periodic computation of water charges.

(f) *Surplus funds.* Any surplus funds collected from water service or from capital improvements or extensions thereto shall be deposited into a water improvement fund of the township for use in further extending, improving, repairing, relocating and/or financing the public water system of the township.

(g) *Cross connections.* No cross connections between any private water system and the township water system shall be allowed and no plumbing shall, at any time, be connected to the plumbing system, which is in any manner connected to or part of any private system.

[The next page is CD32:7]

(h) *Water service connections.*

(1) *Generally.* Where, in the determination of the township board, public water service is reasonably available to a particular building in which water service is required, no new private wells shall be drilled to provide such water supply and such buildings shall be connected to the public water system, either at the time of construction, when the existing private well, if any, requires redrilling, or at any time in the determination of the township board or the county health department, a health hazard exists or is fairly imminent from the existing water supply.

(2) *Size and installation.* All water service connections from the public transmission main to the required water meter shall not be less than 1¼ inches in size and shall be installed by the township or the City of Kalamazoo where public highway exist and/or are disturbed by the construction and shall be installed at the expense of the property owner, computed to the center of the abutting highway. All such water service connections required by any customer to be in excess of 1¼ inches in size and shall be installed and furnished by the City of Kalamazoo or the township at the full expense of the customer requiring the installation of the water service connection.

(3) *Under road connections.* In all residential subdivision developments hereafter commenced or extended where, in the determination of the township board, public water service is reasonably available and therefore required, one service connection not less than 1¼ inches in size shall be installed under the abutting right-of-way to the center of each lot or building site fronting on the opposite side of such right-of-way and terminating in the right-of-way, not more than seven feet from the property line.

(4) *Use of fire hydrants.* No fire hydrants shall be used for any purpose other than fire protection without the prior approval of the township and City of Kalamazoo.

(i) *Plans and permits.* No public water main construction shall be commenced until all plans and specifications therefore have been submitted to and approved by the township and the City of Kalamazoo and all required state, county and municipal permits have been obtained.

(j) *County health department certificate.* No public water main shall be made or become operational until the water flowing therefrom has been certified as safe and free of any harmful contamination by the county health department and a written certificate attesting thereto is on file with the township.

(k) *Preliminary deposit.* All applications for public water service other than by petition for a special assessment district, requiring preliminary engineering analysis, review, and plans, shall be accompanied by a cash deposit with the township in such amount as shall be determined by the township board to be sufficient to cover the engineering work necessary to develop preliminary cost estimates for the proposed project.

(l) *Printed regulations.* The township board may adopt and prepare for distribution to interested parties separate rules and regulations governing the details of application, service connections, extensions, financing of improvements, and rates and charges for public water

service and shall have the authority to modify, enlarge, and amend the rules and regulations from time to time to meet changing conditions and circumstances and to promote the health, safety, and general welfare of the township.

(m) *Utility board.* The township board shall act as a water utility board for the township until such time as it wishes to delegate such duties and position to a separate appointed board or commission, with authority in either to decide all questions which might arise in the interpretation, enforcement, and application of this division and to grant variances from the requirements thereof where, in its opinion, the health, safety and general welfare of the township will not be thereby impaired and the spirit and purposes of this division would continue to be served.
(Comp. Ords. as Rev. 12-1999, § 25.003)

Sec. 32-48. Sanctions.

Any person, firm, association, partnership, corporation or governmental entity who violates any of the provisions of this division shall be deemed to be responsible for a municipal civil infraction as defined by state statute which shall be punishable by a civil fine determined in accordance with the schedule in section 18-62(a).
(Comp. Ords. as Rev. 12-1999, § 25.004)

Secs. 32-49—32-65. Reserved.

DIVISION 3. WATER CONSERVATION

Sec. 32-66. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Person means one or more persons, firms, copartnerships, corporations (private or public), and all associations of natural persons, incorporated or unincorporated, whether acting by themselves or by servant, agent or employee.

Township board means the Texas Charter Township Board or such committee or commission to whom the township board's authority has been duly and properly delegated.

Water pumping facilities or equipment means pumps, pipes, wells, transmission lines and any other equipment for the extraction from the soil and transmission of water and when such facilities or equipment are all part of one system or are in any way combined, it shall mean the total system or network of pumps, pipes, transmission lines and other equipment.
(Comp. Ords. as Rev. 12-1999, § 25.102)

Cross reference—Definitions generally, § 1-2.

Sec. 32-67. Regulations.

No person shall construct, erect, put down, install or maintain water pumping facilities or equipment for the purpose of obtaining water for other than the domestic, agricultural, recreational or industrial use of the premises upon which such water pumping facilities or equipment are located, within the township, except as provided in this division.

(1) Any person feeling aggrieved by the provisions of this section because of peculiar circumstances necessitating the use of water on premises, other than those from which such water is obtained, may apply to the township board for a waiver of compliance with this division and the township board shall have the authority, upon cause therefor being shown, to grant such waiver; provided, however, no water pumping facilities or equipment shall be constructed, erected, put down, installed or maintained having a maximum pumping capacity in excess of 3,000,000 gallons per 24-hour day. Before such waiver of compliance with this division is granted by the township board, it shall determine that the contemplated use of water for which the waiver is sought is necessary, cannot be reasonably furnished from another source or other sources and will not unreasonably lower or deplete the head, pressure or supply of water of any other well or spring dependent upon the same head, vein or stratum. To ensure compliance with this subsection, the township board may require anyone to whom a waiver of compliance has been given to furnish data with respect to the pumping capacity of such water pumping facilities or equipment and as a condition of the granting of such waiver, the township board shall have the right to enter upon the premises where such facilities or equipment are located and make such inspections, tests or metering of the water as it deems necessary to determine compliance with this division.

(2) Notwithstanding anything in this division to the contrary, the provisions of this division shall not be applicable to any public water system established and operated by the township for its residents, farms, businesses, and industries or to any public water system established and operated by authority of the township; provided, however, that as to any public water system established and operated by authority of the township rather than by the township alone, no water shall be pumped from wells in the township by such water system so as to exceed an average daily rate of 5,000,000 gallons in any one calendar year.

(Comp. Ords. as Rev. 12-1999, § 25.103)

Sec. 32-68. Violation deemed nuisance.

The obtaining of water through use of water pumping facilities or equipment other than for the uses and subject to the limitations set forth in this division is hereby determined to be unreasonable and unnecessary and shall be deemed to be a nuisance.

(Comp. Ords. as Rev. 12-1999, § 25.104)

Sec. 32-69. Sanctions.

Any person, firm, association, partnership, corporation or governmental entity who violates any of the provisions of this division shall be deemed to be responsible for a municipal civil infraction as defined by state statute which shall be punishable by a civil fine determined in accordance with the schedule in section 18-62(a).
(Comp. Ords. as Rev. 12-1999, § 25.105)

Secs. 32-70—32-100. Reserved.

ARTICLE III. SEWERS

DIVISION 1. GENERALLY

Secs. 32-101—32-115. Reserved.

DIVISION 2. SEWER USE

Sec. 32-116. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Biochemical oxygen demand and BOD_5 mean the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedure in five days at 20 degrees Celsius, expressed in terms of weight and concentration as milligrams per liter.

Capital charges means those amounts paid by each premises connected to the treatment works to pay the debt service requirements and capital expenditures to enlarge or improve the wastewater facilities.

Chemical oxygen demand and *COD* mean the quantity of oxygen utilized in the chemical oxidation of organic matter, expressed in terms of milligrams per liter.

Compatible pollutant means those pollutants which the wastewater system is or may be designed to produce or remove from wastewater in accordance with its National Pollutant Discharge Elimination System (NPDES) permit.

Cooling water means the water discharged from any use such as air conditioning, refrigeration, or other cooling to which the only pollutant added is heat.

Direct water cooling means the use of water as a refrigerant or as a primary heat transfer medium.

Director means the township supervisor or his designee or authorized representative as determined and approved by the township board.

FWPCA means the Federal Water Pollution Control Act, as amended, or as may be hereafter amended.

Garbage means solid waste from the domestic or commercial preparation, cooking, dispensing, storage, handling or sale of food.

Indirect water cooling means the use of water to extract heat from a refrigerant or as a secondary heat transfer medium.

Industrial cost recovery (ICR) charge means that amount assessed each industrial user to repay that portion of all federal grant amounts allocable to the treatment of wastes from the industrial users of the wastewater facilities and capacity committed to their use.

Industrial wastes and *commercial wastes* mean the wastewater from the place of the user's business, trade or profession.

Industrial user means, for the purpose of industrial cost recovery:

(1) Any nongovernmental, nonresidential users of the treatment works which discharges more than 25,000 gallons/day of sanitary waste and which is identified in the Standard Industrial Classification Manual, 1972, Office of Management and Budget, as amended and supplemented under one of the following divisions:

Division A — Agriculture, Forestry, and Fishing

Division B — Mining

Division D — Manufacturing

Division E — Transportation, Communications, Electric, Gas, and Sanitary Services

Division I — Services

In determining the amount of a user's discharge for purposes of industrial cost recovery, the township may exclude domestic wastes or discharges from sanitary conveniences; or

(2) Any user of the treatment works that discharges wastewater to the treatment works which contains toxic pollutants or poisonous solids, liquids, or gases in sufficient quantity either singly or by interaction with other wastes to contaminate the sludge of any municipal system, or to injure or to interfere with any sewage treatment process, or which constitutes a hazard to humans or animals, creates a public nuisance, or creates any hazard in, or has an adverse effect on the waters receiving any discharge from the treatment works.

Industrial user means, for the purpose of the user charge system, any user of the treatment works which:

(1) Is identified in the Standard Industrial Classification Manual, 1972, Office of Management and Budget, as amended, and supplemented under the following divisions:

Division A — Agriculture, Forestry, and Fishing

Division B — Mining

Division D — Manufacturing

Division E — Transportation, Communications, Electric, Gas and Sanitary Services

Division I — Services;

(2) Discharges wastewater containing pollutants which may interfere with the treatment process, may be toxic or incompatible, may interfere with the processing or disposal of the sludge, or may have an adverse effect on the receiving stream; or

(3) By definition, any industrial user for the purpose of industrial cost recovery shall also be an industrial user for the purpose of the user charge system.

Infiltration means water other than wastewater that enters a sewer system (including building drains and building sewers) from the ground through such means as defective pipes, defective pipe joints, defective connections, or defective manholes. Infiltration does not include, and is distinguished from, inflow.

Infiltration/inflow (I/I) means the total quantity of water from both infiltration and inflow without distinguishing the source.

Inflow means water other than wastewater that enters a sewer system (including building drains and building sewers) from sources such as roof leaders, cellar drains, yard drains, area drains, foundation drains, drains from springs and swampy areas, manhole covers, cross connections between storm sewers and sanitary sewers, catchbasins, cooling towers, stormwaters, surface runoff, street wash waters, or drainage. Inflow does not include, and is distinguished from, infiltration.

Major contributory industry means an industrial user of the wastewater system that:

(1) Has a flow of 50,000 gallons or more per average workday;

(2) Has a flow greater than five percent of the flow carried by the municipal system receiving the waste;

(3) Has in its waste a toxic pollutant in toxic amounts as defined in standards issued under section 307 of the FWPCA, or by the director; or

(4) Is found by the director or state, in connection with the NPDES permit issued to the City of Kalamazoo to have significant impact, either singly or in combination with other contributing industries, on the wastewater system or upon the quality of the effluent from the wastewater system.

mg/l means milligrams per liter.

Natural outlet means any outlet into a watercourse, pond, ditch, lake, or body of surface water or groundwater.

Nonindustrial user means all users of the wastewater facilities not classified as an industrial user for purposes of the user charge system.

NPDES and *national pollutant discharge elimination system* mean the program for issuing, conditioning and denying permits for the discharge of pollutants from point sources into the navigable waters, territorial seas, and contiguous zone of the United States pursuant to section 402 of the FWPCA.

pH means the logarithm of the reciprocal of the weight of hydrogen ions in grams per liter of solution.

Pollutant means dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt, and industrial, residential and agricultural waste.

Pollution means the manmade and man-induced alteration of the chemical, physical, biological or radiological integrity of water.

Pretreatment means application of physical, chemical and/or biological processes to reduce the amount of pollutants in or alteration of the nature of the pollutant properties in wastewater prior to discharging such wastewater into the wastewater system.

Pretreatment standards means all applicable rules and regulations implementing section 307 of the FWPCA, as well as any nonconflicting state or local standards which may require more restrictive treatment of wastewater under the circumstances described in section 307 of the FWPCA.

Properly shredded garbage means garbage that has been shredded to such a degree that no particle shall be larger than one-half inch or 1.27 centimeters in any dimension and all particles can be carried freely in the wastewater under the flow conditions normally prevailing in the wastewater system.

Recovered amounts means that revenue generated as a result of the industrial cost recovery system.

Recovery period means 30 years or the useful life of the treatment works, whichever is less, except as otherwise defined in this section.

Retained amounts means 50 percent of the recovered amounts.

Sanitary sewer means a pipe or system of pipes that convey wastewaters from residences, commercial buildings, industrial plans, institutions, or other structures as a part of the wastewater collection system.

Sludge means the accumulated solids separated from liquids during the treatment of wastewaters.

Storm drain and *storm sewer* mean any drain or sewer intended expressly for the conveyance of stormwater and surface water, street wash, or drainage or other unpolluted water.

Suspended solids means the total suspended matter that floats on the surface or, is suspended in, wastewater and that is removable by laboratory filtering.

User means any person who discharges or causes or permits the discharge of wastewater into the wastewater system and/or the owner or occupant of any property from which such drainage is made.

Wastewater means water, or any liquid, whether or not containing pollutants, which is discharged or permitted to be discharged into the wastewater system.

Wastewater system means the complete wastewater collection, treatment and disposal system of the township including all works, instrumentalities, or properties used or useful therein.

Watercourse means any natural channel or body of water in which a flow of water occurs either continuously or intermittently.
(Comp. Ords. as Rev. 12-1999, § 25.151)

Cross reference—Definitions generally, § 1-2.

Sec. 32-117. Operation on rate basis.

From and after the effective date of the ordinance from which this division is derived, the wastewater system shall be operated and maintained on a rate basis pursuant to the provisions of any contractual agreement by and between the township and the City of Kalamazoo and as may be supplemented by the township board.
(Comp. Ords. as Rev. 12-1999, § 25.152)

Sec. 32-118. Management of system.

The wastewater system of the township shall be and remain under the management, supervision and control of the township director who may employ or designate such persons in such capacities as he deems advisable to carry out the efficient management and operation of the system with the approval of the township board. The township director may make such rules, orders or regulations as he deems advisable and necessary to ensure the efficient management and operation of the system, and to provide equitable charges for the services thereof.
(Comp. Ords. as Rev. 12-1999, § 25.153)

Sec. 32-119. System records and budget.

(a) The township treasurer shall cause to be maintained and kept proper books of records and account in which shall be made full and correct entries of all transactions relating to the wastewater system. Not later than three months after the close of the fiscal year, the township treasurer shall cause to be prepared a statement, in reasonable detail, showing the cash income and disbursements of the system at the beginning and close of the operating year, and

such other information as may be necessary to enable any taxpayer of the township or user of the service furnished to be fully informed as to all matters pertaining to the financial operation of the system during such year.

(b) A budget showing in detail the estimated costs of administration, operation and maintenance of the wastewater system for the next ensuing fiscal year, including billings, accounting, postage, and related costs and including an amount equal to any bond principal and interest due to be paid in such year, shall be prepared by the township treasurer, which budget shall be subject to the approval of the township board. The amounts transferred into the operation and maintenance fund during each year shall not exceed the amount set forth in such budget, unless approved by vote of the township board.
(Comp. Ords. as Rev. 12-1999, § 25.154)

Sec. 32-120. Use of public sewers.

(a) It shall be unlawful for any person to place, deposit, or permit to be placed or deposited in any unsanitary manner on public or private property within the township, in any area under the jurisdiction of the township, any human or animal excrement, industrial waste, garbage or objectionable waste.

(b) It shall be unlawful to discharge to any natural outlet within the township, in any area under the jurisdiction of the township, any wastewater or other polluted waters except where suitable treatment has been provided in accordance with all applicable rules and regulations of local, state, and federal regulatory agencies.

(c) Except for facilities approved by the appropriate county health department in accordance with the county public health code, sewage disposal regulation, it shall be unlawful to construct or maintain any privy, privy vault, septic tank, cesspool, or other facility intended or used for the disposal of wastewater within the township.
(Comp. Ords. as Rev. 12-1999, § 25.155)

Sec. 32-121. Connection charges.

Owners or occupants connecting any premises with any sanitary sewer shall pay for such connection at a rate to be determined by the township board from time to time.
(Comp. Ords. as Rev. 12-1999, § 25.156; Ord. No. 328, § 1, 11-13-2017)

Sec. 32-122. Permit to connect generally; mandatory connections.

(a) Permits for connections with sanitary sewers shall be issued by such person as shall be designated by the township director. Such a permit shall not be issued until: (1) all charges for a sewer connection have been paid in full or, if the township agrees to specially assess for the public improvement, including connection charges, then only after the special assessment roll is confirmed by the township board; and (2) the director has determined that there is capacity available for the wastewater to be discharged in all downstream sewers, lift stations, force mains, and compatible wastes.

(b) The director may require from any proposed user or from any existing user who is altering the composition of the wastewater a compatibility study to demonstrate to the satisfaction of the director that the wastewater to be discharged is compatible with the existing wastewater system, and will not adversely affect the wastewater system. Such study shall be at the expense of the user.

(c) Structures in which sanitary sewage originates for which there is an available public sanitary sewer system shall not be used or occupied unless said structures are connected to the public sanitary sewer system; provided, however, that structures in which sanitary sewage is originating shall be promptly connected to an available public sanitary sewer system but not later than 18 months after publication of a notice by the township in a newspaper of general circulation in the township of the availability of the sewer system. For purposes of this section, the public sanitary sewer is "available" for residential use parcels if it is located within 200 feet of the structure in which sanitary sewage is originating on the parcel. The public sanitary sewer is "available" for any nonresidential use parcel if it is located within a road right-of-way or easement adjacent to the parcel upon which the structure originating sanitary sewage is located. The Township Board may, by resolution, adopt procedures for granting waivers and deferrals from the mandatory connection required by this section.

(d) Effective December 1, 2017, all new construction on parcels (residential or otherwise) shall connect to the public sanitary sewer system provided that there is a public sanitary sewer located within a road right-of-way or easement adjacent to the parcel upon which the structure originating sanitary sewage is located. For purposes of this section, "new construction" shall refer to site preparation for, and construction of, entirely new structures and/or significant extensions to existing structures whether or not the site was previously occupied.
(Comp. Ords. as Rev. 12-1999, § 25.157; Ord. No. 328, § 2, 11-13-2017; Ord. No. 363, § 1, 9-27-2021; Ord. No. 372, § 1, 7-10-2023)

Sec. 32-123. Unauthorized connections.

No person not duly authorized shall make any connection with any of the sanitary sewers, or tap any main, lateral or private connecting sanitary sewer.
(Comp. Ords. as Rev. 12-1999, § 25.158)

Sec. 32-124. Limitations on wastewater discharges.

(a) If any waters or wastes are discharged or are proposed to be discharged to the public sewers, which waters contain the substances or possess the characteristics enumerated in section 32-125, and which, in the judgment of the director, may deleteriously affect the wastewater system or carry through the system untreated any pollutant regulated by the NPDES permit issued to the City of Kalamazoo; constitute a hazard to human or animal life

or to any watercourse receiving the treated effluent of the wastewater system; violate any pretreatment standards hereinafter established; or cause the wastewater system to violate its NPDES permit or other applicable receiving water standards, the director may:

(1) Reject the wastes;

(2) Require pretreatment to an acceptable condition for discharge to the public sewers;

(3) Require control over the quantities and rates of discharge; and/or

(4) Require payment to cover added cost of handling and treating the wastes not covered by existing taxes or sewer use charges.

(b) If the director permits or requires the pretreatment or equalization of waste flows, the design and installation of the plans and equipment shall be subject to the review and approval of the state department of natural resources, in accordance with the laws of the state and regulations promulgated under this division. The property owner shall not commence construction of such facility until he has obtained such approvals in writing from the director and appropriate state agencies.

(c) All major contributing industrial users of the treatment facilities shall pretreat any pollutant in its wastewater which may interfere with, pass through untreated, reduce the utility of municipal sludge, or otherwise be incompatible with the treatment works. Pretreatment of such pollutants shall be in accordance with section 307 of Public Law 92-500, 40 CFR 403, and as determined by the director. Any owner of any source to which

pretreatment standards are applicable shall submit to the director semiannual notices regarding specific actions taken to comply with such standards. Such notice shall be submitted on April 1 and October 1.

(d) If any major contributing industrial user proposes to pretreat its wastes, the design and installation of the plants and equipment shall be subject to the review and approval of the director.
(Comp. Ords. as Rev. 12-1999, § 25.159)

Sec. 32-125. Prohibited discharges.

No person shall discharge, convey, deposit, or cause or allow to be discharged, conveyed, or deposited into the wastewater system any pollutant other than a compatible pollutant which the system expressly agrees to accept from a user, or any wastewater containing any of the following:

(1) *Oils and grease.* Fats, wax, grease, or oils in excess of 100 mg/l or containing substances which may solidify or become viscous at temperatures between 0 degrees and 65 degrees Celsius at the point of discharge into the wastewater system, or concentrations or amounts of oil or grease from industrial facilities violating pretreatment standards.

(2) *Explosive mixtures.* Liquids, solids, or gases which by reason of their nature or quantity are, or may be, sufficient either alone or by interaction with other substances to cause fire or explosion. Such prohibited materials include but are not limited to gasoline, kerosene, naphtha, benzene, toluene, xylene, ethers, alcohols, ketones, aldehydes, peroxides, chlorates, perchlorates, bromates, and carbides.

(3) *Noxious materials.* Solids, liquids, or gases from processes employed in the user's business, trade or profession which, either singly or by interaction with other wastes, are capable of creating a public nuisance or hazard to life, or are or may be sufficient to prevent entry into a sewer for maintenance or repair.

(4) *Improperly shredded garbage.* Garbage which is not properly shredded garbage as defined in this division.

(5) *Radioactive wastes.* Radioactive wastes or isotopes, unless their disposal via wastewater is authorized by federal, state and local regulations, and then only when discharge into the wastewater system does not cause damage or a hazard to the system, the persons operating the system or the general public.

(6) *Excessive levels of toxic substances.* Any toxic substances in amounts which cannot be treated by the system or which exceed standards promulgated by the United States Environmental Protection Agency pursuant to section 307(b) of the FWPCA, or toxic substances included in any regulations of the state department of natural resources which identify and prohibit discharge of toxic substances into the waters of the state.

(7) *Untreatable pollutants.* Any pollutant which deleteriously affects the wastewater system or process, or any pollutant which is regulated by the NPDES permit issued to the City of Kalamazoo and which will pass untreated or unaffected by the treatment system.

(8) *Discoloring pollutants.* Any pollutant which imparts a color to the wastewater in the wastewater system, which color cannot be removed by the system's treatment process or which is prohibited by the NPDES.

(9) *Solids.* Solids or viscous substances in quantities or of such size capable of causing obstruction to the flow of sewers, or other interference with the proper operation of the wastewater system such as, but not limited to, ashes, bones, cinders, sand, mud, straw, shavings, metal, glass, rags, feathers, tar, plastics, wood, whole blood, paunch manure, hair, fleshings or entrails.

(10) *Temperature.* A temperature greater than 65 Celsius (149 degrees Fahrenheit) or less than 30 degrees Celsius (37.4 degrees Fahrenheit).

(Comp. Ords. as Rev. 12-1999, § 25.160)

Sec. 32-126. Water used for cooling purposes.

(a) The purpose of this section is to prevent "inflow," as defined in section 32-116, and the overloading of the sewers of the township by the discharge into such sewers of water used for cooling purposes.

(b) No equipment using direct or indirect water cooling may be installed in the township unless a means of water disposal other than discharge into the township's sanitary sewers is provided. No person desiring to use any such equipment shall commence installing the equipment until there has been filed with the director such information as, in his judgment, is necessary to enable him to determine whether or not such equipment meets the requirements of this section. No permit for the installation of any such equipment may be issued by the township building inspector involving a connection to the township's storm sewers until a permit has been obtained from the director.

(c) Any authorized agent of the township may enter onto the premises of any person using water as a cooling medium for equipment, any time that the sewers connected to such equipment become overloaded, and may order such equipment shut off. If such equipment is not shut off promptly, such agent of the township may shut the equipment off so that there cannot be any entry into the township sewers during the period the sewers are overloaded.

(Comp. Ords. as Rev. 12-1999, § 25.161)

Sec. 32-127. Discharge into storm sewers.

(a) It shall be unlawful for any person to discharge or flow, or cause to be discharged or flowed, or permit or allow the discharge or flow to be done from any premises owned or controlled by him, any water or fluid into any public storm sewer or storm drain or into any

sewer, drain or pipe connected with or emptying into any public storm sewer, except waters naturally resulting from rainfall or the melting of snow and ice, or unpolluted cooling waters as provided for in section 32-126.

(b) No person shall connect or attach any downspout, pipe or drain, or cause the downspout, pipe or drain to be connected or attached, to any public storm sewer without first having obtained permission, in writing, so as to do from the township. Application for such permission shall be filed with the township building inspector and shall state the location of the connection and the name and address of the owner and occupant of the premises to be connected and shall be accompanied by sufficient plans and specifications as to enable the township building inspector to determine whether the connection is proposed to be done in a good and workmanlike manner and in accordance with standard practices and so as not to endanger pedestrians and others using the public streets, alleys, and places. Upon compliance with the requirements of this subsection, the township building inspector shall issue such permit, but upon the express condition that the applicant shall not use the downspout, pipe or drain, or permit the use thereof, for any of the purposes other than those allowed and set forth in subsection (a) of this section.
(Comp. Ords. as Rev. 12-1999, § 25.162)

Sec. 32-128. Excessive discharge.

(a) No discharge shall exceed the peak flow rate projected by the user as a condition precedent to connection to the wastewater system.

(b) No wastewater shall be discharged at a rate which upsets or interferes with the treatment process or causes a hydraulic surge in the wastewater system.

(c) No unpolluted water shall be discharged into the system if the discharge would increase the hydraulic load on the wastewater system.
(Comp. Ords. as Rev. 12-1999, § 25.163)

Sec. 32-129. Reporting violations.

(a) If for any reason a person discharges, or causes or permits to be discharged, any pollutant or wastewater containing a pollutant into the wastewater system in violation of this division, that person shall immediately thereafter notify the director of such discharge to enable the director to take any action necessary for the protection of the system or the prevention of any health hazard. Notification shall be given either as soon as the person has reason to know of the discharge or immediately after the discharge, whichever is sooner.

(b) The director may require a user of sewer services to provide information needed to determine compliance with this division. These requirements may include the following:

(1) Wastewaters' discharge peak rate and volume over a specified time period.

(2) Chemical analyses of wastewaters.

(3) Information on raw materials, processes, and products affecting wastewater volume and quality.

(4) Quantity and disposition of specific liquid, sludge, oil, solvent, or other materials important to sewer use control.

(5) A plot plan of sewers of the user's property showing sewer and pretreatment facility location.

(6) Details of wastewater pretreatment facilities.

(7) Details of systems to prevent and control the losses of materials through spills to the municipal sewer. Any industry that has materials that could spill into the sewer system shall provide for containment of the material on-site. Containment capacity shall be equal to the storage capacity provided for liquids, oils, or other toxic materials stored at the plant.

(8) Such other information as may be required by the NPDES permit of the City of Kalamazoo.

(c) All measurements, tests, and analyses of the characteristics of waters and wastes to which reference is made in this section and other sections of this division shall be determined in accordance with the latest edition of Standard Methods for the Examination of Water and Wastewater published by the American Public Health Association. All tests shall conform to EPA Regulation 40 CFR 136 "Guidelines Establishing Test Procedures for Analysis of Pollutants." Sampling methods, location, times, durations, and frequencies are to be determined on an individual basis subject to approval by the director and other regulatory agencies. (Comp. Ords. as Rev. 12-1999, § 25.164)

Sec. 32-130. Procedures for enforcement.

(a) A violation of the provisions of this division shall be considered a public nuisance per se and any action authorized or permitted by law for the abatement of public nuisances may be instituted by the township in regard to such violation.

(b) Whenever the director finds that a violation of this division is occurring and presents an emergency which threatens immediate, serious harm to any portion of the wastewater system or which threatens to or does create an immediate health hazard, the user's wastewater service may be terminated by order of the director, pending further investigation and hearing under section 32-131.

(c) Whenever a person has violated any provision of this division, the township may take any legal action necessary to recover damages sustained by the township as a result thereof. Such damages shall include, but are not limited to, lost revenues from the federal or state government and any fines or other penalties which are the result of such violation.
(Comp. Ords. as Rev. 12-1999, § 25.165)

Sec. 32-131. Termination of service.

(a) *Authority to terminate.* The township director shall have the authority to terminate wastewater service to any user who attempts to violate or violates any provision of this division, or who in any way attempts to avoid, delay, prevent, or interfere with the execution

or enforcement of any provision of this division, or who fails to pay any charges levied against him, whether regular or extraordinary, under this division or who attempts to violate or violates or attempts to avoid, delay, prevent or interfere with the execution or enforcement of any rule or regulation promulgated by the director for compliance with or execution of this division, or who fails to appear at a hearing to meet a charge against him under this division.

(b) *Hearing procedures.*

(1) In addition to any remedies provided elsewhere in this division, whenever the director has reason to believe that any user has committed or is committing an offense covered by subsection (a) of this section, he may serve upon the user a written notice stating the nature of the alleged violation and describing the time for and the nature of required correction.

(2) If the violation is not corrected as prescribed in such notice, the director may issue an order to the user to appear for a hearing and show cause why service should not be terminated.

(3) The notice and order to show cause shall be served upon the user by personal service, or in lieu thereof by certified mail, return receipt requested, to the user's last known address.

(4) The hearing shall be conducted by a hearing officer appointed by the township board who shall render a written decision determining whether the user's service shall be terminated and stating reasons therefor. Admissibility of evidence at the hearing shall be within the discretion of the hearing officer.

(5) The user shall be entitled to be represented at the hearing in person or by an attorney at his own expense and shall be entitled to examine witnesses for the township and present evidence on his own behalf. A record shall be made of the proceedings but such record need not be verbatim.

(6) The user whose service is terminated without prior hearing may request such a hearing, as described in subsections (b)(4) and (b)(5) of this section, to permit him to show why his service should not have been terminated and should be resumed. Such requests shall be granted, but service will not be resumed unless so ordered by the hearing officer.

(Comp. Ords. as Rev. 12-1999, § 25.166)

Sec. 32-132. Inspection and monitoring of users.

(a) Industrial or commercial users of the wastewater system are subject to inspection of their facilities and records pertaining to raw material use at the request of the director during all reasonable business hours, and in an emergency at any time. Such inspections may include, but are not limited to, monitoring of the user's operations. The director shall recognize that proper identification is necessary for access to the facilities and shall arrange any appropriate prior security clearances.

(b) The premises of any user may be inspected at all reasonable hours for the purpose of determining whether any violation of this division exists.

(c) When required by the director, the owner of any property serviced by a building sewer carrying industrial wastes shall install a suitable structure together with such necessary meters and other appurtenances in the building sewer to facilitate observation, sampling, and measurement of the wastes. Such structure, when required, shall be accessibly and safely located, and shall be constructed in accordance with plans approved by the director. The structure shall be installed by the owner, at his expense, and shall be maintained by him so as to be safe and accessible at all times. Following approval and installation, such meters may not be removed without consent of the director.

(d) If a user refuses to grant the director entry upon request, the director may seek an administrative warrant for an inspection from any court authorized to issue search warrants under state law. In an emergency which creates an immediate and substantial danger to persons or property, the premises of a user may be inspected at any time and without permission or a warrant.

(e) No trade secret or patented process disclosed to the director under this division shall be disclosed to other nongovernmental persons. Such information shall be confidential and exempt from release to nongovernmental persons, in accordance with section 13(1)(g) of the state freedom of information act, (Public Act No. 442 of 1976 (MCL 15.243(1)(g))).
(Comp. Ords. as Rev. 12-1999, § 25.167)

Sec. 32-133. Rules and regulations.

(a) With approval of the township board and for the purpose of preventing, discontinuing, or correcting any violations of this division, the director may adopt and establish rules and regulations for the enforcement of this division.

(b) Rules and regulations adopted under this section may include, but are not limited to, imposing requirements upon industrial or commercial users to submit plans for the pretreatment of wastewater, to install equipment to monitor the nature and quantity of the wastewater being discharge into the system, and/or to keep records.
(Comp. Ords. as Rev. 12-1999, § 25.168)

Sec. 32-134. Industrial cost recovery system.

(a) *Purpose of industrial cost recovery (ICR).* Commencing on the first day any publicly financed treatment works construction project, including a federal grant thereon, is placed in operation, there is levied and assessed upon each industrial user of the treatment works an industrial cost recovery charge or rental. The industrial cost recovery charge is for the purpose of recovering from each industrial user that portion of the federal grant amount used to construct facilities for the treatment of its industrial waste. The recovery period for the wastewater treatment plant improvements (Kalamazoo City Contracts 81-1) shall be 30 years, or the useful life of the project or as long as required by the Environmental Protection Agency, whichever is less.

(b) *Industrial user's share.* An industrial user's share shall be based on all factors which significantly influence the cost of the construction project, including strength, volume, and delivery rate characteristics.

(c) *Charges.* The industrial cost recovery charges shall be as established from time to time by resolution of the township board and all industries shall pay industrial cost recovery charges based on flow as a minimum. The flow rate shall include charges for waste loadings at concentrations equal to 250 mg/l BOD_5, 290 mg/l SS, and 50 mg/l TKN, unless the industry shall substantiate different waste concentrations. Industries that discharge wastewater at concentrations exceeding 250 mg/l BOD_5, 625 mg/l COD, 290 mg/l SS, or 50 mg/l TKN shall be charged for the excess at the unit charges as may be established from time to time by resolution of the township board. A charge shall be made for BOD_5 or COD, but not both, at the option of the township board. A deduction per employee per year shall be made for domestic uses within the industry. Employment figures shall be furnished by the industry to the township on a quarterly basis. The average number of employees for the quarter will be used in the deduction calculations. The deduction is based on the average contribution to the industrial waste of each employee as follows:

Flow	$19m^3$/yr
BOD	4.7 kg/yr
SS	5.5 kg/yr
TKN	1.0 kg/yr

(d) *Monitoring program.* The director shall establish and maintain a monitoring program to obtain the information required to assess the industrial cost recovery charges. The director may require any industry to collect and analyze samples and furnish the results to the township director.

(e) *Returned amounts.* The township shall return 50 percent of the amounts received from industrial users, together with any interest earned, to the United States Treasury on an annual basis, beginning one year after the facilities are placed in service.

(f) *Retained amounts.* The township shall retain 50 percent of the amount recovered from industrial users.

(1) A portion of the amounts which the township retains may be used to pay the incremental costs of administration of the industrial cost recovery system. The incremental costs of administration are those costs remaining after deducting all costs reasonably attributable to the administration of the user charge system. The incremental costs shall be segregated from all administrative costs of the township.

(2) A minimum of 80 percent of the amounts the township retains, after deducting the incremental costs of administration of the industrial cost recovery system, together with interest earned, shall be used solely for eligible costs of any expansion, upgrading or reconstruction of the treatment works necessary to meet the requirements of the FWPCA. The director shall obtain written approval of the regional administrator of the Environmental Protection Agency prior to commitment of these funds. The money

so collected shall be kept in separate account and shall be invested in (i) obligations of the United States Government; or (ii) obligations guaranteed as to principal and interest by the United States Government; or (iii) shall deposit such amounts in accounts fully collateralized by obligations of the United States Government or by obligations fully guaranteed as to principal and interest by the United States Government or any agency thereof.

(g) *Use of remaining amount.* The remaining amount of the retained amounts shall be deposited in the township water and sewer improvement revolving fund.

(h) *Letters of intent.* All significant users, as defined by the United States Environmental Protection Agency, of the wastewater system shall furnish to the director a signed letter of intent to pay that portion of all federal grant amounts allocable to the treatment of its wastes. Each such user shall include a statement of the industrial user's intended period of use of the treatment works.

(i) *Review of new projects.* The director shall review all new projects involving federal allocations to determine the industrial user class' influence on the capital costs of the project. The director shall then assess as industrial cost recovery charge, in addition to any existing industrial cost recovery charge, to obtain the required revenue from each industrial user.

(j) *Responsibility for recordkeeping.* The director shall be responsible for collecting and maintaining the needed records for implementation of this section.

(k) *Appeal procedure.* The director shall establish an administrative appeal procedure whereby individual industrial users may have an opportunity to be heard regarding the reasonableness of the allocations and industrial cost recovery assessments imposed upon them.

(l) *Conformance with federal regulations.* The industrial cost recovery system shall be in conformance with the requirements set forth in 40 CFR 35.928, as amended, or any future provision replacing such provisions.
(Comp. Ords. as Rev. 12-1999, § 25.169)

Sec. 32-135. Miscellaneous stormwater discharges.

(a) No person shall discharge or cause or permit to be discharged into the wastewater system any unpolluted waters, or any stormwater, ground water, roof drain runoff, subsurface drainage, footer drain discharge, cooling water, or similar liquid.

(b) Whenever the director shall find that any provision of this section is being violated, he shall issue a written order to the person responsible for such condition to remove such connectors or drains from such sanitary sewer and to cease such unlawful discharge within 90 days after service of such order.

(c) The service of such order, as provided in subsection (b) of this section, may be made upon the person to whom it is directed, either by delivering the order to and leaving it with any person in charge of the premises or by affixing a copy thereof in a conspicuous place on the entrance of such premises.

(d) Stormwater and other unpolluted drainage shall be discharged to such sewers as are specifically designated as storm sewers or to a natural outlet approved by the director and other regulatory agencies. Unpolluted industrial cooling water or process waters may be discharged, on approval of the director and other regulatory agencies, to a storm sewer or natural outlet.
(Comp. Ords. as Rev. 12-1999, § 25.170)

Sec. 32-136. Service charges.

(a) The rates to be charged for wastewater service furnished by the wastewater system shall be established by the City of Kalamazoo pursuant to the wastewater service agreement between the township and the City of Kalamazoo and any amendments thereto.

(b) The owner of any building or a premises receiving water from any source other than a township water system shall register the building or premises with the director and shall, unless the owner is offered the option by the director of having wastewater service charge determined on the basis of estimated flow and accepts such option, arrange to have suitable metering facilities installed at his own expense to measure such private supply. All meters shall be provided, maintained, and read by the City of Kalamazoo Water Department, for which the customer shall be charged the applicable water service charge in addition to the established charges for wastewater services. In any interim period allowed by the director prior to such installation, the director may establish such charges as he deems equitable, considering the anticipated wastewater discharge.

(c) Any user of the wastewater system may elect to rearrange his water supply pipes and metering for the purposes of eliminating from the total water consumption applicable to wastewater charges the water not running to the sanitary sewers. All such arrangements shall be made subject to the approval of the director and the expense thereof, including installation, maintenance, and operation shall be borne by the user.

(d) No statement contained in this section shall be construed as preventing any special agreement or arrangement between the township and any industrial user whereby any industrial waste of unusual strength or character may be accepted by the township for treatment. Any user who enters into a special agreement or arrangement with the township shall be subject to all user and industrial cost recovery charges as set forth in this division in addition to the costs or fees established in the special agreement. No special agreement shall be entered into which is in conflict with section 307 of Public Law 92-500 or with any other state or federal law or regulation.

(e) The township reserves the right to impose a surcharge for the cost of any reconstruction or repair of the system or any part thereof not provided by the City of Kalamazoo pursuant to the wastewater service agreement between the township and the City of Kalamazoo and any amendments thereto and not provided by the City of Portage pursuant to the sanitary sewer transport agreement between the township and the City of Portage and any amendments thereto. The township shall notify the City of Kalamazoo of any surcharges for purposes of billing to customers within the township's jurisdiction.
(Comp. Ords. as Rev. 12-1999, § 25.171; Ord. No. 328, § 3, 11-13-2017)

Sec. 32-137. Establishment of user rates.

(a) Each user of the treatment works shall pay charges at a rate which shall be established by the City of Kalamazoo pursuant to the wastewater service agreement between the township and the City of Kalamazoo and any amendments thereto.

(b) In addition to such rates, each user shall pay the charges for miscellaneous service and monitoring as determined by the director. The charges may be revised by the director whenever in his option it is deemed appropriate. All charges shall be paid to the township treasurer, and all funds received as a result of the miscellaneous charges will be credited to the wastewater system receiving account.

(c) Any person who is responsible for discharging prohibited material shall be charged the actual expense incurred by the township for the handling, treatment, and/or removal of such material in the wastewater system.

(d) Any person who is responsible for damage to the wastewater system shall be charged the full cost or repair of the damage to the wastewater system. The cost shall include but is not limited to labor, equipment, materials, administrative expense, interest on borrowed funds, engineering, legal or other professional fees, and charges to the township by other utilities or departments.
(Comp. Ords. as Rev. 12-1999, § 25.172; Ord. No. 328, § 4, 11-13-2017)

Sec. 32-138. Billing.

Wastewater service charges shall be billed by the City of Kalamazoo pursuant to the wastewater service agreement between the township and the City of Kalamazoo and any amendments thereto.
(Comp. Ords. as Rev. 12-1999, § 25.173; Ord. No. 328, § 5, 11-13-2017)

Sec. 32-139. Due dates and penalties.

All charges for wastewater service shall become due and payable on the date indicated on each bill.
(Comp. Ords. as Rev. 12-1999, § 25.174; Ord. No. 328, § 6, 11-13-2017)

Sec. 32-140. Liens and collection of delinquent accounts.

The charges for wastewater service are hereby recognized to constitute a lien on the premises receiving such service. Whenever any such charge against any property shall be delinquent for six months, the township treasurer may certify to the tax assessing officer of the township the fact of such delinquency, whereupon such charge shall be entered upon the next tax roll as a charge against such premises and shall be collected and the lien thereof enforced in the same manner as general township taxes against such premises are collected and the lien thereof enforced. Nothing in this section, however, shall be deemed to prevent the township from suing in a court of law to collect the amount due for wastewater service charges. In addition to the other remedies provided in this section, the township shall have the right to shut off and discontinue the supply of water to any premises or to shut off the wastewater discharge into the public sewer system for the nonpayment of the wastewater service charges when due.
(Comp. Ords. as Rev. 12-1999, § 25.175)

Sec. 32-141. Sanctions.

Any violation of the provisions of this division shall constitute a municipal civil infraction as defined by state statute and shall be punishable by a civil fine determined in accordance with the schedule in section 18-62(a).
(Comp. Ords. as Rev. 12-1999, § 25.176)

Chapter 33

RESERVED

Chapter 34

WATERWAYS*

Article I. In General

Secs. 34-1—34-30. Reserved.

Article II. Atwater Pond Watercraft Control

Sec. 34-31. Definitions.
Sec. 34-32. Use of electric motors.
Sec. 34-33. Sanctions.

***Cross references—**Buildings and building regulations, ch. 6; community development, ch. 8; environment, ch. 10; littering property or water prohibited, removal of injurious substances dropped on highway as result of accident, § 10-92; land divisions and subdivision control, ch. 16; parks and recreation, ch. 24; zoning, ch. 36.

State law references—Watercraft and marine safety, MCL 324.80101 et seq.; wetlands protection, MCL 324.30301 et seq.

ARTICLE I. IN GENERAL

Secs. 34-1—34-30. Reserved.

ARTICLE II. ATWATER POND WATERCRAFT CONTROL

Sec. 34-31. Definitions.

All words and phrases used in this article shall be construed and have the same meanings as those words and phrases defined in part 801 of Public Act No. 451 of 1994 (MCL 324.80101 et seq.).
(Comp. Ords. as Rev. 12-1999, § 20.151)

Cross reference—Definitions generally, § 1-2.

Sec. 34-32. Use of electric motors.

On the waters of Atwater Pond, WC-39-89-001, Section 1, Township 35, Range 12W, Texas Charter Township, Kalamazoo County, it is unlawful to operate a vessel powered by a motor except an electric motor.
(Comp. Ords. as Rev. 12-1999, § 20.152)

State law reference—Special local regulations, MCL 324.8108 et seq.

Sec. 34-33. Sanctions.

Any person, firm, association, partnership, corporation or governmental entity who violates any of the provisions of this article shall be deemed to be responsible for a municipal civil infraction as defined by state statute which shall be punishable by a civil fine determined in accordance with the schedule in section 18-62(a).
(Comp. Ords. as Rev. 12-1999, § 20.154)

Chapter 35

RESERVED

Chapter 36

ZONING

A new zoning Ordinance can be found at the city's site, located here: http://www.texastownship.org

APPENDIX A

FRANCHISES*

*Cross reference—Community development, ch. 8.

APPENDIX A—FRANCHISES

The following franchises granted by the township are currently in effect:

	Franchise	*Ord. No.*	*Date*	*Term*
(1)	Michigan Power Company (Electric)	78	12-13-1982	30 years
(2)	Consumers Power Company (Gas and/or Electric)	102	4-11-1988	30 years
(3)	Fruitbelt Electric Corporation (Electric)	167	6-2-1998	30 years
(4)	Midwest Energy Corporation (Gas)	186	9-27-1999	30 years

CODE COMPARATIVE TABLE

COMPILED ORDINANCES

This table gives the location within this Code of those sections of the Compiled Ordinances, as revised through December 1999, which are included herein. Sections of the Compiled Ordinances, as revised, not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

Compiled Ordinances Section	Section this Code	Compiled Ordinances Section	Section this Code
12.051	2-116	15.169	36-87
12.052	2-117	15.170	36-88
12.053	2-118	15.172	36-121
12.054	2-119	15.173	36-122
12.055	2-120	15.174	36-123
12.056	2-121	15.175	36-124
12.101	18-31	15.176	36-125
12.102	18-32	15.177	36-126
12.103	18-33	15.178	36-127
12.104	18-34	15.179	36-128
12.105	18-35	15.180	36-129
12.252	2-141	15.191	36-161
12.253	2-142	15.193	36-181
12.254	2-143	15.194	36-182
12.255	2-144	15.195	36-183
12.302	18-61	15.196	36-184
12.303	18-62	15.198	36-201
12.304	18-63	15.199	36-202
12.305	18-64	15.200	36-203
12.306	18-65	15.201	36-204
12.307	18-66	15.203	36-221
15.031	36-1	15.204	36-222
15.040	36-2	15.205	36-223
15.121	36-31	15.206	36-224
15.122	36-32	15.208	36-241
15.123	36-33	15.209	36-242
15.124	36-34	15.210	36-243
15.141	36-51	15.211	36-244
15.142	36-52	15.213	36-261
15.143	36-53	15.214	36-262
15.144	36-54	15.215	36-263
15.161	36-81	15.216	36-264
15.162	36-82	15.218	36-281
15.163	36-83	15.219	36-282
15.164	36-84	15.220	36-283
15.165	36-85	15.221	36-284
15.167	36-86	15.223	36-301

Compiled Ordinances Section	Section this Code
15.224, 15.224A	36-302, 36-303
15.225	36-304
15.226	36-305
15.228	36-321
15.229	36-322
15.230	36-323
15.231	36-324
15.233	36-341
15.234	36-342
15.236	36-361
15.237	36-362
15.238	36-363
15.239	36-364
15.241	36-381
15.242	36-382
15.243	36-383
15.244	36-384
15.246	36-401
15.247	36-402
15.248	36-403
15.249	36-404
15.251	36-421
15.252	36-422
15.253	36-423
15.254	36-424
15.256	36-441
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15.258	36-443
15.259	36-444
15.261	36-461
15.262	36-462
15.263	36-463
15.264	36-464
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15.267	36-482
15.268	36-483
15.269	36-484
15.271	36-501
15.272	36-502
15.273	36-503
15.274	36-504
15.275	36-505
15.276	36-506
15.277	36-507
15.281	36-526
15.282	36-527
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15.284	36-529
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15.286	36-531
15.287	36-532
15.288	36-533
15.289	36-534
15.289.1—15.289.6	36-535—36-540
15.291(A)—15.291(E)	36-626—36-630
15.292(A)—15.292(M)	36-646—36-658
15.293	36-581
15.293.1	36-582
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15.295	36-584
15.296	36-585
15.297	36-586
15.299	36-721
15.300	36-722
15.301	36-723
15.302	36-724
15.303	36-587
15.304(A)—15.304(F)	36-696—36-701
15.321(A)—15.321(C)	36-861—36-863
15.341	36-3
15.350	36-606
15.361	36-725
15.371	36-751
15.372	36-752
15.373	36-753
15.374	36-754
15.375	36-755
15.391—15.391(j)	36-781—36-791
15.392—15.392(I)	36-821—36-830
15.602	10-31
15.603	10-32
15.604	10-33
15.605	10-34
17.112	16-61
17.113	16-62
17.121	16-81
17.122	16-82
17.123	16-83
17.124	16-84
17.125	16-85
17.126	16-86
17.127	16-87

Compiled Ordinances Section	Section this Code	Compiled Ordinances Section	Section this Code
17.128	16-88	20.402	10-61
17.151	16-63	20.403	10-62
17.161	16-64	20.404	10-63
17.202	16-31	20.406	10-64
17.203	16-32	20.452	10-92
17.204	16-33	20.453	10-94
17.205	16-34	20.454	10-95
17.206	16-35	20.502	4-31
17.207	16-36	20.503	4-32
17.208	16-37	20.552	28-81
17.209	16-38	20.553	28-82
20.021	14-31	20.554	28-83
20.022	14-32	20.555	28-84
20.023	14-33	20.556	28-85
20.031	14-34	20.557	28-86
20.032	14-35	20.558	28-87
20.033	14-36	20.559	28-88
20.034	14-37	20.560	28-89
20.035	14-38	20.561	28-90
20.036	14-39	20.562	28-91
20.037	14-40	20.563	28-92
20.038	14-41	20.564	28-93
20.039	14-42	20.565	28-94
20.040	14-43	20.566	28-95
20.051	14-44	20.567	28-96
20.055	14-45	20.568	28-97
20.061	14-46	20.569	28-98
20.151	34-31	20.601	30-31
20.152	34-32	20.650	30-32
20.154	34-33	22.016	6-36
20.212	14-71	25.002	32-46
20.213	14-72	25.003	32-47
20.221	14-73	25.004	32-48
20.222	14-74	25.102	32-66
20.223	14-75	25.103	32-67
20.231	14-76	25.104	32-68
20.302	22-1	25.105	32-69
20.303	22-2	25.151	32-116
20.304	22-3	25.152	32-117
20.305	22-4	25.153	32-118
20.306	22-5	25.154	32-119
20.307	22-6	25.155	32-120
20.308	22-7	25.156	32-121
20.309	22-8	25.157	32-122
20.310	22-9	25.158	32-123
20.311	22-10	25.159	32-124
20.312	22-11	25.160	32-125
20.313	22-12	25.161	32-126
20.314	22-13	25.162	32-127

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25.173	32-138
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25.176	32-141
35.102	26-31
35.105	26-32
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35.301	26-76
35.302	26-77
35.303	26-78
35.304	26-79
35.305	26-80
35.306	26-81
35.401	26-34
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35.502	26-52
35.503	26-53
35.504	26-54
35.505	26-55
35.506	26-56
35.507	26-57
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40.003	6-62
40.004	6-63
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40.106	12-74
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CODE COMPARATIVE TABLE

ORDINANCES

This table gives the location within this Code of those ordinances adopted since the Compiled Ordinances, as revised through December 1999, which are included herein. Ordinances adopted prior to such date were incorporated into the Compiled Ordinances, as revised. This table contains some ordinances which precede December 1999, but which were never included in the Compiled Ordinances, as revised, for various reasons. Ordinances adopted since December 1999, and not listed herein have been omitted as repealed, superseded or not of a general and permanent nature.

Ordinance Number	Date	Section	Section this Code
152	9-25-1995		30-32
185	9-28-1999		30-32
188	10-11-1999	I(9.10(A))—I(9.10(C))	36-676—36-678
189	10-25-1999	II—XIX	12-31—12-48
190	11- 8-1999	I	36-382
191	1-10-2000	II—VI	2-161—2-165
192	4-28-2000	II—IX	8-31—8-38
193	5-20-2000	II—VI	8-61—8-65
194	6-26-2000	II—V	24-31—24-34
195	7-10-2000	I	36-652
196	8-28-2000	I	36-652
197	9-25-2000	I(9.10(F))	36-701
198	10-23-2000	I	36-383
200	12-18-2000	I(9.10(F))	36-701
201	2-26-2001	I(A)—(C)	16-32—16-34
		(E), (F)	16-35, 16-36
		(G)	16-37, 16-38
202	4- 9-2001	I	36-85
203	4-23-2001	II—XXVII	28-31—28-56
205	7- 9-2001	II—VII	6-31—6-36
206	8-27-2001	II—V	12-99—12-102
		VI	12-103
			24-35
		VII—XI	12-104—12-108
207	12-17-2001	I(1)	12-103(e), (g)
		(2)	12-104(d)
		(3)	12-105(a), (e)
208	1-28-2002	II	2-143
212	3-25-2002	I	36-85
213	4- 8-2002	I	2-162
		II	2-164
		III	2-165

Ordinance Number	Date	Section		Section this Code
214	5-13-2002			Adopting ordinance, p. xi
215	5-13-2002	I		36-586(a)(3)
216	9-23-2002	I		36-676
		II1, 2		36-678(a), (d)
		III		36-629(3)
217	11-12-2002	I		36-161(a)
		II	Added	36-541—36-544
		III		36-606
218	1-13-2003	I		16-81(3)
219	2-24-2003	I(1)		36-125(2)
		I(2)	Added	36-731—36-733
220	2-24-2003	I—III	Added	30-60—30-62
221	4-14-2003	I		12-103(e)
222	5-12-2003	I(1)	Added	36-183(9)
		I(2)	Added	36-740—36-750
		I(3)		36-463(3)
		I(4)		36-725
224	6-23-2003	I		36-586(a)(2)
		IIa)—h)		36-606
		III		36-629(4)
		IV	Added	36-539(c)
		V		36-542(2)a.1.
225	10-27-2003	I		36-544(2)
228	12- 8-2003	I		36-2
		II	Added	36-52(2)b.
229	12-22-2003	I		36-2
230	2-23-2004	I(Sec. 1—5)	Added	36-750.1—36-750.5
		II	Added	36-423(4)
231	3-22-2004	II		36-528(e)
		IIIA., B.		36-699(2)b.1., f.
233	4-26-2004	I		36-2
		II		36-586
		III		36-203
		IV		36-223
		V		36-669(2)Table 2
234	6-14-2004	II		36-606, footnote 12
236	8-23-2004	I	Added	36-130
		II1.	Added	36-122(a)(10)
		II2.		36-542(1)f.
		II3.		36-2
		II4.		36-82(c)
		II5.	Added	36-536(7)
237	9-13-2004	I1.		36-606, Footnote 14

Ordinance Number	Date	Section		Section this Code
		I2.		36-606
		II1.		36-123(h)
		II2.		36-123(4)
238	10-11-2004	I1.		12-102(b)
		I2.		12-103(e)
239	2-14-2005	I(1)		36-161
		I(2)	Added	36-205—36-208
		I(3)		36-528
		I(4)		36-541
		I(5)		36-606
		II(1)		36-161
		II(2)	Added	36-545—36-549
		II(3)		36-606
240	5-23-2005	IIA.		36-130(e)(3)a.iii.
		IIB.		36-536(2)
		IIC.		36-544(2)
244	11-28-2005	II1.—II3.		36-606
245	1- 9-2006	I1.		16-81
		I2.		16-82(a)
		I3.		16-86(8)
246	2-27-2006	I1.		36-2
		I2.		36-323(4)
		I3.		36-362(8)
		I4.		36-363
		I5.		36-402(6)
		I6.		36-403
		I7.	Added	36-630(11)
		I8.		36-725
247	8-28-2006	1	Added	36-606, footnote (17)
248	9-11-2006	I		36-12(C)
			Added	(d), (e)
250	1-22-2007	I(1)		36-52(2)a.
		I(2)		36-122(c)
		I(4)		36-123(3)g.
		I(5)		36-124
		I(6)		36-126(a)
		I(7)		36-130(e)(3)a.v.(5)
		I(7)	Added	36-182(7)
		I(8)		38-183(1)
		I(9)	Added	36-202(6)
		I(10)	Added	36-222(6)
		I(11)	Added	36-242(6)
		I(12)	Added	36-262(7)
		I(13)	Added	36-282(5)
		I(14)	Added	36-302(3)

Ordinance Number	Date	Section		Section this Code
		I(15)		36-303
		I(16)	Added	36-323
		I(17)	Added	36-343
		I(18)	Added	36-344
		I(19)	Added	36-363(13)
		I(20)	Added	36-423(5)
		I(20)	Added	36-443(3)
		I(21)	Added	36-463(10)
		I(22)		36-528(c)
		I(23)		36-531(f)
		I(24)	Rpld	36-535(2)
		I(25)		36-536
		I(26)		36-541
		I(27)		36-542(2)b.1.
		I(28)	Added	36-548(5)
		I(29)	Added	36-549(6)
		I(30)		36-629(4)
		I(31)	Added	36-652(4)
		I(32)		36-722(b)
		I(33)		36-725
		I(34)	Added	36-726—36-730
253	6-11-2007	I1.	Added	36-588
		I2.		36-606, footnote (17)
256	9-24-2007	I1.		26-33
		I2.		26-51
		I3.—I5.		26-76—26-78
		I6., I7.		26-80, 26-81
258	3-10-2008	I		32-46(c)(5)
259	5-12-2008	I—III	Added	12-131—12-133
260	5-12-2008	I		36-2, 36-82(c)(1)
				36-83, 36-123
				36-127
				36-130(e)(1)b.
				36-183(10)
				36-303
				36-323(7)
				36-343
				36-363(14)
				36-423(6)
				36-443(4)
				36-463(11)
				36-503(2), (3)
				36-504
				36-506(2)c.
				36-547(12)
				36-629(4)a.—c.

Ordinance Number	Date	Section		Section this Code
				36-648, 36-649
				36-652(5), (7), (8), (12), (14), (15)
				36-654(5)
				36-656(2)
				36-676
			Added	36-702—36-705
				36-725
261	9- 8-2008	I—III	Added	12-131—12-133
262	10-27-2008	I		8-34
263	10-27-2008	I	Added	12-133(g)
264	12-22-2008	I—XIII	Added	2-211—2-224
265	2- 9-2009	1		36-2
		2		36-363(1)
			Added	36-363(15)
		3	Added	36-383(3)
		4		36-725
			Added	36-725 11.
267	6-22-2009	1		36-725 9.a.
268	7-13-2009	1		2-143
269	7-13-2009	1		36-2
		2		36-33
		3		36-123(1)—(4)
		4		36-130(e)(3) a, v.
			Rpld	36-130(e)(3) a. v. (6)
			Added	36-130(e)(3)a. vi.
		5		36-182(1)
				36-182(6)
		6	Added	36-183(11), (12)
		7		36-202(1), (5)
		8		36-222(1), (5)
		9	Rpld	36-223(2)
			Rnbd	36-223(3)
			as	36-223(2)
		10		36-242(1), (5)
		11		36-262(1), (6)
		12	Added	36-263(1)
		13		36-282(4)
		14		36-283
		15		36-302(2)
		16		36-546
		17		36-547
		18		36-548
		19		36-549
		20		36-585

Ordinance Number	Date	Section		Section this Code
		21		36-586(a)
		22		36-606
		23		36-629(10), (11)
		24		36-733
270	1-25-2010	1A)—S)		36-2
		2		36-130(e)(3)a.v.
		3		36-123(3)g.
		4		36-183(11)
		5		36-403(2)
			Rpld	36-403(4)—(7)
		6	Added	36-423(7), (8)
		7		36-462(1)
		8		ch. 36, art. V, div. 19(tit.)
		9		36-526
		10A.		36-527(a)
		B.		36-527(b)
		C.		36-527(d)
		11A.		36-528(a)
		B.		36-528(b)
		C.		36-528(c)
		E., F.		36-528(e)
		12A)		36-529(b)
		B)		36-529(d)
		C)		36-529(f)
		13		36-530(11)
		14A)		36-531(a)
		B)		36-531(b)
		C)		36-531(c)(4)
		D)		36-531(d)
		E)		36-531(d)(14)
		15A), B)		36-532
		C)		36-532(1)
		16A)		36-533(a)
		B)		36-533(c)
		17A)		36-534(a)
		B)		36-534(b)
		18		36-535
		19		36-536
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